BILL DRAFTING GUIDEBOOK FOR THE BANGSAMORO PARLIAMENT

A Practical Guide for Members of Parliament, Parliamentary and Legislative Staff, Bill Drafters, and Consultants

Saidamen R. Mambayao

BANGSAMORO PARLIAMENT

BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

Bangsamoro Government Center, Cotabato City

Table of Contents

Introduction

How to Use This Manual

A Note to the Drafter

Chapter 1 — The Bangsamoro Parliament and Its Legislative Power

1.1 The Parliament Under the Bangsamoro Organic Law

1.1.1 Creation and Mandate

1.1.2 Composition and Structure

1.1.3 The Bangsamoro Autonomy Act as the Parliament's Legislative Output

1.2 The Hierarchy of Laws in the Bangsamoro

1.2.1 The 1987 Constitution

1.2.2 The Bangsamoro Organic Law (Republic Act No. 11054)

1.2.3 National Laws and Their Implementing Rules and Regulations

1.2.4 Bangsamoro Autonomy Acts

1.2.5 Executive Orders, Administrative Orders, and Regulations

1.2.6 Local Ordinances

1.3 Scope and Limitations of Bangsamoro Legislative Power

1.3.1 Enumerated Powers (BOL Article V, Section 2)

1.3.2 The General Welfare Clause (BOL Article V, Section 3)

1.3.3 The Residual Clause: Powers Reserved to Congress

1.3.4 Areas of Overlapping Authority

1.3.5 Judicial Doctrines Affecting Bangsamoro Legislation

1.3.6 What This Means for the Drafter

1.4 Shari'ah in Bangsamoro Legislation

1.4.1 BOL Provisions on Shari'ah

1.4.2 When Shari'ah Considerations Apply

1.4.3 Practical Guidance for Drafters

Chapter 2 — From Legislative Directive to Bill: The Drafting Process

2.1 Overview: Seven Stages from Legislative Directive to Filing

2.2 Stage 1 — Legislative Directive

2.2.1 Receiving the Legislative Direction

2.2.2 Documenting the Initial Legislative Template

2.2.3 Aligning with the MP's Legislative Agenda

2.2.4 Securing MP Approval of the Initial Legislative Template
2.3 Stage 2 — Legislative Research
2.3.1 Gathering Legislative Requirements
2.3.2 Working with the Policy Research and Legal Services (PRLS)
2.3.3 Conducting Policy and Legal Research
2.3.4 Preparing the Legislative Research Briefer
2.3.4.1 Brief Description of the Proposed Measure
2.3.4.2 Related Laws and Issuances
2.3.4.3 Policy and Legal Analysis
2.3.4.4 Impact Assessment
2.3.4.5 Shari'ah and Gender Considerations
2.3.4.6 Recommendations
2.4 Stage 3 — Preparing the First Draft
2.4.1 Preparing the Working Outline
2.4.2 Drafting the Bill
2.4.3 Preparing the Comparative Matrix
2.4.4 Review of the First Draft
2.5 Stage 4 — Consultation
2.5.1 Interviews and Roundtable Discussions with Experts
2.5.2 Consultation with Concerned Implementing Agencies
2.5.3 Consultations with Concerned Sectors and Constituencies
2.6 Stage 5 — Review and Revision
2.6.1 Reviewing Research and Consultation Findings
2.6.2 Assessing Impact on the First Draft
2.6.3 Identifying and Addressing Gaps
2.6.4 Revising the First Draft
2.7 Stage 6 — Presentation and Finalization with the MP
2.7.1 Presenting the Revised Draft to the MP
2.7.2 Incorporating MP Comments
2.7.3 Finalizing the Draft
2.8 Stage 7 — Co-Authorship and Filing
2.8.1 Identifying and Inviting Potential Co-Authors
2.8.2 Presenting the Draft to Co-Authors
2.8.3 Incorporating Co-Author Comments
2.8.4 Securing Co-Author Approval
2.8.5 Filing the Final Draft with the Bills and Index Division
2.8.6 Circulating the Filed Bill to Co-Authors
2.9 Process Flowchart: From Legislative Directive to Filing

Chapter 3 — Anatomy of a Bill

3.1 Overview: The Two-Part Structure
3.1.1 The Explanatory Note

3.1.2 The Main Body
3.2 The Caption and Bill Number
3.3 The Long Title
3.3.1 Purpose and Requirements
3.3.2 The One Subject, One Title Rule
3.3.3 Tips for Writing the Long Title
3.3.4 Common Mistakes in Long Titles
3.4 The Enacting Clause
3.5 Preliminary Provisions
3.5.1 Short Title
3.5.2 Declaration of Policy
3.5.3 Tips for Writing the Declaration of Policy
3.5.4 Definition of Terms
3.5.5 Tips for Writing Definitions
3.5.6 Scope and Coverage
3.6 Substantive Provisions
3.6.1 Organizing the Substance of the Bill
3.6.2 Numbering and Subdivisions
3.6.3 Cross-References
3.6.4 Tips for Writing Substantive Provisions
3.7 Administrative Provisions
3.7.1 Implementing Agencies and Mechanisms
3.7.2 Reporting and Oversight Requirements
3.7.3 Rule-Making and IRR Authority
3.7.4 Tips for Writing Administrative Provisions
3.8 Enforcement Provisions
3.8.1 Criminal Penalties
3.8.2 Civil Penalties
3.8.3 Administrative Sanctions
3.8.4 Tips for Writing Enforcement Provisions
3.9 Final Provisions
3.9.1 Appropriation
3.9.2 Transitory Provisions
3.9.3 Sunset Clause
3.9.4 Saving Clause
3.9.5 Separability Clause
3.9.6 Repealing Clause
3.9.7 Effectivity Clause
3.9.8 Tips for Writing Final Provisions

Chapter 4 — Special Bill Types

4.1 Appropriation Bills

4.1.1 Constitutional and BOL Requirements
4.1.2 Structure of an Appropriation Bill
4.2 Revenue and Tax Measures
4.3 Bills Creating Government Bodies
4.3.1 Structure and Composition
4.3.2 Powers and Functions
4.3.3 Funding
4.4 Regulatory and Licensing Bills
4.5 Codification Bills (Priority Codes)
4.6 Local and Special Bills

Chapter 5 — Resolutions

5.1 How Resolutions Differ from Bills
5.2 Types of Resolutions
5.2.1 Proposed Resolutions
5.2.2 Joint Resolutions
5.2.3 Concurrent Resolutions
5.2.4 Resolutions with the Force of Law
5.3 The Resolution Drafting Process
5.3.1 How the Process Differs from Bills
5.3.2 When the Full Legislative Process Applies
5.3.3 Simplified Process for Simple and Concurrent Resolutions
5.4 Anatomy of a Resolution
5.4.1 The WHEREAS Preamble
5.4.2 Deductive Ordering of Recitals
5.4.3 The Operative Clause
5.4.4 Common Mistakes in Resolutions
5.5 Resolution No. 268 as Governing Framework

Chapter 6 — Legislative Style

6.1 Writing for the Reader
6.1.1 The Implementer's Perspective
6.1.2 The Citizen's Perspective
6.2 Clarity and Simplicity
6.2.1 Plain Language in Legislation
6.2.2 Avoiding Ambiguity
6.3 Internal Consistency
6.3.1 Consistent Use of Terms
6.3.2 Consistent Structure Across Provisions
6.4 Completeness
6.4.1 Checking for Gaps in Coverage

6.4.2 Ensuring Every Duty Has an Accountable Body
6.4.3 Ensuring Every Violation Has a Consequence
6.5 Writing Provisions That Can Be Enforced
6.6 Avoiding Common Pitfalls
6.6.1 Over-Legislation
6.6.2 Vague Delegations of Authority
6.6.3 Unfunded Mandates
6.7 Learning from Enacted BAAs
6.8 The Structure of a Legal Rule
6.8.1 Legal Subject, Legal Action, and Conditions
6.8.2 The Exception-Case-Condition-Rule Pattern
6.8.3 Three Types of Normative Provisions
6.9 Shall, May, and Must
6.9.1 When to Use Each
6.9.2 Common Errors
6.10 Normative vs. Aspirational Language
6.11 Active Voice and Present Tense
6.11.1 Why Active Voice
6.11.2 Converting Passive to Active
6.12 Sentence Length and Structure
6.12.1 One Idea Per Sentence
6.12.2 Breaking Long Provisions into Lists
6.13 Drafting Definitions
6.13.1 "Means" vs. "Includes"
6.13.2 The Substitution Test
6.13.3 What Not to Define
6.14 Using Lists in Legislation
6.14.1 Conjunctive Lists ("and")
6.14.2 Disjunctive Lists ("or")
6.14.3 Formatting and Punctuation of Lists
6.15 Punctuation
6.16 Capitalization
6.17 Abbreviations and Acronyms
6.18 Legal Citation
6.18.1 Citing the BOL and the Constitution
6.18.2 Citing National Laws and IRRs
6.18.3 Citing BAAs and Resolutions
6.18.4 Internal Cross-References
6.19 Words and Phrases to Avoid
6.19.1 Archaic Legalisms
6.19.2 Redundant Doublets
6.19.3 Vague and Ambiguous Terms

6.20 Numbers, Dates, and Amounts
6.21 Consistency in Terminology
6.21.1 One Term, One Meaning
6.21.2 Aligning with BOL and Existing BAA Terminology

Chapter 7 — How a Bill Becomes a Bangsamoro Autonomy Act

7.1 Types of Legislative Measures
7.1.1 Government Bills
7.1.2 Private Member Bills
7.1.3 Resolutions
7.1.4 Other Measures
7.2 First Reading
7.2.1 Reading of Number, Title, and Author
7.2.2 Declaration as Government Bill or Private Member Bill
7.3 Second Reading
7.3.1 Reading of the Bill
7.3.2 Authorship Speech (Explanatory Statement)
7.3.3 Referral to the Appropriate Committee
7.4 Committee Stage
7.4.1 Examination and Scrutiny of the Bill
7.4.2 Committee Hearings, Consultations, and Investigations
7.4.3 Committee Amendments
7.4.4 The Committee Report
7.5 Consideration and Deliberation Stage
7.5.1 Period of Debate
7.5.2 Period of Interpellation
7.5.3 Period of Floor Amendments
7.5.4 Voting on Second Reading
7.6 Third Reading and Final Passage
7.6.1 Final Debate
7.6.2 Voting and Passage
7.7 Post-Passage: Enrollment and Executive Action
7.7.1 Enrollment and Authentication
7.7.2 Transmittal to the Chief Minister
7.7.3 Approval, Veto, and Inaction
7.8 Swift Passage Procedure
7.9 The Order of Business
7.10 Flowchart: From Filing to Enactment

Chapter 8 — Preparing a Legislative Briefer

8.1 Purpose and Use of the Legislative Briefer

8.2 When to Prepare a Briefer
8.2.1 For Bills Being Drafted by the MP's Office
8.2.2 For Bills Filed by Other Members of Parliament
8.2.3 For Committee Referrals and Hearings
8.2.4 For Interpellation and Plenary Deliberation
8.3 The Legislative Analysis
8.3.1 Brief Description of the Measure
8.3.2 Related Laws, Issuances, and Specific Provisions
8.3.3 Impact Assessment and Alignment with the MP's Agenda
8.3.4 Implementing Agencies
8.3.5 Implementation Mechanisms and Timeline
8.3.6 Budgetary and Financial Implications
8.3.7 Highlights of Previous Proceedings
8.4 Preparing for Interpellation
8.4.1 Structuring Interpellation Questions
8.4.2 Anticipating Answers
8.4.3 Preparing Follow-Up Manifestations
8.5 Preparing Proposed Amendments
8.5.1 Identifying Issues from the Analysis
8.5.2 Drafting the Amendment
8.5.3 Justification for Each Amendment
8.5.4 Summary of Proposed Amendments
8.6 Preparing the MP's Position
8.6.1 Brief Speech or Manifestation of Position
8.6.2 The 1-Minute Vote Manifestation
8.7 Matters for Information of the MP
8.8 Action Log and Approval

Chapter 9 — Budget Legislation and Preparing a Budget Briefer

9.1 Purpose and Use of the Budget Briefer
9.2 When to Prepare a Budget Briefer
9.2.1 For the Annual Budget Deliberation
9.2.2 For Committee on Finance Hearings
9.2.3 For Plenary Budget Deliberation
9.3 Agency Profile
9.3.1 Ministry, Agency, or Office
9.3.2 Mandate and Legal Basis
9.3.3 Overall Development Goals
9.4 Organizational Outcomes and Performance Indicators
9.4.1 Listing and Defining KPIs
9.4.2 Alignment with Bangsamoro Development Goals
9.4.3 Baseline Data and Targets

9.5 Budget Comparison and Variance Analysis
9.5.1 Personnel Services (PS)
9.5.2 Maintenance and Other Operating Expenses (MOOE)
9.5.3 Capital Outlay (CO)
9.5.4 Identifying and Explaining Variances
9.5.5 Gender and Development (GAD) Budget Review
9.6 Existing Programs, Projects, Activities, and Services (Tier 1)
9.6.1 Categorizing Existing PPAS
9.6.2 Budget Allocation per PPAS
9.6.3 Performance Evaluation of Existing PPAS
9.7 New and Expanded Programs, Projects, Activities, and Services (Tier 2)
9.7.1 Categorizing New and Expanded PPAS
9.7.2 Rationale and Scope of Work
9.7.3 Budget Allocation and Priority Ranking
9.8 Budget Scrutiny Questions
9.9 Recommendations for the MP

Chapter 10 — Amendments

10.1 Types of Amendments
10.2 Committee Amendments
10.3 Floor Amendments
10.4 Drafting Amendment Language
10.4.1 Insertion
10.4.2 Deletion
10.4.3 Substitution
10.5 Substitute Bills

Chapter 11 — Quality Review

11.1 The Drafter's Self-Review Checklist
11.1.1 Legal Authority
11.1.2 Structure and Completeness
11.1.3 Language and Style
11.1.4 Internal Consistency
11.2 The Interpellation Test
11.3 Common Drafting Mistakes
11.4 Gender Sensitivity Review
11.5 Human Rights Review
11.6 BOL Compliance Review
11.7 Bangsamoro Parliamentary Conventions

Glossary of Legislative Terms

Appendices

A. Enumerated Powers of the Bangsamoro Government (BOL Article V, Section 2)
B. Sample Bangsamoro Autonomy Act (Annotated)
C. Sample Resolution (Annotated)
D. Pre-Drafting Checklist (Detachable)
E. Quality Review Checklist (Detachable)
F. Legislative Research Briefer Template
G. Budget Briefer Template

About This Guidebook

This guidebook was written for the people who draft the laws of the Bangsamoro Autonomous Region in Muslim Mindanao. It is designed for daily use — not as a textbook to be read once and shelved, but as a working reference to be consulted at every stage of the drafting process.

The guidebook covers the full lifecycle of a legislative measure in the Bangsamoro Parliament: from the moment a Member of Parliament issues a legislative directive, through research, consultation, drafting, review, co-authorship, and filing — and onward through the parliamentary stages of readings, committee scrutiny, deliberation, and passage into law. It also addresses the preparation of legislative briefers and budget briefers, the drafting of resolutions and amendments, and the standards of legislative style that govern how laws should be written.

Every provision cited from the Bangsamoro Organic Law (Republic Act No. 11054) and Resolution No. 268 (the Rules, Procedures, and Practices of the Bangsamoro Parliament) has been quoted verbatim from the source text. The drafting principles and style rules reflect established legislative drafting practice adapted to the specific context of Bangsamoro governance, Shari'ah considerations, and the parliamentary system established under the BOL.

This guidebook is written to be timeless. It applies equally to the Bangsamoro Transition Authority Parliament and to the elected Bangsamoro Parliament that will follow. Where procedures or conventions are specific to the transition period, the text says so. In all other respects, the guidance here is intended to serve any drafter working under the Bangsamoro Organic Law, regardless of when they read it.

Back to Table of Contents

About the Author

Saidamen "Sayeed" R. Mambayao has worked in governance, legislation, and cooperative development across the Bangsamoro region for over a decade.

Before the establishment of the Bangsamoro Autonomous Region, he served as a Consultant of the Cooperative Development Authority under the former Autonomous Region in Muslim Mindanao, where he led programs on cooperative development, Islamic finance, and executive leadership. He also served as Secretariat Head and Program Director of the Bangsamoro Executives and Leaders League (BELL), Inc., and held leadership roles in the ARMM Islamic Finance Sub-Cluster and the Bangsamoro Coalition on Social Enterprise.

When the Bangsamoro Transition Authority was established in 2019, he led the development and implementation of two BARMM flagship programs: the Access to Higher and Modern Education (AHME) Scholarship Program under the Ministry of Basic, Higher, and Technical Education, and the Engaging the SK, Empowering the Youth (ESKEY) Program under the Ministry of the Interior and Local Government. He later served as Chief of Staff at the Office of a Member of Parliament, where he assisted on legislative portfolios covering women, youth, children, persons with disabilities, cooperatives, social enterprises, and halal industries. He drafted and reviewed legislative measures on scholarships, cultural heritage preservation, assistance to Other Bangsamoro Communities, and cooperative and social enterprise development. He also served as OIC-Legislative Affairs at the Office of MP Sittie Fahanie S. Uy-Oyod.

He is the Founder of MoroTech and MoroAcademy, social enterprises empowering Bangsamoro organizations and communities through knowledge and technology, and the Founding Chairperson of the Bangsamoro Scholars Association. He also founded the SEED Initiative, a consultancy and training firm focused on cooperative and social enterprise development. He is an Active Citizen and graduate of the British Council's CSO-SEED Business and Investment Readiness Program.

Back to Table of Contents

Introduction

How to Use This Manual

This manual is a working tool. It belongs on your desk, not on a shelf. Keep it within reach when you sit down to draft a bill, review a committee report, or answer a question about how Bangsamoro legislation works.

The structure follows the life of a bill. It begins with the legal foundations of the Bangsamoro Parliament and moves through the drafting process from policy concept to enrolled act. Each chapter builds on the one before it, but you do not need to read the manual cover to cover. If you are drafting a revenue measure, go to the chapter on fiscal provisions. If you are struggling with a definitions section, go to the chapter on structure and style. If the Chief Minister has certified a bill as urgent, go to the chapter on the legislative process and find the rules that apply.

A few conventions will help you get the most out of it:

- **Verbatim BOL quotations** appear in blockquotes. These are taken directly from Republic Act No. 11054. When the manual quotes the Bangsamoro Organic Law, it reproduces the text exactly. Do not paraphrase legal text in your own drafts — if the BOL says something, quote it or cite it precisely.
- **Drafting rules** are stated plainly. Where a rule exists ("every bill shall embrace only one subject"), the manual tells you what it is and how to follow it. Where the rule leaves room for judgment, the manual explains what good judgment looks like.
- **Examples** are drawn from actual Bangsamoro Autonomy Acts. When a provision illustrates a point — good or bad — the manual names the BAA so you can read it yourself.
- **Practical guidance** sections appear throughout. These are labeled clearly and addressed to you. They tell you what to do, not what to think.

This manual does not replace the Parliament's Rules of Procedure. It does not replace the Constitution, the BOL, or the advice of the Attorney General's Office. It works alongside those authorities, not above them.

What This Manual Covers

The manual is organized into chapters that track the drafting process:

1. **The Bangsamoro Parliament and its legislative power.** What the Parliament can legislate on, what it cannot, and how to tell the difference.
2. **Types of legislative measures.** Bills, resolutions, codes, and appropriations — how they differ and when to use each.
3. **The anatomy of a bill.** The parts of a Bangsamoro Autonomy Act, from title to effectivity clause, and the rules that govern each one.
4. **Drafting style and language.** How to write clearly. Plain English. Consistent usage. The conventions that make Bangsamoro legislation readable.
5. **Common provisions.** Definitions, repealing clauses, separability clauses, appropriations, effectivity — the provisions that appear in nearly every bill and the mistakes drafters make with them.
6. **Special types of legislation.** Revenue measures, appropriations bills, codes, and local government measures each have their own rules. These chapters cover them.
7. **The legislative process.** From filing to enrollment. What happens to your bill at each stage and what the Rules of Procedure require.
8. **Amendment drafting.** How to amend existing BAAs without creating confusion.
9. **Working with the committee system.** How committee deliberations shape your draft and what a committee report should contain.

What This Manual Does Not Cover

This manual does not teach substantive policy. It does not tell you whether a particular tax rate is sound fiscal policy or whether a proposed program will work. Those are questions for policy analysts, economists, and the Members of Parliament who will vote on the bill. The drafter's job is to take a policy decision and express it in language that is clear, enforceable, and consistent with the Constitution and the BOL.

The manual also does not cover litigation strategy, judicial proceedings, or executive rulemaking in any depth. Those are separate disciplines. Where they intersect with drafting — judicial doctrines that affect what the Parliament can legislate, for example — the manual addresses them, but only to the extent they shape your work at the drafting table.

A Note to the Drafter

You are writing law for the Bangsamoro people.

That sentence deserves a moment of reflection. The bills you draft will affect farmers in Maguindanao del Sur and fishermen in Tawi-Tawi. They will shape how schools operate in Lanao del Sur and how businesses form in Cotabato City. They will determine the rights of indigenous peoples in the Special Geographic Area, the protections available to women across the region, and the structure of local government in communities where people have waited decades for genuine self-governance.

The Bangsamoro Autonomous Region is young. The Bangsamoro Organic Law was ratified in 2019. The Bangsamoro Transition Authority is still building the institutions that a future elected Parliament will inherit. Every BAA the Parliament enacts is, in a real sense, a first draft of the region's legal architecture. Some of these laws will be amended over time. Others will stand for generations. The quality of your drafting matters.

Three Practical Principles

Three principles should guide every bill you draft:

Write for the person who must follow the law. A bill is not a press release. It is not a policy statement. It is a set of instructions — to government officials, to private citizens, to courts — about what must be done, what may be done, and what is prohibited. Before you write any provision, ask: will the person who reads this know exactly what is required?

A farmer applying for an agricultural loan should be able to understand the eligibility requirements. A municipal treasurer collecting a tax should be able to determine the rate without guessing. A judge applying a penalty provision should find the elements of the offense stated clearly enough to apply.

If the language is ambiguous, somebody will have to interpret it. That interpretation will happen in a committee hearing, an executive order, a court proceeding, or a conversation at a barangay hall. Each layer of interpretation introduces the possibility of error. The fewer layers your bill requires, the better it serves the people it governs.

Respect the limits of legislative power. The Bangsamoro Parliament has broad authority. Article V of the BOL lists fifty-five subject areas. The general welfare clause adds more. But the Parliament's power is not unlimited. The Constitution sets boundaries. The BOL sets boundaries. National laws, where they apply, set boundaries. Judicial decisions — including recent Supreme Court rulings on redistricting and territorial jurisdiction — set boundaries.

Your job as drafter is to know where those boundaries are. When a policy idea pushes against a constitutional limit, say so. When a proposed provision conflicts with national law, flag it. When you are not sure whether the Parliament has authority over a subject, research it before you draft. Chapter 1 of this manual addresses these questions in detail, but no manual can substitute for the drafter's own diligence.

Be precise, not clever. Legal writing rewards precision. It does not reward elegance, novelty, or complexity for its own sake. Use short sentences when you can. Use defined terms consistently. Repeat the same word when you mean the same thing — do not use synonyms for variety. A bill that reads like a technical document is doing its job. A bill that reads like literature is probably doing it poorly.

This does not mean legal writing should be impenetrable. The opposite. The clearest legal writing is the writing that uses ordinary words in their ordinary meanings, structured in a way that eliminates doubt. When you must use a technical term, define it. When you must create a complex provision, break it into subsections. When a sentence runs past three lines, split it.

The Drafter's Role

In the Bangsamoro Parliament, as in most legislative bodies, the drafter often works behind the scenes. The Members of Parliament set policy. The committees deliberate. The Chief Minister and Cabinet bring executive priorities. The drafter takes all of that — the political mandate, the policy goals, the committee discussions — and turns it into a text that will carry the force of law.

This means you will sometimes draft provisions you disagree with. That is part of the job. Your obligation is not to impose your own policy preferences but to express the Legislature's intent as clearly and accurately as you can. When you see a legal problem — a constitutional issue, a conflict with an existing BAA, a gap in the enforcement mechanism — you should raise it. That is part of the job too. But the final policy decision belongs to the Members of Parliament.

It also means you must be willing to tell a committee or a Member that something cannot be done the way they want it done. Not every good policy idea translates into good legislation. Some objectives are better achieved through executive action, through intergovernmental coordination, or through amendments to existing law rather than new legislation. The drafter who identifies these distinctions earns the trust of the Parliament.

A Living Instrument

The Bangsamoro legal system is still taking shape. New BAAs are enacted each session. Priority codes are being completed. The courts are developing doctrine on the scope of Bangsamoro legislative power. The Parliament's own practices and precedents are forming in real time.

This manual will need to be updated as that body of law grows. Treat it as a starting point — the best available guidance at the time of writing — not as the last word. When a new Supreme Court decision changes the analysis, update the analysis. When the Parliament adopts a new drafting convention, record it. When experience reveals that a recommendation in this manual does not work in practice, revise it.

The purpose of this manual is to help you draft laws that serve the Bangsamoro people well. Laws that are clear, lawful, and effective. Laws that ordinary citizens can read and understand. Laws that government officials can implement without confusion. Laws that courts can apply as the Parliament intended.

That is the standard. Everything in this manual exists to help you meet it.

Back to Table of Contents

Chapter 1 — The Bangsamoro Parliament and Its Legislative Power

Before you draft a single provision, you need to understand the institution you are drafting for and the boundaries of its authority. This chapter covers the legal foundations of the Bangsamoro Parliament, the hierarchy of laws that governs the region, the scope and limits of Bangsamoro legislative power, and the role of Shari'ah in Bangsamoro legislation.

Every section here has a direct bearing on your drafting work. If the Parliament lacks authority over a subject, your bill is void. If your bill conflicts with a higher law, it will be struck down. If your provisions ignore the role of Shari'ah where it applies, they will create confusion in the courts. Get the foundations right, and the drafting that follows will stand on solid ground.

1.1 The Parliament Under the Bangsamoro Organic Law

1.1.1 Creation and Mandate

The Bangsamoro Parliament exists because of the Bangsamoro Organic Law — Republic Act No. 11054, signed on July 27, 2018, and ratified through a plebiscite in January and February 2019. The BOL replaced the old Autonomous Region in Muslim Mindanao framework established under RA 6734 and RA 9054.

The BOL's purpose is stated in Article I, Section 3:

> The purpose of this Organic Law is to establish a political entity, provide for its basic structure of government in recognition of the justness and legitimacy of the cause of the Bangsamoro people and the aspirations of Muslim Filipinos and all indigenous cultural communities in the Bangsamoro Autonomous Region in Muslim Mindanao to secure their identity and posterity, allowing for meaningful self-governance within the framework of the Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines.

Two phrases in that provision matter for drafters. First, "meaningful self-governance" — the BOL grants real legislative authority, not merely advisory power. When the Parliament enacts a BAA within its competence, that BAA carries the force of law. Second, "within the framework of the Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines" — the Parliament's authority is genuine, but it operates inside constitutional limits. It is not a sovereign legislature. It is an autonomous one.

The BOL adopted a parliamentary form of government for the Bangsamoro. Article IV, Section 3 states:

> The Bangsamoro Autonomous Region shall have a democratic political system that allows its people to freely participate in the political processes within its territorial jurisdiction. The Bangsamoro Autonomous Region shall have a parliamentary form of government.

This is the only region in the Philippines that uses a parliamentary system. The distinction matters. In a parliamentary system, the executive and legislative powers are fused. The Chief Minister is elected by the Parliament from among its members. The Cabinet is drawn from the Parliament. Legislative and executive authority flow from the same body.

Article VII, Section 2 makes this fusion of powers explicit:

> The powers of government shall be vested in the Parliament which shall exercise those powers and functions expressly granted to it in this Organic Law, and those necessary for, or incidental to, the proper governance and development of the Bangsamoro Autonomous Region. It shall set policies, legislate on matters within its authority, and elect a Chief Minister who shall exercise executive authority on its behalf.

For the drafter, the practical effect is this: when you draft a bill, you are not writing for a legislature that merely passes laws and hands them off to a separate, co-equal executive. You are writing for an institution where the Chief Minister and the majority of the Cabinet sit as Members of Parliament, where executive priorities and legislative action are closely linked, and where the parliamentary majority that passes a bill is often the same group that will implement it. This creates opportunities for tighter coordination between law and implementation — but it also means your draft must be precise about which functions are legislative and which are executive.

1.1.2 Composition and Structure

Size and Seat Allocation

The BOL sets the Parliament at eighty members. Article VII, Section 6 is brief:

> The Parliament shall be composed of eighty (80) members, unless otherwise increased by the Congress of the Philippines.

Note the qualifier. Only Congress can increase the number of seats — the Bangsamoro Parliament cannot expand its own membership.

Those eighty seats are divided into three categories under Article VII, Section 7:

- **Party Representatives** — one-half of the members (40 seats), elected through proportional representation based on the entire Bangsamoro territorial jurisdiction. Registered regional political parties submit ranked lists. Seats are allocated based on the percentage of votes each party receives.
- **Parliamentary District Representatives** — not more than forty percent (40%) of the members (up to 32 seats), elected from single-member parliamentary districts through direct plurality vote. The BOL assigns the initial redistricting function to the BTA, and grants the Parliament the power to redistrict thereafter.
- **Reserved Seats and Sectoral Representatives** — at least ten percent (10%) of the members (at least 8 seats). This category includes two reserved seats each for non-Moro indigenous peoples and settler communities, plus one sectoral seat each for women, youth, traditional leaders, and the Ulama.

The allocation of parliamentary district seats has been the subject of significant legislative and judicial activity. The BTA enacted BAA 58 and later BAA 77 to establish parliamentary districts. Both were struck down by the Supreme Court in October 2025 (discussed in Section 1.3.5 below). The BTA subsequently enacted BAA 86, the Parliamentary District Act of January 2026, which created 32 single-member districts distributed across the region: Lanao del Sur (9 districts), Maguindanao del Norte (5), Maguindanao del Sur (5), Basilan (4), Tawi-Tawi (4), Cotabato City (3), and the Special Geographic Area (2).

The Transition Period

During the transition period, the Bangsamoro Parliament operates as the Bangsamoro Transition Authority — an interim body that exercises both legislative and executive powers. Article XVI, Section 2 of the BOL created the BTA:

> There is hereby created a Bangsamoro Transition Authority which shall be the interim government in the Bangsamoro Autonomous Region during the transition period. The Moro Islamic Liberation Front shall lead the Bangsamoro Transition Authority, without prejudice to the participation of the Moro National Liberation Front in its membership.

The BTA's members are appointed by the President. The BOL provides for eighty members, though the actual number may differ based on judicial rulings and legislative developments (see Section 1.3.5 on the Sulu ruling).

Resolution No. 268 (Rule III, Section 3) prescribes eight Deputy Speakers. In practice, the BTA has elected additional Deputy Speakers beyond the prescribed eight. The Parliament also elects a Speaker, a Majority Floor Leader, and a Minority Floor Leader among its officers.

For drafting purposes, the BTA is treated as the Parliament. Article XVI, Section 3 of the BOL states:

> For purposes of mechanisms for intergovernmental relations with the National Government and local government units in the Bangsamoro Autonomous Region, the Bangsamoro Transition Authority shall be deemed as the Bangsamoro Government for the duration of the transition period.

The BTA exercises the full legislative power of the Parliament. BAAs enacted during the transition carry the same legal force as those enacted by a future elected Parliament. Your drafts should work for both — write timeless provisions that do not depend on whether the body enacting them is a transitional or an elected one.

Term of Office

Under Article VII, Section 11, members of the elected Parliament will serve three-year terms with a limit of three consecutive terms:

> The term of office of the members of the Parliament shall be three (3) years: *Provided*, That no member shall serve for more than three (3) consecutive terms. Voluntary renunciation of office for any length of time or the dissolution of the Parliament by the *Wali* shall not be considered as an interruption in the continuity of the service for the full term for which the member was elected.

Qualifications

Article VII, Section 12 sets the qualifications for membership:

> No person shall be a member of the Parliament unless the person is a citizen of the Philippines, at least twenty-five (25) years of age on the day of the election, able to read and write, and a registered voter in the Bangsamoro Autonomous Region.

The Speaker and Officers

On the first day of each session, members elect a Speaker, a Deputy Speaker, and other officers by majority vote of all members (Article VII, Section 23). The Speaker presides over the Parliament. In practice, the BTA has elected multiple Deputy Speakers.

Key Procedural Rules from the BOL

Several procedural rules are embedded directly in the BOL rather than left to the Parliament's own rules. These bind the drafter:

- **One-subject rule.** Article VII, Section 25(a): "Every bill passed by the Parliament shall embrace only one subject which shall be expressed in the title thereof." This is not optional. A bill that bundles unrelated subjects, or whose title does not reflect its content, is vulnerable to constitutional challenge.
- **Three-readings rule.** Article VII, Section 25(b): "No bill shall become a law in the Bangsamoro Autonomous Region unless it has passed three (3) readings on separate days and printed copies thereof in its final form have been distributed to members of the Parliament three (3) days before its passage, except when the Chief Minister certifies to the necessity of its immediate enactment to meet a public calamity or emergency."
- **Presentment to the Chief Minister.** Article VII, Section 25(c): "Every bill passed by the Parliament shall, before it becomes a law, be presented to the Chief Minister. The Chief Minister shall sign the bill within thirty (30) days after the date of its receipt, otherwise, it shall become a law as if the Chief Minister had signed it." There is no veto power in the BOL's design — the Chief Minister either signs or the bill becomes law by inaction.
- **Transmission to the President and Congress.** Article VII, Section 25(d): "The Speaker of the Parliament shall, within ten (10) working days from their approval thereof, submit to the President and to the Congress of the Philippines a certified true copy of all laws and resolutions approved by the Parliament."

1.1.3 The Bangsamoro Autonomy Act as the Parliament's Legislative Output

The primary legislative product of the Bangsamoro Parliament is the **Bangsamoro Autonomy Act**, or BAA. This is the Bangsamoro equivalent of a Republic Act at the national level or an ordinance at the local level — though a BAA occupies a higher position than a local ordinance in the legal hierarchy.

BAAs are numbered sequentially. They range from the Bangsamoro Administrative Code (BAA 13) and the Electoral Code (BAA 35) to specific measures establishing offices, fixing boundaries, and creating programs.

A BAA, once signed by the Chief Minister (or once thirty days have elapsed from presentment without signature), carries the force of law within the Bangsamoro Autonomous Region. It is enforceable by the courts, binding on government officials, and applicable to all persons within the region's territorial jurisdiction to the extent it falls within the Parliament's legislative competence.

The Parliament also passes resolutions. These are generally used for internal matters (adopting rules, expressing the sense of the Parliament) or for actions that do not require the force of law. Resolutions are not presented to the Chief Minister for signature. The distinction between a bill (which becomes a BAA) and a resolution matters for your drafting — if the measure requires legal force and imposes obligations or confers rights, it must be enacted as a BAA.

The numbering and cataloguing of BAAs is straightforward but worth noting. BAAs are numbered sequentially from BAA No. 1 onward. There is no numbering reset between BTA compositions — a BAA enacted by the third BTA continues the sequence from the second BTA. This reflects a principle of legislative continuity. Under the BTA system, bills filed during one composition were not archived when a new composition was appointed; they continued to be deliberated by the succeeding composition without refiling. Whether this continuity principle will carry over to the elected Parliament is a question that the Parliament's Rules of Procedure will eventually need to address.

When citing a BAA in a new bill, use the full designation: "Bangsamoro Autonomy Act No. [number]." For well-known codes, the short title is acceptable after the first reference — for example, "the Bangsamoro Administrative Code" after first identifying it as BAA No. 13.

1.2 The Hierarchy of Laws in the Bangsamoro

One of the drafter's first tasks on any bill is to identify which higher laws apply to the subject matter. Bangsamoro legislation operates within a layered legal structure. If your BAA conflicts with any higher layer, it is void to the extent of the conflict. Understanding this hierarchy is not academic — it is a daily drafting requirement.

1.2.1 The 1987 Constitution

The 1987 Philippine Constitution sits at the top. No BAA may violate any constitutional provision. The relevant constitutional provisions for Bangsamoro legislation include:

- **Article X (Local Government)**, particularly Section 15 (creation of autonomous regions in Muslim Mindanao and the Cordilleras), Section 18 (Congress shall enact an organic act; only areas voting favorably in a plebiscite shall be included), and Section 20 (scope of organic act provisions).
- **Article VI** (legislative power generally), **Article III** (Bill of Rights), **Article II** (declaration of principles), and **Article XIV** (education, science, culture, and sports) — all of which constrain what the Parliament may enact.
- The **due process** and **equal protection** clauses (Article III, Sections 1 and 2) apply to all Bangsamoro legislation just as they apply to national legislation.

When you draft a bill, run it against the Constitution first. If a provision restricts a constitutional right, you need a compelling basis in the BOL or the Constitution itself. If a provision creates a classification (this group gets a benefit; that group does not), you need a rational basis for the distinction.

1.2.2 The Bangsamoro Organic Law (Republic Act No. 11054)

The BOL is the second layer. It is the source of the Parliament's authority, and it also limits that authority. A BAA may not contradict the BOL. If the BOL requires something — that every bill embrace only one subject, for instance — the BAA must comply.

The BOL also contains substantive mandates that constrain your drafting. For example:

- The BOL guarantees religious freedom (Article IX, Section 5). A BAA that restricts religious practice would conflict with the organic law itself, not just the Constitution.
- The BOL guarantees the rights of non-Moro indigenous peoples (Article IV, Section 9; Article IX, Section 3). A BAA that diminishes those rights violates the organic law.

- The BOL protects existing local government privileges (Article VI, Section 10): "The privileges already enjoyed by local government units under Republic Act No. 7160 … shall not be diminished."

Treat the BOL as your drafting constitution. Before you write any provision that touches a subject covered by the BOL, read the relevant BOL provisions. If your bill is consistent with them, proceed. If it is not, revise the bill — not the BOL.

1.2.3 National Laws and Their Implementing Rules and Regulations

National laws enacted by Congress occupy the third layer. The relationship between national law and Bangsamoro law is more complex than simple hierarchy, because the BOL carves out areas of exclusive Bangsamoro authority. In those areas, the Parliament legislates without being overridden by ordinary national legislation. In areas of shared or overlapping authority — and there are many — national law and Bangsamoro law must be harmonized.

Several national laws apply directly to the Bangsamoro. The BOL itself references them:

- Republic Act No. 7160 (Local Government Code of 1991) continues to apply to constituent LGUs, and its privileges "shall not be diminished."
- The Civil Service Commission retains authority; the Bangsamoro Civil Service Code must be "in accordance with existing national laws" (Article VII, Section 39).
- The Commission on Audit remains the exclusive auditor of the Bangsamoro Government (Article XII, Section 2).
- The Commission on Elections, through the Bangsamoro Electoral Office, administers elections (Article VII, Section 40).

Implementing rules and regulations (IRRs) issued by national agencies to implement national laws also apply in the Bangsamoro to the extent the underlying national law applies. A BAA cannot override a national agency's IRR in an area of national authority. But in areas of Bangsamoro authority, the Parliament can enact its own implementing frameworks.

The practical rule for drafters: when your bill touches a subject where national law also applies, identify the national law, read it, and draft your bill to work alongside it — not to contradict it.

1.2.4 Bangsamoro Autonomy Acts

BAAs sit below the Constitution, the BOL, and applicable national laws. They are the Parliament's primary output. Within the hierarchy, a BAA enacted later in time can amend or repeal an earlier BAA, subject to the usual rules: express repeal is preferred over implied repeal, specific provisions prevail over general ones, and repealing clauses must be clear.

Among BAAs, some carry special weight because the BOL specifically mandated their enactment. Article XVI, Section 4(a) of the BOL names five priority codes: the Bangsamoro Administrative Code, Revenue Code, Electoral Code, Local Government Code, and Education Code. The same section adds that the BTA "may also enact a Bangsamoro Civil Service Code." Beyond these, the Investment Code has been identified as a priority based on broader governance and economic development needs.

The status of the priority codes:

1. Bangsamoro Administrative Code (BAA No. 13, enacted 2020)
2. Bangsamoro Civil Service Code (BAA No. 17, enacted 2021)
3. Bangsamoro Education Code (BAA No. 18, enacted 2021)
4. Bangsamoro Electoral Code (BAA No. 35, enacted 2023)
5. Bangsamoro Local Government Code (BAA No. 49, enacted 2023)
6. Bangsamoro Revenue Code (pending)
7. Bangsamoro Investment Code (pending)

These codes form the backbone of the Bangsamoro legal system. When you draft a bill that touches a subject covered by an existing code, your bill must be consistent with the code — or must expressly amend it. Do not create silent conflicts between your bill and an existing code.

1.2.5 Executive Orders, Administrative Orders, and Regulations

Below BAAs sit the executive issuances of the Bangsamoro Government. The Chief Minister issues executive orders to implement BAAs and direct the bureaucracy. Ministers issue administrative orders and department circulars within their areas of responsibility.

These issuances cannot contradict the BAA they implement. They cannot expand the scope of a BAA beyond what the Parliament intended. They cannot impose requirements that the BAA does not authorize.

For the drafter, this layer matters when you write delegation clauses. When your bill says "the Minister shall issue the implementing rules and regulations," you are authorizing executive action. Be clear about what you are delegating. Specify standards if the subject is important. Set deadlines if implementation is time-sensitive. A vague delegation clause produces unpredictable IRRs.

1.2.6 Local Ordinances

At the bottom of the hierarchy are the ordinances of constituent local government units — provinces, cities, municipalities, and barangays within the Bangsamoro. These ordinances cannot contradict any BAA, any national law, the BOL, or the Constitution.

When your bill affects local government operations — and many bills do — consider how it will interact with existing local ordinances. If your BAA creates a new regulatory framework, it may implicitly repeal conflicting local ordinances. Make this explicit if that is the intent. If local governments are expected to pass implementing ordinances of their own, say so and give them a timeframe.

1.3 Scope and Limitations of Bangsamoro Legislative Power

This section is the drafter's map. It tells you where the Parliament's authority reaches and where it stops. Read it carefully. Refer back to it whenever a proposed bill raises jurisdictional questions — and many will.

1.3.1 Enumerated Powers (BOL Article V, Section 2)

The Bangsamoro Parliament's primary source of legislative authority is Article V, Section 2 of the BOL, which lists fifty-five subject areas over which the Bangsamoro Government exercises authority. The provision reads:

> Subject to Section 20, Article X of the Constitution and this Organic Law, the Bangsamoro Government shall exercise its authority over the following matters without prejudice to the general supervision of the President of the Republic of the Philippines:

The enumerated powers are listed alphabetically from (a) to (ccc). They cover a broad range of subjects. Here are the fifty-five items:

(a) Administration of justice (b) Administrative organization (c) Agriculture, livestock, and food security (d) Ancestral domain and natural resources (e) Barter trade and countertrade (f) Budgeting (g) Business name registration (h) Cadastral land survey (i) Civil service (j) Classification of public lands (k) Cooperatives and social entrepreneurship (l) Creation, division, merger, abolition or alteration of boundaries of municipalities and barangays (m) Creation of government-owned or controlled corporations and pioneer firms (n) Creation of sources of revenues (o) Cultural exchange, and economic and technical cooperation (p) Culture and language (q) Customary laws (r) Development programs and laws for women, labor, the youth, the elderly, the differently-abled, and indigenous peoples (s) Disaster risk reduction and management (t) Ecological solid waste management and pollution control (u) Economic zones, industrial centers, and free ports (v) Education and skills training (w) Eminent domain (x) Environment, parks, forest management, wildlife, and nature reserves conservation (y) Fishery, marine, and aquatic resources (z) Grants and donations (aa) Hajj and Umrah (bb) Health (cc) Housing and human settlements (dd) Humanitarian services and institutions (ee) Human rights (ff) Indigenous peoples' rights (gg) Inland waters (hh) Inland waterways for navigation (ii) Islamic banking and finance (jj) Labor, employment, and occupation (kk) Libraries and museums, and historical, cultural, and archaeological sites (ll) Loans, credits, and other forms of indebtedness (mm) Mechanisms for consultations for women and marginalized sectors (nn) People's organizations (oo) Power sector investments (pp) Public utilities' operations (qq) Public works and infrastructure (rr) Quarantine regulations (ss) Registration of births, marriages, and deaths, copies to be furnished the Philippine Statistics Authority (tt) Regulation of the manufacture and distribution of food, drinks, drugs, and tobacco (uu) Science and technology, research councils and scholarship programs (vv) Social services, social welfare, and charities (ww) Sports and recreation (xx) Technical cooperation for human resource development (yy) Tourism development (zz) Trade and industry (aaa) Urban and rural planning development (bbb) Urban land reform and land use (ccc) Water supply and services, flood control, and irrigation systems

This is a long list, and it is your starting point for any bill. When a Member or committee asks you to draft legislation on a particular subject, your first question should be: does this subject fall within one of these fifty-five items? If yes, the Parliament has authority. If not, check the general welfare clause (Section 1.3.2) and the residual clause (Section 1.3.3).

A few observations for the drafter:

- The list is broad but not unlimited. Some subjects that might seem natural for regional legislation — criminal law, national defense, foreign affairs, currency, customs — are not on the list. They belong to the National Government.

- Some items overlap with national authority. “Labor, employment, and occupation” is an enumerated Bangsamoro power, but the national Labor Code also applies. “Education and skills training” is enumerated, but DepEd, CHED, and TESDA maintain national jurisdiction. In these areas, the drafter must harmonize Bangsamoro legislation with national law.
- Some items are quite specific (“Hajj and Umrah,” “business name registration”), while others are broad (“administration of justice,” “trade and industry”). The broad items give the Parliament significant room, but that room is bounded by other provisions of the BOL and the Constitution.

1.3.2 The General Welfare Clause (BOL Article V, Section 3)

Beyond the fifty-five enumerated powers, the Parliament has authority under the general welfare clause. Article V, Section 3 provides:

> The Bangsamoro Government shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare. Within its territorial jurisdiction, the Bangsamoro Government shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among its residents, maintain peace and order, and preserve the comfort and convenience of its inhabitants.

This clause serves three functions:

1. **Express powers.** It confirms the Parliament may exercise the powers expressly granted in the BOL.
2. **Implied powers.** It grants the Parliament powers “necessarily implied” from the express powers. If the Parliament has authority over health, it may enact health-related regulatory measures even if the specific regulatory mechanism is not named in Article V, Section 2.
3. **Incidental powers.** It grants powers “necessary, appropriate, or incidental” for efficient and effective governance. This is the broadest category.

For drafting purposes, the general welfare clause is useful when your bill falls within the spirit of the enumerated powers but does not fit neatly into one of the fifty-five items. A bill creating a regional consumer protection framework, for example, might draw on the

enumerated powers over "trade and industry" and "regulation of the manufacture and distribution of food, drinks, drugs, and tobacco," supplemented by the general welfare clause's mandate to "enhance economic prosperity and social justice."

Do not rely on the general welfare clause alone for bills that are clearly outside the BOL's scope. The clause expands the enumerated powers — it does not replace them. A bill on foreign affairs, for instance, cannot be justified by the general welfare clause no matter how beneficial it might be for Bangsamoro residents.

1.3.3 The Residual Clause: Powers Reserved to Congress

Article V, Section 1 contains the residual clause:

> All powers, functions, and responsibilities not granted by the Constitution or by national law to the Bangsamoro Government shall be vested in the National Government.

This is the mirror image of the enumerated powers. What the BOL does not give to the Bangsamoro, the National Government retains. The residual clause means that when you cannot find authority for a bill in Article V, Sections 2 or 3 — or in any other provision of the BOL — the subject belongs to the National Government, and the Parliament cannot legislate on it.

The residual clause is your backstop analysis. When in doubt, apply it: is this power granted to the Bangsamoro by the Constitution or by national law (including the BOL, which is a national law enacted by Congress)? If yes, the Parliament may legislate. If not, it may not.

1.3.4 Areas of Overlapping Authority

Many of the enumerated powers overlap with subjects that national agencies also regulate. Education is a Bangsamoro power — but DepEd sets national curriculum standards. Labor is a Bangsamoro power — but the Labor Code is a national law. Disaster risk reduction and management is a Bangsamoro power — but the National DRRM Council operates under RA 10121. Health is enumerated — but DOH retained hospitals continue to be funded nationally, and PhilHealth operates under its own charter.

These overlaps are not accidental. The BOL deliberately grants the Bangsamoro authority over subjects where national legislation also exists. The intent is shared governance, not total separation. But the result is a drafting challenge: how do you write a BAA that asserts Bangsamoro authority without colliding with national law?

The BOL anticipated this problem and created intergovernmental relations mechanisms to manage it. Article VI establishes several:

- **The Intergovernmental Relations Body** (Article VI, Section 2) — the primary mechanism. It coordinates and resolves issues between the National Government and the Bangsamoro Government through "regular consultation and continuing negotiation in a non-adversarial manner." The BOL adds: "The Intergovernmental Relations Body shall exhaust all means to resolve issues brought before it. Unresolved issues shall be elevated to the President, through the Chief Minister."
- **The Philippine Congress-Bangsamoro Parliament Forum** (Article VI, Section 3) — coordinates legislative initiatives between Congress and the Parliament. When a Bangsamoro bill touches an area where congressional action may also be needed, this forum is the coordination channel.
- **The Intergovernmental Fiscal Policy Board** (Article VI, Section 4) — addresses fiscal matters, revenue imbalances, and shared taxation issues. Co-chaired by the Secretary of Finance and the Bangsamoro Finance Minister.
- **The Intergovernmental Infrastructure Development Board** (Article VI, Section 6) — synchronizes national and Bangsamoro infrastructure plans. Composed of Bangsamoro ministry heads and the Secretary of Public Works and Highways.
- **The Intergovernmental Energy Board** (Article VI, Section 7) — resolves energy issues between national and Bangsamoro regulatory bodies.
- **The Bangsamoro Sustainable Development Board** (Article VI, Section 8) — ensures integration of economic, social, and environmental considerations. The Parliament creates it, and it includes representatives from both governments.
- **The Council of Leaders** (Article VI, Section 9) — advises the Chief Minister on governance. Its membership includes congressional representatives from the Bangsamoro, provincial governors, mayors of chartered cities, and representatives of traditional leaders, indigenous communities, women, settlers, the Ulama, and youth.

For the drafter, overlapping authority creates specific obligations:

Acknowledge the overlap. When your bill touches an area of shared jurisdiction, do not pretend the national law does not exist. If you are drafting an education bill, acknowledge DepEd's role. If you are drafting a labor bill, acknowledge the Labor Code. Ignoring national authority does not eliminate it — it just makes your bill look poorly researched.

Include coordination clauses. A bill on education should specify the relationship between the Bangsamoro Ministry of Basic, Higher, and Technical Education and the national DepEd, CHED, and TESDA. A bill on disaster risk reduction should reference the National DRRM Council and RA 10121. These clauses prevent jurisdictional confusion during implementation.

Reference the intergovernmental mechanisms. Consider whether the bill should include provisions for referral to the Intergovernmental Relations Body in case of disputes. For fiscal matters, the Intergovernmental Fiscal Policy Board is the appropriate body. For infrastructure, the Infrastructure Development Board. Naming the correct mechanism in your bill signals that the Parliament understands the cooperative framework.

Draft "without prejudice" clauses carefully. The phrase "without prejudice to national laws" appears frequently in Bangsamoro legislation. It is a signal of harmonization — the BAA is asserting Bangsamoro authority while acknowledging national authority in the same space. But use it with care. A "without prejudice" clause that is too broad can gut your bill's operative provisions. A provision that says "The Ministry shall regulate labor standards, without prejudice to the Labor Code" may mean the BAA adds nothing beyond what the Labor Code already provides. Be specific about what the BAA adds, modifies, or supplements.

Know the hard limits. Some overlaps are resolved by absolute prohibitions. The BOL contains one that has already caused difficulty. Article VI, Section 10 states:

> Nothing in this Organic Law shall be construed to allow the Bangsamoro Government to create legislative districts.

The Parliament may create *parliamentary* districts — these are distinct from *legislative* (congressional) districts. But the line between redistricting for parliamentary purposes and creating what amounts to a legislative district has proven contentious, as the Supreme Court's decisions on BAA 77 and BAA 58 demonstrate.

Watch for "floor" provisions. The BOL contains several provisions that set floors rather than ceilings. Article VI, Section 10 says that privileges already enjoyed by LGUs under the Local Government Code "shall not be diminished." This means a BAA can give LGUs *more* authority or *more* resources — but never less. When your bill regulates local government operations, check it against the LGC floor.

1.3.5 Judicial Doctrines Affecting Bangsamoro Legislation

Two recent Supreme Court decisions have reshaped the boundaries of Bangsamoro legislative power. Every drafter should know them.

Province of Sulu v. Medialdea (G.R. Nos. 242255, 243246, 243693) — September 9, 2024

This case challenged the inclusion of Sulu in the Bangsamoro Autonomous Region. The Province of Sulu voted against ratification of the BOL in the 2019 plebiscite — 54.3% voted "No." Despite this, the COMELEC initially counted Sulu as part of the BARMM because the overall vote in the combined ARMM territory favored ratification.

The Supreme Court ruled that Sulu is not part of the Bangsamoro Autonomous Region. The Court held that Article X, Section 18 of the Constitution requires that "only the provinces, cities, and geographic areas voting favorably" shall be included in the autonomous region. Since Sulu voted against the BOL, it could not be compelled to join.

The Court upheld the BOL itself as constitutional but applied the **doctrine of operative fact** — all acts performed by the Bangsamoro Government in Sulu before the decision were presumed valid.

The ruling became final on November 26, 2024. President Marcos subsequently issued Executive Order No. 91 (July 30, 2025), realigning Sulu under Region IX (Zamboanga Peninsula).

What this means for the drafter: The Bangsamoro Parliament has no legislative authority over Sulu. BAAs do not apply there. When you draft a bill, do not include Sulu in the territorial scope. The current BTA has 77 members, not 80, because the three Sulu seats were eliminated. Any bill that defines geographic coverage of a program or institution should reference the current territorial composition of the BARMM, which excludes Sulu.

Ali et al. v. BTA (G.R. No. E-02219) and Macapaar et al. v. COMELEC (G.R. No. E-02235) — October 1, 2025 and September 30, 2025

These consolidated cases challenged BAA 77 and BAA 58, the BTA's two attempts at redistricting. The Supreme Court declared both BAAs unconstitutional.

BAA 58 was the first redistricting law enacted by the BTA. BAA 77 replaced it. Both attempted to define parliamentary districts for the first Bangsamoro elections. The Supreme Court found constitutional defects in the redistricting — the specific grounds involved the standards for redistricting, population requirements, and the boundaries drawn.

The BTA responded by enacting BAA 86 on January 20, 2026. BAA 86 established 32 single-member parliamentary districts: Lanao del Sur (9), Maguindanao del Norte (5), Maguindanao del Sur (5), Basilan (4), Tawi-Tawi (4), Cotabato City (3), and the Special Geographic Area (2).

What this means for the drafter: The Supreme Court is actively reviewing Bangsamoro legislation. The Court will strike down BAAs that exceed the Parliament's authority or fail to comply with constitutional standards. When you draft a bill that touches sensitive constitutional territory — redistricting, taxation, property rights, the creation or alteration of political boundaries — take extra care. Research whether the Supreme Court has addressed similar issues. Build your constitutional arguments into the bill's framework from the start.

These two decisions also reinforce a broader point: Bangsamoro legislative power, while substantial, is subject to judicial review. The Supreme Court has jurisdiction over all Bangsamoro legislation, and it will exercise that jurisdiction when asked.

1.3.6 What This Means for the Drafter

Pull these threads together, and you have a practical framework for assessing any proposed bill:

Step 1 — Check the enumerated powers. Does the bill fall within one of the fifty-five subjects listed in Article V, Section 2? If yes, the Parliament has primary authority. Identify the specific item.

Step 2 — Check for implied or incidental authority. If the bill does not fit neatly into one of the fifty-five items, does it fall within the general welfare clause of Article V, Section 3? Is the proposed legislation "necessarily implied" from an enumerated power, or "necessary, appropriate, or incidental" for effective governance? If yes, proceed — but document your reasoning.

Step 3 — Apply the residual clause. If neither Step 1 nor Step 2 yields authority, the residual clause of Article V, Section 1 applies. The power belongs to the National Government. Stop drafting. Advise the requesting Member or committee that the subject is outside the Parliament's competence.

Step 4 — Check for constitutional limits. Even if the Parliament has authority, the Constitution still applies. Does the bill comply with the Bill of Rights? Does it respect due process and equal protection? Does it comply with constitutional requirements for organic legislation (Article X)?

Step 5 — Check for conflicts with the BOL. Does the bill conflict with any substantive provision of the BOL? Does it comply with the procedural requirements (one-subject rule, three-readings rule)?

Step 6 — Check for conflicts with national law. Does the bill touch an area where national law also applies? If so, is the bill consistent with national law, or does it conflict? If there is a conflict, which law prevails — and how can you draft the bill to avoid the conflict altogether?

Step 7 — Check for conflicts with existing BAAs. Does the bill conflict with an existing BAA, including the priority codes? If so, draft an express amendment or repealing clause.

Step 8 — Consider judicial precedent. Has the Supreme Court addressed the subject? Are there existing rulings — like *Province of Sulu v. Medialdea* or *Ali et al. v. BTA* — that affect the analysis?

This eight-step framework is not a checklist you fill out once and file away. It is a way of thinking about every bill you draft. The best drafters run this analysis instinctively. Until it becomes instinct, run it deliberately.

A worked example. Suppose a committee asks you to draft a bill establishing a Bangsamoro Halal Certification Authority with the power to certify products, inspect food establishments, and impose fines for fraudulent halal labeling.

- *Step 1:* Enumerated powers — "regulation of the manufacture and distribution of food, drinks, drugs, and tobacco" (tt), "trade and industry" (zz), "Hajj and Umrah" (aa) for related religious standards. Authority exists.
- *Step 2:* Not needed — enumerated powers cover it.
- *Step 3:* Not needed.
- *Step 4:* Constitutional check — does the bill impose a classification? Yes: it regulates halal certification, which is tied to Islamic standards. Does it respect religious freedom? It must. Non-Muslim producers who do not seek halal certification should not be penalized. The bill should regulate the *use of the halal label*, not mandate that all food meet halal standards.
- *Step 5:* BOL check — does it conflict with BOL provisions on religious freedom (Article IX, Section 5) or the rights of non-Muslims? Draft it to ensure it does not.
- *Step 6:* National law check — does the National Meat Inspection Service or the Food and Drug Administration have existing halal regulations? If so, draft the bill to supplement rather than contradict them. Include a coordination clause with the relevant national agency.
- *Step 7:* Existing BAA check — has the Parliament enacted any measure on halal certification already? If so, amend it rather than creating a parallel framework.

- *Step 8:* Judicial precedent — no known rulings on Bangsamoro halal authority, but the general principles from *Sulu v. Medialdea* about respecting constitutional limits apply.

That analysis takes fifteen minutes. It saves months of litigation.

1.4 Shari'ah in Bangsamoro Legislation

The role of Shari'ah in the Bangsamoro legal system is established by the BOL itself. It is not a matter of political preference or cultural symbolism. The BOL embeds Shari'ah into the constitutional framework of the region. A drafter who ignores it will produce incomplete legislation. A drafter who misapplies it will produce unconstitutional legislation. This section gives you the foundations you need to handle Shari'ah-related provisions correctly.

1.4.1 BOL Provisions on Shari'ah

Article X of the BOL establishes the justice system in the Bangsamoro, and Shari'ah is central to it. Section 1 sets the frame:

> The Bangsamoro justice system shall be administered in accordance with the unique cultural and historical heritage of the Bangsamoro.
>
> The dispensation of justice in the Bangsamoro Autonomous Region shall be in consonance with the Constitution, *Shari'ah*, traditional or tribal laws, and other relevant laws.
>
> *Shari'ah* or Islamic law forms part of the Islamic tradition derived from religious precepts of Islam, particularly the *Qur'an* and *Sunnah*.
>
> *Shari'ah* shall apply exclusively to cases involving Muslims. Where a case involves a non-Muslim, *Shari'ah* law may apply only if the non-Muslim voluntarily submits to the jurisdiction of the *Shari'ah* court.
>
> The traditional or tribal laws shall be applicable to disputes of indigenous peoples within the Bangsamoro Autonomous Region.
>
> The provisions of this Article shall not prejudice the rights of non-Muslims and nonindigenous peoples.

This provision establishes several principles that bind the drafter:

1. Shari'ah is a recognized source of law in the Bangsamoro, alongside the Constitution, national laws, and traditional or tribal laws.
2. Shari'ah applies *exclusively* to cases involving Muslims. This is not discretionary — the word is "exclusively."
3. Non-Muslims are not subject to Shari'ah unless they *voluntarily submit* to Shari'ah court jurisdiction.
4. The rights of non-Muslims and non-indigenous peoples are protected from prejudice.

The BOL identifies the sources of Shari'ah in Article X, Section 3:

> The following are the sources of *Shari'ah*:
>
> Principal Sources:
>
> (a) *Al-Qur'an* or the Koran;
>
> (b) *Al-Sunnah* or traditions of Prophet Muhammad SAW;
>
> Secondary Sources:
>
> (a) *Al-Ijma* or Consensus; and
>
> (b) *Al-Qiyas* or Analogy.

This formal enumeration of sources matters for drafting. When your bill invokes Shari'ah principles, those principles must be traceable to these recognized sources. The Parliament's legislative power regarding Shari'ah is defined in Article X, Section 4:

> The Parliament shall have the power to enact laws on personal, family, and property law jurisdiction.
>
> The Parliament has the power to enact laws governing commercial and other civil actions not provided for under Presidential Decree No. 1083, as amended, otherwise known as the *"Code of Muslim Personal Laws of the Philippines,"* and criminal jurisdiction on minor offenses punishable by *arresto menor* or *ta'zir* which must be equivalent to *arresto menor* or fines commensurate to the offense.

This is both a grant of power and a limitation. The Parliament can legislate on: - Personal law (marriage, divorce, inheritance, custody, family relations) - Family law - Property law - Commercial and civil actions not already covered by PD 1083 (the Code of Muslim Personal Laws) - Criminal jurisdiction limited to minor offenses — *arresto menor* or the Shari'ah equivalent (*ta'zir* at the *arresto menor* level)

The Parliament *cannot* expand Shari'ah criminal jurisdiction beyond minor offenses. This is a hard limit. A bill that imposes imprisonment beyond *arresto menor* through a Shari'ah framework exceeds the BOL's grant of power.

The Shari'ah Court System

The BOL creates a three-tiered Shari'ah court system:

- **Shari'ah Circuit Courts** (Article X, Section 5) — jurisdiction over personal law disputes, minor offenses, communal property disputes, and civil actions within specified monetary thresholds.
- **Shari'ah District Courts** (Article X, Section 6) — jurisdiction over custody, guardianship, estate settlement, and higher-value civil actions, plus appellate jurisdiction over Circuit Court decisions.
- **Shari'ah High Court** (Article X, Section 7) — the highest Shari'ah court in the Bangsamoro, composed of five justices, with appellate jurisdiction over District Court decisions. Its decisions are "final and executory except on questions of law which may be raised before the Supreme Court following the procedure for appeals from the Court of Appeals to the Supreme Court."

All Shari'ah courts form part of the Philippine judicial system, subject to the supervision of the Supreme Court (Article X, Section 2). The Parliament does not control Shari'ah court appointments — the Supreme Court appoints Shari'ah court personnel (Article X, Section 14), while Shari'ah judges are appointed through the Judicial and Bar Council process under the Constitution.

1.4.2 When Shari'ah Considerations Apply

For the drafter, the critical question is: when does Shari'ah apply to the subject of my bill?

Shari'ah applies when:

- The bill governs personal status matters (marriage, divorce, inheritance, custody, family relations) and the persons affected are Muslims.
- The bill governs property relations between Muslims.
- The bill creates or modifies jurisdiction for Shari'ah courts.
- The bill addresses commercial or civil matters between Muslims that are not covered by PD 1083.
- The bill imposes penalties on minor offenses through a Shari'ah framework (*ta'zir* at *arresto menor* level).

Shari'ah does not apply when:

- The bill governs secular matters that affect all residents regardless of religion — taxation, public works, environmental protection, transportation, education (outside of Madaris provisions), and similar subjects.
- The persons affected are not Muslim, unless a non-Muslim has voluntarily submitted to Shari'ah court jurisdiction.
- The bill involves criminal offenses beyond *arresto menor*.
- The subject falls outside the Parliament's Shari'ah legislative authority under Article X, Section 4.

Gray areas exist. Some bills touch both secular governance and matters where Shari'ah has a role. These mixed-jurisdiction bills are among the hardest to draft correctly.

Consider a few examples:

- *Inheritance taxation.* A revenue bill that taxes inherited property involves fiscal policy — a secular function. But for Muslims, the rules of inheritance are governed by Shari'ah, which prescribes specific shares for heirs (*faraid*). The drafter must write the tax provisions so they apply regardless of how the estate is divided, without interfering with the Shari'ah division itself. The tax falls on the value transferred, not on the religious rules governing the transfer.
- *Marriage registration.* A bill standardizing the registration of births, marriages, and deaths involves civil registration — an enumerated Bangsamoro power (Article V, Section 2[ss]). But Muslim marriages performed under Shari'ah have their own requirements (consent, *mahr*, witnesses). The drafter must ensure that registration requirements do not impose conditions that conflict with Shari'ah marriage law. At the same time, the bill should not exempt Muslim marriages from registration — civil records serve public purposes (vital statistics, property rights, citizenship documentation) that are distinct from religious validity.
- *Women's protection.* A bill on violence against women raises questions about how Shari'ah family law interacts with national anti-violence statutes (RA 9262, the Anti-Violence Against Women and Their Children Act). The BOL's women's rights provisions (Article IX, Sections 11 and 12) are strong. But the drafter must be careful not to create penalties or procedures that conflict with Shari'ah court jurisdiction over family matters.

In each of these cases, the answer is not to choose one framework over the other. It is to draft provisions that let both frameworks operate in their proper domains, with clear boundaries and explicit coordination provisions where the domains overlap.

1.4.3 Practical Guidance for Drafters

When you draft a bill that involves or could involve Shari'ah, follow these guidelines:

1. Identify the Shari'ah dimension early. During policy consultation, ask: does this bill affect personal law, family law, or property relations among Muslims? If the answer is yes — even partially — you need to account for Shari'ah in your draft.

2. Preserve the exclusivity principle. The BOL says Shari'ah applies "exclusively to cases involving Muslims." Your bill should not extend Shari'ah to non-Muslims, and it should not exempt Muslims from Shari'ah in matters of personal law. Respect the boundary in both directions.

3. Reference PD 1083 correctly. Presidential Decree No. 1083, the Code of Muslim Personal Laws, predates the BOL and remains in force. The BOL's grant of Shari'ah legislative power to the Parliament covers matters "not provided for" under PD 1083, plus the ability to amend or supplement PD 1083's provisions through BAAs. When your bill addresses a subject already covered by PD 1083, be clear about whether you are supplementing, amending, or working alongside the existing code.

4. Draft Shari'ah-sensitive provisions with care. When a bill includes a provision rooted in Shari'ah, state the basis clearly. If a provision defines the rules of inheritance for Muslims, for example, identify the Shari'ah basis. This is not just good practice — it helps courts interpret the provision correctly and helps the Darul Ifta (the Bangsamoro's official Islamic legal opinion body) advise on implementation.

5. Include savings clauses for non-Muslims. When a bill touches personal or family law, include a savings clause making clear that non-Muslims are governed by the Civil Code or other applicable law. This protects the rights guaranteed by Article X, Section 1 of the BOL: "The provisions of this Article shall not prejudice the rights of non-Muslims and nonindigenous peoples."

6. Coordinate with the Shari'ah court system. If your bill creates rights, obligations, or procedures that will be enforced in Shari'ah courts, make sure the provisions are consistent with the jurisdiction and procedures of those courts. The Shari'ah courts are part of the Philippine judicial system under the Supreme Court's supervision — the Parliament cannot alter their procedures without coordinating with the judiciary.

7. Consult the Bangsamoro Darul Ifta. When a bill raises questions about the correct interpretation of Shari'ah — whether a particular provision is consistent with the Qur'an and Sunnah, or whether an *ijma* (consensus) exists on a particular point — the Darul Ifta is the appropriate body to consult. The drafter is not expected to be a Shari'ah scholar. But the drafter is expected to know when to seek expert guidance.

8. Do not mix secular enforcement with Shari'ah sanctions. Keep the two systems clear. If a violation carries a penalty under general law (imprisonment, fines under the Revised Penal Code framework), do not layer a separate Shari'ah penalty on the same act unless the BOL specifically authorizes it. Dual penalties for the same conduct create due process problems.

9. Use the correct terminology. Shari'ah terms should be rendered accurately and consistently. Use *Shari'ah* (with the apostrophe and italics, following BOL convention), not "Shariah" or "Sharia." Use *Qur'an* and *Sunnah* with correct transliteration. Use *ta'zir*, *mahr*, *ijma*, and *qiyas* correctly. If a term needs definition for legal purposes, define it in the definitions section of your bill.

10. Remember: the Constitution governs. Shari'ah in the Bangsamoro operates within the constitutional framework. No BAA can invoke Shari'ah to override the Constitution. The Bill of Rights applies to all persons in the Bangsamoro, regardless of religion. Due process and equal protection are constitutional guarantees that no Shari'ah-based provision may abrogate.

This chapter has given you the legal foundations. You now know what the Bangsamoro Parliament is, where its authority comes from, what it can legislate on, and what limits apply. You know the hierarchy of laws that your bill must respect and the role that Shari'ah plays in the system.

The chapters that follow will show you how to put this knowledge to work — how to structure a bill, how to write it clearly, and how to move it through the legislative process. But everything that follows depends on the foundations set out here. A well-drafted bill that exceeds the Parliament's authority is still void. A beautifully written provision that violates the Constitution is still unconstitutional. Get the jurisdiction right. Get the hierarchy right. Then draft.

Back to Table of Contents

Chapter 2 — From Legislative Directive to Bill: The Drafting Process

2.1 Overview: Seven Stages from Legislative Directive to Filing

Every bill begins as a policy direction from a Member of Parliament. Between that initial direction and the moment the bill is filed with the Bills and Index Division, there are seven distinct stages of work. This chapter walks you through each one.

The seven stages are:

1. **Legislative Directive** — You receive, document, and confirm the MP's policy direction.
2. **Legislative Research** — You gather the legal, policy, and factual foundation for the bill.
3. **Preparing the First Draft** — You build a working outline, write the bill text, and map it against existing laws.
4. **Consultation** — You test the draft against the knowledge of experts, implementing agencies, and affected communities.
5. **Review and Revision** — You absorb what you learned from consultations and fix the draft.
6. **Presentation and Finalization with the MP** — You present the revised draft to the MP, incorporate final comments, and write the Explanatory Note.
7. **Co-Authorship and Filing** — You identify co-authors, secure their approval, and file the bill.

These stages are sequential in theory, but in practice you will sometimes loop back. Research may reveal that the original directive needs refining. Consultations may expose a flaw that sends you back to research. A co-author may request changes that require a new round of internal review. That is normal. The stages give you a clear path forward while allowing the flexibility that real legislative work demands.

One thing should be clear from the start: this process is designed to produce bills that survive scrutiny. A bill drafted without proper research gets torn apart in committee. A bill drafted without consultation gets opposed by the very agencies meant to implement it. A bill filed without co-authors may never get calendared for debate. Each stage exists for a reason, and skipping any of them weakens the final product.

A note about timing: the seven stages do not all take equal effort. Stage 2 (Research) and Stage 4 (Consultation) are usually the most time-intensive. Stage 1 might take a single meeting. Stage 7 depends on how many co-authors you pursue and how responsive they are. As you gain experience, you will develop a sense of how long each stage takes for different types of bills — a narrow amendatory bill moves faster than a bill creating a new ministry from scratch.

The rest of this chapter treats each stage in detail — what you do, what you produce, and what decisions you need to make before moving on.

2.2 Stage 1 — Legislative Directive

This is where the process begins. The MP has a policy direction — sometimes clear and specific, sometimes broad and aspirational. Your job is to receive that direction, document it, check it against the MP's broader legislative agenda, and get formal approval to proceed.

2.2.1 Receiving the Legislative Direction

A legislative directive can arrive in many forms. The MP might give you a detailed written brief. More often, the directive comes as a conversation — a passing remark during a staff meeting, a response to a constituent's complaint, a reaction to a news report, or an instruction relayed through a chief of staff.

However it arrives, your first task is to listen carefully and ask the right questions. You need to understand:

- **What problem is the MP trying to solve?** Not the solution — the problem. If the MP says "we need a bill creating a Bangsamoro scholarship program," the problem might be that qualified students from the region cannot afford higher education. Understanding the problem, not just the proposed solution, gives you room to draft a bill that actually works.

- **Who is affected?** Which communities, sectors, or populations does this bill target? Is it region-wide or limited to specific areas?
- **What is the urgency?** Is there a political window — an upcoming committee hearing, a plenary session, a public event — that creates a deadline?
- **Has this been attempted before?** The MP may or may not know whether similar bills have been filed in previous sessions of the BTA Parliament or in the national Congress. You will verify this during research, but the MP's awareness shapes the starting point.
- **What is the MP's non-negotiable position?** Every MP has aspects of the bill they will not compromise on. Identify these early so you do not waste time drafting provisions the MP will reject.

Do not filter or second-guess the directive at this stage. Your role is to capture the MP's intent as accurately as possible. Legal and policy analysis comes later.

Practical tip: If the directive comes verbally, take detailed notes during the conversation and send a written summary to the MP (or the MP's chief of staff) within 24 hours. Do not rely on memory. A one-paragraph summary with the key points — problem, target population, urgency, non-negotiables — prevents misunderstandings that surface weeks later when you are deep into drafting.

Common pitfall: Some directives are solutions looking for a problem. An MP might say "file a bill creating a Bangsamoro Sports Commission" without articulating the problem — maybe the existing sports programs under the ministry are already working fine, or maybe the real issue is funding, not institutional structure. Your job is not to push back at this stage, but to probe gently. Ask "what problem would the Sports Commission solve that the current setup cannot?" The answer shapes everything that follows.

2.2.2 Documenting the Initial Legislative Template

Once you have a clear understanding of the directive, you create an **Initial Legislative Template** — a short document (usually one to two pages) that captures the bill's essential parameters before research begins.

The template should include:

Field	Description
Working Title	A descriptive title for the proposed bill. This will change during drafting, but you need a handle to refer to.
Policy Problem	

Field	Description
	A clear statement of the problem the bill addresses. Two to three sentences.
Proposed Solution	The MP's preferred approach, stated in plain terms.
Target Beneficiaries / Affected Population	Who benefits and who is affected.
Scope	Region-wide, province-specific, sector-specific, or institutional.
Lead Author	The sponsoring MP.
Potential Co-Authors	Other MPs who might support the bill — based on their committee assignments, advocacy areas, or past statements.
Target Filing Date	When the MP wants the bill filed.
Related Legislation	Any existing laws, pending bills, or previous legislative attempts the MP is aware of. You will expand this list during research.
Notes / Special Instructions	Anything else — the MP's preferences on structure, provisions to include or exclude, political sensitivities.

This template is a living document. You will update it as research progresses and the bill takes shape. But at Stage 1, its purpose is simple: create a written record of what the MP wants so that everyone — the MP, the chief of staff, you, and any other staff involved — is working from the same starting point.

Example: Suppose the MP's directive is about protecting internally displaced persons (IDPs) in the Bangsamoro region. Your Initial Legislative Template might read:

- **Working Title:** Bangsamoro Internally Displaced Persons Protection and Assistance Act
- **Policy Problem:** Thousands of families displaced by armed conflict and natural disasters in the BARMM lack access to consistent protection, return assistance, and livelihood support. Existing national frameworks are not tailored to the Bangsamoro context.
- **Proposed Solution:** Establish a regional IDP protection framework with clear government obligations for shelter, health, education, and livelihood support during displacement and return.
- **Target Beneficiaries:** All internally displaced persons and communities within the BARMM.

- **Scope:** Region-wide.

Even this short example shows how the template forces you to translate a general directive ("do something about IDPs") into specific, actionable parameters.

2.2.3 Aligning with the MP's Legislative Agenda

Most MPs maintain a **legislative agenda** — a list of bills they plan to file during a session or across their full term. Some agendas are formal documents shared publicly. Others exist only as informal lists discussed in staff meetings. Either way, you need to know where this new bill fits.

Ask yourself:

- **Is this bill already on the agenda?** If so, it has an expected priority level and timeline. Align your work accordingly.
- **Does it conflict with other bills on the agenda?** Two bills from the same MP should not contradict each other. If the MP is pushing a bill to strengthen provincial government autonomy and a separate bill that centralizes a function at the regional level, you need to flag the tension.
- **Does it complement other bills?** Sometimes a new directive fits naturally as a companion to an existing agenda item. A bill on agricultural support, for example, might pair well with a pending bill on rural infrastructure. Identifying these connections early can help with co-authorship strategy later.
- **What is the priority?** If the MP's agenda already has ten pending bills and the legislative staff is stretched thin, you need a realistic conversation about timelines.

If the MP does not have a written legislative agenda, this is a good opportunity to help build one. Even a simple spreadsheet tracking bill titles, status, target dates, and assigned staff brings order to the office's legislative work.

A useful agenda tracker includes these columns:

Bill No.	Working Title	Status	Priority	Target Filing	Assigned Staff	Notes
—	IDP Protection Act	Stage 2 (Research)	High	May 2025	[Name]	Linked to BDP Chapter 11
—	Bangsamoro ECCD Act	Stage 4 (Consultation)	Medium	August 2025	[Name]	Coordinating with MBHTE

This tracker gives the MP and the entire staff a real-time picture of the office's legislative pipeline — what is moving, what is stalled, and where resources need to shift.

2.2.4 Securing MP Approval of the Initial Legislative Template

Before you invest days or weeks in research and drafting, get the MP's explicit approval to proceed. This approval is based on the Initial Legislative Template — the MP reviews it, confirms that it captures the directive accurately, and authorizes the next stage.

This might seem overly formal for a small legislative staff, but it serves two purposes. First, it prevents scope creep. Without a documented starting point, the bill's direction can drift as different staff members add their own interpretations. Second, it creates accountability. If the bill eventually diverges from the original intent — for good reasons discovered during research — you can point back to the template and explain why.

The approval does not need to be elaborate. A signed copy of the template, an email confirmation, or even a note in the office records will do. The point is to have a clear "go" signal before moving to Stage 2.

2.3 Stage 2 — Legislative Research

Research is the foundation of a strong bill. You may be tempted to jump straight into drafting — especially if the MP is impatient or the timeline is tight — but a bill written without thorough research is a bill that will be picked apart in committee, challenged on constitutional grounds, or rendered unimplementable by conflicting provisions in existing law.

This stage has four parts: gathering legislative requirements, working with the Parliament's research arm, conducting your own policy and legal research, and preparing a Legislative Research Briefer that captures everything you found.

2.3.1 Gathering Legislative Requirements

Before diving into databases and statute books, step back and define what you need to know. Based on the Initial Legislative Template, identify your research questions:

- **Constitutional and BOL questions:** Does the Bangsamoro Government have the power to legislate on this subject matter? Is the subject within the exclusive powers listed in the BOL, or is it a shared or concurrent power with the national government? Are there constitutional limits?

- **Existing law questions:** What national laws already cover this area? What Bangsamoro Autonomy Acts (BAAs) are already in force? Are there implementing rules and regulations (IRRs) that add detail to those laws? Do any local government ordinances within the BARMM touch on this subject?
- **Policy questions:** What do experts, practitioners, and affected communities say about this problem? Are there research studies, policy papers, or international models relevant to the proposal?
- **Budget and implementation questions:** How much will this cost? Which agencies will implement it? Do those agencies have the capacity?
- **Shari'ah and gender questions:** Does the bill intersect with Islamic law? Does it affect men and women differently?

Write these questions down. They become your research checklist. Each question should be answerable — "Does the Bangsamoro Parliament have exclusive power to legislate on IDP protection?" is answerable. "What is the best approach to IDP protection?" is too broad. Break broad questions into smaller, specific ones that your research can actually resolve.

The checklist also helps you recognize when you have enough information to stop researching and start drafting. Research can become a form of procrastination — there is always one more study to read, one more law to check. Your research questions define the finish line.

2.3.2 Working with the Policy Research and Legal Services (PRLS)

The **Policy Research and Legal Services (PRLS)** is the Parliament's institutional research arm. It exists to support all MP offices with legislative research, legal analysis, and policy review. You do not have to do everything yourself — and you should not try to.

Here is how to work with the PRLS:

What the PRLS can do for you: - Research existing laws and pending bills related to your proposal - Provide legal opinions on constitutional and BOL compliance - Analyze policy options and their likely effects - Prepare background papers on specific legislative subjects - Review draft bills for legal consistency and technical correctness

How to request PRLS support: - Submit a written research request. Be specific about what you need. "Please research all national laws related to early childhood education in autonomous regions" is far more useful than "please look into education." - Include a copy of your Initial Legislative Template so the PRLS understands the bill's context. - Set a realistic deadline. PRLS serves the entire Parliament, and complex research requests take time.

How to use PRLS output: - PRLS research supplements your own work — it does not replace it. You still need to verify findings, apply them to your specific bill, and exercise judgment about what matters and what does not. - If the PRLS provides a legal opinion that conflicts with your own analysis, do not ignore it. Resolve the disagreement before moving forward. Bring it to the MP if necessary. - Credit the PRLS in your Legislative Research Briefer when you use their findings.

Practical tip: Build a working relationship with the PRLS staff early. Introduce yourself, explain the MP's legislative agenda, and give them a heads-up about upcoming research requests. A five-minute courtesy visit saves days of turnaround time later.

2.3.3 Conducting Policy and Legal Research

While the PRLS handles its part, you conduct your own research in parallel. Your research follows the hierarchy of laws established in Chapter 1 — starting from the top and working down.

Step 1: The 1987 Philippine Constitution

Start here. Check whether the subject matter falls within the national government's reserved powers or the Bangsamoro Government's exclusive and concurrent powers. Key provisions include:

- Article X (Local Government), which provides the constitutional basis for autonomous regions
- Article II (Declaration of Principles and State Policies), which may contain relevant policy mandates
- The Bill of Rights (Article III), if the proposal affects individual rights
- Any other provisions specific to the bill's subject — education, health, taxation, environment, etc.

Step 2: Republic Act No. 11054 — The Bangsamoro Organic Law (BOL)

The BOL is your primary reference for determining what the Bangsamoro Parliament can and cannot do. Check:

- **Article V (Powers of Government)** — Is the subject in the list of exclusive powers (Section 2)? Does the general welfare clause (Section 3) apply?
- **Article VI (Intergovernmental Relations)** — Does the bill touch an area of shared jurisdiction between the Bangsamoro Government and the National Government?
- **Article VII (The Bangsamoro Government)** and **Article VIII (Wali)** — Are there structural requirements or limitations that affect the bill?

- **Article IX (Basic Rights)** — Does the bill affect any of the rights guaranteed under the BOL?
- **Article X (Bangsamoro Justice System)** — If the bill touches on Shari'ah matters, what are the boundaries?
- **Article XII (Fiscal Autonomy)** — If the bill has financial implications, what does the BOL say about taxation, revenue sharing, and the block grant?
- **Article XIII (Regional Economy and Patrimony)** — Does the bill affect economic zones, natural resources, or regional patrimony?

Do not skim the BOL. Read the relevant articles carefully. Many drafting errors come from overlooking a single provision buried in an article the drafter assumed was irrelevant.

Example: A drafter working on a revenue bill might focus on Article XII (Fiscal Autonomy) and miss a provision in Article XII, Section 9 (Limitations on the Taxing Powers) or an enumerated power boundary in Article V (Powers of Government) that limits the types of taxes the Bangsamoro Government may impose. The result — a bill that the Supreme Court could strike down — would have been avoided by reading the BOL systematically, not selectively.

Step 3: National Laws and IRRs

Search for all national laws that cover the same subject matter. Use the following sources:

- The Official Gazette (officialgazette.gov.ph)
- Chan Robles Virtual Law Library or LAWPHiL Project for statute texts
- The relevant national agency's website for IRRs

For each law you find, note:

- What it requires, prohibits, or authorizes
- Whether it applies to the Bangsamoro region specifically or to the Philippines generally
- Whether the BOL grants the Bangsamoro Parliament the power to amend, supplement, or replace its provisions within the region
- Whether an IRR adds requirements not in the statute itself

Step 4: Existing Bangsamoro Autonomy Acts (BAAs)

Search the Parliament's records for any BAAs already passed on the same or related subjects. If a BAA exists, your bill may need to amend it rather than create a new, parallel law — or you may need to include a repealing clause to avoid conflicts.

Check the index of enacted BAAs maintained by the Bills and Index Division and the Office of the Secretary General.

Step 5: Local Government Ordinances

If the bill affects local government units (LGUs) within the BARMM — provinces, municipalities, cities, barangays — check whether any local ordinances cover the same ground. A bill that contradicts existing local ordinances without explicitly addressing the conflict creates implementation problems.

Step 6: Policy Research and International Models

Beyond the law, look for:

- **Academic studies** on the problem the bill addresses. Google Scholar, university research repositories, and think tank publications are good starting points.
- **International models.** How have other countries — especially those with autonomous regions, federal systems, or Islamic governance traditions — handled similar issues? The experience of Malaysia's Sabah and Sarawak states, Indonesia's Aceh province, or the Kurdistan Region of Iraq may offer useful parallels.
- **Philippine national agencies' data** — statistics, reports, and assessments that quantify the problem.
- **NGO and civil society reports** — organizations working in the BARMM often have on-the-ground data that government sources lack.

Not every bill needs all of this. A straightforward bill renaming a government office requires less research than a bill overhauling the region's education system. Use judgment about how deep to go, but always cover Steps 1 through 4.

A note on organizing your research files: Create a dedicated folder — digital or physical — for each bill. Store all research materials in it: downloaded statutes, printouts of BOL articles, PRLS reports, policy papers, interview notes. Label files clearly. Six months from now, when the bill is in committee and a member asks "where did you get this figure?" you need to find the source in minutes, not days. Good file hygiene during research prevents scrambles later.

2.3.4 Preparing the Legislative Research Briefer

Everything you found during research goes into a single document: the **Legislative Research Briefer**. This document serves two audiences — the MP, who needs to understand the legal and policy terrain before reviewing the first draft, and you, who will use it as a reference throughout the drafting process.

The briefer follows a standard structure:

2.3.4.1 Brief Description of the Proposed Measure

Open with a plain-language summary of the proposed bill — what it does, who it affects, and why it is needed. This should be understandable to someone with no background in the subject. Three to five paragraphs.

Include: - The policy problem, restated from the Initial Legislative Template but refined by your research - The MP's proposed approach - A brief explanation of why legislation is needed (as opposed to an executive order, administrative regulation, or no action at all)

2.3.4.2 Related Laws and Issuances

List every law — constitutional provisions, national statutes, BOL provisions, BAAs, IRRs, and local ordinances — that you found during research. For each law, provide:

- Full title and citation (e.g., Republic Act No. 10931, the Universal Access to Quality Tertiary Education Act)
- Date enacted
- A one-to-three sentence summary of its relevant provisions
- Whether it applies to the BARMM
- Whether the proposed bill conflicts with, supplements, or replaces any of its provisions

Organize this section by the hierarchy of laws: Constitution first, then the BOL, then national laws, then BAAs, then local ordinances. This organization makes it easy for the MP and for you to see where the bill sits within the existing legal structure.

2.3.4.3 Policy and Legal Analysis

This is the analytical core of the briefer. Here you move beyond listing laws and into interpreting them. Address:

- **Constitutionality and BOL compliance.** Is the bill within the Bangsamoro Parliament's legislative power? If the subject involves concurrent powers, how should the bill be structured to avoid conflict with national law?

- **Consistency with existing BAAs.** Does the bill conflict with any enacted Bangsamoro law? If so, which provisions need a repealing or amendatory clause?
- **Policy options.** You may have found more than one way to address the problem. Present the options with their advantages and disadvantages. The MP makes the final decision, but you supply the analysis.
- **Legal risks.** Could this bill be challenged before the Supreme Court? Is there a legal theory that would support a challenge? What can be done in the drafting to reduce that risk?

Write this section in plain language. Avoid the temptation to impress with legal jargon. The MP — who may or may not be a lawyer — needs to understand the analysis, not marvel at your vocabulary.

2.3.4.4 Impact Assessment

Estimate the bill's likely effects on:

- **Budget.** How much will implementation cost? Where will the money come from — the annual appropriations act, the block grant, special funds, or revenue generated by the bill itself?
- **Institutional capacity.** Does the implementing agency exist? If so, does it have the staff, expertise, and infrastructure to carry out the bill's mandates? If the bill creates a new body, what are the setup costs and timeline?
- **Economic effects.** Will the bill create jobs, attract investment, increase costs for businesses, or change market dynamics in the region?
- **Social effects.** How will the bill affect communities — particularly vulnerable populations like internally displaced persons, indigenous peoples, women, and youth?

Not every bill requires a full impact assessment. A bill creating an awards program for outstanding teachers has different analytical needs than a bill restructuring the region's tax system. Scale the analysis to the bill.

2.3.4.5 Shari'ah and Gender Considerations

The Bangsamoro region operates under a distinct legal order that includes the Shari'ah justice system and a population whose cultural and religious values shape how laws are received and implemented. This section addresses two questions:

Shari'ah considerations: - Does the bill affect matters governed by Shari'ah law — personal status, family law, property succession, commercial transactions among Muslims? - If so, does the bill respect the boundaries established by the BOL between the Shari'ah system and the regular legal system? - Would the bill benefit from review by scholars with expertise in Islamic jurisprudence?

Gender considerations: - Does the bill affect men and women differently — in access to services, economic opportunities, legal protections, or political participation? - Does it advance gender equity or, unintentionally, reinforce existing barriers? - Are there provisions that should be added to address gender-specific impacts?

These are not box-checking exercises. A bill on land titling that ignores Islamic inheritance rules will create enforcement problems. A bill on livelihood programs that assumes all beneficiaries can travel freely ignores the reality that women in some communities face mobility restrictions. Surface these issues during research so they can be addressed in drafting.

2.3.4.6 Recommendations

Close the briefer with your recommendations to the MP. Based on everything you found, advise on:

- Whether to proceed with drafting (and if not, why)
- Which policy option to pursue
- Key provisions the bill should include
- Potential political challenges and how to address them
- Suggested co-authors and allies
- A realistic timeline for drafting, consultation, and filing

Keep the recommendations concise and actionable. The MP does not need a summary of the entire briefer — they just read it. Give them a clear "here is what I recommend and here is what I need from you to move forward."

Practical tip: Present the briefer to the MP in person or over a call, not just as an email attachment. Walking the MP through the analysis lets you answer questions in real time, gauge their reactions, and clarify points before drafting begins. If the MP is too busy for a full presentation, prepare a one-page executive summary and offer to discuss any section in detail.

2.4 Stage 3 — Preparing the First Draft

With the research briefer approved and the MP's go-ahead, you begin drafting. This stage is where the bill starts to look like a bill — with a title, a structure, and actual provisions. But do not start writing bill text immediately. Build the scaffold first.

2.4.1 Preparing the Working Outline

Before writing any provision, create a working outline of the bill's structure. The outline organizes your thinking and prevents the common problem of a bill that wanders from topic to topic without logical flow.

A working outline typically follows this structure:

```
Title
Declaration of Policy (Section 1)
Definition of Terms (Section 2)

ARTICLE I — [FIRST MAJOR TOPIC]
  Section 3 — [First provision]
  Section 4 — [Second provision]
  ...

ARTICLE II — [SECOND MAJOR TOPIC]
  Section X — [First provision]
  Section X+1 — [Second provision]
  ...

ARTICLE III — [INSTITUTIONAL PROVISIONS]
  Section X — [Creation of body, if applicable]
  Section X — [Composition]
  Section X — [Powers and functions]
  ...

ARTICLE IV — [FUNDING AND APPROPRIATIONS]
  Section X — [Appropriations]
  Section X — [Source of funds]
  ...

ARTICLE V — [FINAL PROVISIONS]
  Section X — [Implementing Rules and Regulations]
  Section X — [Separability Clause]
  Section X — [Repealing Clause]
  Section X — [Effectivity]
```

Under each section heading, write a one-to-two sentence note describing what the section will contain. This turns the outline into a roadmap you can share with the MP for early feedback before investing time in full drafting.

Not every bill needs all of these elements. A short bill amending a single provision of an existing BAA may have only a handful of sections. A major bill creating a new institution might have dozens. The outline should reflect the bill's actual scope.

Practical tip: If the bill addresses a subject already covered by a national law that the BARMM is adapting for regional implementation, use that national law's structure as a starting point for your outline. This makes the Comparative Matrix (discussed next in Section 2.4.3) easier to build and helps committee members see how the regional bill relates to the national framework.

2.4.2 Drafting the Bill

With the outline approved (or at least reviewed) by the MP, begin writing the bill text. The technical requirements of bill drafting — format, structure, language, and standard provisions — are covered in Chapter 3. Here, the focus is on the drafting process itself.

Start with the provisions you understand best. You do not have to draft in order from Section 1 to the last section. If the institutional provisions are clearest in your mind, start there. If the definition of terms depends on how you draft the substantive provisions, leave it for later. Build momentum by writing what you can write well, then fill in the gaps.

Keep the research briefer open beside you. Every provision you write should be traceable to a policy objective identified in the research. If you find yourself drafting a section that does not connect to any finding in the briefer, ask whether it belongs in the bill at all.

Write in plain, direct language. Legislation must be precise, but precision is not the same as complexity. A provision that says "Any person who violates Section 5 of this Act shall be subject to a fine of not less than fifty thousand pesos" is both precise and clear. A provision buried in three levels of subordinate clauses, cross-references, and qualifications may be precise, but nobody will understand it — including the judge who has to interpret it.

Flag uncertainties as you go. You will encounter questions during drafting that your research did not answer. Mark these with a visible tag — [TO CONFIRM], [RESEARCH NEEDED], [CHECK WITH MP] — so you do not forget them. A bill should not go to the MP for review with unresolved questions hidden inside it.

Draft with implementation in mind. For every provision, ask: Who enforces this? How? With what resources? If you cannot answer these questions, the provision may be aspirational language rather than enforceable law. Aspirational language belongs in the Declaration of Policy section. Substantive provisions need teeth.

Practical tip: Keep a running "issues list" in a separate document. Every time you encounter a policy question, a legal uncertainty, or a structural choice that could go either way, note it down. This list becomes your agenda for the MP review session after the first draft is complete.

2.4.3 Preparing the Comparative Matrix

The Comparative Matrix is one of your most important tools. It is a table that places your draft bill's provisions side by side with the provisions of related existing laws — showing where the bill aligns, where it conflicts, and where it fills gaps.

A basic Comparative Matrix looks like this:

Subject / Provision	Proposed Bill	National Law (e.g., RA 10931)	Existing BAA (e.g., BAA No. 18)	
Coverage / Scope	"All qualified Bangsamoro residents..." (Sec. 3)	"All Filipino citizens..." (Sec. 4)	Not addressed	Pro
Implementing Agency	MBHTE (Sec. 12)	CHED nationally (Sec. 8)	MBHTE (Sec. 6)	
Funding Source	Annual GAA + special fund (Sec. 18)	National GAA (Sec. 15)	Block grant allocation (Sec. 10)	
Penalty for Violations	Fine of P50,000 (Sec. 22)	None	Fine of P20,000 (Sec. 14)	Propo

Why the matrix matters:

- **It catches conflicts.** If your bill says one thing and an existing BAA says the opposite, the matrix makes the conflict visible. You can then decide whether to include a repealing clause, an amendatory provision, or a reconciliation mechanism.

- **It reveals gaps.** If a national law covers a topic that your bill does not address, the matrix shows the gap. You can then decide whether the gap is intentional (because the national law already applies) or an oversight.
- **It supports committee deliberations.** When the bill reaches committee, members will ask how it relates to existing law. The Comparative Matrix gives you — and the MP — a ready-made answer.
- **It demonstrates due diligence.** A bill accompanied by a Comparative Matrix signals that the drafter did the work. This builds credibility with committee chairs, legal staff, and fellow MPs.

How to build the matrix:

1. List your bill's major provisions in the first column. Group them by subject (coverage, definitions, institutional setup, funding, penalties, etc.), not necessarily by section number.
2. For each provision, find the corresponding provision (if any) in each related law. If the related law does not address the subject, write "Not addressed" or "Silent."
3. In the Notes/Analysis column, flag conflicts, explain alignments, and note any questions that need resolution.
4. Add as many comparison columns as needed. If five existing laws are relevant, the matrix has five comparison columns. Do not limit yourself to one or two.

Practical tip: Build the matrix as you draft, not after. When you write a provision, immediately check it against the related laws and add it to the matrix. This real-time comparison catches problems early, before they are buried in 30 pages of bill text.

2.4.4 Review of the First Draft

Before the first draft goes to anyone outside the legislative staff, conduct an internal review. This is your chance to catch errors, fill gaps, and tighten the language before the MP or consultants see it.

Your internal review checklist:

- **Structural completeness.** Does the bill have all required parts — title, declaration of policy, definition of terms, substantive provisions, institutional setup (if applicable), funding, final provisions?
- **Internal consistency.** Do the defined terms match how they are used throughout the bill? Does Section 12 contradict Section 7? Are cross-references accurate?
- **Legal compliance.** Does every provision stay within the Parliament's legislative authority under the BOL? Is the bill consistent with the Constitution?

- **Comparative Matrix alignment.** Does the matrix reflect the current state of the draft? Have you addressed all conflicts flagged in the matrix?
- **Drafting standards.** Does the bill follow the format and language conventions expected by the Parliament? (See Chapter 3 for these standards.)
- **Issues list.** Review your running issues list. Have all flagged items been resolved? If any remain open, note them for the MP's attention.

If your office has other legislative staff, ask a colleague to read the draft cold — without the benefit of your research and thinking. Fresh eyes catch things the drafter misses.

Only after this internal review should the first draft go to the MP for initial feedback. Present it together with the working outline, the Comparative Matrix, and the issues list. This gives the MP everything needed to evaluate the draft in context.

What the first draft is — and what it is not: The first draft is a working document, not a finished product. It will change after consultations. It will change again after the MP's review. Resist the urge to polish every sentence at this stage. Focus on getting the substance right — the right provisions in the right order, saying the right things. Language refinement comes later. A perfectly worded bill with wrong policy choices is worthless; a rough draft with sound policy choices can be polished into a strong law.

2.5 Stage 4 — Consultation

Drafting in isolation produces bills that look good on paper but fail in practice. The consultation stage takes your first draft out of the office and exposes it to people who know things you do not — subject-matter experts, implementing agencies, and affected communities.

Consultation is not a formality. It is where you find out whether the bill will actually work.

2.5.1 Interviews and RTDs with Experts

Interviews are one-on-one or small-group conversations with people who have deep knowledge of the bill's subject matter — academics, practitioners, retired government officials, technical specialists, and civil society leaders.

Round Table Discussions (RTDs) bring several experts together in a structured conversation about the bill. The advantage of an RTD over individual interviews is that experts challenge each other's assumptions, which produces insights you would not get from separate conversations.

How to plan and conduct expert consultations:

1. **Identify the right experts.** Start with the people cited in your research — authors of studies, leaders of relevant organizations, former officials who implemented similar programs. Ask the PRLS and the MP's network for recommendations.
2. **Prepare a consultation brief.** Send participants a short document (3-5 pages) before the meeting. Include the policy problem, the bill's proposed approach, and specific questions you want to discuss. Do not send the full draft text unless you want a line-by-line review — at this stage, you want feedback on the policy approach, not the comma placement.
3. **Ask focused questions.** Do not open with "what do you think?" Open with specific questions:
4. "The bill proposes X to address Y. Based on your experience, will X work? What are the risks?"
5. "We are choosing between approach A and approach B. What are the trade-offs?"
6. "What implementation challenges should we anticipate?"
7. "Is there anything we are missing?"
8. **Listen more than you talk.** Your job in consultation is to gather information, not defend the draft. If an expert criticizes the approach, dig into why. The criticism might be wrong — but it also might save the bill from a fatal flaw.
9. **Document everything.** Take detailed notes. Record the meeting if participants consent. You will need to report these findings back to the MP and use them in the revision stage.

2.5.2 Consultation with Implementing Agencies

Any bill that creates a program, establishes an office, mandates reporting, or requires enforcement needs the buy-in — or at least the informed input — of the agencies responsible for implementation.

For Bangsamoro bills, the relevant agencies are typically:

- **Bangsamoro ministries** (Ministry of Basic, Higher and Technical Education; Ministry of Health; Ministry of Social Services and Development; etc.)
- **Attached agencies and offices** of the Bangsamoro Government
- **National government agencies** with offices or operations in the BARMM, if the bill involves concurrent or shared powers

- **Local government units** (provincial, municipal, city, barangay) if the bill affects their functions

What to ask implementing agencies:

- "Do you currently have the staff, budget, and infrastructure to carry out the bill's mandates?"
- "What would you need that you do not currently have?"
- "Are there provisions in the bill that conflict with your existing operations or standing orders?"
- "What implementation timeline is realistic?"
- "How would you draft the IRR for this bill?"

The last question is particularly revealing. If the agency cannot explain how they would implement a provision, the provision may need to be rewritten.

Practical tip: Go to the agency, not the other way around. Visiting the ministry or office that will implement the bill shows respect for their work and gives you a chance to observe their operations firsthand. A drafter who has seen the inside of the implementing agency writes more realistic provisions than one who has only read about it.

Warning: Implementing agencies may resist provisions that expand their responsibilities without increasing their budget or staffing. This resistance is legitimate and should be taken seriously. It does not mean you drop the provision — it means you address the resource gap in the bill or in the accompanying budget request.

2.5.3 Consultations with Sectors and Constituencies

Bills affect real people. The consultation process should include the voices of those who will live with the law.

Types of constituency consultations:

- **Community consultations.** Open meetings in areas affected by the bill — provinces, municipalities, conflict-affected communities. These are especially important for bills affecting land, natural resources, livelihoods, and indigenous peoples' rights.
- **Sectoral consultations.** Meetings with organized groups — fisher folk, farmers, women's groups, youth organizations, business associations, Bangsamoro diaspora communities. These groups often have articulated positions and concrete recommendations.

- **Written submissions.** Invite interested parties to submit written comments on the bill's general framework. Not everyone can attend a meeting, and some organizations prefer to respond in writing.

How to conduct effective constituency consultations:

1. **Use the local language.** In the Bangsamoro region, this may mean Meranaw, Maguindanaon, Tausug, Sama, or other languages depending on the area. Prepare materials in the appropriate languages and have interpreters available.
2. **Explain the bill in accessible terms.** Do not hand a 40-page draft to community members and ask for comments. Present the bill's purpose, key provisions, and expected effects in plain language. Use examples relevant to the audience.
3. **Create space for honest feedback.** People may be reluctant to criticize a bill associated with a powerful MP. Use small-group breakout sessions, anonymous written feedback forms, and facilitators who are not from the MP's office.
4. **Do not promise what you cannot deliver.** Community consultations sometimes raise expectations. Be clear about what the bill can and cannot do, and what the consultation process is — input that will be considered, not a guarantee that every suggestion will be adopted.
5. **Report back.** After the consultation, send a summary of what was discussed and how the input will be used. People who feel heard are more likely to support the bill. People who feel ignored become opponents.

Document all consultations — date, venue, participants (or number of participants, for large public meetings), key points raised, and your preliminary assessment of which suggestions to incorporate. This documentation becomes part of the bill's record and can be referenced in the Explanatory Note.

Managing the consultation budget and logistics: Consultations cost money — venue rental, transportation, meals, printing of materials, facilitator fees. Plan the budget early and get the MP's approval. For community consultations outside Cotabato City, factor in travel time and overnight stays. Coordinate with the MP's office manager or administrative staff on logistics so that you can focus on the substance.

A typical consultation package for each session includes: - A brief (3-5 pages) explaining the bill's purpose and key provisions - A feedback form with specific questions - An attendance sheet - The presentation materials (slides or a printed handout) - Recording equipment (with consent forms if recording)

Prepare these materials in advance. Nothing undermines a consultation faster than arriving unprepared.

2.6 Stage 5 — Review and Revision

You have conducted consultations and returned with notebooks full of feedback, objections, suggestions, and questions. Now you have to make sense of it all and decide what changes to make.

2.6.1 Reviewing Findings

Start by organizing your consultation findings. Group them by source and by topic:

By source: - Expert recommendations - Implementing agency feedback - Constituency and sector input

By topic: - Comments on the bill's scope and coverage - Comments on specific provisions - Implementation concerns - Budget and resource concerns - Legal and constitutional issues - Political and cultural concerns

This cross-referencing reveals patterns. If three different experts and two implementing agencies all flag the same provision as problematic, that provision needs attention. If a concern was raised by only one person and contradicts the evidence from your research, it may warrant less weight — though you should still note it.

2.6.2 Assessing Impact on the First Draft

For each finding, make a judgment call:

- **Incorporate.** The feedback is sound, and the provision should be changed or added. Example: the implementing agency pointed out that the bill's reporting requirement assumes a database system that does not exist yet. You add a transition period and a provision for system development.
- **Note but do not incorporate.** The feedback raises a valid concern, but changing the bill would undermine the MP's policy objective. You note the concern in your revision report and explain why the provision remains unchanged. The MP makes the final call.
- **Reject.** The feedback is incorrect, irrelevant, or reflects a political position rather than a technical concern. You note it for completeness but do not act on it.
- **Escalate to the MP.** The feedback raises a fundamental question about the bill's approach — not just a technical fix. You cannot resolve it on your own. Flag it for the MP's decision.

2.6.3 Identifying and Addressing Gaps

Consultations often reveal things that your research missed. An expert might point out a law you did not find. An implementing agency might describe operational realities that are not documented anywhere. A community member might describe an effect of the bill that you did not anticipate.

Go back to your Comparative Matrix and your research briefer. Update both with the new information. If the gaps are significant — a major related law you missed, a constitutional issue you overlooked — you may need to conduct additional research before revising the draft. Do not patch the bill with guesswork. Go back and do the work.

2.6.4 Revising the First Draft

With your findings organized and your judgments made, revise the draft. Track your changes carefully — the MP will want to see what changed and why.

Prepare a **Revision Report** that accompanies the revised draft. For each significant change, explain:

- What was changed
- Why (citing the consultation feedback or new research)
- What the provision said before
- What it says now

The Revision Report does not need to document every comma fix. Focus on substantive changes — provisions added, removed, or significantly rewritten.

After completing the revision, repeat the internal review from Stage 3 (Section 2.4.4). The revised draft must still pass all the same checks: structural completeness, internal consistency, legal compliance, Comparative Matrix alignment, and drafting standards. Revision sometimes introduces new errors — a changed definition that is not updated everywhere it appears, a new section that creates a numbering gap, a cross-reference that now points to the wrong provision. Do not skip this step.

Version control matters. By this point, you may have three or more versions of the bill — the first draft, the post-consultation revision, and any interim versions created during the revision process. Label each version clearly with dates. Keep all versions on file. You may need to compare versions later, and the MP may ask “what did the original draft say about this?” Being able to answer that question instantly builds trust in your process.

2.7 Stage 6 — Presentation and Finalization with the MP

The revised draft is ready to go back to the MP. This is the stage where the MP takes ownership of the bill — reviewing every provision, making final policy decisions, and approving the text that will be filed.

2.7.1 Presenting the Revised Draft

Schedule a dedicated meeting with the MP for this presentation. Do not try to squeeze it into five minutes at the end of a busy day. The MP needs time to read, question, and decide.

Prepare your presentation package:

1. **The revised draft** — clean copy, properly formatted
2. **The Revision Report** — what changed and why
3. **The updated Comparative Matrix** — showing the revised bill against existing laws
4. **A summary of outstanding issues** — decisions you could not make without the MP's input
5. **The consultation documentation** — summaries of expert, agency, and constituency feedback

Walk the MP through the bill section by section. For each section, explain: - What it does - How it connects to the research findings - What the consultations revealed about it - Whether and how you changed it from the first draft - Any remaining issues or options that need the MP's decision

Allow the MP to challenge any provision. If the MP questions something, explain your reasoning. If the MP disagrees, note the MP's preferred approach. The MP is the principal author — your job is to give the best advice you can, but the final call is the MP's.

2.7.2 Incorporating MP Comments

After the presentation, you may have a new round of changes. The MP might accept most of the revised draft but want three provisions rewritten. Or the MP might make a significant policy shift that requires rethinking an entire article.

Handle these revisions promptly. If the changes are minor, you can often turn them around in a day or two. If they require new research or structural changes to the bill, communicate a realistic timeline.

For each round of MP comments, keep a log: - Date of the meeting or communication - What the MP requested - How you implemented it - Any follow-up questions

This log keeps the revision process organized, especially when there are multiple rounds of back-and-forth.

2.7.3 Finalizing the Draft

Finalization means the bill is ready for filing. The MP has reviewed and approved every provision. All outstanding issues have been resolved. The draft has been proofread and formatted to the Parliament's standards.

As part of finalization, you write the **Explanatory Note**. This is the document that accompanies the bill when it is filed and that the MP delivers as a speech during plenary sponsorship. It is written in the first person — it is the MP's statement, not a research paper.

The Explanatory Note should include:

- **The policy problem.** Why is this bill needed? What situation is the MP responding to? Use concrete facts — statistics, documented incidents, identified gaps in existing law. Draw from your research briefer.
- **The proposed solution.** What does the bill do? Summarize the bill's key provisions in plain language. Do not reproduce the entire bill text — highlight the most important features.
- **Legal and policy basis.** What constitutional provisions, BOL articles, and existing laws support this bill? Why is legislation (rather than executive action or administrative regulation) the right tool?
- **Expected impact.** What will change if this bill becomes law? Who will benefit and how?
- **Consultation findings.** Briefly note that consultations were conducted and what they confirmed or revealed. This demonstrates that the bill is grounded in real-world input, not drafted in a vacuum.
- **Closing appeal.** A short paragraph urging fellow Members of Parliament to support the bill.

Write the Explanatory Note after the bill is finalized, not before. The note must accurately describe what is in the bill, and last-minute changes to the bill would make an earlier note inaccurate.

Practical tip: The Explanatory Note is often the only part of the filing that other MPs read before deciding whether to co-author or support the bill. Make it compelling. Lead with the problem, not the legal framework. Use real examples and human stories where appropriate. A note that reads like a bureaucratic report will not inspire co-authorship.

Length and tone: There is no fixed length requirement for the Explanatory Note, but most effective notes run between three and seven pages. Shorter is better if the bill is straightforward. Longer is acceptable for complex bills that need more context. The tone should be persuasive but factual — the MP is making a case for the bill, not delivering a campaign speech. Ground every claim in evidence from your research.

Present the final draft and the Explanatory Note to the MP together. Once the MP approves both, you are ready for the last stage.

2.8 Stage 7 — Co-Authorship and Filing

A bill filed by a single MP has a harder path than a bill filed by five. Co-authorship signals broad support, increases the bill's chances of being calendared for committee hearing, and distributes the political work of shepherding the bill through the legislative process.

This stage is as much about relationships and persuasion as it is about paperwork.

2.8.1 Identifying and Inviting Potential Co-Authors

Go back to the Initial Legislative Template — you listed potential co-authors there. Now, with the research and consultation behind you, refine that list.

Criteria for identifying co-authors:

- **Committee assignment.** Which MPs sit on the committee that will handle the bill? A co-author on the relevant committee is a major advantage — they can advocate for the bill from inside the committee.
- **Legislative agenda alignment.** Which MPs have publicly expressed interest in the bill's subject matter? Check their speeches, resolutions filed, and committee participation records.
- **Constituency interest.** Which MPs represent areas or sectors most affected by the bill? An MP whose constituents would directly benefit has a natural reason to co-author.

- **Political relationships.** Which MPs have a good working relationship with the lead author? Co-authorship often follows existing alliances and collegial ties.
- **Diversity.** A bill with co-authors from different provinces, sectors, and political backgrounds sends a stronger signal of broad support than a bill co-authored only by close allies.

How to invite co-authors:

Do not simply send the bill by email with a "please co-author" note. Co-authorship is a commitment, and MPs take it seriously. Follow a more deliberate process:

1. The lead author MP (or the chief of staff on the MP's behalf) sends a personal invitation — a letter, a call, or a face-to-face request.
2. The invitation includes a brief summary of the bill (the Explanatory Note works well for this) and an offer to present the full draft.
3. Respect the invited MP's process. Some will want to review the full text. Others will trust the lead author and agree quickly. Some will consult their own staff before deciding.

2.8.2 Presenting the Draft

For MPs who want to review the bill before committing, prepare a presentation similar to what you did for the lead author — but shorter and focused on the highlights.

Cover: - The policy problem and why it matters - The bill's key provisions (not every section — focus on the most important ones) - How the bill was developed (research, consultations, revisions) - Why this MP's co-authorship would strengthen the bill

Tailor the presentation to each MP. If the invited MP represents a coastal province, emphasize the bill's relevance to coastal communities. If the invited MP sits on the finance committee, address the budget provisions in detail.

2.8.3 Incorporating Comments

Co-authors may request changes before signing on. These requests range from minor — adding a provision they care about, adjusting language in the Declaration of Policy — to major — restructuring an entire article.

Handle co-author comments the same way you handle any revision:

- Evaluate each request on its merits
- Consult with the lead author before making significant changes
- Communicate clearly about what was incorporated and what was not, and why

The lead author has the final say. A co-author who insists on changes the lead author rejects may choose not to co-author — and that is their right.

Practical tip: Set a deadline for co-author feedback. Without a deadline, the back-and-forth can drag on indefinitely. Two weeks is usually reasonable for a standard bill.

2.8.4 Securing Approval

Once comments are incorporated and the draft is finalized again, circulate the final version to all co-authors for formal approval. Each co-author confirms — in writing — that they approve the bill and authorize their name to appear as co-author.

The lead author signs the bill's cover page. Co-authors may sign the same page or provide separate authorization letters, depending on the Parliament's requirements.

2.8.5 Filing with the Bills and Index Division

The bill is filed with the **Bills and Index Division** of the Office of the Secretary General. Filing requirements include:

- The signed bill text — original and the required number of copies
- The Explanatory Note — signed by the lead author
- The list of co-authors
- Any supporting documents required by the Parliament's rules (this may vary by session — check current requirements before filing)

Upon filing, the Bills and Index Division assigns the bill a **number** (the bill number that identifies it throughout the legislative process) and refers it to the appropriate committee.

What to expect at filing: The Bills and Index Division will check that the filing is complete — signed bill text, Explanatory Note, co-author list. They may ask for additional copies or point out formatting issues. This is an administrative check, not a substantive review. Fix any issues on the spot if possible, or return the same day with corrected documents.

Practical tip: File early in the session. Bills filed later in the session have less time for committee deliberation and plenary debate. If the bill is ready, do not wait. Also, keep track of the committee referral — knowing which committee received the bill determines your next steps in supporting the MP during the committee stage.

2.8.6 Circulating to Co-Authors

After filing, send each co-author:

- A copy of the filed bill with its assigned bill number
- The committee referral (which committee will handle the bill)
- A note of thanks for their co-authorship

This is a courtesy that maintains the relationship and keeps co-authors informed. It also signals the start of the next phase — committee deliberations — where the drafter's work continues in a different form (supporting the MP during committee hearings, preparing amendments, and coordinating with co-authors).

2.9 Process Flowchart: From Legislative Directive to Filing

The following text-based flowchart shows the seven stages with their key outputs and decision points.

```
┌──────────────────────────────────────────────────────────┐
│                STAGE 1: LEGISLATIVE DIRECTIVE            │
│                                                          │
│  MP gives policy direction                               │
│       │                                                  │
│       ▼                                                  │
│  Drafter documents Initial Legislative Template          │
│       │                                                  │
│       ▼                                                  │
│  Align with MP's legislative agenda                      │
│       │                                                  │
│       ▼                                                  │
│  ┌──────────────────────┐                                │
│  │  MP approves to      │──── No ──→ Revise template   │
│  │  proceed?            │             and re-present    │
│  └──────────────────────┘                                │
│       │ Yes                                              │
└───────│──────────────────────────────────────────────────┘
        ▼

┌──────────────────────────────────────────────────────────┐
│                STAGE 2: LEGISLATIVE RESEARCH             │
│                                                          │
│  Gather legislative requirements                         │
│       │                                                  │
│       ▼                                                  │
│  Request PRLS support  ←──────────────────┐              │
│       │                                   │              │
│       ▼                                   │              │
│  Conduct policy and legal research        │              │
│  (Constitution → BOL → National Laws →    │              │
│   BAAs → Local Ordinances → Policy Sources)  │           │
│       │                                   │              │
│       ▼                                   │              │
│  Prepare Legislative Research Briefer     │              │
│       │                                   │              │
│       ▼                                   │              │
│  ┌──────────────────────┐                 │              │
│  │  MP approves         │── No ──→ Additional │          │
│  │  briefer and         │          research ──┘          │
│  │  direction?          │                                │
│  └──────────────────────┘                                │
│       │ Yes                                              │
└───────│──────────────────────────────────────────────────┘
        ▼

┌──────────────────────────────────────────────────────────┐
│              STAGE 3: PREPARING THE FIRST DRAFT          │
│                                                          │
│  Prepare working outline                                 │
```

```
│        │                                                │
│        ▼                                                │
│  Draft the bill                                         │
│        │                                                │
│        ▼                                                │
│  Prepare Comparative Matrix                             │
│        │                                                │
│        ▼                                                │
│  Internal review of first draft                         │
│        │                                                │
│  OUTPUT: First Draft + Comparative Matrix               │
│         + Issues List                                   │
└────────┼────────────────────────────────────────────────┘
         ▼

┌────────────────────────────────────────────────────────┐
│                STAGE 4: CONSULTATION                   │
│                                                        │
│  Interviews and RTDs with experts                      │
│        │                                               │
│        ▼                                               │
│  Consultation with implementing agencies               │
│        │                                               │
│        ▼                                               │
│  Consultations with sectors and constituencies         │
│        │                                               │
│  OUTPUT: Consultation findings and documentation       │
└────────┼───────────────────────────────────────────────┘
         ▼

┌────────────────────────────────────────────────────────┐
│             STAGE 5: REVIEW AND REVISION               │
│                                                        │
│  Review and organize consultation findings             │
│        │                                               │
│        ▼                                               │
│  Assess impact on first draft                          │
│  (Incorporate / Note / Reject / Escalate)              │
│        │                                               │
│        ▼                                               │
│  Identify and address gaps                             │
│        │                                               │
│        ▼                                               │
│  ┌──────────────────────┐                              │
│  │  New research        │── Yes ──→ Return to Stage 2  │
│  │  needed?             │           (targeted research) │
│  └──────────────────────┘                              │
│        │ No                                            │
│        ▼                                               │
│  Revise the first draft                                │
│        │                                               │
```

```
│  OUTPUT: Revised Draft + Revision Report                  │
│         + Updated Comparative Matrix                      │
└──────────┬──────────────────────────────────────────────┘
           ▼

┌──────────────────────────────────────────────────────────┐
│         STAGE 6: PRESENTATION AND FINALIZATION            │
│                                                           │
│  Present revised draft to MP                              │
│       │                                                   │
│       ▼                                                   │
│  ┌──────────────────────┐                                 │
│  │  MP approves         │── No ──→ Incorporate MP         │
│  │  revised draft?      │          comments and           │
│  └──────────────────────┘          re-present             │
│       │ Yes                            │                  │
│       │          ←─────────────────────┘                  │
│       ▼                                                   │
│  Write the Explanatory Note                               │
│       │                                                   │
│       ▼                                                   │
│  MP approves final draft + Explanatory Note               │
│       │                                                   │
│  OUTPUT: Final Draft + Explanatory Note                   │
└──────────┬──────────────────────────────────────────────┘
           ▼

┌──────────────────────────────────────────────────────────┐
│           STAGE 7: CO-AUTHORSHIP AND FILING               │
│                                                           │
│  Identify and invite potential co-authors                 │
│       │                                                   │
│       ▼                                                   │
│  Present draft to interested co-authors                   │
│       │                                                   │
│       ▼                                                   │
│  ┌──────────────────────┐                                 │
│  │  Co-authors request  │── Yes ──→ Incorporate           │
│  │  changes?            │           changes (with lead    │
│  └──────────────────────┘           author approval)      │
│       │ No                             │                  │
│       │          ←─────────────────────┘                  │
│       ▼                                                   │
│  Secure formal co-author approval                         │
│       │                                                   │
│       ▼                                                   │
│  File with Bills and Index Division                       │
│       │                                                   │
│       ▼                                                   │
│  Circulate filed bill to co-authors                       │
│       │                                                   │
```

```
│  OUTPUT: Filed Bill (with assigned bill number)         │
│         + Committee Referral                            │
└─────────────────────────────────────────────────────────┘
```

Reading the flowchart:

- Each stage box shows the main activities in sequence.
- Decision diamonds (shown as bracketed questions) indicate points where the process may loop back.
- Outputs are listed at the bottom of each stage box.
- The arrows between stages show the primary forward flow. Backward loops (Stage 5 back to Stage 2, for example) indicate that the process is iterative when circumstances require it.

Key decision points:

Stage	Decision	If No
1	MP approves template?	Revise and re-present
2	MP approves briefer and direction?	Conduct additional research
5	New research needed?	Return to Stage 2 for targeted research
6	MP approves revised draft?	Incorporate comments and re-present
7	Co-authors request changes?	Incorporate with lead author approval

The entire process — from directive to filing — can take anywhere from a few weeks for a simple bill to several months for a complex one. The timeline depends on the bill's scope, the depth of research needed, the number of consultations required, and how quickly the MP and co-authors respond to review requests. Build a realistic timeline at Stage 1 and adjust it as work progresses. Speed matters, but a rushed bill costs more time in committee than a well-prepared one saves in drafting.

The next chapter covers the technical requirements of drafting a bill — format, structure, language conventions, and the standard provisions that appear in every Bangsamoro Autonomy Act.

Back to Table of Contents

Chapter 3: Anatomy of a Bill

A bill is not a wish list. It is a set of instructions to the government, written in a form that courts will interpret and agencies will carry out long after the drafter has moved on. The structure of a bill exists for a reason: each part does specific work, and when parts are missing or out of order, the entire law suffers.

This chapter walks through every component of a Bangsamoro Autonomy Act, from the caption down to the effectivity clause, explaining what each part does, how to write it, and what mistakes to avoid.

3.1 Overview: The Two-Part Structure

Every bill filed in the Bangsamoro Parliament consists of two distinct parts: the Explanatory Note and the Main Body. They serve different purposes, travel different paths, and follow different rules. Understanding this division is the first step to writing well.

3.1.1 The Explanatory Note

The Explanatory Note is the drafter's argument for why the bill should exist. It is not part of the law itself. Once the bill is enacted, the Explanatory Note does not appear in the final text of the Bangsamoro Autonomy Act. But during the legislative process, it is often the first thing Members of Parliament read, and sometimes the only thing they read before deciding whether to support the measure.

The Explanatory Note should answer three questions:

1. **What problem does this bill solve?** Describe the current situation. Use data, reports, or specific incidents where possible. Avoid vague claims about the need for "development" or "progress" without concrete backing.
2. **Why is legislation the right response?** Some problems can be addressed by executive issuance or administrative reform. Explain why a law is necessary — perhaps existing authority is insufficient, or the matter requires funding that only an appropriations act can provide, or a right needs statutory protection.

3. **What does the bill actually do?** Summarize the main features in plain language. This is not a restatement of every section. Hit the key mechanisms: what is being created, changed, funded, prohibited, or required.

The Explanatory Note is usually one to three pages. Keep it direct. Parliament members handle dozens of bills per session. A focused, well-supported note will get more attention than a sprawling essay.

A few practical points:

- Cite your authority. If the Bangsamoro Organic Law mandates the legislation, say so and give the specific provision. For instance, if you are drafting a Revenue Code, note that Section 4(a), Article XVI of Republic Act No. 11054 lists it as a priority legislation for the transition period.
- Use actual data. Enrollment figures, budget allocations, health statistics, employment numbers — these ground your argument in reality.
- Avoid emotional appeals that cannot be substantiated. The Explanatory Note is a policy document, not a campaign speech.
- Sign the note. The principal author or authors affix their names at the end.

3.1.2 The Main Body

The Main Body is the actual proposed law. It begins with the caption and bill number, moves through the enacting clause, and proceeds section by section through the preliminary provisions, substantive provisions, administrative provisions, enforcement provisions, and final provisions.

Everything discussed in the rest of this chapter concerns the Main Body. The ordering of its parts is not arbitrary. Philippine and Bangsamoro legislative convention follows a standard sequence:

1. Caption and Bill Number
2. Long Title
3. Enacting Clause
4. Preliminary Provisions (short title, declaration of policy, definitions, scope)
5. Substantive Provisions (the core rules and mechanisms)
6. Administrative Provisions (implementing agencies, oversight, IRR)
7. Enforcement Provisions (penalties, sanctions)
8. Final Provisions (appropriation, transitory, separability, repealing, effectivity)

Not every bill includes all of these. A short bill adopting a symbol or declaring a holiday may have only five or six sections total. A comprehensive code may run to hundreds of sections spread across multiple books and titles. But the sequence remains the same. Do not scatter your effectivity clause in the middle of the bill or place definitions after the substantive provisions. Readers expect things in a certain order, and so do courts when they interpret the law.

3.2 The Caption and Bill Number

The caption is the header block at the top of every bill. It identifies the filing legislature, the session, and the bill's number within the parliamentary filing system. Here is what it looks like in practice:

> Republic of the Philippines Bangsamoro Autonomous Region in Muslim Mindanao
> **BANGSAMORO TRANSITION AUTHORITY PARLIAMENT** Bangsamoro Government Center, Cotabato City
>
> **BANGSAMORO TRANSITION AUTHORITY (SECOND REGULAR SESSION)**
>
> **BANGSAMORO AUTONOMY ACT NO. ___**

A few things to note:

The bill number and the BAA number are different. The bill number is assigned when the bill is filed — it reflects the order of filing in a given session. The BAA number is assigned when the bill is enacted — it reflects the order of enactment across all sessions. For example, what was filed as Bill No. 29 eventually became Bangsamoro Autonomy Act No. 35, the Electoral Code.

During drafting, you will use the bill number in the caption. The BAA number is assigned later by the Secretary-General after final approval. Leave the BAA number blank or use a placeholder.

The session designation matters. The BTA Parliament operated under numbered regular sessions. A future elected Parliament will likely follow a similar convention. Use the correct session designation.

The header format may evolve. The BTA caption includes "Bangsamoro Transition Authority Parliament" because the BTA is the interim body. When an elected Parliament sits, this line will change to reflect the new institutional name. Your bill should use whatever designation is current. The key elements — Republic of the Philippines, Bangsamoro Autonomous Region in Muslim Mindanao, and the parliamentary body — will remain.

The "Begun and held in" line. Enacted BAAs include a line such as: "Begun and held in Cotabato City, on Friday, the 29th day of March, 2019." This identifies the inception date of the BTA Parliament. For bills enacted during later sessions, the same inception date may appear — it marks when the Parliament was first constituted, not when the particular session began. Follow the convention used in the most recent enacted BAA when drafting this line.

The date format. BAAs that were passed during or after the Dual Calendar Act (BAA No. 20) include both Hijri and Gregorian dates. BAA No. 36, for instance, records its passage date as "Shawwal 26, 1444/May 17, 2023." If the dual calendar is in force at the time of your bill's enactment, both dates should appear in the approval block.

3.3 The Long Title

The long title is the formal description of the bill's contents, usually printed in capital letters between the caption and the enacting clause. It begins with "AN ACT" and describes, in a single sentence, what the bill does.

Here are examples from enacted laws:

> **AN ACT PROVIDING FOR THE BANGSAMORO ADMINISTRATIVE CODE AND FOR OTHER RELATED PURPOSES** — BAA No. 13
>
> **AN ACT CREATING THE BANGSAMORO ATTORNEY-GENERAL'S OFFICE, DEFINING ITS FUNCTIONS AND POWERS, APPROPRIATING FUNDS THEREFOR, AND FOR OTHER RELATED PURPOSES** — BAA No. 5
>
> **AN ACT REGULATING THE OPERATIONS OF LOCAL AND FOREIGN RECRUITMENT AGENCIES WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO (BARMM)** — BAA No. 9

3.3.1 Purpose and Requirements

The long title serves two purposes. First, it tells the reader — quickly, in one sentence — what subject the bill covers. Second, it satisfies the constitutional and organic law requirement that every bill embrace only one subject expressed in the title.

Section 25(a), Article VII of the Bangsamoro Organic Law states: "Every bill passed by the Parliament shall embrace only one subject which shall be expressed in the title thereof." This mirrors Article VI, Section 26(1) of the 1987 Philippine Constitution. The rule is not optional. A law whose title fails to cover its contents — or whose contents go beyond the scope indicated by its title — is vulnerable to constitutional challenge.

3.3.2 The One Subject, One Title Rule

This rule has two parts.

One subject. A bill must deal with a single subject matter. That subject can be broad — the Bangsamoro Administrative Code, for example, covers the entire structure of government — but it must be unified. You cannot combine a fisheries regulation bill with an electoral reform bill. The Supreme Court has struck down laws for violating this rule, and the same risk applies in the Bangsamoro.

What counts as a "single subject" has been interpreted generously by Philippine courts. Provisions need not be identical in nature; they must simply be related to and germane to the subject expressed in the title. A bill creating a government office can include provisions on its funding, staffing, and powers — these are all part of the subject of creating that office. Similarly, the Overseas Bangsamoro Workers Act (BAA No. 19) covers employment contracts, recruitment regulation, welfare services, and repatriation — all different topics, but all germane to the single subject of overseas employment policy.

The test is germaneness, not identity. If a provision has a rational connection to the bill's subject, it belongs. If it does not, it is a "rider" and should be filed as a separate bill.

Expressed in the title. The title must give notice of the bill's contents. It does not need to be an index; it does not need to list every provision. But it should be specific enough that a reader knows what general topic the bill addresses. The phrase "and for other purposes" or "and for other related purposes" has become standard in Philippine legislation as a catch-all for incidental provisions, but it does not license you to smuggle in entirely unrelated subjects.

The purpose of this requirement is notice. A Member of Parliament scanning the order of business should be able to tell from the title what the bill covers. A citizen looking up a law should find it under a title that describes its contents. If the title says "An Act

Creating the Bangsamoro Youth Commission" and the bill includes a provision restructuring the education ministry, that education provision violates the rule — no reader would expect it based on the title.

3.3.3 Tips for Writing the Long Title

- **Start with the main action.** What is the bill doing? Creating something? Regulating something? Providing for a code? Lead with that.
- **Name the subject.** If you are creating an office, name it. If you are regulating an industry, name the industry. If you are amending an existing law, identify the law.
- **Include key secondary actions.** If the bill appropriates funds, say "APPROPRIATING FUNDS THEREFOR." If it repeals an existing law, name the law being repealed.
- **Use "AND FOR OTHER PURPOSES" sparingly and honestly.** This phrase covers incidental and germane provisions. It does not expand the bill's scope beyond its core subject.
- **Keep it to one sentence.** Long titles can get long — that is fine. BAA No. 39, the Bangsamoro Holidays Act, has a long title that names the specific law being repealed. BAA No. 50, creating the Bangsamoro Kulliyyah for Islamic Studies, names the old law being repealed (MMAA No. 164). These are detailed but still one sentence.
- **Use active, specific verbs.** "Creating," "establishing," "regulating," "providing for," "mandating," "extending" — these tell the reader what the bill does.

3.3.4 Common Mistakes in Long Titles

Too vague. A long title that says "AN ACT FOR THE WELFARE OF THE PEOPLE OF BANGSAMORO" does not express any particular subject. What welfare? What mechanism? This would not survive scrutiny under the one-subject rule.

Too narrow. If your title says "AN ACT CREATING THE OFFICE OF THE REGIONAL TREASURER" but the bill also establishes a treasury board, a revenue collection system, and a financial reporting framework, the title does not cover the full contents. Expand it.

Inconsistent with the bill's contents. After finishing the main body, go back and read the long title again. Does it still match? Drafting is iterative. The bill you end up with may be different from the bill you started with. If sections were added or removed during committee deliberations, the long title may need updating.

Using "AND FOR OTHER PURPOSES" to justify unrelated riders. Courts have invalidated provisions that are not germane to the expressed subject, even when the title includes this catch-all phrase.

3.4 The Enacting Clause

The enacting clause is the formal statement of legislative authority. It appears after the long title and before the first section of the bill. It is short — one sentence — and its wording is fixed by convention.

The standard enacting clause for the Bangsamoro Parliament is:

> *Be it enacted by the Bangsamoro Parliament:*

During the BTA period, the enacting clause includes the transition authority designation:

> *Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:*

Some early BAAs used slightly different formulations (e.g., "Be it enacted by the Bangsamoro Transition Authority in Parliament assembled"). The differences are minor, but consistency is worth pursuing. Use the formulation above that matches the current parliamentary period you are drafting for. When the first elected Parliament convenes, the standard form — "Be it enacted by the Bangsamoro Parliament:" — applies.

The enacting clause is not optional. Without it, the text is not properly enacted legislation. It is the legal trigger that transforms a bill from a proposal into a command of the sovereign legislature. In Philippine jurisprudence, the enacting clause is considered one of the essential parts of a valid statute. A document without an enacting clause — no matter how detailed its provisions — is not a law.

Do not modify the enacting clause. Use the standard wording. This is not a place for creativity. Some drafters feel the urge to add phrases like "for the benefit of the Bangsamoro people" or "in the interest of justice." Resist. The enacting clause is a formulaic statement of authority, and any deviation from the standard form raises questions about the law's validity.

Placement. The enacting clause sits between the long title and the first section. It is customarily italicized. There is no section number — it stands alone as a clause. The first numbered section of the bill follows immediately after.

3.5 Preliminary Provisions

The preliminary provisions appear at the start of the bill's substantive text, usually as the first few sections (or, in a code, as the first article or chapter). They set the stage for everything that follows by doing four things: naming the law, declaring its policy intent, defining its key terms, and identifying whom or what it covers.

3.5.1 Short Title

The short title gives the law a convenient name for citation. Almost every Bangsamoro Autonomy Act includes one. It appears as Section 1 (or occasionally Section 1 of Article I).

Examples from enacted BAAs:

> **Section 1. Title.** — This Act shall be known and cited as the "Bangsamoro Administrative Code." — BAA No. 13
>
> **Section 1. Short Title.** — This Act shall be known as "Recruitment Agency Regulation Act of 2020." — BAA No. 9
>
> **Section 1. Title.** — This Act shall be known and cited as the "Bangsamoro Electoral Code of 2023." — BAA No. 35
>
> **Section 1. Short Title.** — This Act shall be known as the "Bangsamoro Revolving Fund Act of 2023." — BAA No. 36

A few conventions to follow:

- **Include the year.** Many BAAs append the year to the short title. This is good practice because it helps distinguish the law from earlier or later legislation on the same topic. BAA No. 36 is the "Bangsamoro Revolving Fund Act of 2023," not just the "Bangsamoro Revolving Fund Act."
- **Use the year of expected enactment, not the year of filing.** Bills can spend months or years in committee. The year in the title should reflect when the law takes effect, not when the draft was first filed.

- **Be specific.** The short title should be descriptive enough to identify the law. "Bangsamoro Act of 2024" is useless as a citation. "Bangsamoro Science High School System Act of 2023" (BAA No. 40) is precise.
- **Use either "Title" or "Short Title" as the section header.** Both are acceptable. The choice is a matter of style. Be consistent within the bill.

3.5.2 Declaration of Policy

The declaration of policy (sometimes called "declaration of principles and policies") states the legislative intent behind the law. It articulates what values the legislature aims to advance and what problems it aims to solve. Courts use this section when interpreting ambiguous provisions — if two readings of a substantive provision are possible, the one that aligns with the declared policy will usually prevail.

Here is an example from BAA No. 36, the Revolving Fund Act:

> **SEC. 2. Declaration of Policy.** — It is the policy of the Bangsamoro Government to provide, maintain, and ensure the delivery of basic and responsive health programs, quality education, appropriate services, and livelihood opportunities, among others, to the Bangsamoro people and other inhabitants of the Bangsamoro. It shall likewise be the policy of the Bangsamoro Government to afford workers in the Bangsamoro full protection and promotion of their general welfare to ensure the efficient and effective delivery of services and programs to the Bangsamoro constituents. Thus, it shall be the policy of the Bangsamoro Government to protect the interests of its workers and personnel, including those deployed in the region under programs funded by the National Government, by providing support and developing a mechanism that will ensure timely payment of authorized salaries, compensation, and emoluments for services rendered by them.

And from BAA No. 39, the Holidays Act:

> **SEC. 2. Declaration of Policy.** — It is the policy of the Bangsamoro Government to recognize the observance of regional and local public holidays that preserve and promote the rich history, tradition, and cultural heritage of the Bangsamoro and other peoples in the BARMM, reflective of their system of life as prescribed by their faith, uphold the rights and well-being of workers, and promote the vibrance and competitiveness of the regional economy.

3.5.3 Tips for Writing the Declaration of Policy

Root it in the BOL. Where the Bangsamoro Organic Law states a principle or policy relevant to your bill, cite it. BAA No. 25 (upgrading a hospital) directly invokes "Section 22, Article IX of Republic Act No. 11054" and its health service mandate. This is not mere formality — it connects your bill to the constitutional authority of the Bangsamoro Government and strengthens it against challenge.

Be specific to the bill's subject matter. A declaration of policy that could apply to any bill is not doing its job. "It is the policy of the Bangsamoro Government to promote the welfare of its people" says nothing useful. Compare that with the Revolving Fund Act's declaration, which identifies the exact problem (delayed salary payments for nationally funded workers) and the exact response (a revolving fund mechanism).

Keep the scope realistic. Do not promise what the bill cannot deliver. If the bill creates a commission, the declaration should not promise the eradication of poverty.

Anchor it to the actual contents. Read through your substantive provisions, then return to the declaration. Every major mechanism in the bill should trace back to a stated policy. And the declaration should not state policies that no provision in the bill actually addresses.

Do not confuse policy with operative commands. The declaration of policy is aspirational and interpretive. It should not contain operative provisions (things the government "shall" do or "must" comply with) unless those duties are also established in the substantive sections. In practice, some BAAs blur this line, but the cleaner approach is to reserve mandatory commands for the substantive provisions.

Use clear, direct language. Avoid stacking multiple subordinate clauses. One BAA declaration runs to a single sentence of over 100 words with six embedded clauses. Nobody can read that in one pass. Break complex ideas into separate sentences or separate lettered paragraphs.

Consider using a lettered list for multiple policies. BAA No. 13 (Administrative Code) and BAA No. 35 (Electoral Code) both use lettered paragraphs to state multiple principles in their declarations. BAA No. 35 sets out five distinct principles, each in its own paragraph. This is cleaner than cramming multiple ideas into a single block of prose.

Common mistakes in declarations of policy:

- Restating the BOL's own declaration of principles verbatim without adding anything specific to the bill. The BOL's principles are general. Your declaration should connect them to the bill's specific subject.

- Writing a declaration so long that it becomes a policy essay rather than a guide for interpretation. Two to four paragraphs is sufficient for most bills. Codes may warrant more.
- Including operative commands ("the Bangsamoro Government shall establish...") that are not repeated in the substantive provisions, creating ambiguity about whether the obligation exists once or twice — and about which formulation controls if they differ.
- Omitting the declaration entirely. A few BAAs skip it. This is not a good practice. The declaration costs you a paragraph. Its absence costs you a tool of interpretation when the law is challenged or applied to an unforeseen situation.

3.5.4 Definition of Terms

The definition section tells readers — and courts — exactly what key words mean within the four corners of the law. Terms that have ordinary meanings do not need definitions. Terms that are technical, terms that could be interpreted in multiple ways, and terms that have a specific meaning in the bill that differs from everyday usage — those need definitions.

Look at how BAA No. 5, the Attorney-General's Office Act, handles definitions:

> **Section 2. Definition of Terms.** — For purposes of this Act, the following terms are hereby defined as follows:
>
> (a) "Attorney-General" refers to the person appointed as such under this Act.
>
> (b) "Employee", when used with reference to a person in the public service, includes any person in the service of the Bangsamoro Government or any of its ministries, agencies, offices, or instrumentalities.
>
> (c) "Legal officer" refers to a person appointed to carry out a legal service in the Bangsamoro ministries, agencies, offices, or instrumentalities.
>
> (d) "Legal service" refers to services involving legal duties such as issuance of legal opinions, initiation or resolution of administrative cases, provision of legal advice, representation in courts, and/or law related matters.

And BAA No. 35, the Electoral Code, defines 23 terms, from "Automated Election System" to "Youth Sector." These definitions are essential because electoral law is technically dense and many terms have specific legal meanings that differ from their colloquial use.

3.5.5 Tips for Writing Definitions

Define only what needs defining. Do not define "Bangsamoro Government" if you use it in its ordinary legal sense. Do not define "person" or "law" unless your bill gives these terms an unusual scope. Over-definition clutters the section and can create unintended ambiguities.

Use the formula "refers to" or "means." Both are standard. "Refers to" is more common in BAAs. Be consistent — do not switch between "refers to," "means," "shall mean," and "is defined as" within the same section.

List definitions alphabetically. Most BAAs do this. It makes terms easy to find. When using lettered paragraphs — (a), (b), (c) — alphabetical order by the defined term is the convention.

Do not embed substantive rules inside definitions. A definition should tell the reader what a word means, not what someone must do. If you define "accredited agency" and then add "which shall be required to submit quarterly reports," you have hidden an operative obligation inside the definition section, where nobody will look for it when drafting implementing rules.

Use the qualifier "for purposes of this Act" or "as used in this Act." This makes clear that your definition applies only within your bill. A term might mean something different in another law. Without this qualifier, interpretation disputes can arise.

Be precise about scope. If "youth" means ages 15 to 40 in your bill (as in BAA No. 10), say so explicitly. If a term includes something that a reader might not expect — for example, if "employee" includes contractual workers — state the inclusion. If it excludes something, state the exclusion.

Cross-check defined terms against the rest of the bill. Every defined term should appear in the substantive provisions. If you define a term but never use it, delete the definition. If you use a term in the bill that needs definition but is not in the definition section, add it. Run a word search after completing the draft.

Do not define terms that appear only once. If a technical term appears in a single section, consider defining it in parentheses within that section rather than in the definition article. This reduces the need for the reader to flip back and forth.

3.5.6 Scope and Coverage

Some bills include a separate section on scope or coverage, identifying which persons, entities, territories, or situations the law applies to. This is particularly important for regulatory bills, labor legislation, and measures that apply to specific geographic areas or government levels.

BAA No. 39, the Holidays Act, provides a good example:

> **SEC. 4. Coverage.** — Holidays provided under this Act shall be officially observed by the private sector and all branches, subdivisions, instrumentalities, and agencies of the regional government, including its constituent local government units, established and operating in the BARMM.
>
> All offices of the BARMM located outside of its territorial jurisdiction shall also be covered by the provisions of this Act.

This does two things: it tells the reader who must observe the holidays (both public and private sectors), and it addresses a situation that could otherwise cause confusion (offices outside BARMM territory).

Similarly, BAA No. 9, the Recruitment Agency Regulation Act, specifies that it covers "all local and foreign recruitment and employment agencies operating and/or recruiting within the Bangsamoro Autonomous Region."

When drafting a scope clause:

- **Be explicit about inclusions.** "All ministries, agencies, offices, commissions, boards, committees, institutes, corporations whether performing governmental or proprietary function" — BAA No. 20 leaves nothing to guesswork.
- **Address borderline cases.** Does the law apply to local government units? To government-owned corporations? To private entities? To entities outside BARMM territory but dealing with BARMM residents?
- **State exclusions.** If certain entities or persons are exempt, say so here.
- **Avoid overly broad statements.** "This Act shall apply to all persons" is nearly always too broad. Be specific about the classes of persons or entities affected.

3.6 Substantive Provisions

These are the heart of the bill. The substantive provisions contain the rules, rights, obligations, powers, functions, structures, and mechanisms that give the law its operational content. Everything before this section sets the stage. Everything after it deals with implementation, enforcement, and housekeeping. The substantive provisions are where the law does its work.

3.6.1 Organizing the Substance of the Bill

The organizing principle depends on the bill's complexity and subject matter.

Simple bills may need no formal grouping at all. BAA No. 1, adopting the Bangsamoro flag, has five sections in a flat sequence: adoption, declaration of policy, design specifications, display rules, and effectivity. No articles, no chapters, no titles. The subject is narrow enough that a linear arrangement works.

Medium-complexity bills group related provisions under articles. BAA No. 5, the Attorney-General's Office Act, uses four articles: - Article I: Preliminary Provisions - Article II: Establishment and Functions - Article III: Legal Liaison Network - Article IV: Miscellaneous Provisions

Codes and comprehensive laws use a hierarchical structure with books, titles, chapters, articles, and sections. BAA No. 13, the Administrative Code, is organized by books: - Book I: Bangsamoro Autonomy and Administration - Book II: Bangsamoro Parliament (within which chapters cover specific topics)

BAA No. 35, the Electoral Code, uses articles, each covering a distinct aspect of the electoral system: introductory provisions, the Bangsamoro Electoral Office, voter registration, political parties, elections, and so on.

When organizing your substantive provisions, follow these principles:

Group by function, not by the order in which you wrote them. All provisions about powers go together. All provisions about qualifications go together. All provisions about funding go together.

Move from the general to the specific. Establish the institution or right first, then set out its details. BAA No. 10, the Youth Commission Act, first creates the commission (Section 4), then describes its nature and status (Section 5), then its mandate (Section 6), then its powers (Section 7), then its specific functions (Section 8).

Keep related provisions close together. If a reader needs to understand Section 12 to apply Section 15, those sections should be in the same article or chapter, not separated by dozens of provisions on unrelated topics.

Use transition sentences or headings to signal shifts. When moving from one major topic to another, an article heading or chapter heading signals the shift. The reader does not have to puzzle out that "now we are talking about something different."

3.6.2 Numbering and Subdivisions

Philippine legislative convention, which Bangsamoro legislation follows, uses a specific numbering system.

Sections are the basic unit. They are numbered sequentially from 1 through the end of the bill, regardless of article or chapter divisions. In BAA No. 5, Section 12 (Legal Liaison Network) falls under Article III even though the numbering continues from Article II.

Some codes restart section numbering within each article or book. BAA No. 13 restarts section numbers within each chapter. BAA No. 35 restarts within each article. Either approach is acceptable, but be consistent within your bill.

Subdivisions within a section follow this hierarchy:

1. **Subsections** — numbered in parenthetical numerals: (1), (2), (3)
2. **Paragraphs** — lettered in lowercase: (a), (b), (c)
3. **Subparagraphs** — numbered with roman numerals or sub-letters: (i), (ii), (iii)

In practice, BAAs are not perfectly consistent on this hierarchy. Some use lettered paragraphs as the first level of subdivision — (a), (b), (c) — and numbered items beneath them. Others lead with numbered subsections. The key is internal consistency: pick one approach and maintain it throughout the bill.

Formatting conventions:

- Section headers are bolded and italicized: **SEC. 5.** *Short Title.*
- The section number uses the abbreviated form "SEC." after the first section, which is spelled out in full: "SECTION 1" or "Section 1."
- The section heading is followed by a period or dash, then the text begins on the same line.
- Subdivisions are indented.

3.6.3 Cross-References

When one provision refers to another, be precise. Do not write "as provided elsewhere in this Act." Specify the section number.

Good cross-references:

> "...pursuant to Section 8, Article XVI of Republic Act No. 11054." — BAA No. 5, citing the BOL provision that mandates the Attorney-General's Office
>
> "...in accordance with the provisions of Bangsamoro Autonomy Act No. 7." — BAA No. 13, referencing an earlier BAA
>
> "...subject to the provisions of Republic Act No. 11054 or the Bangsamoro Organic Law." — BAA No. 46, referencing the organic law

Bad cross-references:

> "...as provided by law." (Which law?) "...in accordance with applicable rules." (Which rules?) "...under the preceding section." (Works only if the preceding section does not change during deliberation. Use the section number.)

When cross-referencing other laws:

- Give the full title on first reference: "Republic Act No. 11054, otherwise known as the 'Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao.'"
- On subsequent references, you can use the short form: "the Bangsamoro Organic Law" or "R.A. No. 11054."
- For BAAs, use the form: "Bangsamoro Autonomy Act No. 13, otherwise known as the 'Bangsamoro Administrative Code.'"

3.6.4 Tips for Substantive Provisions

One idea per section. Each section should deal with one topic. If a section addresses qualifications, it should not also set out duties. If it establishes a fund, it should not also prescribe penalties for misuse — that belongs in the enforcement provisions.

Use the active voice and the mandatory "shall." In legislative drafting, "shall" means "must." It imposes a duty or establishes a requirement. "May" grants discretion. Do not confuse them. "The Commission shall submit a quarterly report" is a mandatory duty. "The Commission may establish sub-offices" is discretionary authority.

Avoid ambiguous modifiers. "The Minister shall appoint qualified professionals who are residents of the region and have at least five years of experience" — does the five-year requirement apply to the professionals or to the Minister? Restructure: "The Minister shall appoint professionals who meet the following qualifications: (a) they are qualified in their field; (b) they are residents of the region; and (c) they have at least five years of relevant experience."

Use lists for multiple requirements. When a provision imposes three or more conditions, requirements, or qualifications, break them into a lettered or numbered list. Embedding five conditions in a single run-on sentence guarantees misinterpretation.

Anticipate implementation. Ask yourself: can an agency head read this section and know exactly what to do? If a provision says the government "shall ensure quality education," that means nothing operationally. If it says "the Ministry of Basic, Higher and Technical Education shall establish curriculum standards within sixty (60) days of this Act's effectivity," an agency head can act on that.

Specify time limits. "Within thirty (30) days," "within sixty (60) days," "not later than December 31 of each year." Open-ended deadlines produce open-ended delays.

Write numbers in both words and figures. This is standard in Philippine legislation: "five (5) years," "One Billion Pesos (Php1,000,000,000.00)," "sixty (60) days." The dual format guards against typographical errors.

Handle provisos correctly. The proviso — a clause beginning with "Provided, That" — is a traditional Philippine legislative device used to introduce exceptions, conditions, or qualifications to a general rule. It appears throughout the BOL and in most BAAs. When using provisos:

- Italicize the word "Provided" and capitalize "That": *Provided,* That
- For additional provisos in the same sentence, use: *Provided, further,* That and *Provided, finally,* That
- Do not stack more than three provisos in a single sentence. After three, the sentence becomes unreadable. Restructure as separate subsections instead.
- Reserve provisos for genuine exceptions or conditions. If a proviso is actually a new rule rather than a qualification of the preceding rule, it should be a separate section.

Look at Section 25(b), Article VII of the BOL for an example of stacked provisos done correctly: it states the general rule (three readings on separate days), adds a proviso for certified emergency bills, and the structure remains clear.

Use parallel structure for parallel requirements. If a section lists three qualifications, each item in the list should follow the same grammatical pattern. Not: "(a) must be a Filipino citizen; (b) a resident of the region; (c) having practiced law for ten years." Instead: "(a) is a citizen of the Philippines; (b) is a bona fide resident of the Bangsamoro Autonomous Region; (c) has been engaged in the practice of law for at least ten (10) years." BAA No. 5 follows this pattern well.

Avoid "notwithstanding" unless truly needed. The word "notwithstanding" means "despite" or "regardless of." It overrides other provisions. Used carelessly, it creates conflicts within the bill. Use it only when you intend a provision to prevail over a specific conflicting provision — and name the provision it overrides.

3.7 Administrative Provisions

Administrative provisions tell the government how to carry out the law. They identify who is responsible, what oversight mechanisms exist, and how the details will be filled in. If the substantive provisions are the "what," the administrative provisions are the "who" and "how."

3.7.1 Implementing Agencies

Most bills designate one or more agencies to implement the law. This designation should be as specific as possible.

BAA No. 20, the Dual Calendar Act, designates the implementing office clearly:

> **Section 7. Implementing Office.** — The Office of the Chief Minister of the Bangsamoro Autonomous Region in Muslim Mindanao, through the Bangsamoro Darul-Ifta', shall implement this law with the highest degree of integrity, efficiency, responsibility and accountability.

BAA No. 25, upgrading a district hospital, designates the Ministry of Health:

> **Section 5. Administration, Management, and Organization.** — The Datu Blah Sinsuat Hospital shall be under the administrative supervision of the Ministry of Health (MOH), which is hereby authorized to determine and approve the appropriate organizational structure for the management and operations of the facility.

When designating implementing agencies:

- **Name the specific ministry or office.** "The concerned agency" is not specific enough. Name it: "The Ministry of Labor and Employment," "The Ministry of Finance, Budget and Management."
- **Designate a lead agency when multiple are involved.** If three ministries share responsibility, designate one as the lead to avoid coordination failures.
- **Specify reporting lines.** Does the implementing body report to the Chief Minister, to the Parliament, or to a parent ministry?

3.7.2 Reporting and Oversight

Reporting requirements give the Parliament visibility into how the law is being implemented. They also create accountability.

BAA No. 36, the Revolving Fund Act, includes a specific reporting requirement:

> **SEC. 9. Report on the Utilization of the Fund.** — An official quarterly report on the releases, obligations, and disbursements shall be submitted by the MFBM to the Parliament through the Speaker either in printed form or by way of electronic documents.

Good reporting provisions specify: - **Who reports:** The ministry, office, or body responsible. - **To whom:** The Parliament, the Chief Minister, a specific committee. - **How often:** Quarterly, annually, or at defined milestones. - **What is reported:** Financial data, implementation progress, performance metrics — be specific. - **When the first report is due:** "Within six (6) months of the effectivity of this Act" establishes the clock.

3.7.3 Rule-Making and IRR

Many laws delegate the details to implementing rules and regulations (IRR). This is normal and often necessary — the legislature sets the policy framework, and the implementing agency fills in the operational details. But the delegation must be properly bounded.

BAA No. 36 provides for IRR with a deadline:

> **SEC. 8. Implementing Rules and Regulations.** — The MFBM shall issue the implementing rules and regulations to govern the request, utilization, and disbursement of funds pursuant to the provisions of this Act within one (1) month after its complete publication.

BAA No. 25 sets a sixty-day deadline:

> **Section 7. Implementing Rules and Regulations.** — The MOH-BARMM shall promulgate the necessary implementing rules and regulations within sixty (60) days after the enactment of this Act.

When drafting IRR provisions:

- **Set a deadline.** Laws without IRR deadlines can wait years for their rules to be issued. Sixty (60) days or ninety (90) days is standard.
- **Identify who issues the IRR.** Name the lead agency.
- **Specify the scope.** "The MFBM shall issue the implementing rules and regulations to govern the request, utilization, and disbursement of funds" — this tells the rule-maker what topics the IRR must cover.
- **Include a consultation requirement if appropriate.** Some laws mandate that the IRR be developed "in consultation with affected sectors" or "after public hearing."
- **Do not delegate the policy itself.** The IRR fills in procedural details. The law sets the substantive rules. If your bill says "the penalties for violations shall be determined in the IRR," you have delegated a legislative function to an administrative body, which raises separation-of-powers concerns.

3.7.4 Tips for Administrative Provisions

Do not assume agencies will coordinate on their own. If two ministries must work together, create a mechanism — a joint committee, a memorandum of agreement requirement, or a designated coordinator.

Match responsibilities to capabilities. Do not assign complex financial management tasks to a small office with three employees. Consider the institutional capacity of the implementing agency.

Build in accountability. Reporting requirements, audit provisions, and parliamentary oversight mechanisms make it harder for implementation to stall without anyone noticing.

Address the transition. If the law replaces an existing program or agency, specify how the transition happens — what happens to existing personnel, pending cases, ongoing contracts, and current budgets.

Specify what the IRR cannot change. The IRR should not modify, expand, or restrict rights established in the statute. If your bill grants an entitlement — say, free tuition for qualifying students — the IRR should address enrollment procedures, not redefine who qualifies. Include language such as: "The implementing rules and regulations shall not

expand, diminish, or modify the provisions of this Act." This is not always stated explicitly in enacted BAAs, but including it protects the legislative intent from administrative overreach.

Consider parliamentary oversight mechanisms. Beyond routine reporting, the Parliament may want a say in how the law is implemented. Options include: - Requiring the implementing agency to submit the draft IRR to a parliamentary committee for review before issuance - Creating a congressional oversight committee (though this is more common at the national level) - Requiring the implementing agency to appear before a committee at regular intervals to report on implementation progress

---

3.8 Enforcement Provisions

A law without enforcement is a suggestion. The enforcement provisions establish what happens when someone violates the law's requirements. Depending on the nature of the violation, consequences can be criminal, civil, or administrative.

3.8.1 Criminal Penalties

Criminal penalties involve fines, imprisonment, or both. They apply to the most serious violations — those that the legislature deems to warrant punishment as a matter of public interest.

BAA No. 9, the Recruitment Agency Regulation Act, includes criminal-adjacent penalties:

> **Sec. 5. Prohibited Acts and Penalties.** — It shall be unlawful or illegal for any local or foreign recruitment or employment agencies operating within the Bangsamoro Autonomous Region and recruiting applicants or workers who are residents of BARMM to operate without the Certificate of Accreditation from MOLE.
>
> A. Any recruitment agency found violating any provision of this Act shall be imposed with a fine of not less than One Hundred Fifty Thousand Pesos (Php150,000.00) but not more than Two Hundred Thousand Pesos (Php 200,000.00).
>
> B. Tampering, alteration and forgery of Certificate of Accreditation shall be imposed with the fine of not less than One Hundred Fifty Thousand Pesos (Php 150,000.00) but not more than Two Hundred Thousand Pesos (Php 200,000.00) without prejudice to the criminal action that may be filed.

When drafting criminal penalties:

- **Specify the prohibited act clearly.** Do not penalize vague conduct. "Any person who willfully operates a recruitment agency within the Bangsamoro Autonomous Region without a valid Certificate of Accreditation" is enforceable. "Any person who violates this Act" is too broad to prosecute fairly.
- **Set a range for fines.** "Not less than [minimum] but not more than [maximum]" gives courts discretion while maintaining proportionality.
- **Set a range for imprisonment where appropriate.** "Imprisonment of not less than six (6) months but not more than six (6) years" follows standard Philippine penal conventions.
- **Distinguish between first and repeat offenses** where warranted. Graduated penalties deter repeat violations more effectively.
- **Include the phrase "without prejudice to criminal action that may be filed"** when administrative penalties exist alongside potential criminal liability. This preserves the possibility of criminal prosecution.
- **Be mindful of the Bangsamoro Parliament's penal jurisdiction.** The Bangsamoro Government can impose penal sanctions within its legislative authority. Verify that the penalty provision falls within the powers granted by the BOL.

3.8.2 Civil Penalties and Remedies

Civil penalties do not involve imprisonment. They include fines, damages, injunctions, license revocations, and other non-criminal consequences. They are appropriate when the violation causes harm to a private party or to the government's interests, but the conduct does not rise to the level of criminal behavior.

When drafting civil penalty provisions:

- **Identify who can bring the action.** Can the government initiate it? Can a private party sue? Both?
- **Specify available remedies.** Damages, injunctions, specific performance, contract rescission, license revocation — name them.
- **Set the forum.** Regular courts? Shari'ah courts? An administrative tribunal?
- **Address costs.** Can the prevailing party recover attorney's fees and court costs?

3.8.3 Administrative Sanctions

Administrative sanctions are imposed by government agencies without going to court. They are faster than litigation but must comply with due process — the affected party must have notice and an opportunity to be heard.

BAA No. 9 gives the Ministry of Labor and Employment the power to suspend or cancel accreditation:

> **Sec. 6. Authority of the MOLE to Suspend or Cancel Certificate of Accreditation or License to Operate.** — The MOLE shall have the power and authority to suspend or cancel any certificate of accreditation duly issued to employment agencies whether local or foreign for violation of the provisions of this Act and/or Rules and Regulation issued by the MOLE, or, for the violations of any applicable laws.
>
> The said employment recruitment agencies whether local or foreign shall be given at least fifteen (15) upon service of notice of cancellation to explain in writing why no cancellation of certificate of accreditation shall be imposed.

When drafting administrative sanctions:

- **Identify the sanctioning authority.** Which office or official imposes the sanction?
- **List the grounds for sanction.** Be specific about what violations trigger administrative action.
- **Guarantee due process.** At minimum, provide for written notice and an opportunity to respond. BAA No. 9 gives fifteen days. This is standard.
- **Specify the types of sanctions.** Warning, suspension, revocation, fine — list the available sanctions in order of severity.
- **Provide for appeal.** Administrative decisions should be appealable to a higher authority, a quasi-judicial body, or the courts.

3.8.4 Tips for Enforcement Provisions

Proportionality. Penalties should fit the severity of the violation. Do not impose imprisonment for a minor regulatory infraction. Do not impose a mere fine for corruption involving millions of pesos.

Specificity. Vague penalty clauses are difficult to enforce and vulnerable to due process challenges. Specify the prohibited act, the penalty, the imposing authority, and the procedure.

Complementarity. Administrative, civil, and criminal sanctions are not mutually exclusive. A single violation can trigger all three. Make it clear whether your bill intends the sanctions to operate independently or whether one bars the others.

Do not forget defenses and mitigating circumstances. Should good faith be a defense? Should voluntary cessation of the violation reduce the penalty? Consider these questions during drafting.

Coordinate with existing law. If the Revised Penal Code or other national laws already penalize the conduct you are addressing, be aware of potential overlap. You may want to provide "without prejudice to" language to preserve both tracks of liability.

3.9 Final Provisions

The final provisions wrap up the bill. They handle funding, transition, protection of the law's integrity, and the mechanics of its entry into force. Most bills include at least a separability clause, a repealing clause, and an effectivity clause. More complex bills add appropriation, transitory, sunset, and saving clauses.

3.9.1 Appropriation Clause

If the law requires funding, the appropriation clause tells the government where the money comes from — at least initially.

BAA No. 5, the Attorney-General's Office Act, provides a specific initial amount and identifies the fund sources:

> **Section 19. Appropriations.** — The initial amount of Fifteen Million Pesos (P15,000,000.00) for Personal Services and Three Million Pesos (P3,000,000.00) for the initial operation of the BAGO shall be sourced from the Miscellaneous Personnel Benefits Fund and the Contingent Fund, as appropriated, subject to existing rules and regulations. Additional funding for Personal Services and Capital Outlay may be requested from MPBF and Contingent Fund. Subsequent funding requirements shall be included in the Bangsamoro Appropriations Act.

BAA No. 36, the Revolving Fund Act, appropriates a much larger amount:

> **SEC. 7. Appropriation.** — The amount of One Billion Pesos (Php1,000,000,000.00) revolving fund is hereby appropriated for the implementation of this Act chargeable against the Contingent Fund.

Some bills take a less specific approach:

> **Section 6. Appropriations.** — Funding is hereby appropriated from the Bangsamoro General Appropriations for the upgrading of the Datu Blah Sinsuat Hospital including the construction of infrastructures, acquisition of medical and office equipment and the annual budget needed for personnel services, maintenance, operations and other expenses for the implementation of this Act, and, thereafter, such amount as may be needed for the continued operations of the hospital. — BAA No. 25

When drafting the appropriation clause:

- **Specify the initial amount** if the bill requires start-up funding.
- **Identify the fund source.** The Contingent Fund, the General Appropriations Act, the Miscellaneous Personnel Benefits Fund, or another specific source.
- **Provide for continuing appropriations.** "Subsequent funding requirements shall be included in the annual Bangsamoro Appropriations Act" ensures the law does not die after its first year.
- **Include the standard accounting qualifier.** "Subject to existing accounting and auditing rules and regulations" or similar language.
- **Be realistic about amounts.** An appropriation clause that names an amount the government clearly cannot fund undermines the law's credibility and implementation.

3.9.2 Transitory Provisions

Transitory provisions manage the shift from the old legal regime to the new one. They address questions like: What happens to pending cases? What happens to employees of an office being reorganized? What happens to existing regulations?

These provisions are especially important for bills that replace or substantially amend existing laws. Consider:

- **Personnel.** BAA No. 50, converting the REMAcademy into the Kulliyyah for Islamic Studies, had to address what happens to existing staff.
- **Pending proceedings.** If the bill changes regulatory requirements, what happens to applications already filed under the old rules?

- **Existing contracts.** If the bill changes procurement rules, do existing contracts continue under their original terms?
- **Existing regulations.** Do IRR issued under the old law remain in effect until new ones are issued?

A standard transitory provision might read: "All rules and regulations issued under [the repealed law] shall remain in effect insofar as they are not inconsistent with this Act, until new implementing rules and regulations are issued pursuant to Section ☑ hereof."

The BOL itself provides an example of how transitory provisions work in the Bangsamoro context. Section 4(a), Article XVI states that "until the abovementioned laws are enacted, the Muslim Mindanao Autonomy Act No. 25, otherwise known as the 'Autonomous Region in Muslim Mindanao Local Government Code,' and subsisting laws on elections and other electoral matters shall apply in the Bangsamoro Autonomous Region." This kept the old ARMM legal framework in place until the BTA could replace it with new Bangsamoro codes — a textbook transitory provision.

When drafting transitory provisions:

- **Be explicit about what continues.** Do not leave agencies guessing about which old rules still apply.
- **Set a transition timeline.** "Within ninety (90) days of the effectivity of this Act, the implementing agency shall issue guidelines for the orderly transition..."
- **Address personnel by name or position.** If existing staff are absorbed, say: "All personnel of [the old office] who meet the qualifications prescribed in this Act shall be given preference in appointment to positions in [the new office]."
- **Address property and assets.** If the old entity had equipment, buildings, or funds, specify how these transfer to the new entity.
- **Address pending matters.** "Cases and proceedings pending before [the old body] at the time of this Act's effectivity shall continue to be processed under the rules in effect at the time of their filing, until resolved."

3.9.3 Sunset Clause

A sunset clause provides that the law, or a specific provision of the law, expires after a set period unless the Parliament acts to renew it. Sunset clauses are uncommon in Bangsamoro legislation to date, but they are a useful tool for:

- **Pilot programs.** If you are unsure whether a new approach will work, a sunset clause forces a review.

- **Emergency measures.** Temporary authorities granted in response to a crisis should not become permanent by default.
- **Tax incentives.** Fiscal incentives that distort the economy if left indefinitely in place benefit from automatic expiration.

When drafting a sunset clause:

- **State the expiration date clearly.** "This Act shall remain in force for a period of five (5) years from its effectivity, unless renewed by the Parliament."
- **Provide for a review period before expiration.** "Not less than six (6) months before the expiration of this Act, the implementing agency shall submit to the Parliament a report evaluating the effectiveness of this Act and a recommendation on its renewal, modification, or termination."
- **Address what happens upon expiration.** Do rights already vested survive? Do pending proceedings continue?

3.9.4 Saving Clause

A saving clause preserves rights, obligations, or proceedings that exist under a prior law when a new law replaces it. It prevents the new law from retroactively disrupting settled matters.

A standard saving clause reads: "Rights vested and obligations incurred under [the repealed law] prior to the effectivity of this Act shall not be impaired or diminished thereby."

Saving clauses protect: - Vested property rights - Accrued benefits - Pending proceedings - Contractual obligations entered into under the old law

3.9.5 Separability Clause

The separability clause (also called the "severability clause") protects the law from total invalidation if a court strikes down one provision. It says: if one part is declared unconstitutional or invalid, the rest of the law stands.

Nearly every BAA includes one. The standard wording varies slightly:

> **Section 21. Separability Clause.** — The provisions of this Act are hereby declared to be separate and in the event one or more of such provisions are held unconstitutional, the validity of other provisions shall not be affected thereby. — BAA No. 5
>
> **SEC. 10. Separability Clause.** — In the event any provision of this Act is declared unconstitutional, the validity of the other provisions shall not be affected and shall continue to be in full force and effect. — BAA No. 36
>
> **SEC. 9. Separability Clause.** — If, for any cause, any part of this Act is declared unconstitutional or contrary to the provisions of Republic Act No. 11054 or the Bangsamoro Organic Law, the rest of the provisions hereof which are not affected shall remain in full force and effect. — BAA No. 46

Note that BAA No. 46 adds a specific reference to the Bangsamoro Organic Law. This is a good practice for Bangsamoro legislation — it acknowledges that a provision could be invalidated not only for constitutional reasons but also for inconsistency with the BOL.

Do not modify the separability clause to exclude specific provisions. The whole point is a blanket protection. If certain provisions are so intertwined that one cannot function without the other, the court will reach that conclusion through interpretation — you do not need to pre-decide it.

3.9.6 Repealing Clause

The repealing clause identifies existing laws or provisions that the new law supersedes. It comes in two forms: express repeal (naming the specific law or provision being repealed) and implied repeal (a general statement that all inconsistent laws are modified).

Express repeal names the law:

> **Section 22. Repealing Clause.** — All laws, decrees, orders, rules and regulations, and other issuances or parts thereof, which are inconsistent with this Act, are hereby repealed or amended accordingly. — BAA No. 5

BAA No. 39, the Holidays Act, includes an express repeal in its long title and text, specifically naming Muslim Mindanao Autonomy Act No. 17 as the law being repealed. BAA No. 50, creating the Kulliyyah, expressly repeals MMAA No. 164.

Best practice combines both: name the specific laws being repealed, then add a general catch-all.

When drafting the repealing clause:

- **Name the specific laws being replaced.** "Muslim Mindanao Autonomy Act No. 17, otherwise known as '[full title],' is hereby repealed."
- **Add the general catch-all.** "All other laws, decrees, orders, rules, regulations, or parts thereof, which are inconsistent with this Act, are hereby repealed or modified accordingly."
- **Be precise about partial repeals.** If you are repealing only certain provisions of an existing law, identify those provisions specifically. "Section 47 of Bangsamoro Autonomy Act No. 03 is hereby amended to read as follows:" — as BAA No. 14 does.
- **Do not use the repealing clause to amend.** If you are modifying rather than repealing, use an amending provision in the substantive section, not the repealing clause.

3.9.7 Effectivity Clause

The effectivity clause states when the law takes effect. In Bangsamoro legislation, there are three common formulations:

Fifteen days after publication — the most common:

> **SEC. 12. Effectivity.** — This Act shall take effect fifteen (15) days after its publication in a newspaper of regional circulation in the Bangsamoro Autonomous Region. — BAA No. 36
>
> **Section 23. Effectivity Clause.** — This Act shall take effect after fifteen (15) days following its complete publication in at least one (1) newspaper of general circulation in the Bangsamoro region. — BAA No. 5

Publication in the Bangsamoro Gazette or a newspaper:

> **SEC. 11. Effectivity.** — This Act shall take effect after fifteen (15) days from its publication in the Bangsamoro Gazette or in one (1) newspaper of regional circulation. — BAA No. 46

Immediate effectivity:

> **Section 3. Effectivity.** — This Act shall take effect immediately after its publication in a newspaper of regional circulation in the Bangsamoro Autonomous Region. — BAA No. 14

The fifteen-day rule is the default and the safest choice. Under Philippine constitutional law, laws generally take effect fifteen days after publication, unless the law itself provides otherwise. Publication is constitutionally required for a law to be binding — an unpublished law cannot be enforced, even if the effectivity clause says "upon approval."

When drafting the effectivity clause:

- **Use the fifteen-day standard** unless there is a strong reason for a different timeline.
- **Specify the publication venue.** "A newspaper of general or regional circulation in the Bangsamoro Autonomous Region" is the standard. Adding "or in the Bangsamoro Gazette" provides an alternative venue.
- **Use "complete publication."** This means the entire text of the law must be published, not just a summary or title.
- **Immediate effectivity should be reserved for urgency.** If a measure addresses a public emergency or an imminent deadline, immediate effectivity upon publication may be justified. BAA No. 14, which extended the availability of a fiscal year's appropriations, used immediate effectivity because the deadline was about to lapse.
- **Do not write "upon approval by the Chief Minister."** Publication is still required. A law "approved" by the Chief Minister but never published has no legal effect.

3.9.8 Tips for Final Provisions

Include all standard clauses. At minimum, every bill should have a separability clause, a repealing clause, and an effectivity clause. Bills that require funding need an appropriation clause. Bills that replace existing laws should consider transitory and saving clauses.

Order the final provisions consistently. A standard order: appropriation, transitory provisions, sunset clause (if any), saving clause (if any), separability, repealing, effectivity. Many BAAs place separability before repealing and effectivity last — follow this convention.

Make the effectivity clause the last section. It is the final word of the law and should be the last section numbered. This is universal practice.

Do not forget the approval block. After the effectivity clause, the enacted law includes the approval signatures: the Speaker, the Secretary-General (certifying passage), and the Chief Minister (approving the law), along with dates. You do not draft these during the bill stage — they are added after enactment — but be aware they exist.

Review the final provisions against the rest of the bill. If you reference a specific fund in the appropriation clause, make sure that fund is actually mentioned in the substantive provisions. If you set a publication requirement in the effectivity clause, make sure the implementing agency knows the publication is its responsibility. If you repeal a law, make sure the transitory provisions address what happens to rights and obligations under that law.

Summary

A well-structured bill is a well-structured argument. Each part builds on the one before it: the long title states the subject, the enacting clause asserts authority, the preliminary provisions set the terms and scope, the substantive provisions create the rules, the administrative provisions assign responsibility, the enforcement provisions attach consequences, and the final provisions protect the law and bring it into force.

Deviating from this structure does not make a bill creative — it makes it confusing. Courts, agencies, and the public expect laws to follow a standard format. Meeting that expectation is not rigidity; it is respect for the people who must live under the law.

The BAAs enacted by the Bangsamoro Parliament since 2019 provide a growing library of templates and precedents. Study them. When in doubt about how to structure a provision, look at how similar provisions were drafted in enacted legislation. The best guide to Bangsamoro bill drafting is the body of Bangsamoro law itself.

Back to Table of Contents

Chapter 4: Special Bill Types

The standard bill structure described in Chapter 3 applies to every piece of legislation. But certain categories of bills carry additional requirements — constitutional constraints, BOL mandates, or procedural rules that do not apply to ordinary legislation. If you draft one of these special bill types without knowing the extra rules, your bill will have structural flaws that no amount of polishing can fix.

This chapter covers six categories of bills that require special attention: appropriation bills, revenue and tax measures, bills creating government bodies, regulatory and licensing bills, codification bills, and local and special bills.

4.1 Appropriation Bills

An appropriation bill authorizes the government to spend money. In the Bangsamoro, this means the General Appropriations Act of the Bangsamoro (GAAB), supplemental appropriation bills, and special appropriation bills that fund particular programs or projects.

Appropriation bills are the most consequential legislation the Parliament passes each year. No public money can be spent without an appropriations law. Section 27, Article VII of the Bangsamoro Organic Law states this directly: “No public money, including the block grant and other national government subsidies and support funds given in lump sum, shall be spent without an appropriations law clearly defining the purpose for which it is intended. The Parliament shall pass an annual appropriations law.”

4.1.1 Constitutional and BOL Requirements

Several provisions constrain how appropriation bills are drafted and passed.

The annual appropriation requirement. The Parliament must pass an appropriations law every fiscal year. This is not discretionary. Section 27, Article VII of the BOL makes it mandatory.

The reenacted budget fallback. Section 29, Article VII of the BOL provides that if the Parliament fails to pass the appropriations bill for the next fiscal year, the preceding year’s appropriations law is deemed reenacted. However, only three categories of spending survive reenactment: (1) salaries and wages of existing positions, (2) statutory and

contractual obligations, and (3) operating expenses authorized in the preceding annual budget. New programs, capital projects, and unfilled positions cannot be funded under a reenacted budget.

Purpose must be clearly defined. The BOL requires that the appropriations law "clearly defin[e] the purpose" of every expenditure. This bars lump-sum appropriations without identified purposes. Every item must have a defined program, activity, or project.

The budget preparation process. Section 28, Article VII mandates that the form, content, and manner of preparation of the Bangsamoro budget be prescribed by law. The Parliament created a Bangsamoro Budget Office for this purpose. In practice, the budget process mirrors the national government's: the executive prepares and submits a proposed budget, the Parliament reviews and deliberates, and the final appropriation bill reflects the Parliament's decisions.

Fiscal autonomy under Article XII. The Bangsamoro Government enjoys fiscal autonomy under Article XII of the BOL. It has the power to create its own revenue sources, levy taxes and fees, and allocate funds through its own appropriation process. The budget must be "spent in a programmatic, transparent, performance-based, and phased manner." These principles are not mere aspirations — they constrain how the appropriation bill is structured.

The audit requirement. Section 2, Article XII provides that the Commission on Audit is the exclusive auditor of the Bangsamoro Government. Every appropriation is subject to COA rules. Your appropriation bill should include the standard clause: "subject to existing accounting and auditing rules and regulations."

4.1.2 Structure of an Appropriation Bill

BAA No. 3, the first Bangsamoro Appropriations Act (Fiscal Year 2020), shows the standard structure of a GAAB.

Long Title. The long title identifies the fiscal period and the general purpose:

> AN ACT APPROPRIATING FUNDS FOR THE OPERATION OF THE BANGSAMORO GOVERNMENT FROM JANUARY ONE TO DECEMBER THIRTY-ONE, TWO THOUSAND AND TWENTY, AND FOR OTHER PURPOSES

Section 1 — General Appropriation. The opening section authorizes the total appropriation from the Bangsamoro Treasury:

> The following sums, or so much thereof as may be necessary, are hereby appropriated out of any available funds in the Bangsamoro Treasury Office of the Bangsamoro Autonomous Region in Muslim Mindanao not otherwise appropriated, for the operation of the Bangsamoro Government from January One to December Thirty-One, Two Thousand and Twenty...

Agency-by-agency breakdowns. The bulk of the bill consists of detailed appropriations for each agency — the Office of the Speaker, each ministry, each commission and office. For each agency, the bill provides:

- Total appropriations
- Breakdowns by program: General Administrative and Support, Support to Operations, Operations
- Breakdowns by expenditure class: Personnel Services, Maintenance and Other Operating Expenses (MOOE), Capital Outlays
- Breakdowns by object of expenditure: basic salary, allowances, social insurance premiums, supplies, utilities, and so on

This level of detail is what makes appropriation bills long and dense. A drafter working on a GAAB must coordinate with the budget office and each ministry to produce accurate figures.

General Provisions. After the agency appropriations, the GAAB includes a set of general provisions — rules that apply across all agencies. These address matters like:

- The availability period for appropriations (how long agencies have to obligate and disburse the funds)
- Rules on realignment of funds between items
- Restrictions on the use of savings
- Conditions for the release of funds
- Reporting requirements

BAA No. 14, for example, was a stand-alone bill that amended a single general provision in BAA No. 3, extending the availability period for 2020 MOOE and Capital Outlay appropriations to December 31, 2021 (while keeping Personnel Services at the original deadline). This shows how tightly the general provisions control the operation of the budget.

Drafting tips for appropriation bills:

- **Follow the national budget format.** The Bangsamoro budget mirrors the structure of the national General Appropriations Act. Use the same categories: Programs,

Activities, and Projects (PAP); the same expenditure classifications (PS, MOOE, CO); the same object codes.

- **Double-check every figure.** A single misplaced zero in an appropriation bill can mean billions. Verify amounts in both words and figures.
- **Include both current operating expenditures and capital outlays** where applicable. Agencies that need infrastructure or equipment need capital outlay authorization.
- **Coordinate with the Ministry of Finance, Budget and Management (MFBM).** The MFBM prepares the executive budget proposal. Your draft should reflect their input on available resources.
- **Remember the fiscal year.** The Bangsamoro fiscal year runs from January 1 to December 31. Make sure your appropriation matches this period.
- **Address special funds.** If the bill creates or draws on special funds (like the revolving fund in BAA No. 36), identify the fund source and the conditions for access.

4.2 Revenue and Tax Measures

Revenue bills create new taxes, fees, or charges, or modify existing ones. They are among the most politically sensitive measures a Parliament can pass, and they carry special requirements rooted in both the Constitution and the BOL.

The taxing power. Section 6, Article XII of the BOL grants the Bangsamoro Government the power to "create its own sources of revenues and to levy taxes, fees, and charges, subject to the provisions of this Organic Law and consistent with the principles of equalization, equity, accountability, administrative simplicity, harmonization and economic efficiency, and fiscal autonomy." Taxes, fees, and charges levied under this authority accrue exclusively to the Bangsamoro Government.

The Revenue Code mandate. Section 4(a), Article XVI of the BOL lists the Bangsamoro Revenue Code as one of the priority legislations for the transition period. As of this writing, this code has not yet been enacted, making it one of the most significant remaining legislative tasks.

Intergovernmental Fiscal Policy Board. The BOL creates an Intergovernmental Fiscal Policy Board (IGFPB) co-chaired by the Philippine Secretary of Finance and the appropriate Bangsamoro minister. The IGFPB addresses disputes between the national and Bang-

samoro governments on tax matters, recommends fiscal policy adjustments, and can recommend additional fiscal powers for the Bangsamoro. Revenue bills should be drafted with awareness of this body's role.

Types of revenue measures in the Bangsamoro context:

1. **Tax legislation.** Bills that impose taxes on income, property, goods, services, or transactions within the Bangsamoro.
2. **Fee and charge schedules.** Bills that authorize regulatory agencies to impose fees for permits, licenses, certifications, and similar services.
3. **Revenue-sharing adjustments.** Bills that implement or adjust the revenue-sharing arrangements between the Bangsamoro Government and its constituent local government units, or between the Bangsamoro Government and the national government.
4. **Tax incentive measures.** Bills that grant tax holidays, exemptions, or reduced rates to attract investment or support specific sectors.

Structural requirements for revenue bills:

- **Statement of revenue impact.** Include an estimate of the expected revenue. How much will the tax or fee generate annually? What assumptions support the estimate?
- **Identify the taxpayer or fee-payer.** Who pays? Individuals? Corporations? Specific industries? Be precise.
- **Specify the tax base and rate.** The tax base is what is being taxed (income, sales, property value). The rate is the percentage or fixed amount applied to the base. Both must be stated in the bill — you cannot delegate the determination of tax rates to an implementing agency.
- **Administration and collection.** Which office collects the tax? What is the filing procedure? What is the deadline for payment? Where are the funds deposited?
- **Penalties for non-payment.** Interest on late payments, surcharges, and penalties for fraud must be specified.
- **Harmonization.** Section 6, Article XII requires consistency with the principle of harmonization. Your revenue measure should not create double taxation or conflict with national tax laws without justification. Work with the IGFPB framework.
- **Effectivity.** Tax laws often take effect at the start of a fiscal year rather than fifteen days after publication, to allow taxpayers time to adjust. Consider whether a delayed effectivity date is appropriate.

Shari'ah-compliant financing and Islamic economic principles. Revenue measures in the Bangsamoro should be drafted with awareness of Islamic economic principles. The BOL recognizes the Bangsamoro identity and the role of Islamic law. While the taxing power itself is not constrained to Shari'ah-compliant forms, the drafter should consider how Islamic finance principles — such as the prohibition of *riba* (interest) and the concept of *zakat* — interact with the tax system. If the Revenue Code incorporates *zakat* collection, it raises unique drafting questions about the relationship between religious obligation and state taxation.

Revenue-sharing with local government units. Section 35, Article XII of the BOL provides a specific formula for sharing revenues from natural resources: 30% to the Bangsamoro Government, 20% to provinces, 15% to cities, 20% to municipalities, and 15% to barangays. Any revenue bill that affects revenue distribution must be consistent with this formula or must amend it through the proper process.

Common mistakes in revenue bills:

- Imposing taxes without specifying the base, rate, or collection mechanism — leaving everything to the IRR.
- Failing to coordinate with national tax laws, creating conflicts or double taxation.
- Granting tax exemptions so broad that they undermine the revenue purpose of the measure.
- Neglecting to provide for refunds and appeals when a taxpayer disputes an assessment.
- Ignoring the IGFPB. Revenue measures that affect the national-Bangsamoro fiscal relationship should be developed in coordination with the IGFPB, or they risk being unenforceable.
- Failing to include transitional provisions for existing businesses or taxpayers who need time to adjust to new requirements.

4.3 Bills Creating Government Bodies

Bills that create new government offices, commissions, agencies, or corporations are among the most structurally complex measures a drafter will handle. The Bangsamoro Parliament has enacted several: the Bangsamoro Attorney-General's Office (BAA No. 5), the Bangsamoro Youth Commission (BAA No. 10), the Bangsamoro Sports Commission (BAA No. 12), and the Bangsamoro Kulliyyah for Islamic Studies (BAA No. 50), among others.

These bills share a common structural framework, but the details vary depending on whether you are creating a ministry, a commission, a government-owned corporation, or an educational institution.

4.3.1 Structure and Composition

Every bill creating a government body must answer several questions:

What is the body's legal nature? Is it a ministry, an independent commission, an attached office, or a government-owned corporation? The answer determines its relationship to the rest of government.

BAA No. 10, the Youth Commission Act, specifies that the commission "shall have the same status as the other agencies/offices of the Bangsamoro Regional Government attached to the Office of the Chief Minister." BAA No. 50, the Kulliyyah Act, creates a corporate body "attached to the Ministry of Basic, Higher and Technical Education." These are different structural choices with different implications for supervision, budgeting, and accountability.

Who leads it? Name the position (Chairperson, Director-General, President, Attorney-General) and specify:

- Qualifications. BAA No. 5 requires the Attorney-General to be "a citizen of the Philippines, a member of the Philippine Bar in good standing, of recognized competence, a bonafide resident of the Bangsamoro Autonomous Region, and has been engaged in the practice of law for at least ten (10) years."
- Appointing authority. In most Bangsamoro agencies, the Chief Minister is the appointing authority for heads of offices, consistent with Section 32(b), Article VII of the BOL.
- Term. Is the position coterminous with the appointing authority? Fixed term? Subject to a search committee process?
- Salary grade. BAA No. 5 sets the Attorney-General's salary at Grade 28. BAA No. 50 sets the Kulliyyah President at Grade 26.

What is its internal structure? Describe the organizational subdivisions. BAA No. 5 creates four divisions: Litigation, Legal Research and Opinion, Intergovernmental Relations, and Administrative and Finance. BAA No. 50 creates a Board of Trustees with ten members, an Office of the President, and supporting services.

What is its governing body (if any)? Commissions and corporations usually have boards. Specify:

- Composition. BAA No. 50 lists ten board members by position: the MBHTE Minister as Chair, two directors-general as vice-chairs, the Kulliyyah President, the parliamentary committee chair, the Bangsamoro Mufti, and representatives of faculty, students, alumni, and private Islamic institutions.
- Quorum requirements. BAA No. 50 requires a simple majority.
- Meeting frequency. "At least once every quarter" is the standard in BAA No. 50.
- Honoraria for members.

4.3.2 Powers and Functions

This section is the operational core of any bill creating a government body. It tells the new entity what it can and must do.

Distinguish between powers (authority to act) and functions (duties to perform). BAA No. 10 makes this distinction explicitly, with Section 7 covering "Powers of the Commission" and Section 8 covering "Functions of the Commission."

Powers typically include: - Regulatory authority (issuing rules, setting standards, accrediting entities) - Administrative authority (appointing staff, managing budgets, entering contracts) - Quasi-judicial authority (hearing cases, imposing sanctions — if applicable) - Corporate powers (acquiring property, receiving donations, entering joint ventures)

Functions typically include: - Policy formulation - Program implementation - Coordination with other agencies - Research and data collection - Reporting and monitoring

BAA No. 50 gives the Kulliyyah's Board an extensive list of powers: formulating institutional policies, managing funds, establishing research centers, receiving donations, approving curricula, granting honorary degrees, fixing tuition fees, and establishing branches. This level of detail ensures the institution can operate without returning to the Parliament for authorization of routine activities.

Draft powers broadly enough to allow effective operation, but specifically enough to prevent abuse. "Perform such other functions as may be assigned by the Chief Minister" is a standard catch-all, but it should supplement — not replace — an enumerated list.

4.3.3 Funding

Every new body needs money. The bill must address:

Initial funding. Where does the start-up money come from? BAA No. 5 appropriates P15 million for Personal Services and P3 million for initial operations, sourced from the Miscellaneous Personnel Benefits Fund and the Contingent Fund.

Continuing appropriations. After the initial year, the body needs a regular budget line. "Subsequent funding requirements shall be included in the Bangsamoro Appropriations Act" is the standard formulation.

Revenue-generating authority. If the body can collect fees, tuition, or other charges, the bill should authorize this and specify how the revenue is treated. BAA No. 50 allows the Kulliyyah to retain income from tuition, auxiliary services, and land grants as special trust funds — a provision that gives the institution financial flexibility.

Special funds. If the bill creates a trust fund, endowment fund, or revolving fund, specify: the initial capitalization, the fund source, the management authority, the permissible uses, and the disbursement procedures. BAA No. 81, the Salamat Excellence Award for Leadership Act, creates an endowment fund that, as far as practicable, shall be invested in Shari'ah-compliant products — a reminder that financial provisions in Bangsamoro legislation may need to account for Islamic finance principles.

Drafting tips for bills creating government bodies:

- **Do not create a new body for a function an existing body can perform.** Before drafting, ask whether an existing ministry or office could handle the mandate with an expanded function or a new division. Unnecessary proliferation of government bodies strains the budget and creates coordination problems.
- **Align the body's mandate with BOL authority.** The new body must operate within the Bangsamoro Government's enumerated powers under Article V of the BOL.
- **Provide for an organizational review.** Include a provision allowing the body's structure to be reorganized by the Parliament or by the Chief Minister (within parameters set by the law) as needs evolve.
- **Address overlap with national agencies.** If the new body's mandate touches on areas where national agencies also operate — education, labor, health, environment — define the relationship. Which body takes the lead? How do they coordinate?
- **Include a personnel transition provision** if the new body absorbs functions from an existing office. Specify what happens to employees of the old office: Are they automatically absorbed? Do they have priority in hiring? What about their tenure and benefits?

4.4 Regulatory and Licensing Bills

Regulatory bills impose requirements on private conduct — businesses, professions, industries, or activities that the government seeks to control, manage, or standardize. BAA No. 9, the Recruitment Agency Regulation Act, is a clear example: it requires local and foreign recruitment agencies operating in the Bangsamoro to register and obtain accreditation from the Ministry of Labor and Employment.

These bills are structurally distinct from other legislation because they create an ongoing relationship between the government and regulated entities. They do not just set rules and walk away — they establish regulatory frameworks that operate continuously through licensing cycles, compliance monitoring, and enforcement.

Core structural elements of a regulatory bill:

Scope and coverage. Who is regulated? BAA No. 9 covers "all local and foreign recruitment and employment agencies operating and/or recruiting within the Bangsamoro Autonomous Region." Be precise. If only agencies above a certain size are covered, say so. If certain categories are exempt, list them.

Registration or licensing requirements. What must the regulated entity do to operate lawfully? BAA No. 9 requires agencies to "register and secure accreditation from the Ministry of Labor and Employment every three (3) years." Specify: - The issuing authority - The application requirements (documents, fees, qualifications) - The validity period of the license or registration - The renewal process - Conditions for denial

Standards and conditions. What ongoing requirements apply to licensed entities? These might include: - Capital requirements (BAA No. 9 requires a minimum paid-up capital of P5 million) - Ownership requirements (Filipino citizens must own at least 75% of voting stock) - Operational standards (record-keeping, reporting, facility requirements) - Ethical standards (prohibited acts, conflicts of interest)

Disqualifications. Who cannot be licensed? BAA No. 9 provides a detailed list: travel agencies, officers of travel agency corporations, insurance company officers, individuals with derogatory records, and government officials involved in deployment processes. These disqualifications prevent conflicts of interest and protect the public.

Compliance monitoring. How does the government verify compliance? BAA No. 9 authorizes the MOLE to "conduct inspections to ensure compliance" and to "publish an updated list of accredited recruitment agencies in a newspaper of general circulation or in its website."

Enforcement and penalties. As discussed in Chapter 3, but particularly important for regulatory bills. Include: - Administrative sanctions (suspension, revocation of license) - Financial penalties (fines with specified ranges) - Criminal penalties (for serious violations like fraud or forgery) - Due process protections (notice and opportunity to be heard before sanctions)

Drafting tips for regulatory bills:

- **Start with the problem, not the regulation.** Why does this activity need regulation? What harm occurs without government oversight? The answer shapes the regulatory framework.
- **Do not regulate for the sake of regulating.** Every regulatory requirement imposes costs on the regulated entity and the government. Each requirement should address a specific risk or concern.
- **Build in flexibility.** Regulatory needs change as industries evolve. Grant the implementing agency rule-making authority for procedural details, while keeping the core standards in the statute.
- **Provide for transition.** BAA No. 9 gives existing agencies thirty days after the law's effectivity to obtain accreditation. Without a transition period, enforcement on day one would shut down every existing operator.
- **Consider the regulated entity's perspective.** Can a small business owner in Sulu realistically comply with every requirement? If the compliance burden is disproportionate, the regulation will be ignored or evaded rather than obeyed.

4.5 Codification Bills (Priority Codes)

A codification bill is the most ambitious type of legislation a drafter can undertake. Rather than addressing a single issue, a code organizes an entire area of law into a unified, systematic framework. It replaces scattered, sometimes contradictory laws with one coherent statute.

The Bangsamoro Organic Law, in Section 4(a), Article XVI, identifies specific codes as priority legislation for the transition period:

> "Enactment of priority legislations such as the Bangsamoro Administrative Code, Bangsamoro Revenue Code, Bangsamoro Electoral Code, Bangsamoro Local Government Code, and Bangsamoro Education Code..."

The same section adds that the BTA "may also enact a Bangsamoro Civil Service Code" and that a law recognizing indigenous peoples' rights shall also be enacted. While the BOL does not use the word "code" for the IP law, the mandate is equally clear.

Beyond these express mandates, the Investment Code has been identified as a priority based on the broader governance and economic development needs of the region.

Status of the Priority Codes

The BTA Parliament has enacted five of the priority codes identified in the BOL and its broader legislative agenda:

Code	BAA Number	Year Enacted
Bangsamoro Administrative Code	BAA No. 13	2020
Bangsamoro Civil Service Code	BAA No. 17	2021
Bangsamoro Education Code	BAA No. 18	2021
Bangsamoro Electoral Code	BAA No. 35	2023
Bangsamoro Local Government Code	BAA No. 49	2023

Three codes remain to be enacted: the **Revenue Code**, the **Investment Code**, and a potential **Indigenous Peoples' Rights Code**. These are among the most complex legislative undertakings the Parliament will face.

What Makes a Code Different

A code differs from an ordinary bill in several ways.

Scale. Codes are long. BAA No. 13 (Administrative Code) runs to hundreds of sections organized across multiple books and chapters. BAA No. 49 (Local Government Code) is similarly extensive. A drafter working on a code is not writing a single bill — they are designing an entire legal system for a field of governance.

Comprehensiveness. A code aims to cover its subject matter completely. The Electoral Code does not just address one aspect of elections — it covers the Bangsamoro Electoral Office, voter registration, political parties, candidacy requirements, campaigning, voting procedures, canvassing, proclamation, election offenses, and everything in between. The goal is that anyone who needs to know the electoral rules can find them in one place.

Internal consistency. Because a code covers so much ground, its provisions must work together without contradiction. A definition in Article I must mean the same thing in Article XII. A power granted in one chapter must not be negated by a prohibition in another chapter. Achieving internal consistency across hundreds of sections requires meticulous cross-checking.

Relationship to existing law. A code typically replaces or consolidates existing legislation. The Bangsamoro Local Government Code (BAA No. 49) replaces the ARMM Local Government Code (MMAA No. 25) that applied before the Bangsamoro transition. The repealing clause of a code must be comprehensive, identifying every law and provision that the code supersedes.

Structural Framework of a Code

Codes in the Bangsamoro follow a hierarchical structure:

Books — the broadest division, grouping related titles. BAA No. 13 (Administrative Code) uses books: Book I covers Bangsamoro Autonomy and Administration, and subsequent books cover the Parliament, the executive branch, and government-owned corporations.

Titles — subdivisions within books, covering major subject areas.

Chapters — subdivisions within titles, covering specific topics.

Articles — subdivisions within chapters, or used as the primary division in some codes. BAA No. 35 (Electoral Code) uses articles as its primary structural unit.

Sections — the basic operative units, containing the actual rules.

Not every code uses all five levels. Some use only articles and sections. The choice depends on the code's breadth and complexity.

The Remaining Priority Codes

A brief note on the three major codes still awaiting enactment, because drafters who take these on will face distinct challenges.

The Bangsamoro Revenue Code will be the most technically demanding of the remaining codes. It must define the Bangsamoro's full taxing power, harmonize with the national tax system, address the unique fiscal relationship outlined in Article XII of the BOL, and create a revenue administration system from the ground up. The drafter will need to work closely with the IGFPB, the MFBM, the Bureau of Internal Revenue, and the Department of Finance. The code must also address *zakat* and other elements of Islamic finance where they intersect with the tax system.

The Bangsamoro Investment Code will need to create an investment promotion and regulation framework suited to the region's development stage. It must balance the desire to attract investment with protections for local communities and natural resources. The code should address investment incentives, business registration, special economic zones, foreign investment rules, and investor protections — all within the powers granted by Article XIII of the BOL.

The Indigenous Peoples' Rights Code carries the mandate from Article XVI, Section 4(a) of the BOL, which requires the BTA to "enact a law to recognize, protect, promote, and preserve the rights of the indigenous peoples in the Bangsamoro Autonomous Region." This is a sensitive piece of legislation that must balance the rights of non-Moro indigenous peoples with the broader Bangsamoro governance framework. The drafter should study Republic Act No. 8371 (the national Indigenous Peoples Rights Act) and the specific provisions of the BOL on indigenous peoples' rights in Articles IV and IX.

Drafting Tips for Codification Bills

Start with an outline. Before writing a single section, map out the code's entire structure. What books or articles will it have? What topics does each cover? Where does each existing legal provision fit? The outline is the most important document in the code-drafting process. The outline should be reviewed and approved by the sponsoring committee or the technical working group before drafting begins. Revising the structure of a 200-section code after it has been drafted is orders of magnitude harder than revising a two-page outline.

Study the existing body of law. A code does not create law from nothing. It organizes, updates, and replaces existing law. Before drafting the Revenue Code, for example, you need to know every existing Bangsamoro revenue measure, every applicable national tax law, and every BOL provision that grants or limits the taxing power. Miss one, and you create a gap or a conflict.

Look at both national and regional models. The national Administrative Code (Executive Order No. 292) served as a reference for BAA No. 13. The national Local Government Code (RA 7160) informed BAA No. 49. The national Tax Code (RA 8424) will be a starting point for the Bangsamoro Revenue Code. But models are starting points, not templates. The Bangsamoro's parliamentary system, its asymmetric relationship with the national government, its cultural context, and its distinct governance needs require adaptation. Simply copying a national code and replacing "Philippines" with "Bangsamoro" produces a law that does not fit the region's institutions.

Build in flexibility. A code that is too rigid will need constant amendment. Include provisions that allow administrative adjustment for procedural matters while keeping substantive policy decisions in the statute. The Administrative Code (BAA No. 13), for example, sets the basic structure of government but allows the Parliament to create additional offices by subsequent law — it does not freeze the bureaucracy in place.

Plan for the IRR. A code of 200 or 300 sections cannot be implemented without detailed implementing rules. Build in the IRR mandate early, with clear deadlines, designated lead agencies, and specified scope. Consider whether different portions of the code require separate IRRs from different agencies.

Use a consistent definition framework. In a code, the definition section in the preliminary provisions should cover terms used throughout. If a term has a special meaning only in one chapter, define it locally at the start of that chapter, but note the local definition's limited scope. The Administrative Code (BAA No. 13) provides a good example — its definition section in Section 4 defines 17 terms that appear across the entire code.

Coordinate multiple drafters. A code is rarely the work of one person. Different teams may draft different books or titles. A lead drafter or editor must ensure consistency in terminology, style, numbering, and cross-references. Establish a style guide at the outset: how will defined terms be formatted? How will sections be numbered? How will cross-references be structured? Disagreements about style that are trivial in a five-section bill become maddening in a 300-section code.

Build in a comprehensive repealing clause. The repealing clause of a code does more work than the repealing clause of an ordinary bill. It must identify every existing law and provision that the code replaces. The Electoral Code (BAA No. 35) does not just repeal one or two laws — it supersedes the entire existing body of electoral regulation in the Bangsamoro. The drafter must audit every existing law in the field and list every provision being repealed, modified, or superseded.

Test the code against real scenarios. Before finalizing the draft, walk through real-world scenarios. For the Electoral Code: what happens when a voter moves from one district to another? What happens when a candidate is disqualified after the deadline for substitution? For the Revenue Code: what happens when a business operates in both BARMM and non-BARMM territory? How is income allocated? These scenario-based tests reveal gaps and contradictions that abstract review misses.

4.6 Local and Special Bills

Local and special bills apply to specific geographic areas, particular entities, or named beneficiaries, rather than to the Bangsamoro region as a whole. The Bangsamoro Parliament has enacted many of these: bills creating municipalities, upgrading hospitals, declaring memorial sites, and establishing institutions in specific locations.

Bills creating municipalities. The Bangsamoro Government, under Section 2(l), Article V of the BOL, has authority over the "creation, division, merger, abolition or alteration of boundaries of municipalities and barangays." The Parliament has exercised this power in BAA No. 46 (creating the Municipality of Malidegao) and BAA No. 47 (creating the Municipality of Tugunan).

These bills follow a consistent template:

1. **Declaration of Policy** — citing the BOL authority.
2. **Creation of the Municipality** — naming the component barangays and identifying the mother municipality from which they are separated.
3. **Seat of Government** — designating which barangay will host the new municipal government.
4. **Territorial Boundary** — referencing the existing boundaries of the component barangays, usually supplemented with a technical description and map in an appendix.
5. **Plebiscite Requirement** — the municipality acquires corporate existence only upon ratification by majority vote in a plebiscite within sixty (60) days of the Act's approval.
6. **Conduct of Plebiscite** — assigning the Commission on Elections, through the Bangsamoro Electoral Office, to supervise.
7. **Appointment of Municipal Officials** — since the municipality is newly created, the first set of officials (mayor, vice-mayor, Sangguniang Bayan members) are appointed by the Chief Minister until the next general election.
8. **Financial Assistance** — the Bangsamoro Government appropriates operating funds until the new municipality receives its share of the national tax allotment.
9. **Standard closing provisions** — separability, repealing, effectivity.

Both BAA No. 46 and BAA No. 47 include a technical description appendix with precise boundary coordinates and a political boundary map. This is not optional — without it, the new municipality's territory is legally uncertain.

Hospital upgrading bills. BAA No. 25 (upgrading the Datu Blah Sinsuat District Hospital) is an example. These bills:

- Identify the existing facility and its current level
- Specify the target level and capacity
- Require compliance with national health standards (DOH Bureau of Health Facilities and Services)
- Integrate the facility with existing programs like the Universal Health Care Act (RA 11223)
- Assign administrative supervision to the Ministry of Health
- Appropriate funds for construction, equipment, and operations

Memorial site and cultural heritage bills. BAA No. 60 (Hashim and Mimbantas Memorial Site) is an example. These bills:

- Declare a specific location as a memorial or heritage site
- Create a management board with specified composition
- Provide for preservation and, where necessary, reconstruction
- Appropriate initial funding
- Include standard closing provisions

Bills declaring holidays and observances. BAA No. 39, the Holidays Act, is both general (establishing the holiday calendar for the entire BARMM) and rooted in local cultural specificities (preserving Islamic and Bangsamoro historical observances).

Key considerations for local and special bills:

The plebiscite requirement. For bills that create, divide, merge, or abolish municipalities and barangays, a plebiscite is constitutionally required. Section 2(l), Article V of the BOL grants this authority, and Article VI, Section 10 conditions it on approval by majority of votes cast in a plebiscite in the political units directly affected. The bill must include detailed plebiscite provisions — who conducts it, when, where, and who pays.

Territorial precision. For bills affecting geographic boundaries, vague descriptions create legal disputes. Use technical descriptions with bearings and distances, reference existing barangay boundaries, and attach maps.

Coordination with national agencies. Hospital upgrading bills must align with DOH standards. Municipality creation bills involve COMELEC for the plebiscite and the Department of Budget and Management for national tax allotment computations. Do not draft these bills in isolation from the national agencies whose cooperation is needed.

Financial sustainability. Creating a new municipality means creating a new set of government offices, salaries, and operating expenses. The bill must realistically address how the municipality will be funded — through BARMM appropriations, national tax allotment, or both — during the period before it achieves financial self-sufficiency.

Do not legislate what should be administrative. Not every local decision requires a law. Renaming a road or designating a local holiday for a single municipality might be better handled through an executive proclamation or a local government resolution. Reserve legislative action for matters that genuinely require a statute — creating legal entities, altering boundaries, establishing permanent institutions.

Gender considerations. Both BAA No. 46 and BAA No. 47 include the clause "with due regard to representation of women of the Bangsamoro" in the provision on the appointment of the first set of municipal officials. This is not a rhetorical flourish — the BOL's gender and development provisions (Section 5, Article XIII) require attention to gender in all aspects of governance. Include similar provisions where the bill creates appointive bodies or leadership positions.

The Special Geographic Area question. Both municipality creation acts designate the new municipalities as part of the "Special Geographic Area of the Bangsamoro Autonomous Region." This refers to the barangays in North Cotabato that voted to join the BARMM in the 2019 plebiscite but are geographically located in a province that is not part of the region. Bills affecting these areas must be drafted with particular care regarding territorial jurisdiction and the relationship between the new municipality and the province from which its barangays were separated.

When a Local Bill Becomes a General Law

Some bills start as local measures but end up setting precedents that affect broader policy. The first hospital upgrading bill (BAA No. 25) established a template that subsequent hospital bills followed. The first municipality creation bill set patterns for every municipality creation that came after.

If you are drafting a local bill that is the first of its kind in Bangsamoro legislation, draft it with awareness that it will become a model. Future drafters and committee staff will study your bill and replicate its structure. Errors in the template propagate. Good choices in the template become conventions.

This is another reason to take local bills seriously. They may seem modest in scope compared to a comprehensive code, but they are the bricks from which the body of Bangsamoro law is built, one municipality, one hospital, and one institution at a time.

Common structural issues in local and special bills:

- Missing technical descriptions for territory-related bills.
- Failure to include plebiscite provisions where required.
- Unrealistic funding provisions — naming an amount without identifying a viable fund source.
- Duplication with existing laws. Before filing a bill to create a local institution, verify that no existing law already authorizes its creation.
- Neglecting the transition. If a new municipality is carved from an existing one, what happens to the mother municipality's budget, personnel, and pending obligations? Both BAA No. 46 and BAA No. 47 address this by specifying that incumbent elected officials from the mother municipality continue to serve their terms in the mother municipality.

Summary

Special bill types are not exotic. They are the bills the Parliament passes most often — annual budgets, revenue measures, institutional creation acts, regulatory frameworks, codes, and local measures. What makes them "special" is that they carry requirements beyond the standard bill format. The drafter who knows these requirements produces bills that survive legal scrutiny. The drafter who does not knows only after the bill is enacted and challenged.

The common thread across all special bill types is this: know the source of your authority. Appropriation bills must comply with Article XII of the BOL. Revenue bills must align with the fiscal autonomy provisions and the IGFPB framework. Bills creating government bodies must fit within the Bangsamoro Government's enumerated powers. Codification bills must address the priority code mandate in Article XVI. Local bills must satisfy plebiscite and boundary requirements.

In every case, start with the BOL. It is the foundation of Bangsamoro legislative authority, and no bill can survive that contradicts it.

Back to Table of Contents

Chapter 5 — Resolutions

A bill creates law. A resolution does not. That single difference changes almost everything about how you draft the document — its structure, its language, the process it follows, and the legal weight it carries after adoption. This chapter covers what you need to know to draft resolutions for the Bangsamoro Parliament, focusing on what is different from the bill-drafting process covered in Chapters 2 through 4.

5.1 How Resolutions Differ from Bills

Resolution No. 268, Section 4 of Rule XVII, defines a resolution in one sentence: *"A resolution is a document expressing the sentiment or opinion of the Parliament. It does not create or modify a law."* That definition tells you the three things that set resolutions apart from bills.

First, resolutions express — they do not command. A bill creates binding legal obligations. When the Parliament enacts a Bangsamoro Autonomy Act, everyone within its coverage must comply. A resolution, by contrast, states what the Parliament thinks, feels, requests, or recommends. It can urge a ministry to act. It can congratulate a citizen. It can condemn an atrocity. But it cannot force anyone to do anything.

Second, resolutions do not go through the full legislative process. Under Section 6 of Rule XVII of Resolution No. 268, simple and concurrent resolutions "shall not be subject to the ordinary procedure as prescribed in the Stages of Legislation." The Parliament or its committees can act on them promptly in a plenary session. This is the single most important procedural difference. While a bill must pass through First Reading, Second Reading, Committee Stage, Consideration and Deliberation Stage, and Third Reading before the Chief Minister signs it, most resolutions skip most of those stages.

Third, resolutions have a different structure. Bills have an enacting clause, numbered sections, separability clauses, and effectivity clauses. Resolutions have a WHEREAS preamble followed by an operative clause beginning with "RESOLVED." There is no enacting clause, no section numbering, and no effectivity date. The structure reflects the document's nature — it is a statement, not a statute.

Here is a side-by-side comparison:

Feature	Bill	Resolution
Legal effect	Creates, amends, or repeals law	Expresses opinion, sentiment, or request
Binding force	Legally binding on all covered persons	Not legally binding (with narrow exceptions — see Section 5.2.4)
Opening clause	Enacting clause: "Be it enacted by the Bangsamoro Parliament:" (or BTA variant)	WHEREAS preamble followed by operative "RESOLVED" clause
Internal structure	Numbered sections, subsections, paragraphs	WHEREAS recitals followed by one or more RESOLVED clauses
Standard provisions	Short title, definitions, separability clause, repealing clause, effectivity clause	None of these
Legislative process	Full stages of legislation (First Reading through Third Reading, Chief Minister approval)	Simplified — typically acted upon promptly in plenary (simple and concurrent re
Approval	Requires Chief	Attested by the Speaker and certified by the Secretary-General

Feature	Bill	Resolution
	Minister's signature	
Publication	Must be published in a newspaper of general circulation	Not required to be published

One common mistake is to treat a resolution as a "lesser bill." It is not a bill at all. It is a different instrument for a different purpose. If the goal is to create a legal obligation — to require someone to do something, to set a penalty, to establish a program — you need a bill, not a resolution. If the goal is to state the Parliament's position, to commend, to request, to condemn, or to organize the Parliament's own internal affairs — that is what resolutions are for.

When a Resolution Is the Wrong Tool

Sometimes a Member of Parliament wants to address a problem through a resolution when a bill would be the appropriate instrument. Watch for these warning signs:

- The resolution creates a new government body, office, or program.
- The resolution imposes penalties or sanctions.
- The resolution appropriates funds.
- The resolution requires private citizens or businesses to take specific actions.
- The resolution amends or repeals an existing BAA.

If any of these are true, advise the MP that a bill is needed. A resolution that tries to do these things will either be unenforceable or will be challenged for exceeding the scope of a resolution.

The reverse also happens. A bill that does nothing more than express the Parliament's sentiment — urging a national agency to act, congratulating someone, commemorating an event — should be a resolution. Using a bill for such purposes wastes the Parliament's legislative time and creates an empty law that nobody enforces because there is nothing to enforce.

5.2 Types of Resolutions

Resolution No. 268, Section 5 of Rule XVII, recognizes three types of resolutions. In practice, a fourth category exists: resolutions that, because of their subject matter, carry the force of law.

5.2.1 Proposed Resolutions

A proposed resolution (often called a "simple resolution" under Section 5(a) of Rule XVII) is the most common type. It originates from one or more Members of Parliament and expresses the Parliament's sentiment on a matter. The vast majority of resolutions adopted by the BTA Parliament are of this type.

Simple resolutions are used for:

- **Commendation and congratulations.** Recognizing Bangsamoro achievers — topnotchers in board examinations, athletes, scholars, public servants. Example: Resolution No. 469 (congratulating Bangsamoro topnotchers in the March 2024 Licensure Examination for Professional Teachers).
- **Condolences and sympathy.** Honoring deceased individuals who served the Bangsamoro cause. Example: Proposed Resolution No. 620 (recognizing the contributions of the late Commissioner Nasser A. Marohomsalic and expressing condolences to his family).
- **Condemnation and calls for action.** Denouncing acts of violence and urging investigation. Example: Resolution No. 700 (condemning the killing of Atty. Junisa Kimamao and calling for investigation).
- **Requests to government agencies.** Urging national or Bangsamoro agencies to take action on matters outside the Parliament's direct legislative authority. Example: Resolution No. 425 (requesting DPWH-National to prioritize repair of highways and bridges in the BARMM).
- **Internal procedural matters.** Actions affecting the Parliament's own procedures, such as adopting rules or creating special committees.
- **Urging policy action.** Requesting the Bangsamoro Government to take administrative action. Example: Proposed Resolution No. 710 (urging the Bangsamoro Government to reconstitute the Bangsamoro Council of Leaders).

When you see "Proposed Resolution No." in a document header, it refers to the proposed resolution as filed — before adoption. Once the Parliament adopts it, it becomes "Resolution No." with a different number assigned by the Secretary-General.

Numbering convention. The proposed resolution number (e.g., "P. P. Res. No. 588") and the adopted resolution number (e.g., "Resolution No. 469") are different. The proposed resolution number tracks the order of filing. The adopted resolution number tracks the order of adoption. Resolution No. 469 originated from P. P. Res. No. 588 — different numbers, same document. When citing an adopted resolution in other legislation, use the adopted resolution number.

How common are simple resolutions? The vast majority of resolutions in the BTA Parliament are simple resolutions. A review of the Parliament's adopted resolutions shows that commendation, condolence, and request resolutions dominate the output. These are the resolutions you will draft most often. Master this type first.

5.2.2 Joint Resolutions

Resolution No. 268 defines a "Joint Committee Resolution" under Section 5(c) of Rule XVII as "a resolution of two (2) or more committees expressing the will or action of the Members on certain matters." It requires a majority vote of all the committees concerned.

The terminology is specific to the Bangsamoro Parliament. In the Philippine Congress, a "joint resolution" typically refers to a measure adopted by both chambers (Senate and House). In the BTA Parliament — which is unicameral — "joint" refers to multiple committees acting together on a shared concern.

Joint committee resolutions are used when a matter falls within the jurisdiction of more than one committee. For instance, a resolution on food safety standards in the BARMM might involve both the Committee on Health and the Committee on Trade and Industry. Rather than having each committee issue separate resolutions, a joint committee resolution consolidates their position.

Drafting tip: When drafting a joint committee resolution, identify all committees with jurisdiction over the subject matter in the opening WHEREAS clauses. The operative clause should state that it is the joint resolution of the named committees.

5.2.3 Concurrent Resolutions

A concurrent resolution, under Section 5(b) of Rule XVII, is "a resolution issued concurrently by both the Bangsamoro Cabinet and the Parliament expressing their sentiments on certain matters."

This type is distinctive to the Bangsamoro system. Because the BTA Parliament operates under a parliamentary system — where the Cabinet sits within the Parliament — a concurrent resolution reflects the unified position of both the legislative body and the executive. It signals a stronger institutional commitment than a simple resolution because both branches are speaking with one voice.

Concurrent resolutions may be appropriate when:

- The Parliament and Cabinet want to jointly express a position to the national government.
- Both branches agree on a matter requiring coordinated executive and legislative action.
- The Parliament and Cabinet want to jointly commend or recognize an achievement.

Like simple resolutions, concurrent resolutions are not subject to the ordinary stages of legislation. Section 6 of Rule XVII places them alongside simple resolutions: both "shall not be subject to the ordinary procedure as prescribed in the Stages of Legislation herein provided."

5.2.4 Resolutions with the Force of Law

There is one category of resolution that carries binding legal effect: resolutions that govern the Parliament's own internal procedures. Resolution No. 268 is the best example. It establishes the Rules, Procedures, and Practices of the BTA Parliament — and those rules are binding on every Member of Parliament and every officer of the Parliament.

This authority comes from the Bangsamoro Organic Law itself. Section 25, Article VII of Republic Act No. 11054 provides that "the Parliament shall adopt its own rules for the conduct of its business." When the Parliament exercises this power through a resolution, the result is not merely an expression of sentiment — it is a binding set of rules.

Resolution No. 268 regulates everything from the election of the Speaker to the stages of legislation to the conduct of debates. Any violation of its provisions can be addressed through the mechanisms it establishes, including points of order and disciplinary proceedings.

Other resolutions that may carry binding internal effect include:

- Resolutions creating special or ad hoc committees.
- Resolutions adopting the calendar of sessions.
- Resolutions adopting guidelines for teleconferencing under Rule VI, Section 4.

The key distinction: these resolutions bind the Parliament and its members internally. They do not bind persons outside the Parliament. Only a bill enacted into law can do that.

5.3 The Resolution Drafting Process

5.3.1 How the Process Differs from Bills

Chapter 2 described a seven-stage process for drafting a bill, from legislative directive to filing. The resolution drafting process is shorter and less formal — but it still requires care.

Here is how the two processes compare:

Stage	Bill	Resolution
1. Direction from MP	Yes — detailed legislative template	Yes — but typically a brief oral or written instruction
2. Research	Extensive — policy research, legal analysis, impact assessment, comparative matrix	Limited — verify facts, confirm legal authority, check for duplicates
3. First draft	Full bill with all structural components	WHEREAS preamble + operative clause
4. Consultation	With agencies, experts, constituencies	Usually not required — unless the resolution touches on policy
5. Review	Multiple rounds with policy, legal, and style review	Quick review for accuracy and form

Stage	Bill	Resolution
6. Presentation to MP	Formal presentation with options	Brief review and approval
7. Co-authorship and filing	Secure co-authors, file with Bills and Index Division	Secure co-authors, file with Secretary-General

The lighter process does not mean you can be careless. A resolution that misstates facts, gets a name wrong, misquotes a law, or uses sloppy language reflects poorly on the MP and the Parliament. The difference is in scope and formality, not in the standard of accuracy.

What to verify before drafting a resolution:

1. **The facts.** If the resolution congratulates someone for passing a board exam, verify the person's full name, the exam, the ranking, and the date. If it condemns an incident, verify the date, location, and known facts. Do not rely on social media posts or unverified news reports.
2. **The legal basis.** If the resolution cites the BOL, the Constitution, or a national law, verify the exact article, section, and wording. Misquoting a legal provision in a resolution is embarrassing and undermines credibility.
3. **Prior resolutions.** Check whether the Parliament has already adopted a resolution on the same subject. You do not want to file a resolution congratulating someone who was already congratulated in a previous session.
4. **The right instrument.** Confirm that a resolution — not a bill — is the correct vehicle. If the MP's intent is to create a legal obligation, redirect to a bill.

5.3.2 When the Full Legislative Process Applies

Not every resolution follows the simplified track. Under Resolution No. 268, the simplified process applies only to simple resolutions and concurrent resolutions. Other resolutions — particularly those that adopt internal rules or create committees — may go through a more deliberative process, including committee referral and plenary debate.

Resolution No. 268 itself went through a full deliberative process. It was not simply adopted on the spot. It involved extensive drafting, committee review, and plenary deliberation because it established the binding rules governing the Parliament's operations.

When a resolution will go through the full process, you should draft it with the same rigor as a bill. The WHEREAS preamble should be thoroughly researched. The operative clauses should be precise. The language should be reviewed for ambiguity. Expect interpellation — Members will ask questions about the resolution just as they would about a bill.

5.3.3 Simplified Process for Simple and Concurrent Resolutions

For simple and concurrent resolutions, the process under Section 6 of Rule XVII is streamlined: "The Parliament or the Committees concerned in a plenary session shall promptly act on these matters."

In practice, this means:

1. The resolution is filed with the Secretary-General, who assigns it a number.
2. It is reported in plenary during the "Resolutions, Messages, Memorials and Communications" portion of the Order of Business (Rule VIII, Section 1(g)(2)).
3. The Speaker may refer it to a committee or the Parliament may act on it directly.
4. If acted upon in plenary, the resolution is adopted by majority vote.

The simplified process can be remarkably fast. A resolution condemning an act of violence or congratulating a Bangsamoro achiever may be filed, reported, and adopted in a single session. But speed should not come at the cost of accuracy. Even on a compressed timeline, verify every fact and every citation.

5.4 Anatomy of a Resolution

5.4.1 The WHEREAS Preamble

The WHEREAS preamble is the heart of a resolution. Unlike a bill — where the explanatory note is a separate document and the body contains operative sections — a resolution's preamble does most of the work. It presents the facts, establishes the context, cites the legal basis, and builds the case for the operative clause that follows.

Each WHEREAS clause is called a "recital." Together, the recitals tell a story: here is the situation, here is why it matters, and here is what the Parliament should do about it.

Format. Each recital begins with **WHEREAS** in bold, followed by a comma and the substance of the recital. The recital ends with a semicolon. The final recital before the operative clause ends with a colon, introducing the "NOW, THEREFORE" transition. Here is the standard pattern:

```
WHEREAS, [first recital];

WHEREAS, [second recital];

WHEREAS, [final recital]:

NOW, THEREFORE, be it

RESOLVED, [operative clause].
```

Note the punctuation carefully: - Semicolons after each WHEREAS recital (except the last). - A colon after the final WHEREAS recital. - "NOW, THEREFORE" is followed by a comma and "be it" on the same line or the next. - "RESOLVED" is followed by a comma.

Content of recitals. Each recital should contain one point. Do not pack multiple ideas into a single WHEREAS clause. If you have two separate facts, use two separate recitals.

Legal citations in recitals. When a recital cites a law, provide the exact text. Use block quotes for lengthy citations. Identify the law by its full name and number on first reference:

> **WHEREAS**, Section 4, Article II of the 1987 Constitution of the Philippines states in part that *"The prime duty of the Government is to serve and protect the people"*;

After the first reference, you may use a shortened form:

> **WHEREAS**, Section 6, Article IX of the Bangsamoro Organic Law explicitly provides that *"The Bangsamoro Government shall fully respect human rights"*;

5.4.2 Deductive Ordering of Recitals

The recitals should flow in a logical order — from the general to the specific, from the background to the immediate situation, from the facts to the conclusion. Think of it as a deductive argument:

1. **Legal and constitutional foundation.** Start with the broadest legal basis. If the resolution relates to human rights, begin with the Constitutional provision. If it relates to governance, begin with the BOL. This establishes the Parliament's authority and the legal framework.
2. **Background and context.** After the legal foundation, provide the factual context. What is the situation? What happened? What is the relevant history?
3. **Specific facts.** Narrow the focus to the specific event, person, or issue that prompted the resolution. Provide names, dates, places, and verifiable details.
4. **The Parliament's interest.** Explain why this matter is before the Parliament. What is the connection to the Bangsamoro people, the BARMM, or the Parliament's mandate?
5. **Conclusion and transition.** The final recital should lead naturally into the operative clause. It often expresses the Parliament's position or sentiment, setting up the "NOW, THEREFORE" transition.

Here is an example of good deductive ordering, drawn from the structure of Resolution No. 700:

Order	Recital Content	Purpose
1	Constitutional duty of government to protect the people	Legal foundation
2	Bill of Rights — due process and equal protection	Legal foundation
3	BOL provisions on human rights	BOL authority
4	Facts of the incident — date, location, victims	Specific facts
5	Police report details	Supporting facts
6	Victim's background and service	Context
7	Quranic verse on sanctity of life	Cultural/religious dimension
8	Transition to operative clause	Conclusion

Bad ordering is when recitals jump around — a fact, then a law, then another fact, then another law, then back to a different fact. This makes the resolution hard to follow. Organize your recitals so that a reader can follow the argument from beginning to end without confusion.

5.4.3 The Operative Clause

The operative clause is where the resolution states what the Parliament resolves to do. It begins after the "NOW, THEREFORE" transition and starts with "RESOLVED."

The basic operative clause:

```
NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority
Parliament,
to [action or expression of sentiment].
```

The formula "as it is hereby resolved by the Bangsamoro Transition Authority Parliament" is the standard phrasing used across BTA resolutions. Use it. Do not improvise.

Multiple operative clauses. When the resolution has more than one action or expression, use additional RESOLVED clauses:

```
RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority
Parliament,
to [first action];

RESOLVED, FURTHER, to [second action];

RESOLVED, FURTHERMORE, to [third action];

RESOLVED, FINALLY, to furnish a copy of this Resolution to [recipients] for
their
information and appropriate action.
```

The progression is: - RESOLVED — first operative clause - RESOLVED, FURTHER — second operative clause - RESOLVED, FURTHERMORE — third operative clause - RESOLVED, FINALLY — last operative clause (typically the furnishing clause)

If there are only two operative clauses, use RESOLVED and RESOLVED, FURTHER. If there are three, add RESOLVED, FURTHERMORE. The "FINALLY" marker signals the last clause, which is almost always the furnishing clause — directing that copies be sent to relevant persons or agencies.

The furnishing clause. Nearly every resolution ends with a clause directing that copies be furnished to specific recipients. This is not mere formality — it ensures the resolution reaches the people who need to see it. Identify the right recipients:

- For a commendation: the person being commended.
- For a request to a government agency: the agency head, with copies to relevant offices.
- For a condemnation: the investigative agencies, the victims or their families, and other relevant authorities.

The adoption line. After the operative clauses, the word "ADOPTED" appears, followed by the date of adoption. BTA resolutions commonly include both the Islamic calendar date and the Gregorian date: *"ADOPTED, Sha'ban 19, 1446/February 18, 2025."*

5.4.4 Common Mistakes

Mistake 1: Too many WHEREAS clauses. A resolution commending a board exam topnotcher does not need fifteen recitals. State the facts, express the sentiment, and resolve. Three to five WHEREAS clauses are sufficient for a straightforward commendation. Save lengthy preambles for resolutions that require a detailed factual or legal foundation.

Mistake 2: Recitals that argue instead of state. WHEREAS clauses should present facts and cite law. They should not argue, advocate, or editorialize. Compare:

Bad	Good
WHEREAS, the deplorable and unconscionable failure of the DPWH to maintain roads in the BARMM has caused untold suffering...	WHEREAS, national highways and bridges in the BARMM require immediate repair, reconstruction, and maintenance...

The first version argues. The second states a fact. Let the facts speak — the operative clause is where the Parliament expresses its position.

Mistake 3: Operative clauses that try to legislate. A resolution cannot create a program, appropriate funds, or impose penalties. If the operative clause says "the Ministry of Health shall establish a vaccination center in every municipality," that is not a resolution — that is a bill trying to disguise itself. A resolution can *urge* or *request* — it cannot *require*.

Mistake 4: Getting names and titles wrong. This is the most damaging error in a commendation or condolence resolution. Double-check every name, every title, every date, and every achievement. A resolution that misspells the name of the person being honored is worse than no resolution at all.

Mistake 5: Inconsistent formatting. The most common formatting errors:

- Forgetting bold on WHEREAS and RESOLVED.
- Using periods instead of semicolons between WHEREAS clauses.
- Omitting the "NOW, THEREFORE, be it" transition.
- Skipping the standard formula "as it is hereby resolved by the Bangsamoro Transition Authority Parliament."
- Inconsistent capitalization of Parliament, Speaker, Chief Minister, and other institutional titles.

Mistake 6: Citing the wrong law or wrong provision. If you cite Section 6, Article IX of the BOL, make sure it actually says what you claim it says. Verify every citation. This is especially important when citing the BOL, because BOL articles have many sections and it is easy to cite the wrong one.

Mistake 7: No furnishing clause. If the resolution requests action from an agency but never directs that a copy be sent to that agency, the resolution is an expression into the void. Always include a furnishing clause that identifies specific recipients.

Mistake 8: Omitting the Islamic calendar date. BTA resolutions use both the Islamic and Gregorian calendar in the adoption line. This is not optional — it reflects the Bangsamoro identity of the Parliament. Check the correct Islamic date and include it: *"ADOPTED, Dhu Al-Hijjah 21, 1445/June 27, 2024."*

Mistake 9: Missing the "Certified Correct" and "Attested" signatures. Every adopted resolution ends with two authentication blocks. The Secretary-General certifies correctness. The Speaker attests. If these are missing from the final document, the resolution is not properly authenticated. Your draft should include placeholder blocks for both:

```
Certified Correct:

(Signature)
PROF. RABY B. ANGKAL
Secretary-General

Attested:

(Signature)
ATTY. PANGALIAN M. BALINDONG
Speaker
```

5.5 Resolution No. 268 as Governing Framework

Resolution No. 268 is not just another resolution. It is the governing framework for everything the Parliament does. Adopted during the First Regular Session, it establishes the Rules, Procedures, and Practices of the Bangsamoro Transition Authority Parliament. Every drafter needs to know the provisions of Res. 268 that directly affect resolution drafting.

The Key Provisions

Rule XVII, Section 4 defines what a resolution is: "a document expressing the sentiment or opinion of the Parliament." This is the baseline. Whenever you are unsure whether something should be a bill or a resolution, return to this definition.

Rule XVII, Section 5 establishes the three types of resolutions recognized by the Parliament: simple, concurrent, and joint committee resolutions. These are not interchangeable — each has a specific purpose and a specific process.

Rule XVII, Section 6 is the provision you will rely on most often. It establishes the simplified process for simple and concurrent resolutions:

> *"Simple and concurrent resolutions shall not be subject to the ordinary procedure as prescribed in the Stages of Legislation herein provided. The Parliament or the Committees concerned in a plenary session shall promptly act on these matters."*

This provision is what allows a resolution to be filed and adopted in a single session. But note the limitation — it applies only to simple and concurrent resolutions. Joint committee resolutions and procedural resolutions (like Res. 268 itself) may require a fuller deliberative process.

Rule XVII, Section 8 prescribes the form of a proposed resolution. It lists five elements in order:

1. **Number** — the number assigned by the Secretary-General.
2. **Authors** — the names of the Members who introduce the resolution. They must sign it.
3. **Title** — states the purpose and must accurately reflect the contents.
4. **Body** — the WHEREAS clauses presenting the justifications.
5. **Final Statement** — the operative clause expressing the Parliament's sentiment.

This is your structural checklist. Every resolution you draft must contain all five elements in this order.

Rule XVII, Section 9 covers filing: "Bills and resolutions shall be signed by their author(s) and together with an electronic copy thereof, filed with the Secretary-General." The Secretary-General assigns the number. Note that both a printed and electronic copy are required, and in case of discrepancy, the printed copy prevails.

Rule XVII, Section 10 gives the Speaker the duty to refer resolutions to appropriate committees. This means that even though simple resolutions follow a simplified process, the Speaker retains discretion to refer a resolution to committee if the subject matter warrants fuller deliberation.

Rule XVIII, Section 2(a) — the First Reading provision — applies to resolutions as well as bills: "The Secretary-General shall report all bills and resolutions to the Parliament for First Reading."

Rule VIII, Section 1 — the Order of Business — places resolutions in the sequence as item (g)(2), "Resolutions, Messages, Memorials and Communications," and item (i), "Resolutions Referred to the Committee." This tells you where in a session day your resolution will be taken up.

How to Use Res. 268 in Your Daily Work

Keep a copy of Res. 268 on your desk — or open on your screen. When you draft a resolution, check it against the following provisions:

1. **Is this the right type?** (Section 5 — simple, concurrent, or joint committee)

2. **Does it follow the prescribed form?** (Section 8 — number, authors, title, body, final statement)
3. **Is the process correct?** (Section 6 — simplified for simple and concurrent; fuller process for others)
4. **Has it been properly filed?** (Section 9 — signed, with electronic copy, filed with the Secretary-General)

Res. 268 as a Model Resolution

Resolution No. 268 is also useful as a model of resolution drafting. Look at its preamble:

- The first WHEREAS recital cites Section 3, Article XVI of Republic Act No. 11054, establishing the legal authority of the BTA.
- The second recital provides historical context — the BTA 1 adopted its own rules.
- The third recital cites Section 25, Article VII, which authorizes the Parliament to adopt its own rules.
- The operative clause adopts the Rules.

That is three recitals — legal authority, historical context, specific authorization — followed by the operative clause. It is tight, logical, and well-ordered. It does not contain unnecessary recitals, it does not editorialize, and every recital serves a purpose. This is the standard to aim for.

When Res. 268 Is Silent

Resolution No. 268 does not address every situation you will encounter. It says nothing about how to draft recitals, what to include in a commendation resolution, or how many WHEREAS clauses are appropriate. On these matters, you rely on Parliamentary practice — the accumulated conventions of how the Parliament has done things in the past — and on the general principles of good drafting covered in Chapter 6.

When Res. 268 is silent, look at how the Parliament has handled similar resolutions before. Consistency with past practice is a reasonable guide. But if past practice contains errors — misspellings, bad formatting, incorrect citations — do not repeat those errors. Follow good practice, not just established practice.

Drafting Checklist for Resolutions

Before you file a resolution, run through this checklist:

Content - ☐ All names are spelled correctly with correct titles. - ☐ All dates are verified. - ☐ All legal citations are verified against the original text. - ☐ Facts have been confirmed through reliable sources. - ☐ The resolution does not duplicate a previously adopted resolution. - ☐ The resolution does not attempt to create a legal obligation (if it does, it should be a bill). - ☐ The operative clause matches the purpose stated in the title.

Structure - ☐ The caption includes the correct Parliament session and body name. - ☐ The resolution number is assigned by the Secretary-General. - ☐ Authors are listed with correct names and titles. - ☐ The title is in all capitals and accurately reflects the content. - ☐ WHEREAS recitals flow in deductive order — general to specific. - ☐ Each WHEREAS clause contains one point. - ☐ WHEREAS clauses end with semicolons (final one with a colon). - ☐ "NOW, THEREFORE, be it" transition is present. - ☐ Operative clause uses the standard formula. - ☐ Additional RESOLVED clauses use FURTHER/FURTHERMORE/FINALLY progression. - ☐ Furnishing clause identifies specific recipients. - ☐ ADOPTED line includes both Islamic and Gregorian dates. - ☐ Certified Correct and Attested blocks are present.

Format - ☐ WHEREAS is bold. - ☐ RESOLVED is bold. - ☐ Italics are used correctly for legal citations and quoted text. - ☐ Capitalization is consistent for institutional names and titles.

Summary

Resolutions are the Parliament's voice. They express what the Parliament thinks, feels, recommends, and requests. They do not create law. They follow a different structure — WHEREAS preamble plus operative clause — and a different process — typically simplified under Section 6 of Rule XVII.

The drafter's job is to ensure that the resolution is factually accurate, legally grounded, properly formatted, and clearly written. A well-drafted resolution strengthens the Parliament's credibility. A poorly drafted one — with misspelled names, incorrect citations, or operative clauses that try to legislate — undermines it.

Know the types. Know the process. Know the format. And always check your work against Resolution No. 268.

Back to Table of Contents

Chapter 6 — Legislative Style

Every Bangsamoro Autonomy Act you draft will be read by people who did not write it and did not participate in the deliberations that produced it. Ministry officials will read it to figure out what they must do. Citizens will read it to know their rights. Lawyers will read it to advise clients. Judges will read it to settle disputes. Your job is to write so that all of them understand the same thing.

Legislative style is not about elegance. It is about precision. A novel can be ambiguous and still be great. A law that is ambiguous has failed.

This chapter is your daily reference. It covers everything from sentence structure to punctuation to the specific words you should and should not use when drafting Bangsamoro legislation.

6.1 Writing for the Reader

6.1.1 The Implementer's Perspective

The first reader of a BAA is not the Member of Parliament who sponsored it. It is the ministry official who must implement it.

When a BAA creates a new program, someone at a ministry must figure out: What exactly does this law require my office to do? By when? With what resources? What happens if we do not comply? If your draft does not answer those questions clearly, the implementer will either do nothing, do the wrong thing, or spend months seeking clarification.

Put yourself in the implementer's position. As you draft each provision, ask:

- **Who must act?** Is the responsible body named — not vaguely described, but specifically identified?
- **What must they do?** Is the action stated in concrete terms — not aspirational language, but a specific obligation?
- **When must they do it?** Is there a deadline or timeline?

- **How will they know they have complied?** Are the standards of compliance measurable?
- **What happens if they fail?** Is there a consequence?

If you cannot answer these questions by reading the provision, neither can the implementer.

Example — vague vs. clear:

Vague	Clear
The Ministry of Health shall take steps to improve healthcare in the region.	The Ministry of Health shall establish at least one barangay health station in every municipality that does not have one within one year from the effectivity of this Act.

The first version tells the ministry to do something good. The second tells it exactly what to do and by when.

6.1.2 The Citizen's Perspective

The second reader is the citizen affected by the law. This person may not be a lawyer. They may not speak English as a first language. They may have limited formal education. They still have a right to understand the laws that govern them.

This does not mean you should write legislation at a fourth-grade reading level. Legal precision sometimes requires technical language. But it does mean:

- Prefer short sentences over long ones.
- Prefer common words over rare ones.
- Prefer direct statements over indirect constructions.
- Prefer active voice over passive voice.
- Define technical terms before using them.

When you have a choice between a word that a lawyer would use and a word that everyone would understand, choose the word everyone would understand — unless the legal term has a specific meaning that no common word can capture.

6.2 Clarity and Simplicity

6.2.1 Plain Language in Legislation

Plain language in legislation means writing that is clear enough for the intended audience to find what they need, understand what they find, and use what they understand.

Rules for plain language in Bangsamoro legislation:

1. **Use short sentences.** A sentence should express one idea. If you find yourself using semicolons to connect three or four clauses, break the sentence into separate sentences.
2. **Use common words.** Write “before” not “prior to.” Write “after” not “subsequent to.” Write “about” not “with respect to.” Write “under” not “pursuant to” (except in formal citations). Write “must” or “shall” not “is obligated to.”
3. **Use concrete words.** Write “the Ministry of Education” not “the appropriate agency.” Write “within 30 days” not “within a reasonable period.” Write “submit a written report” not “provide the necessary documentation.”
4. **Avoid nominalizations.** Nominalizations turn verbs into nouns and make sentences heavier. Write “the Minister shall decide” not “the Minister shall make a determination.” Write “the board shall investigate” not “the board shall conduct an investigation.” Write “the agency shall implement” not “the agency shall undertake the implementation of.”
5. **Cut unnecessary words.** Legislative drafting generates verbal clutter. Every word should earn its place.

Wordy	Direct
for the purpose of	to
in order to	to
with regard to	about; regarding
in the event that	if
at such time as	when
in the amount of	for

Wordy	Direct
by reason of	because
on the part of	by
in accordance with	under
during the period of	during
notwithstanding the fact that	although; even though
in cases where	where; when
it shall be the duty of the Minister to	the Minister shall
there is hereby created	this Act creates
is authorized and empowered to	may

6.2.2 Avoiding Ambiguity

Ambiguity in legislation creates lawsuits, administrative confusion, and uneven enforcement. There are three types of ambiguity to guard against.

Syntactic ambiguity — the sentence structure allows two different readings.

> *"The Minister shall appoint a representative of the Ministry and the local government unit."*

Does this mean one person who represents both? Or one representative of the Ministry plus one representative of the LGU? Rewrite:

> *"The Minister shall appoint one representative of the Ministry and one representative of the local government unit."*

Semantic ambiguity — a word has more than one meaning.

> *"The officer shall secure the premises."*

Does "secure" mean lock the building or obtain the building? Context usually resolves this, but do not rely on context when you can choose an unambiguous word:

> *"The officer shall lock and guard the premises."*

Referential ambiguity — a pronoun or reference could point to more than one thing.

> *"The chairperson shall submit the report to the Minister. He shall review it within 30 days."*

Who is "he" — the chairperson or the Minister? Rewrite:

> *"The chairperson shall submit the report to the Minister. The Minister shall review the report within 30 days."*

The "and/or" problem. Never use "and/or" in legislation. It creates ambiguity about whether a condition is conjunctive (all items required) or disjunctive (any one item sufficient). Choose "and" or "or" and be clear about which you mean. If you mean "one or more of the following," say so.

The dangling modifier. A modifier that does not clearly attach to the right noun produces absurd or ambiguous results:

> *"Having been convicted of a crime, the Minister shall revoke the license."*

This says the Minister has been convicted of a crime. Rewrite:

> *"The Minister shall revoke the license of any licensee who has been convicted of a crime."*

Pronoun ambiguity in "which" and "that" clauses.

> *"The Ministry shall establish training centers in municipalities that do not have hospitals, which shall be funded by the BGAA."*

What shall be funded — the training centers or the hospitals? If you mean the training centers:

> *"The Ministry shall establish training centers in municipalities that do not have hospitals. The training centers shall be funded by the Bangsamoro General Appropriations Act."*

Whenever a relative clause ("which," "that," "who") could attach to more than one noun, rewrite the sentence to remove the ambiguity.

The scope of "or" and "and" with multiple items. When a list has three or more items connected by "and" or "or," the connection can be read in different ways:

> *"teachers, health workers, and social workers employed by the Bangsamoro Government"*

Does "employed by the Bangsamoro Government" apply to all three groups, or only to social workers? If it applies to all, restructure:

> *"teachers, health workers, and social workers, all of whom are employed by the Bangsamoro Government"*

Or use a list format with the qualifying phrase in the introductory clause:

> *"the following personnel employed by the Bangsamoro Government: (a) teachers; (b) health workers; and (c) social workers."*

6.3 Internal Consistency

6.3.1 Consistent Use of Terms

Use the same word to mean the same thing throughout the entire bill. Do not switch between synonyms. If Section 2 defines "child development center," do not call it a "day-care facility" in Section 15 and an "ECCD center" in Section 22. The reader will wonder whether these are three different things or the same thing.

This rule applies with special force to defined terms. Once you define a term in the Definitions section, use that exact term — and only that term — throughout the bill. If you defined "Ministry" to mean the Ministry of Basic, Higher and Technical Education, write "Ministry" every time. Do not switch to "MBHTE" or "the education ministry" or "the concerned ministry."

Practical test: Search your draft for every instance of the key terms. Make sure each term is used consistently. If you find variations, standardize them.

6.3.2 Consistent Structure Across Provisions

When provisions address parallel subjects, use parallel structure. If Sections 10 through 15 each establish a different committee, each section should follow the same pattern: creation, composition, functions, meetings, quorum, reports. The reader who understands the structure of Section 10 should be able to navigate Sections 11 through 15 without difficulty.

Inconsistent structure forces the reader to re-learn the pattern for each provision. Consistent structure lets the reader focus on content.

Example of inconsistent structure:

> Section 10. *The Technical Committee.* — A Technical Committee is hereby created, composed of five members appointed by the Minister. The Committee shall meet quarterly.
>
> Section 11. *Powers of the Oversight Board.* — The Oversight Board shall have the power to review, approve, or reject all project proposals. It shall be composed of seven members. Meetings shall be held monthly.

Section 10 starts with creation, then composition, then meetings. Section 11 starts with powers, then composition, then meetings. For consistency, both should follow the same order.

Recommended pattern for provisions creating bodies:

When your bill creates multiple committees, boards, or offices, use the same sequence for each:

1. Creation — "There is hereby created a [name]."
2. Composition — "The [name] shall be composed of..."
3. Qualifications — "Members shall meet the following qualifications..."
4. Term — "Members shall serve a term of..."

5. Powers and functions — "The [name] shall have the following powers and functions..."
6. Meetings and quorum — "The [name] shall meet..."
7. Compensation — "Members shall receive..."
8. Reports — "The [name] shall submit..."

Not every body needs all eight elements. But those that appear should be in the same order.

Consistent formatting across sections. Beyond content, keep the formatting consistent:

- If Section 3 uses "(a), (b), (c)" for its subsections, do not switch to "(1), (2), (3)" in Section 7 without reason.
- If Section 4 puts the section heading in italics after a bold section number (**Section 4.** *Short Title.* —), follow the same pattern throughout.
- If Section 10 indents its list items, Section 15 should indent its list items the same way.

These may seem like small matters. They are not. Inconsistent formatting signals careless drafting. It makes the reader uncertain whether the inconsistency is intentional — whether (1) and (a) signal different levels of hierarchy or are simply typos. Consistent formatting is a sign of a drafter who pays attention to detail.

6.4 Completeness

6.4.1 Checking for Gaps in Coverage

A bill with gaps is like a bridge with missing sections. It looks functional until someone tries to cross it.

Check your draft for common gaps:

- **Transition provisions.** What happens to existing programs, personnel, contracts, and pending cases when the new law takes effect?
- **Edge cases.** What if the deadline falls on a weekend or holiday? What if the responsible official is absent or incapacitated? What if the required quorum cannot be met?
- **Overlap with existing law.** Does the bill cover subjects already regulated by another BAA or national law? If so, which law prevails?

- **Geographic coverage.** Does the bill apply to all of BARMM or only to certain provinces or municipalities?
- **Temporal coverage.** Does the bill apply retroactively to existing situations or only prospectively?

6.4.2 Every Duty Has an Accountable Body

When a provision says "the Bangsamoro Government shall ensure access to clean water," who exactly is responsible? The Chief Minister? The Ministry of Public Works? The local government? "The Bangsamoro Government" is not an accountable body — it is a collective abstraction.

Every duty in your bill should identify a specific, named body that is responsible for carrying it out. If the duty falls on multiple bodies, specify how they share or divide the responsibility.

Incomplete	Complete
The government shall provide free textbooks.	The Ministry of Basic, Higher and Technical Education shall provide free textbooks to all public elementary and secondary schools in the BARMM.
Appropriate agencies shall coordinate disaster response.	The Ministry of Public Order and Safety shall coordinate disaster response in consultation with the Ministry of the Interior and Local Government and the Bangsamoro Planning and Development Authority.

6.4.3 Every Violation Has a Consequence

If a bill prohibits something but prescribes no penalty, the prohibition is toothless. If a bill requires an agency to submit quarterly reports but says nothing about what happens when the agency fails to report, the requirement will be ignored.

For every obligation, ask: What happens if the obligated party does not comply? For every prohibition, ask: What is the consequence of violation?

The consequence does not have to be criminal. It can be administrative (suspension, revocation of license, removal from office), civil (damages, injunction), or regulatory (fine, closure order). But some consequence must exist. Otherwise, you are writing aspiration, not law.

6.5 Writing Provisions That Can Be Enforced

An enforceable provision has four elements:

1. **A clear legal subject** — who is bound by the provision.
2. **A clear legal action** — what the subject must do, must not do, or may do.
3. **A clear standard** — how compliance or violation is measured.
4. **A clear consequence** — what happens upon compliance or violation.

Test each provision by asking: If this provision were violated, could a government official, a prosecutor, or a judge determine (a) who violated it, (b) what they did wrong, (c) that it was indeed wrong under the stated standard, and (d) what the consequence should be?

Example — unenforceable vs. enforceable:

Unenforceable	Enforceable
All business establishments in the BARMM shall practice good governance.	Every business establishment in the BARMM with gross annual revenue exceeding one million pesos shall submit an audited financial statement to the Ministry of Trade, Industry, and Tourism within 90 days after the close of each fiscal year. Failure to submit shall result in a fine of ten thousand pesos for each month of delay.

The first provision is a statement of aspiration. Nobody can enforce "good governance" because there is no way to measure compliance, identify a violator, or impose a consequence. The second provision tells you who must act, what they must do, when they must do it, and what happens if they do not.

The enforceability checklist. Run through this checklist for every substantive provision in your draft:

Question	If the answer is no...
Is the legal subject identified by name?	Add the specific body or person.
Is the action described in concrete, measurable terms?	Replace vague language with specific obligations.
Is there a deadline or trigger event?	Add one. Open-ended obligations are ignored.

Question	If the answer is no...
Is there a way to determine compliance?	Add a standard, a reporting requirement, or a verification mechanism.
Is there a consequence for non-compliance?	Add a penalty, sanction, or other enforcement mechanism.
Can the provision be applied without further legislation?	If not, include an IRR provision with a deadline and minimum content requirements.

More examples from Bangsamoro context:

Provision	Enforceable?	Why or Why Not
The Bangsamoro Government shall promote sustainable development.	No	No specific actor, no specific action, no standard, no consequence
The Minister of Environment shall submit to the Parliament a biannual report on forest cover in the BARMM, including deforestation rates and reforestation progress, within 60 days after the end of each half of the fiscal year.	Yes	Named actor, specific action, measurable deliverable, deadline.
Food establishments shall comply with halal standards.	Partly	Named subject, general action, but no standard specified and no consequen

Provision	Enforceable?	Why or Why Not
Every food establishment in the BARMM shall display a halal compliance certificate issued by the Bangsamoro Darul Ifta' or a recognized halal-certifying body. Failure to display the certificate shall be penalized by a fine of five thousand pesos (PhP 5,000.00) for the first offense and ten thousand pesos (PhP 10,000.00) for each subsequent offense.	Yes	Named subject, specific action, identified certifying body, specific pen

6.6 Avoiding Common Pitfalls

6.6.1 Over-Legislation

Over-legislation means writing provisions so detailed that they are impossible to follow, cannot adapt to changed circumstances, or regulate matters better left to administrative discretion.

Signs of over-legislation:

- The bill specifies the exact organizational chart of a ministry, down to the number of divisions and the titles of division chiefs.
- The bill dictates the specific curriculum content of an educational program, including the number of hours for each subject.
- The bill sets specific peso amounts for budgets that will be outdated before the IRR is issued.
- The bill prescribes step-by-step procedures that an agency cannot modify without amending the law.

When you find yourself drafting this kind of detail, stop. Ask: Is this a matter that should be in the law, or should the law delegate it to the implementing rules and regulations?

The general principle: a BAA should set the policy, the framework, the obligations, and the standards. The IRR should set the procedures, the organizational details, and the operational specifics. If you put operational detail in the law, you make the law rigid. Every change — even a minor procedural adjustment — will require an amendment.

6.6.2 Vague Delegations

The opposite of over-legislation is under-legislation — delegating too much to the executive without providing standards.

A provision that says “the Minister shall issue rules and regulations to carry out the purposes of this Act” is acceptable. A provision that says “the Minister shall determine the coverage, benefits, and obligations under this Act” is not — because it delegates the substance of the law, not just the implementation details.

When you delegate authority to issue implementing rules, set boundaries:

- State the general policy that the rules must follow.
- Identify the specific subjects the rules must address.
- Set deadlines for issuing the rules.
- Require consultation with stakeholders before issuance.

Example — vague vs. bounded delegation:

Vague	Bounded
	The Ministry shall promulgate implementing rules and regulations within 60 days from the effectivity of this Act. The rules shall, at a minimum, prescribe (a) the qualifications for registration, (b) the schedule of fees,

Vague	Bounded
The Ministry shall promulgate rules to implement this Act.	(c) the procedure for filing complaints, and (d) the grounds for revocation of licenses.

6.6.3 Unfunded Mandates

A bill that requires a ministry to build a hospital in every municipality but appropriates no funds for construction is an unfunded mandate. It creates a legal obligation without providing the resources to fulfill it.

Every bill that creates new programs, positions, or obligations should address funding. The two standard approaches:

1. **Specific appropriation.** The bill itself appropriates a specific amount. This is appropriate when the cost is known and the Parliament intends to commit the funds immediately.
2. **Inclusion in the annual budget.** The bill provides that funding shall be included in the annual Bangsamoro General Appropriations Act. This is appropriate when the cost will vary year to year or when the program will be phased in over time.

Either way, the bill should contain an appropriation section. A bill without one is a promise without resources.

How to spot an unfunded mandate. As you draft, keep a running list of every obligation your bill creates. For each one, ask: Does this cost money? If yes, where does the money come from? Here is a checklist:

Obligation	Cost?	Funding Source
Establish child development centers in every barangay	Yes — construction, equipment, staffing	Section ☑ appropriation clause
Submit quarterly reports to Parliament	Minimal — staff time	Covered by existing MOOE
Create a new coordinating council	Yes — office space, staff, travel	Section ☑ appropriation clause
Conduct annual inspections of all facilities	Yes — inspectors, transport, per diem	Need to add appropriation
		Need to add appropriation

Obligation	Cost?	Funding Source
Train all barangay health workers	Yes — training materials, venue, facilitators	

If any obligation has a "Yes" in the cost column and no identified funding source, you have an unfunded mandate. Fix it before filing.

The appropriation clause formula in BAAs:

> *Funding is hereby appropriated from the Bangsamoro General Appropriations for [the purpose], and, thereafter, such amount as may be needed for [continued operations/implementation].*

This is the pattern used in BAA No. 25 and similar BAAs. It works for bills where the exact cost is not yet known. For bills with a known cost, state the amount:

> *The amount of fifty million pesos (PhP 50,000,000.00) is hereby appropriated from the Bangsamoro General Appropriations for the initial implementation of this Act.*

6.7 Learning from Enacted BAAs

The best way to learn legislative style is to read enacted legislation. BAAs that have been adopted by the Parliament, signed by the Chief Minister, and published have survived every stage of legislative scrutiny. They are not perfect — no legislation is — but they represent the Parliament's working standard.

Study these BAAs for:

- **Structure.** How are sections organized? What comes first, second, last?
- **Definitions.** How are terms defined? What formula is used?
- **Operative language.** How are obligations, prohibitions, and permissions expressed?
- **Standard provisions.** How are separability, repealing, and effectivity clauses written?
- **Citation style.** How are the BOL, national laws, and other BAAs referenced?

When you encounter a drafting problem — how to phrase a particular provision, how to structure an amendment, how to write a penalty clause — look at how similar BAAs handled it. The accumulated body of enacted BAAs is your best style guide.

Pay particular attention to:

- **BAA No. 11** (Power of Appointment) — a concise BAA with clean section structure.
- **BAA No. 13** (Bangsamoro Administrative Code) — a comprehensive codification.
- **BAA No. 18** (Bangsamoro Education Code) — a major policy bill covering an entire sector.
- **BAA No. 25** (Datu Blah Sinsuat Hospital Upgrading Act) — a typical local bill with clear structure.
- **BAA No. 49** (Bangsamoro Local Government Code) — a comprehensive framework with detailed institutional provisions.

What to study in each BAA:

Take BAA No. 11 (Power of Appointment). It is only eight sections. Look at how it handles each standard component:

- **Short title** (Section 1): Uses the formula "This act shall be known as..." — a traditional phrasing.
- **Purpose** (Section 2): One sentence stating the law's objective — selection and appointment based on merits, with gender and ethnic balance.
- **Definitions** (Section 3): Defines only two terms — "Power of Appointment" and "Heads of Office." No unnecessary definitions.
- **Substantive provisions** (Sections 4-5): Section 4 uses lettered subsections (a), (b), (c), (d) to list different appointing authorities — clear, parallel structure. Section 5 states the policy on appointments in a single sentence.
- **Final provisions** (Sections 6-8): Repealing clause, separability clause, effectivity clause — in that order, each one sentence.

Now compare that with BAA No. 25 (Datu Blah Sinsuat Hospital Upgrading Act). This is a local bill with ten sections:

- **Short title** (Section 1): Uses the formula "This Act shall be known as the 'Datu Blah Sinsuat District Hospital Upgrading Act of 2022'."
- **Declaration of Policy** (Section 2): Anchors the policy in Section 22, Article IX of the BOL — establishing the constitutional basis.
- **Main operative provision** (Section 3): Specific and measurable — upgrades from Level I with 10-bed capacity to Level II with 100-bed capacity. Notice the precision:

not "upgrade the hospital" but "upgrade from its present level with a ten (10) bed capacity into a Level II hospital with a one hundred (100) bed authorized capacity."

- **Integration clause** (Section 4): Links the hospital to the national Universal Health Care Act — demonstrating how to connect regional legislation with national frameworks.
- **Administration** (Section 5): Places the hospital under the Ministry of Health — naming the specific supervising body.
- **Appropriation** (Section 6): Does not specify a peso amount but says funding "is hereby appropriated from the Bangsamoro General Appropriations." This is a common approach when the exact cost is not yet known.
- **IRR provision** (Section 7): The MOH-BARMM shall promulgate IRR within 60 days — a bounded delegation with a deadline.

These patterns are your templates. When you face a drafting decision — how detailed should the appropriation clause be? how should I structure the IRR provision? — look at how enacted BAAs have handled the same question.

Common patterns across BAAs:

Component	Standard Pattern in BAAs
Short title	"This Act shall be known as the '[name].'"
Enacting clause	"Be it enacted by the Bangsamoro Parliament:" (timeless form) or "Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:" (BTA period)
Section numbering	"Section 1." or "SEC. 1." — both forms appear; be consistent within one bill
Section heading format	Bold section number, italicized heading, em dash: **Section 3.** *Definition of Terms.* —
Effectivity	"This Act shall take effect fifteen (15) days after its publication in a newspaper of general circulation in the Bangsamoro Autonomous Region in Muslim Mindanao." (or "...of regional circulation.")
Separability	"If any provision of this Act or the application of such provision is declared invalid, the remainder of this Act shall not be affected by such declaration."
Repealing	"All laws and regulations under the BARMM government... not consistent with this Act are hereby repealed."
Approval block	

Component	Standard Pattern in BAAs
	Speaker's signature, then "This Act was passed by the Bangsamoro Parliament on [date].", Secretary-General's signature, then Chief Minister's "APPROVED:" with signature and date

6.8 The Structure of a Legal Rule

6.8.1 Legal Subject, Legal Action, and Conditions

Every operative provision in a BAA can be broken down into three components:

1. **Legal subject** — the person, body, or entity that is bound by the rule.
2. **Legal action** — what the subject must do, must not do, or may do.
3. **Conditions** — the circumstances under which the rule applies.

When you draft, make sure all three are present and unambiguous.

Example:

> *The Chief Minister [legal subject] shall appoint [legal action] the members of the Commission within 30 days from the effectivity of this Act [condition].*

When any component is missing, the provision is incomplete:

Missing Component	Example	Problem
No legal subject	"The report shall be submitted within 30 days."	Who must submit the report?
No legal action	"The Ministry of Health, in coordination with the Ministry of the Interior and Local Government."	What must they do?
		Under what circumstances? Always? Upon what finding?

Missing Component	Example	Problem
No conditions	"The Minister shall revoke the license."	

6.8.2 The Exception-Case-Condition-Rule Pattern

Complex provisions often follow this pattern:

1. **General rule** — the default obligation or prohibition.
2. **Conditions** — when the rule applies.
3. **Cases** — specific situations within the rule.
4. **Exceptions** — when the rule does not apply.

Draft in this order: state the general rule first, then the conditions, then the cases, then the exceptions. Do not start with the exception. Do not bury the general rule inside a proviso.

Example — poorly ordered:

> *Provided, That no license shall be required if the establishment is operated by the Bangsamoro Government, the Minister may require all food establishments in the BARMM to obtain a halal certification license, which shall be valid for two years and renewable upon application, subject to the schedule of fees prescribed by the Ministry.*

The reader has to reach the middle of the sentence to find the general rule. Rewrite:

> *The Minister may require all food establishments in the BARMM to obtain a halal certification license. The license shall be valid for two years and renewable upon application, subject to the schedule of fees prescribed by the Ministry. This requirement shall not apply to food establishments operated by the Bangsamoro Government.*

Now the general rule comes first, the details follow, and the exception is stated separately.

6.8.3 Three Types of Normative Provisions

Legislative provisions fall into three categories:

Obligations — provisions that require the subject to do something.

> *The Ministry shall submit an annual report to the Parliament.*

Prohibitions — provisions that forbid the subject from doing something.

> *No member of the Commission shall hold any other office or employment during their term.*

Permissions — provisions that allow the subject to do something they would not otherwise be authorized to do.

> *The Minister may extend the deadline by an additional 30 days upon written request.*

Know which type you are writing. Obligations use “shall.” Prohibitions use “shall not” or “no person shall.” Permissions use “may.” Do not mix them. If a provision says “shall” in one clause and “may” in the next, the reader cannot tell whether the second clause is an obligation or a permission.

6.9 Shall, May, and Must

6.9.1 When to Use Each

These three words carry more legal weight than any other words in legislation. Use them correctly.

Word	Meaning	
shall	Imposes a mandatory obligation	When you want to require a person or bo
shall not	Imposes a mandatory prohibition	When you want to forbid a person or body
may	Grants discretion or permission	When you want to allow — but not require — a

Word	Meaning	
must	Imposes a condition or prerequisite	When you want to state a condition that must be met before something can happen. "T

The Bangsamoro Parliament follows the convention of the Philippine Congress: "shall" is the standard word for obligations. Use "shall" as your default for mandatory provisions.

"May" is never mandatory. If you write "the Minister may submit a report," you are saying the Minister has the choice. If you mean the Minister is required to submit a report, write "shall."

"Must" is occasionally used for conditions or prerequisites, but "shall" can serve the same purpose. The safest approach: use "shall" for all obligations and prohibitions, "may" for all permissions, and reserve "must" for the rare case where you need to state a prerequisite distinct from an obligation.

6.9.2 Common Errors

Error 1: Using "shall" for things that are not obligations.

> *"The BARMM shall be composed of the provinces of Maguindanao del Norte, Maguindanao del Sur, Lanao del Sur, Sulu, Basilan, and Tawi-Tawi."*

The BARMM does not have an obligation to be composed of these provinces. This is a statement of fact, not a command. Write:

> *"The BARMM is composed of..."*

Use "shall" only for obligations and prohibitions. For descriptions, definitions, and statements of fact, use "is," "means," "includes," or "consists of."

Error 2: Using "may" when you mean "shall."

> *"The implementing agency may promulgate the necessary rules and regulations."*

If the IRR is required, this should be "shall." If you write "may," the agency can choose not to issue rules — and without rules, the law may be unimplementable.

Error 3: Using "shall" with no identifiable subject.

> *"It shall be ensured that all children have access to basic education."*

Who shall ensure this? Write:

> *"The Ministry of Basic, Higher and Technical Education shall ensure that all children in the BARMM have access to basic education."*

Error 4: Using "shall" for the speaker of the legislation.

> *"This Act shall be known as the Bangsamoro Education Code."*

The Act does not have an obligation to be known by that name. This is a legislative declaration, not a command. Acceptable alternatives: "This Act shall be known as..." is traditional and widely used in Philippine legislation, so it is tolerable. But if you want to be precise: "This Act is the Bangsamoro Education Code."

Error 5: Double modals.

> *"The Commission shall be required to submit a report."*

"Shall" already makes it mandatory. "Be required to" is redundant. Write:

> *"The Commission shall submit a report."*

6.10 Normative vs. Aspirational Language

Normative language creates a rule. Aspirational language states a goal. Both have a place in legislation, but they serve different purposes and should not be confused.

Normative provisions belong in the substantive body of the bill. They tell people what they must do, must not do, or may do. They are enforceable.

Aspirational provisions belong in the Declaration of Policy section — and only there. They state the objectives and principles that guide the law. They are not directly enforceable, but they provide context for interpreting the substantive provisions.

The problem arises when aspirational language appears in substantive sections:

> **Section 15.** *Community Participation.* — The Bangsamoro Government recognizes the importance of community participation in governance and shall endeavor to create an enabling environment for the meaningful engagement of all sectors in the development process.

This provision sounds important. But what does it require? What is an "enabling environment"? What is "meaningful engagement"? Who is accountable? How would you enforce this?

Compare:

> **Section 15.** *Community Participation.* — Each ministry shall conduct at least two public consultations per year on its proposed programs and projects. The consultations shall be held in locations accessible to affected communities. Notice of each consultation shall be published at least 15 days in advance. The ministry shall prepare a written summary of the feedback received and publish it within 30 days after the consultation.

The second version is enforceable. It specifies who must act, what they must do, when, and how compliance is measured.

A quick test. For every provision in the substantive body of your bill, ask: "Can someone violate this?" If the answer is no — if there is no way for anyone to fail to comply — the provision is aspirational. Move it to the Declaration of Policy or delete it.

Common aspirational phrases that masquerade as operative provisions:

Aspirational	Operative Alternative
The Bangsamoro Government shall promote the welfare of children.	The Ministry of Social Services shall allocate at least five percent (5%) of its annual budget to child welfare programs.
The Parliament recognizes the importance of cultural heritage.	(Move to Declaration of Policy — or delete, because recognition without action is empty.)

Aspirational	Operative Alternative
Peace and development shall be pursued in all programs.	Each ministry shall include a peace and development impact assessment in every program proposal submitted to the BPDA.
The rights of indigenous peoples shall be respected.	No government project shall proceed on ancestral domain without the free, prior, and informed consent of the affected indigenous peoples, documented through a written agreement witnessed by the National Commission on Indigenous Peoples.
Education shall be accessible to all.	The MBHTE shall ensure that a public elementary school exists within every barangay or within a three-kilometer radius of every residential cluster in the BARMM.

The pattern is consistent. Aspirational language uses abstract nouns (welfare, importance, peace, rights, accessibility). Operative language uses concrete verbs with named actors and measurable standards (allocate, include, proceed, ensure).

Where aspirational language belongs. The Declaration of Policy section is the right home for aspirational statements. That is where you articulate the guiding principles and objectives of the law. These statements inform how the operative provisions are interpreted, but they are not themselves enforceable. Place them there, and keep the substantive sections operative.

6.11 Active Voice and Present Tense

6.11.1 Why Active Voice

Active voice identifies who must act. Passive voice hides the actor.

> **Passive:** *The report shall be submitted within 30 days.*
>
> **Active:** *The chairperson shall submit the report within 30 days.*

The passive version does not tell you who must submit the report. The active version does. In legislation, that difference matters. If the provision is violated, the passive version makes it harder to determine who is responsible.

Active voice is also shorter and more direct. It produces clearer sentences with less room for misinterpretation.

6.11.2 Converting Passive to Active

To convert passive to active, find the actor and make them the subject of the sentence.

Passive	Active
Applications shall be processed within 15 days.	The licensing office shall process applications within 15 days.
Penalties shall be imposed for violations.	The Minister shall impose penalties for violations.
The fund shall be administered in accordance with the rules.	The Ministry of Finance shall administer the fund in accordance with the rules.
Reports shall be made available to the public.	The Secretary-General shall make reports available to the public.
A certificate shall be issued upon completion of the program.	The training center shall issue a certificate upon completion of the program.

Sometimes passive voice is acceptable:

- When the actor is genuinely unknown or irrelevant: “This Act may be cited as...”
- When the emphasis should be on the action, not the actor: “No bill shall become a law unless it has passed the stages of legislation.”
- When the same provision applies to multiple actors: “All government contracts exceeding one million pesos shall be subject to public bidding.”

But these are exceptions. Default to active voice.

6.12 Sentence Length and Structure

6.12.1 One Idea Per Sentence

Long sentences are the most common source of confusion in legislation. A sentence that stretches across eight lines, contains three subordinate clauses, two provisos, and a parenthetical — that sentence will be misread.

The rule is simple: one idea per sentence. If a sentence contains more than one obligation, more than one condition, or more than one exception, break it apart.

Before — one sentence, multiple ideas:

> *The Ministry shall establish child development centers in all barangays that do not currently have one, provided that priority shall be given to barangays classified as geographically isolated and disadvantaged areas, and provided further that the Ministry shall coordinate with the local government units in the selection of sites, and the centers shall be operational within two years from the effectivity of this Act.*

After — one idea per sentence:

> *The Ministry shall establish a child development center in every barangay that does not have one.*
>
> *Priority shall be given to barangays classified as geographically isolated and disadvantaged areas.*
>
> *The Ministry shall coordinate with local government units in the selection of sites.*
>
> *All centers shall be operational within two years from the effectivity of this Act.*

Each sentence can stand on its own. Each can be read, understood, and applied independently.

6.12.2 Breaking Provisions into Lists

When a provision contains multiple items — conditions, requirements, exceptions, categories — use a list instead of a run-on sentence.

Before — everything in one sentence:

> *The applicant must be a Filipino citizen, at least 25 years of age, a resident of the BARMM for at least five years immediately preceding the date of application, a holder of a college degree from a recognized institution, and must not have been convicted of any crime involving moral turpitude.*

After — as a list:

> *The applicant must meet all of the following qualifications:*
>
> *(a) Filipino citizen;*
>
> *(b) at least 25 years of age;*
>
> *(c) resident of the BARMM for at least five years immediately preceding the date of application;*
>
> *(d) holder of a college degree from a recognized institution; and*
>
> *(e) has not been convicted of any crime involving moral turpitude.*

The list format makes each item visible. The reader can check each qualification independently. See Section 6.14 for detailed rules on list formatting.

6.13 Drafting Definitions

6.13.1 "Means" vs. "Includes"

The two most important words in a definitions section are "means" and "includes." They do different things.

"Means" creates an exhaustive definition. The term means exactly what the definition says and nothing else.

> *"Child" means a person below 18 years of age.*

A person who is 18 years old is not a child under this definition. There is no room for interpretation.

"Includes" creates an illustrative definition. The term includes the listed items but may also include other things not listed.

> *"Educational institution" includes public schools, private schools, madaris, and community learning centers.*

This definition lists four types of educational institutions but leaves room for others. A technical vocational school might be considered an educational institution even though it is not listed.

When to use which:

- Use "means" when you want a closed definition that cannot be expanded. This is appropriate when precision is essential — for example, defining the age of coverage, the geographic scope, or the amount of a penalty.
- Use "includes" when you want an open definition that can accommodate items you have not listed. This is appropriate when the category is broad and you want to provide examples without limiting the scope.
- Avoid using "means and includes" together. It creates confusion: is the definition exhaustive (because of "means") or illustrative (because of "includes")? Pick one. If you need to combine a core definition with examples, write: "'Educational institution' means any organized institution that provides instruction. It includes, but is not limited to, public schools, private schools, madaris, and community learning centers."

6.13.2 The Substitution Test

After writing a definition, apply the substitution test: replace every occurrence of the defined term in the bill with the definition. Does the sentence still make sense?

Definition:

> *"Halal" means permissible under Islamic law.*

Provision:

> *All food products sold in public markets shall bear a halal certification label.*

Substitution:

> *All food products sold in public markets shall bear a permissible-under-Islamic-law certification label.*

This works. The substitution produces a sentence that makes sense.

Bad definition:

> *"Halal" means food that is prepared and handled in compliance with Islamic dietary laws, which is permissible for consumption by Muslims.*

Substitution:

> *All food products sold in public markets shall bear a food-that-is-prepared-and-handled-in-compliance-with-Islamic-dietary-laws-which-is-permissible-for-consumption-by-Muslims certification label.*

The substitution does not work. The definition is too long and too specific for the way the term is used. Revise the definition or revise the provision.

6.13.3 What Not to Define

Not every term needs a definition. Define a term only if:

- It has a specific meaning in the context of the bill that differs from its ordinary meaning.
- It is a technical term that the reader may not know.
- It is used frequently and a definition will prevent repetition of a longer phrase.

Do not define:

- Terms that have an obvious, commonly understood meaning. You do not need to define "building," "road," or "teacher" unless you are giving them a specialized meaning.
- Terms that are defined in the BOL or in a national law that applies to the BARMM. Instead, incorporate those definitions by reference: "As used in this Act, terms defined in the Bangsamoro Organic Law shall have the meanings given to them therein."
- Terms that appear only once in the bill. If a term is used once, define it in context rather than in a separate Definitions section.
- Terms in a way that contradicts their ordinary meaning. Defining "child" to mean a person below 25 will confuse everyone. If you need a broader age category, use a different term — "youth," "young person," or whatever fits.

Formatting the definitions section. Definitions should be listed in alphabetical order. Each definition is a separate subsection. Two common formats appear in BAAs:

Format A — numbered subsections:

> *SEC. 3. Definition of Terms. —*
>
> *(1) "Power of Appointment" — refers to the authority exercised by the official concerned...*
>
> *(2) "Heads of Office" — refer to heads of Ministries, Offices, Commissions...*

Format B — lettered subsections with "as used in this Act":

> *Section 3. Definition of Terms. — As used in this Act:*
>
> *(a) "Child" means a person below eighteen (18) years of age.*
>
> *(b) "Child Development Center" means a facility...*

Either format works. Be consistent. Format B, with the "As used in this Act" lead-in, is slightly clearer because it reminds the reader that these definitions apply only within this particular law.

The "refers to" vs. "means" question. In BAA drafting practice, both "refers to" and "means" appear in definitions. Technically, "means" is the stronger word — it closes the definition. "Refers to" is softer and can be read as merely pointing to something rather than defining it. The cleaner practice is to use "means" for exhaustive definitions and "includes" for illustrative ones. But if your principal MP or the committee prefers "refers to," it is not wrong — it is an established convention in Philippine legislation.

6.14 Using Lists

6.14.1 Conjunctive Lists

A conjunctive list requires all items to be satisfied. The connecting word is "and."

> *The applicant must submit the following documents:*
>
> *(a) a completed application form;*
>
> *(b) two recent passport-size photographs;*
>
> *(c) proof of residency in the BARMM; and*
>
> *(d) a certificate of good moral character.*

The "and" before item (d) signals that all four documents are required. The applicant must submit all of them.

6.14.2 Disjunctive Lists

A disjunctive list requires any one item to be satisfied. The connecting word is "or."

> *A license may be revoked on any of the following grounds:*
>
> *(a) fraud in obtaining the license;*
>
> *(b) violation of any condition of the license;*
>
> *(c) conviction of a crime involving moral turpitude; or*
>
> *(d) failure to operate for a continuous period of one year.*

The "or" before item (d) signals that any single ground is sufficient for revocation.

6.14.3 Formatting and Punctuation

Follow these rules when formatting lists in legislation:

1. Introduce the list with a complete introductory clause followed by a colon.

> *The Board shall have the following powers and functions:*

Not:

> *The Board:* — (incomplete introductory clause)

2. Use lowercase letters in parentheses for list items: (a), (b), (c).

This is the convention in BAAs and in the BOL. For sub-items within a list item, use Arabic numerals in parentheses: (1), (2), (3).

3. End each item with a semicolon, except the last.

Place “and” or “or” after the semicolon of the second-to-last item. End the final item with a period.

```
(a) first item;
(b) second item;
(c) third item; and
(d) final item.
```

4. Keep list items grammatically parallel.

Every item in the list should be the same part of speech or follow the same grammatical pattern. If the first item starts with a verb, all items should start with a verb.

Not parallel	Parallel
(a) review all applications; (b) approval of qualified applicants; (c) to issue licenses	(a) review all applications; (b) approve qualified applicants; (c) issue licenses

5. Do not mix conjunctive and disjunctive connections in a single list.

If the list is conjunctive, use “and” before the last item. If disjunctive, use “or.” Never use “and/or.” If some items are required and some are optional, split them into separate lists:

> *The applicant must submit:*
>
> *(a) a completed application form; and*
>
> *(b) proof of residency.*
>
> *The applicant may also submit one or more of the following supporting documents:*
>
> *(a) a letter of recommendation;*
>
> *(b) evidence of relevant work experience; or*
>
> *(c) a certificate of additional training.*

6.15 Punctuation

Punctuation in legislation is not decorative. A misplaced comma can change the meaning of a provision.

Commas. Use commas to separate items in a series, to set off introductory clauses, and to mark parenthetical phrases. Always use the serial comma (the comma before "and" or "or" in a series of three or more items):

> *The Ministry shall coordinate with the local government units, the private sector, and civil society organizations.*

Without the serial comma:

> *The Ministry shall coordinate with the local government units, the private sector and civil society organizations.*

The second version could be read to mean that "the private sector and civil society organizations" is a single unit. The serial comma removes that ambiguity.

Semicolons. Use semicolons to separate items in a list (see Section 6.14.3) and to separate independent clauses that are closely related:

> *The chairperson shall preside over all meetings; in the chairperson's absence, the vice-chairperson shall preside.*

Colons. Use colons to introduce lists and to introduce block quotes of cited text:

> *Section 6, Article IX of the BOL provides: "The Bangsamoro Government shall fully respect human rights."*

Periods. End every sentence and every provision with a period. Do not end a section heading with a period — the heading ends with a period-em-dash combination: "**Section 1.** *Short Title.* —"

Em dashes. In Bangsamoro legislation, the em dash (—) separates the section heading from the section text:

> **Section 3.** *Definition of Terms.* — As used in this Act:

Do not use hyphens (-) or en dashes (–) for this purpose. Use the em dash (—).

Quotation marks. Use quotation marks for short titles, defined terms on first definition, and direct quotations:

> *This Act shall be known as the "Bangsamoro Early Childhood Care and Development Act."*

Parentheses. Use parentheses for list item letters and numbers — (a), (b), (1), (2) — and for cross-references and clarifications:

> *Section 37, Article XIII of Republic Act No. 11054 (hereinafter "BOL")...*

The proviso. The word *Provided* in Philippine legislative tradition introduces a condition, exception, or qualification. It is italicized and followed by a comma:

> *...shall be valid for two years and renewable upon application: Provided, That the applicant has not been found in violation of any provision of this Act.*

Use provisos sparingly. When possible, state exceptions as separate sentences rather than embedding them in provisos. Multiple nested provisos (*Provided, further, That... Provided, furthermore, That...*) produce unreadable text.

Example — nested provisos vs. separate sentences:

Nested provisos (hard to read):

> *The Minister shall appoint members of the Board: Provided, That at least two members shall be women: Provided, further, That at least one member shall represent indigenous peoples: Provided, furthermore, That no member shall be related within the fourth civil degree of consanguinity or affinity to the Minister.*

Separate sentences (clear):

> *The Minister shall appoint the members of the Board. At least two (2) members shall be women. At least one (1) member shall represent indigenous peoples. No member shall be related within the fourth civil degree of consanguinity or affinity to the Minister.*

Both versions say the same thing. The second is far easier to read and far less likely to be misinterpreted.

The "to wit" convention. In Philippine legislative tradition, "to wit" (italicized) introduces a list. It appears in the BOL and in BAAs:

> *The following are the appointing authorities, to wit:*

This is acceptable in Bangsamoro legislation. However, a simple colon after the introductory clause accomplishes the same thing:

> *The following are the appointing authorities:*

Either form is correct. Be consistent within one bill.

Hyphens. Use hyphens for compound adjectives that precede a noun: "merit-based process," "10-bed capacity," "Bangsamoro-owned corporations." Do not use hyphens for compound adjectives that follow a noun: "the process is merit based," "the capacity is 10 beds."

6.16 Capitalization

Capitalize the following in Bangsamoro legislation:

Term	Capitalized Form	Notes
The autonomous region	Bangsamoro Autonomous Region in Muslim Mindanao (BARMM)	Always use the full official name on first reference
The organic law	Republic Act No. 11054 or the Bangsamoro Organic Law (BOL)	Capitalize when referring to the specific law
The national constitution	1987 Constitution of the Philippines	Capitalize "Constitution"

Term	Capitalized Form	Notes
Parliament	Bangsamoro Parliament; the Parliament	Capitalize when referring to the specific body
Executive titles	Chief Minister, Speaker, Deputy Speaker, Minister, Secretary-General	Capitalize when used as a title or referring to the specific offi
Government bodies	Ministry of Health, Bangsamoro Planning and Development Authority	Capitalize the full official name
Legislative outputs	Bangsamoro Autonomy Act, Resolution No. 268	Capitalize specific enactments
Defined terms	As defined in the bill	Do not capitalize merely because a term is defined — capitalize only if the defi
Act/Law	“this Act,” “the Act”	Capitalize when referring to the specific bill being draft

Do not capitalize:

- Common nouns used generically: “the ministry” (when not referring to a specific ministry), “a resolution” (when not referring to a specific resolution), “the government” (when not referring to a specific government).
- Words for emphasis. Capitalization is not a substitute for boldface. Do not write “the Minister SHALL submit” — use standard capitalization.

6.17 Abbreviations and Acronyms

First-reference rule. On first use, spell out the full name followed by the abbreviation or acronym in parentheses. After that, you may use the abbreviation.

> *The Ministry of Basic, Higher and Technical Education (MBHTE) shall... The MBHTE shall...*

In the definitions section. If an abbreviation is used frequently, define it:

> *"MBHTE" refers to the Ministry of Basic, Higher and Technical Education.*

Or include it in the full definition:

> *"Ministry" refers to the Ministry of Basic, Higher and Technical Education (MBHTE).*

Common abbreviations in Bangsamoro legislation:

Abbreviation	Full Form
BARMM	Bangsamoro Autonomous Region in Muslim Mindanao
BOL	Bangsamoro Organic Law (Republic Act No. 11054)
BAA	Bangsamoro Autonomy Act
BTA	Bangsamoro Transition Authority
MFBM	Ministry of Finance, Budget and Management
MBHTE	Ministry of Basic, Higher and Technical Education
MOH	Ministry of Health
MOLE	Ministry of Labor and Employment
MTIT	Ministry of Trade, Industry and Tourism
MILG	Ministry of the Interior and Local Government
BPDA	Bangsamoro Planning and Development Authority

Abbreviation	Full Form
LGU	Local Government Unit
IRR	Implementing Rules and Regulations
BGAA	Bangsamoro General Appropriations Act
GAD	Gender and Development

Do not assume the reader knows the abbreviation. Even common abbreviations like "LGU" or "IRR" should be spelled out on first use.

Do not create abbreviations for terms used only once or twice. If the term appears only once, spell it out. An abbreviation that appears only in the definitions section and once in the text wastes the reader's time.

6.18 Legal Citation

6.18.1 Citing the BOL and the Constitution

The Bangsamoro Organic Law:

- Full citation: "Republic Act No. 11054, otherwise known as the 'Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao'"
- Short form (after first reference): "the BOL" or "R.A. No. 11054"
- Citing a specific provision: "Section 2, Article V of R.A. No. 11054" or "Section 2, Article V of the BOL"

Note the order: Section first, then Article. This follows Philippine legislative convention.

Examples of BOL citations as they appear in actual BAAs:

> *Section 37, Article XIII of Republic Act No. 11054 otherwise known as the "Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao", provides that the national government shall fund and implement the construction and maintenance of national roads...*
>
> *...in consonance with the provisions of Article VII, Section 32 of R.A. No. 11054...*
>
> *Section 22, Article IX of Republic Act No. 11054, otherwise known as the "Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao" [provides for healthcare]...*

The 1987 Constitution:

- Full citation: "the 1987 Constitution of the Philippines"
- Short form: "the Constitution"
- Citing a specific provision: "Section 1, Article III of the Constitution"

Examples of constitutional citations:

> *Section 4, Article II of the 1987 Constitution of the Philippines states in part that "The prime duty of the Government is to serve and protect the people"...*
>
> *Section 1, Article III of the Bill of Rights states that "No person shall be deprived of life, liberty, or property without due process of law..."*

When citing constitutional provisions, you may refer to the specific article by name ("the Bill of Rights" for Article III) for clarity, but always include the section and article numbers.

6.18.2 Citing National Laws and IRRs

Republic Acts:

- Full citation: "Republic Act No. 10611, otherwise known as the 'Food Safety Act of 2013'"
- Short form: "R.A. No. 10611" or "the Food Safety Act"
- For the first reference, include both the number and the popular name (if it has one).

Cite format table for national legislation:

Type	Full Citation	Short Form
Republic Act		R.A. No. 11223 or the UHC Act

Type	Full Citation	Short Form
	Republic Act No. 11223, otherwise known as the "Universal Health Care Act"	
Presidential Decree	Presidential Decree No. 442, otherwise known as the "Labor Code of the Philippines"	P.D. No. 442 or the Labor Code
Executive Order	Executive Order No. 292, otherwise known as the "Administrative Code of 1987"	E.O. No. 292
Administrative Order	Administrative Order No. 2020-0015 of the Department of Health	A.O. No. 2020-0015

Implementing Rules and Regulations:

- Cite the parent law and the specific provision: "Section 5 of the Implementing Rules and Regulations of R.A. No. 10611"
- IRRs do not have Republic Act numbers of their own. Always identify them by their parent law.

6.18.3 Citing BAAs and Resolutions

Bangsamoro Autonomy Acts:

- Full citation: "Bangsamoro Autonomy Act No. 13, otherwise known as the 'Bangsamoro Administrative Code'"
- Short form: "BAA No. 13" or "the Administrative Code"
- Citing a specific provision: "Section 3, Book II of BAA No. 13"

The BAA citation pattern for different structural units:

Structure	Citation Format	Example
Section only	Section [number] of BAA No. [number]	Section 4 of BAA No. 11
Section within a Book	Section [number], Book [Roman numeral] of BAA No. [number]	Section 3, Book II of BAA No. 13
Section within an Article	Section [number], Article [Roman numeral] of BAA No. [number]	Section 5, Article III of BAA No. 18

Structure	Citation Format	Example
Subsection	Section number of BAA No. [number]	Section 4(b) of BAA No. 11

Resolutions:

- Full citation: "Resolution No. 268 of the Bangsamoro Transition Authority Parliament"
- Short form: "Resolution No. 268"
- Citing a specific provision: "Section 6, Rule XVII of Resolution No. 268"

Note that Resolution No. 268 uses "Rule" instead of "Article" or "Book" as its primary structural unit. When citing its provisions, use "Rule" followed by "Section."

6.18.4 Internal Cross-References

When one section of a bill refers to another section of the same bill:

> *"...as provided in Section 12 of this Act."*

Or:

> *"...subject to the qualifications prescribed in Section 5(a)."*

Rules for internal cross-references:

1. **Be specific.** Do not write "as provided elsewhere in this Act." Cite the exact section.
2. **Use section numbers, not section titles.** Titles may be amended; numbers are more stable. Write "Section 12" not "the section on penalties."
3. **When referencing a subsection, include the section number.** Write "Section 5(a)" not just "(a)."
4. **Minimize cross-references.** Every cross-reference forces the reader to flip to another part of the document. If the substance can be stated directly, state it directly. Use cross-references only when the referenced provision is too long to repeat or when you need to ensure consistency with a provision that may be amended.

5. **Check all cross-references before filing.** If you renumber sections during revision, every cross-reference that pointed to the old number must be updated. This is one of the most common sources of error in legislation.
6. **Use "of this Act" for references within the same bill.** Do not write just "Section 12" — write "Section 12 of this Act" to distinguish it from sections of other laws.

Cross-reference checklist before filing:

- List every internal cross-reference in the bill.
- Verify that the referenced section exists.
- Verify that the referenced section says what you think it says.
- If sections were renumbered during revision, update all references.
- If a referenced section was deleted during revision, update or delete the cross-reference.

6.19 Words and Phrases to Avoid

6.19.1 Archaic Legalisms

Archaic legalisms are words that lawyers have carried forward from centuries of legal tradition. They add no meaning. They make legislation harder to read. Replace them.

Archaic	Modern Equivalent
aforementioned	this; that; the (refer to the specific item by name)
aforesaid	this; that; the
herein	in this Act; in this section
hereof	of this Act; of this section
hereinafter	(use the short form directly)
hereinbefore	(refer to the specific section by number)
hereunder	under this Act; under this section
hereinabove	(refer to the specific section by number)

Archaic	Modern Equivalent
therein	in it; in that section
thereof	of it; of that section
thereto	to it; to that
thereby	by that; as a result
therefrom	from it; from that
therewith	with it; with that
whereas	(acceptable only in resolution preambles)
whereby	under which; by which
wherefore	for that reason (or omit entirely)
whosoever	anyone who; any person who
whatsoever	any; of any kind
howsoever	in any way; however
notwithstanding	despite; even though; regardless of
heretofore	before this; previously; until now
hitherto	until now
forthwith	immediately
inter alia	among others (use the English)
in toto	entirely; in full (use the English)
ipso facto	by that fact; automatically (use the English)
pro forma	as a matter of form (use the English)
ab initio	from the beginning (use the English)
motu proprio	on the Speaker's own initiative (acceptable in Res. 268 context; otherwise use English)

Note: Some Latin phrases — like *ex officio*, *motu proprio*, and *Provided, That* — are so embedded in Philippine legislative tradition that they are standard usage. Use them when they are the established convention, but do not add new Latin phrases when English alternatives exist.

6.19.2 Redundant Doublets

Redundant doublets are pairs of words that mean the same thing. They come from the English legal tradition of pairing a Latin or French word with an Anglo-Saxon synonym to make sure everyone understood. That reason no longer exists. Use one word, not two.

Redundant Doublet	Use Instead
null and void	void
cease and desist	stop; cease
due and payable	due
each and every	each; every
final and conclusive	final
fit and proper	fit; proper
full and complete	complete
made and entered into	made; executed
order and direct	direct
over and above	above; beyond
part and parcel	part
peace and order	peace; public order
perform and discharge	perform
right, title, and interest	interest (or specify which)
rules and regulations	rules (unless “regulations” has a distinct meaning)
save and except	except

Redundant Doublet	Use Instead
sole and exclusive	exclusive
terms and conditions	terms (unless “conditions” has a distinct meaning)
true and correct	true
type and kind	type; kind
unless and until	until
will and testament	will
authorized and empowered	authorized
alter, amend, or modify	amend
give, devise, and bequeath	give
keep and maintain	maintain
acts, laws, decrees, executive orders, rules and regulations	laws (or list only the specific types that apply)

6.19.3 Vague and Ambiguous Terms

Certain words and phrases are so vague that they give the reader no useful information. Avoid them in substantive provisions.

Vague Term	Problem	Alternative
reasonable	What is reasonable to one person is unreasonable to another.	State a specific standard: “within 30 days,” “not exceeding 10%
adequate	What is adequate?	State a specific standard: “sufficient to serve all barangays,” “meeting the stan
appropriate	Who decides what is appropriate?	Name the specific action or delegate the determination to a

Vague Term	Problem	Alternative
as soon as possible	This could mean tomorrow or next year.	State a deadline: “within 15 days.”
substantial	How much is substantial?	State a percentage, amount, or standard.
duly	What does “duly” add to “authorized”? Nothing.	Delete it. Write “authorized” not “duly authorize
proper	Same problem as “appropriate.”	Specify the standard.
necessary	Everything in a law should be necessary.	Delete it or specify what is needed.
from time to time	When?	State a frequency: “quarterly,” “at least once a year,” “as the Mi
sufficient	How much is sufficient?	State the standard.
other purposes	What purposes?	Delete the phrase or list the purposes.
and for other purposes	A traditional long-title closing phrase. Acceptable in long titles by convention. Do not use in substantive provisions.	—
such other functions as may be assigned	By whom? Under what authority?	Limit to: “such other functions as may be assigned by [specific a

Vague Term	Problem	Alternative
in the interest of public welfare	Whose judgment? What standard?	Name the specific interest: “to prevent the spread of commun

Problem phrases that appear in Bangsamoro bills and resolutions:

Beyond the general vague terms above, certain phrases recur in BARMM legislation that you should watch for:

Phrase	Problem	Better Alternative
“the Bangsamoro Government shall ensure” (without specifying which body)	No accountable body	Name the specific ministry or office
“in coordination with relevant agencies”	Which agencies?	“in coordination with the Ministry of Health and the Ministry of the Interior ar
“as may be necessary”	Who decides what is necessary?	State the standard or delegate the determination to a named body
“the Ministry shall take appropriate action”	What action?	“the Ministry shall issue a compliance order” or “the Ministry shall fil
“subject to existing laws, rules and regulations”	Which laws? This adds nothing — all government action is already subject to existing law	Delete the phrase, or cite the specific laws that apply
	This creates no obligation.	State the actual obligation: “shall be included in the evaluation

Phrase	Problem	Better Alternative
"shall be given due consideration"	Due consideration of what? By whom? To what standard?	

When traditional phrases are acceptable. Some phrases that are vague in ordinary language have acquired specific legal meaning through long use. "For other purposes" in a long title is one example — Philippine courts have accepted it as a standard closing. "Provided, That" is another — it introduces a condition or exception. These are conventions. You do not need to replace them. But you should not extend the convention by inventing new vague phrases and hoping they will be understood.

6.20 Numbers, Dates, and Amounts

Numbers. Spell out numbers one through nine. Use figures for 10 and above. But in legislation, the convention is to state both — the written number first, followed by the figure in parentheses:

> *...within thirty (30) days...*
>
> *...not fewer than five (5) members...*
>
> *...a term of three (3) years...*

This dual-expression convention exists because a typographical error in either the word or the figure can be caught by comparing the two. Follow it consistently.

Percentages. Write the number followed by "percent" spelled out, with the figure in parentheses:

> *...at least fifty percent (50%) of all members...*

Do not use the % symbol alone without the spelled-out form in the text of a bill.

Money amounts. State the amount in words followed by the figure in parentheses, preceded by the currency:

> *...a fine of not less than ten thousand pesos (PhP 10,000.00) and not more than fifty thousand pesos (PhP 50,000.00)...*

Use "PhP" for Philippine pesos. Include centavos (.00) for exact amounts.

Dates. In the text of a bill, spell out the month and use figures for the day and year:

> *...on or before December 31, 2028...*

Do not use all-numeric date formats (12/31/2028 or 31-12-2028) in the text of a bill. They are ambiguous.

In the adoption line of a resolution, the BTA convention includes both the Islamic calendar and Gregorian dates:

> *ADOPTED, Sha'ban 19, 1446/February 18, 2025.*

Age. Express age in years with both forms:

> *...at least twenty-one (21) years of age...*

Ordinal numbers. Express in text with the figure in parentheses:

> *...on the first (1st) day of session...*
>
> *...the third (3rd) regular session...*

6.21 Consistency in Terminology

6.21.1 One Term, One Meaning

This is the golden rule of legislative drafting: use the same word to mean the same thing throughout the bill, and never use the same word to mean two different things.

If “Ministry” refers to the Ministry of Health in the definitions section, do not use “Ministry” elsewhere to refer to the Ministry of Education. If two ministries are involved, define “Ministry of Health” and “Ministry of Education” separately, and use the specific names.

If “license” refers to a business license in Section 10 and a driver’s license in Section 20, the reader will be confused. Use “business license” and “driver’s license” to distinguish them.

Common violations of this rule:

Inconsistency	Problem	Fix
“Office” used for both the Office of the Chief Minister and the office of the licensing board	Which office?	Use the full name each time, or define each separately.
“Fund” used for the general appropriation and for a specific trust fund	Which fund?	Name each fund specifically: “General Fund,” “ECCD Trust Fund
“Report” used for the annual report, the quarterly report, and the investigative report	Which report?	Qualify each: “annual report,” “quarterly status report,” “investigation r
“Committee” used for a committee of the Parliament and a committee created by the bill	Which committee?	Use the specific name: “Committee on Education,” “Regional ECCD Coordinati

6.21.2 Aligning with BOL and Existing BAA Terminology

When your bill refers to concepts, bodies, or structures established by the BOL or by existing BAAs, use the same terminology they use. Do not invent new names for things that already have official names.

Key terminological alignments:

Correct (BOL/BAA Term)	Incorrect (Invented Alternatives)
Bangsamoro Autonomous Region in Muslim Mindanao	Bangsamoro Region; Bangsamoro Homeland; the Region (unless previously defined)
Chief Minister	Regional Governor; Head of the Bangsamoro Government
Bangsamoro Parliament	BTA Legislature; Regional Assembly; Bangsamoro Congress
Bangsamoro Autonomy Act	Bangsamoro Act; Regional Law; BTA Legislation
Ministry (for Bangsamoro government bodies)	Department (which refers to national agencies)
Minister (for heads of Bangsamoro ministries)	Secretary (which refers to heads of national departments)
Member of the Parliament (MP)	Congressman; Representative; Assemblyman
Local Government Unit (LGU)	Local Government
Implementing Rules and Regulations (IRR)	Implementing Guidelines (unless you mean something different from IRR)

This alignment matters because the BOL and existing BAAs use specific terms with specific legal meanings. If you use different terms, a reader — or a court — may conclude that you meant something different.

Example of misalignment:

A bill that refers to the “Secretary of Health” when the BARMM has a “Minister of Health” creates confusion. Does the bill refer to the national Department of Health secretary or the regional Ministry of Health minister? In the BARMM context, the correct term is “Minister of Health.” Use it.

When in doubt, check:

1. The BOL (R.A. No. 11054) — for the names of Bangsamoro government bodies, the powers of the Parliament, and the structure of the autonomous region.
2. BAA No. 13 (Administrative Code) — for the organizational structure and names of ministries and offices.
3. The specific BAA that covers the subject matter — for terms and definitions already established in that area of law.

If a BAA has already defined "child development center" in a specific way, your bill should either use the same definition or explicitly state that it is using a different definition and why.

Summary of Key Rules

This chapter covered many rules. Here are the ones to remember every time you sit down to draft:

1. **Write for the reader who must act on the law.** The implementer and the citizen, not the drafter, are the primary audience.
2. **One idea per sentence.** Break long sentences into shorter ones.
3. **Use active voice.** Name the actor. "The Minister shall" not "It shall be."
4. **"Shall" means mandatory. "May" means discretionary.** Do not confuse them.
5. **One term, one meaning.** Never use the same word for two different things.
6. **Define only what needs defining.** Use "means" for closed definitions, "includes" for open ones.
7. **Every duty needs a responsible body.** Every prohibition needs a consequence.
8. **Cite precisely.** Section first, then Article. Verify every citation.
9. **Use lists for multiple items.** "And" for all required, "or" for any one sufficient.
10. **Align with BOL and BAA terminology.** Do not invent new names for established concepts.
11. **Cut every unnecessary word.** If a word adds no meaning, delete it.
12. **Check every cross-reference.** If you renumber sections, update every reference.

Quick Reference Tables

The tables below collect the key rules from this chapter in one place. Print them or keep them accessible as you draft.

Modal Verbs

Word	Meaning	Example
shall	Mandatory obligation	The Minister **shall** submit a report.
shall not	Mandatory prohibition	No member **shall** hold another office.
may	Permission or discretion	The Commission **may** hire consultants.
may not	Absence of permission	The licensee **may not** transfer the license.
must	Prerequisite or condition	The applicant **must** be a Filipino citizen.
is/are	Statement of fact or definition	The BARMM **is** composed of five provinces.

Common Word Replacements

Instead of	Write
prior to	before
subsequent to	after
in the event that	if
at such time as	when
for the purpose of	to
with respect to	about; regarding; on
in accordance with	under
by reason of	because

Instead of	Write
on the part of	by
is authorized and empowered to	may
it shall be the duty of X to	X shall
there is hereby created	this Act creates
in the amount of	for; of
during the period of	during

Formatting Quick Reference

Element	Format
Section heading	**Section 1.** *Short Title.* —
Subsection	(a), (b), (c) — lowercase letters in parentheses
Sub-subsection	(1), (2), (3) — Arabic numerals in parentheses
Numbers in text	Spelled out followed by figure: thirty (30) days
Money	Spelled out with figure: ten thousand pesos (PhP 10,000.00)
Percentages	Spelled out with figure: fifty percent (50%)
Dates	Spelled month, numeric day and year: December 31, 2028
Em dash	— (not - or –)
Proviso	*Provided*, That (italicized “Provided,” capitalized “That”)
Serial comma	Always use: “A, B, and C”
List connectors	“and” = all required; “or” = any one sufficient

Citation Quick Reference

Source	First Reference	Short Form
BOL	Republic Act No. 11054, otherwise known as the "Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"	the BOL; R.A. No. 11054
Constitution	the 1987 Constitution of the Philippines	the Constitution
Republic Act	Republic Act No. [number], otherwise known as the "[name]"	R.A. No. [number]; the [short name]
BAA	Bangsamoro Autonomy Act No. [number], otherwise known as the "[name]"	BAA No. [number]; the [short name]
Resolution	Resolution No. [number] of the Bangsamoro Transition Authority Parliament	Resolution No. [number]
Specific provision	Section [number], Article [Roman numeral] of [source]	Section [number] of this Act (for internal references)

Keep this chapter open as you draft. Refer to it when you are unsure about a word choice, a sentence structure, or a formatting question. Over time, these rules will become second nature. Until then, check and double-check.

Back to Table of Contents

Chapter 7: How a Bill Becomes a Bangsamoro Autonomy Act

A bill is just words on paper until it survives the legislative process. Drafting matters, but so does knowing the path your bill must travel from the moment it is filed until it is signed into law. The Bangsamoro Parliament follows a structured, multi-stage process governed by Resolution No. 268 — the Rules, Procedures, and Practices of the Bangsamoro Transition Authority Parliament. If you do not understand these stages, you cannot draft effectively. You will write provisions that get stripped in committee, frame arguments that miss the window for debate, or produce a bill that stalls because you failed to anticipate a procedural gate.

This chapter walks you through every stage of that process. It is written for the drafter — the person whose work begins before First Reading and whose attention should not end until the bill is enrolled and signed. At each stage, you will learn what happens procedurally, what the Rules require, and what that means for how you prepare your bill.

7.1 Types of Legislative Measures

Before understanding how a bill moves through Parliament, you need to understand what kinds of measures Parliament considers. Not every document that reaches the plenary floor is a bill, and the type of measure determines the procedure it follows.

7.1.1 Government Bills

A Government bill is a legislative initiative submitted by the Government of the Day — meaning the Chief Minister and the Cabinet — for Parliament's approval or amendment. Resolution No. 268, Rule XVII, Section 2(a) defines it this way:

> **Government Bill.** — Government bill refers to a legislative initiative that the Government of the Day submits to Parliament for approval or amendment.

Government bills carry a built-in advantage: they take precedence over Private Member bills. This is not merely a matter of courtesy. Rule XVII, Section 2(b) states plainly that "Government bills shall have precedence over Private Member bills without prejudice to consolidation." In practice, this means Government bills tend to move through the calendar faster and receive priority scheduling.

A Government bill can originate within a committee. If Members of a committee — statutory, parliamentary, special, ad hoc, or otherwise — discover through their meetings, hearings, or investigations that a new law is needed, they may first persuade the relevant Cabinet Minister to draft the bill. If the Chief Minister and Cabinet approve it, the measure enters Parliament as a Government bill. This pathway matters for drafters because it means a bill that starts as a committee initiative can be reframed as a Government bill if the executive branch adopts it, gaining the procedural advantages that come with that classification.

As a drafter working on a Government bill, you are typically working under the direction of a ministry or the Office of the Chief Minister. Your bill reflects government policy. This means your explanatory statement should connect the bill to the Government of the Day's legislative agenda and the Bangsamoro Development Plan.

7.1.2 Private Member Bills

A Private Member bill is introduced by a Member of Parliament who is not a Minister. Any Member who does not hold a Cabinet position may file a bill on any subject within Parliament's legislative competence.

> **Private Member Bill.** — A Private Member bill refers to a legislative initiative introduced by a Member of the Parliament who is not a Minister for approval or amendment.

While Private Member bills do not enjoy the scheduling priority of Government bills, they are not second-class legislation. Once referred to committee, a Private Member bill receives the same scrutiny and follows the same stages as any Government bill. Many significant laws in parliamentary systems worldwide have originated as Private Member bills.

One practical detail: at First Reading, the Speaker declares whether a bill is a Government bill or a Private Member bill. If you are filing a Private Member bill, the author may propose the inclusion of additional co-authors by making the appropriate request to the Majority Floor Leader. Building co-authorship early strengthens the bill's chances — it signals broader support before the bill even reaches committee.

7.1.3 Resolutions

A resolution expresses the sentiment or opinion of Parliament. It does not create or modify a law. Rule XVII, Section 4 is direct:

> **Resolution.** — A resolution is a document expressing the sentiment or opinion of the Parliament. It does not create or modify a law.

Parliament recognizes three types of resolutions:

1. **Simple Resolution** — Used for internal procedural actions, urgent matters requiring immediate parliamentary action, or expressions of opinion, sympathy, or commendation.
2. **Concurrent Resolution** — Issued concurrently by both the Bangsamoro Cabinet and Parliament, expressing their shared sentiments on certain matters.
3. **Joint Committee Resolution** — A resolution from two or more committees expressing the will or action of their Members on certain matters. Requires a majority vote of all committees concerned.

The critical distinction for drafters: simple and concurrent resolutions are not subject to the ordinary stages of legislation. Rule XVII, Section 6 exempts them:

> Simple and concurrent resolutions shall not be subject to the ordinary procedure as prescribed in the Stages of Legislation herein provided. The Parliament or the Committees concerned in a plenary session shall promptly act on these matters.

This means if you are drafting a resolution — say, a resolution urging the national government to act on a Bangsamoro concern, or a resolution expressing Parliament's position on a regional issue — your document will not go through the First Reading, Second Reading, Committee Stage, and Third Reading process described in this chapter. It will be acted upon promptly.

7.1.4 Other Measures

Two additional categories deserve mention.

Popular Initiative. Republic Act No. 11054, the Bangsamoro Organic Law, provides for participatory democracy. A Popular Initiative is a process whereby a bill is proposed directly by the people. Rule XVII, Section 2(c) references BAA No. 13 in defining it and notes that Parliament shall regulate the submission of Popular Initiative bills through guidelines that may form part of the Rules. This mechanism is not commonly invoked, but it exists in

the Bangsamoro legal framework. If you are ever asked to draft implementing guidelines for a Popular Initiative bill, you need to understand both the organic law provisions and any future parliamentary guidelines on the subject.

Committee-Initiated Bills. While not a formal classification separate from Government or Private Member bills, committee-initiated measures deserve attention. Committees that discover the need for new legislation during their hearings and investigations may persuade a Cabinet Minister to draft and adopt the bill, converting it into a Government bill. Alternatively, a committee member who is not a Minister may choose to file it as a Private Member bill. The origin point matters because it affects classification, precedence, and the political dynamics around the bill.

7.2 First Reading

First Reading is the formal introduction of a bill to Parliament. It is brief, procedural, and largely ceremonial — but it marks the official beginning of the bill's legislative life.

7.2.1 Reading of Number, Title, and Author

Before a bill reaches First Reading, it must be properly filed. Rule XVII, Section 9 sets out the filing requirements:

> Bills and resolutions shall be signed by their author(s) and together with an electronic copy thereof, filed with the Secretary-General, who shall assign a number to each bill or resolution. The Secretary-General shall not receive a bill or resolution unless it is accompanied by an electronic copy thereof. In case of any discrepancy between the printed and the electronic copies of the bill or resolution, the printed copy shall prevail. The bill or resolution shall then be forwarded to the Office of the Speaker.

Once filed and numbered, the bill is included in the Order of Business under "Reference of Business: Bills on First Reading" — item (g)(1) under Rule VIII, Section 1.

At First Reading, the Secretary-General reports the bill to Parliament. The process involves only three things: the reading of the bill's number, its title, and the name of its author or authors. No debate occurs. No speeches are delivered. No committee referral happens yet.

Rule XVIII, Section 2(a) states:

> **First Reading.** — The Secretary-General shall report all bills and resolutions to the Parliament for First Reading. The First Reading shall involve only the reading of the number, title, and author of the bill or resolution, followed by a declaration of the Speaker whether the bill is a Government bill or a Private Member bill.

This is why your title matters so much. At First Reading, the title is all that Parliament hears. A title that is vague, misleading, or overly technical fails at its first public test. A title that is clear and purposeful — one that "spells out the purpose of the bill in general terms and must accurately reflect its contents," as Rule XVII, Section 7(c) requires — gives Parliament a sharp first impression.

7.2.2 Declaration as Government or Private Member Bill

Immediately after the reading of number, title, and author, the Speaker makes a declaration: is this a Government bill or a Private Member bill? This classification, as explained in Section 7.1, carries real consequences for scheduling priority.

If the bill is a Private Member bill, this is also the moment when the author may propose adding co-authors. The request goes to the Majority Floor Leader. While this may seem like a housekeeping detail, building a broader base of authorship at this early stage signals coalition support and can influence how seriously the bill is treated going forward.

After the Speaker's declaration, First Reading is complete. The bill now awaits Second Reading.

7.3 Second Reading

Second Reading is where the bill begins to receive substantive attention. It is the transition from filing to active legislative engagement. Three things happen at this stage: the bill is read in full (or deemed read), the author delivers the authorship speech, and the bill is referred to the appropriate committee.

7.3.1 Reading of the Bill

At Second Reading, the bill is read in full — unless copies have already been distributed to Members. Rule XVIII, Section 2(b) provides:

> A bill or resolution on Second Reading shall be read in full unless copies thereof have been distributed to the Members.

In practice, bills are almost always distributed in advance. The reading-in-full requirement is waived when Members already have the text. But the rule exists as a safeguard: no bill should move forward if Members have not had the opportunity to review its contents.

This is another reason why clear, well-organized drafting matters. When Members receive printed copies of your bill, the structure you chose — how you organized the articles, how you numbered the sections, whether your provisions read logically — determines whether they can follow the bill on first encounter. Members who struggle to parse a badly organized bill are more likely to resist it or raise unnecessary objections.

7.3.2 Authorship Speech

After the bill is read (or deemed read), the proponent delivers the authorship speech. This is the explanatory statement — the argument for why the bill exists and why Parliament should act on it.

The authorship speech is not a formality. It is the author's first and often most influential opportunity to frame the bill's purpose, explain the problem it addresses, and persuade colleagues that the bill deserves committee attention and ultimately passage. While the explanatory statement filed with the bill provides the written foundation, the authorship speech delivered on the floor is where the author makes the case in person.

As a drafter, you are likely the one preparing the explanatory statement that forms the backbone of this speech. Write it with the understanding that it will be delivered aloud before the full Parliament. It should be persuasive but grounded in fact. It should connect the bill to real problems in the Bangsamoro, cite relevant data or constitutional authority, and explain what the bill does in plain terms.

7.3.3 Referral to the Appropriate Committee

After the authorship speech, the bill is referred to the appropriate committee by the Majority Floor Leader. This is the gateway to the Committee Stage.

> Thereafter, the bill shall be referred to the appropriate committee by the Majority Floor Leader.

The referral is based on the bill's subject matter and the jurisdictions of Parliament's committees as defined in Rule XII. A bill on education goes to the Committee on Basic, Higher, and Technical Education. A bill on natural resources goes to the Committee on Environment, Natural Resources, and Energy. A bill establishing new courts or justice mechanisms goes to the Committee on Bangsamoro Justice System.

Sometimes the correct committee is not obvious, or a bill touches on the jurisdiction of multiple committees. Rule XVIII, Section 2(b) provides a mechanism for this:

> The Chairperson of a Committee to which a bill or resolution is referred may make a written request to the Committee on Rules for a change of referral of such bill or resolution, citing the grounds therefor. The Committee on Rules shall decide on the request within five (5) days from receipt thereof.

For you as a drafter, committee referral has practical consequences. The committee that receives your bill will scrutinize it line by line. If you know which committee will handle your bill — and you usually can predict this from the subject matter — you should understand that committee's priorities, its recent work, and the concerns of its chair. A bill drafted with awareness of the receiving committee's perspective has a smoother path through the Committee Stage.

The Speaker also has the duty to refer bills and resolutions to appropriate committees, as stated in Rule XVII, Section 10:

> The Speaker shall have the duty to refer the Government bills, Private Member bills or resolutions to the appropriate committees.

7.4 Committee Stage

The Committee Stage is where the real legislative work happens. If First Reading is the introduction and Second Reading is the presentation, the Committee Stage is the surgery. The committee examines the bill provision by provision, tests its assumptions, hears from experts, proposes amendments, and produces a report that tells Parliament whether the bill should proceed, and in what form.

Rule XVIII, Section 2(c) describes this stage:

> **Committee Stage.** — At this stage, the concerned committee shall examine, scrutinize and deliberate in detail and line by line the legislative proposal. It may consult, invite, and solicit opinions from experts, relevant ministries and offices, the public and other interested parties.
>
> The committee concerned may propose amendments or revisions to the proposal, and if there are no changes made, the bill is deemed submitted to the next stage. The Committee shall then render a report on the bill to the plenary.

7.4.1 Examination and Scrutiny

Line-by-line scrutiny is the heart of the Committee Stage. Each provision of your bill will be examined for its purpose, its legal soundness, its practical implications, and its consistency with existing law — particularly the Bangsamoro Organic Law.

Committees have broad power over the bills referred to them. Rule XII, Section 18 gives committees the power to adopt, amend, revise, or reject a bill entirely:

> A Committee shall have the power to adopt, amend, revise, or reject the Government bill or Private Member bill referred to it.

That last word — reject — is important. A committee can kill a bill. If the committee concludes that the bill is unnecessary, unconstitutional, poorly drafted, or politically unviable, it can decline to report it favorably. In practice, a bill that the committee declines to advance is effectively dead unless the Parliament intervenes through procedural means.

Committees meet during specific times. Rule XIII, Section 1 sets the schedule:

> The meetings, hearings, and consultations of the Committees and Sub-Committees are held in the mornings of Tuesday, Wednesday, and Thursday in the Executive Lounge of the Parliament building during the regular session of the Parliament, without prejudice to holding it, whenever necessary, on days and in venues outside of those herein mentioned.

Quorum for committee meetings is different from plenary quorum. Rule VII, Section 4(b) provides:

> **Quorum for Committee Meetings.** — Thirty percent (30%) of the Members of the Committee in meetings shall constitute a quorum.
>
> The presence of the Chairperson or any Member designated as Presiding Officer during a Committee Public Hearing or Consultation shall be sufficient to conduct business.

The lower quorum threshold for committees — 30% compared to 50% plus one for plenary — means committee work can proceed even when not all members attend. But it also means that a small number of engaged committee members can shape your bill significantly.

As a drafter, you should anticipate that the Committee Stage will test every element of your bill. Definitions will be questioned. Penalty provisions will be debated. Funding mechanisms will be challenged. Transitional provisions will be scrutinized for gaps. The better your bill is drafted — with clear definitions, justified penalty scales, realistic appropriations, and thorough transitional provisions — the smoother the Committee Stage will be.

7.4.2 Committee Hearings, Consultations, and Investigations

Committees do not operate in isolation. They are empowered — and expected — to seek outside input. Rule XIII, Section 1 provides:

> The Committees and Sub-Committees may organize public hearings and consultations for the purpose of obtaining more information and facts and a wider view on any prospective legislative measures from experts, stakeholders, and the public at large. These hearings and consultations are open to the general public.

The committee may also conduct research visits and on-site investigations. This is not window dressing. Committee members who visit affected communities, inspect existing programs, or witness conditions firsthand bring a level of understanding that written submissions cannot fully convey.

Committees can invite and consult experts and resource persons under Rule XIV, Section 4:

> The committee may invite and consult experts and resource persons having expertise or knowledge in a particular field in order to gather more facts, knowledge and information that will help form the conclusion to the matter under consideration.

Members of the Cabinet may also appear before committees, either voluntarily or upon request. Rule XIV, Section 1 states:

> The Chief Minister, or his/her duly authorized Members of the Cabinet, or any high ranking official of the Government, may attend any committee meetings or hearings, if he/she deems it necessary.

And committees have enforcement power. If a witness refuses to appear or produce documents, committees can issue subpoenas — subpoena ad testificandum (to compel testimony) and subpoena duces tecum (to compel documents). These must be signed by the Committee Chairperson (or Vice-Chairperson in the Chair's absence) and approved by the Speaker. Rule XV, Section 1 provides:

> The Parliamentary committees shall have the power to conduct inquiry in aid of legislation including the power to summon witnesses and take their testimony, and to issue subpoena and subpoena duces tecum, signed by the Chairperson of the Committee or in his/her absence by the Vice-Chairperson, and approved by the Speaker of the Parliament.

Committees also possess contempt power. A witness who defies a subpoena, refuses to be sworn, refuses to testify, or testifies falsely can be cited for contempt and detained under the custody of the Sergeant-at-Arms until they comply. Rule XVI, Sections 2 through 4 lay out these powers in detail.

For the drafter, committee hearings serve a dual purpose. They test the bill's assumptions against real-world input, and they build the legislative record that will justify the bill's provisions. If your bill creates a new regulatory framework, the committee hearings are where affected stakeholders will raise practical concerns — and where you may be called upon to explain or defend specific drafting choices.

7.4.3 Committee Amendments

After examining the bill and hearing from stakeholders, the committee may propose amendments or revisions. These committee amendments can be substantial. The committee can add provisions, delete provisions, rewrite entire sections, or restructure the bill. Rule XII, Section 18 grants committees the power to "adopt, amend, revise, or reject" any bill referred to them.

If the committee makes no changes, the bill as filed is deemed submitted to the next stage. But that is rare. Most bills emerge from committee in amended form, sometimes dramatically different from the version that was filed.

Committee amendments are later presented to the plenary during the Consideration and Deliberation Stage, where they must be debated and voted upon. This is an important distinction. Committee amendments are proposals, not fait accompli. The full Parliament must still approve them.

Rule XVII, Section 15 distinguishes between committee amendments and floor amendments:

> **Committee Amendment.** — Committee amendment refers to any alteration or changes by addition, deletion, substitution, or any amendment to a bill offered by the concerned committee.

7.4.4 The Committee Report

The committee's work culminates in a committee report. This is a formal document that captures the committee's deliberations, the views expressed, and the committee's recommendations. Rule XII, Section 16 sets out the requirements:

> Committees are required to prepare and submit a committee report which contains the discussions and the views expressed by the individual Members and all the invited resource persons and experts on the bill or resolution under its consideration as well as the amendments introduced and their justifications.
>
> The Members who participated in the final voting must sign the report, either in favor, with reservation, or dissenting.

The signing requirement is significant. Members who sign in favor endorse the committee's recommendation. Those who sign with reservation retain the right to raise specific objections at the plenary stage. Those who dissent record their opposition. Rule XII, Section 17 further provides:

> The Members of the Committee who do not support any legislative proposal adopted by a committee, may submit a reservation in which a Member may state his/her reason and/or what he/she thought should be done. The reservation shall be included in the committee report.

And there is an important constraint on committee members who signed the report without objection:

> Any Member who has signed the committee report cannot ask questions or make a statement contrary to the report, except about the points in the committee report he/she has objected to, abstained, and signed with reservation.

This rule prevents committee members from undermining their own committee's work on the floor — unless they formally reserved their position during the committee process.

The committee report is then printed, distributed, and forwarded to the Office of the Secretary-General. It must also be made available to the public in writing or electronic form.

For the drafter, the committee report is the bridge between your original bill and its plenary debate. The report tells Parliament what the committee found, what it changed, and why. If you drafted the bill well and the committee approved it with minimal amendments, the report will reflect that. If the committee made significant changes, the report explains the rationale — and the amended text becomes the version that Parliament debates.

7.5 Consideration and Deliberation Stage

Once the committee reports the bill to the plenary, it enters the Consideration and Deliberation Stage. This is the most dynamic phase of the legislative process — the stage where the full Parliament debates the bill, questions its provisions, proposes further amendments, and votes on whether to approve it on second reading.

Rule XVIII, Section 2(d) frames this stage:

> **Consideration and Deliberation Stage.** — The Members of the Parliament shall deliberate and debate the committee report, including proposed amendments, if there are any, in the plenary session, except when the proponent has already agreed to adopt the committee amendments.

This stage unfolds in a defined sequence: debate, interpellation, amendments, and voting.

7.5.1 Period of Debate

The Order of Business under Rule VIII, Section 1 lists the components of Second Reading consideration:

> (h) Bills on Second Reading: (1) Committee Reports on Bills; (2) Period of Interpellations; (3) Period of Amendments; and (4) Approval of Second Reading.

The debate begins when the committee report on the bill is taken up in plenary. The sponsor of the committee report — usually the committee chairperson — presents the report and its recommendations.

Debate follows a structured format. Rule XIX, Section 11(a) establishes the alternating-turns principle:

> If a debate ensues, turns for and against the bill shall be taken alternately: *Provided, however*, That any Committee Member who fails to enter his/her objection or to make of record his/her dissenting vote in the committee level, shall not be allowed to speak against the bill during the period of debate, although he/she may propose and speak or vote on amendments thereto.

This alternating format — speakers for the bill followed by speakers against, then for, then against — ensures that debate is balanced. It also creates a consequence for committee members who did not voice objections during the Committee Stage: they are barred from speaking against the bill on the floor, though they may still propose and vote on amendments.

Individual Members cannot speak indefinitely. Rule XIX, Section 6 sets a time limit:

> A Member shall not be allowed to speak for more than one (1) hour in debate on any question. However, the sponsor of any measure may consume as much time as he deems necessary to express the contents and purposes of the bill.

The sponsor enjoys unlimited speaking time. All other Members are capped at one hour per question. And under Rule XIX, Section 5, no Member may speak more than once on the same question during the same day, unless the Parliament grants leave by majority vote — and only after all other Members who wish to speak have spoken.

The Speaker must remain impartial during debate. Rule XIX, Section 10:

> The Speaker shall remain impartial during debate and deliberation of bills and resolutions in the plenary. When he/she desires to engage in debate on the merits of a bill or resolution under consideration with Members of the Parliament, he/she shall relinquish the chair, and the Deputy Speaker shall temporarily act as the presiding officer.

Debate closes when the sponsor makes a final statement (after all Members who wish to speak have spoken), when the Speaker declares the debate closed upon a duly seconded motion, or when no further speakers seek recognition.

7.5.2 Period of Interpellation

Interpellation is the questioning phase. Members registered on the list of interpellators may question the sponsor of the bill about its provisions, intent, and implications. The Majority Floor Leader maintains the list and determines the order of recognition.

Rule XIX, Section 3 governs the process:

> The Majority Floor Leader shall maintain a list of interpellators that serves as the guide in the order to be recognized in the discussion of the measure under consideration. Unless interrupted by procedural motions, the session proceeds with the list. In order to be registered in the list of interpellators, a Member shall register in writing to the Secretary-General which list shall be submitted to the Majority Floor Leader for the recognition of the interpellator.

The Secretary-General assists the Majority Floor Leader in maintaining this list, as provided in Rule V, Section 1(m):

> The Secretary-General shall assist the Majority Floor Leader in maintaining the list of interpellators which shall serve as guide during the interpellation period on a particular bill or resolution.

Interpellation is a test of the bill's substance. Members ask probing questions — about the bill's scope, its financial implications, its legal basis, its intended and unintended consequences. The answers given by the sponsor become part of the legislative record and can shape how provisions are later interpreted.

As the drafter, you may be called upon to prepare the sponsor for interpellation. This means anticipating the questions that Members will ask and preparing clear, defensible answers. If a provision is ambiguous, interpellation will expose it. If the bill's fiscal impact is unclear, interpellation will probe it. Think of interpellation as the stress test your bill faces in public.

7.5.3 Period of Floor Amendments

After debate and interpellation, the bill enters the period of amendments. This is where the text of the bill — as reported by the committee — can be further altered on the floor.

Rule XIX, Section 11(c) sets the sequence:

> With the debate closed, the consideration of amendments, if any, shall be in order.
>
> At this stage, a Committee Amendment followed by individual and Floor Amendment shall be observed.
>
> (1) Committee Amendment. (2) Individual or Floor Amendment. (3) After the period of amendments, the voting of the bill on Second Reading.

Committee amendments are taken up first. These are the changes proposed by the committee in its report. If the proponent (the sponsor presenting the committee report) has already agreed to adopt the committee amendments, they may be considered adopted without extensive debate. But if the proponent does not accept the committee amendments, the period of amendment continues.

Rule XVIII, Section 2(d) elaborates:

> If the proponent of the committee report does not accept the amendments, the period of amendment continues, and he/she can propose his/her own amendments. This is called the Committee Amendments which refer to the alterations, modifications, and changes made or proposed to be made to the bill that is offered by the proponent.
>
> Individual Members can also propose an amendment. This is called individual or Floor Amendments, which refers to any alteration, modification, and change made or proposed to be made to the bill by other Members of the Parliament.
>
> Both the committee amendments and individual or floor amendments shall be debated and voted upon.

Floor amendments must be presented concretely. Rule XVII, Section 12 requires:

> All bills and resolutions shall be subject to amendments; but in order that the amendments may be considered, they should be presented concretely and specifically in the course of the debate, indicating therein the page and the line in which the amendments are proposed to be made. The proponent may be required to present the amendment in writing in order to expedite the proceeding.

No amendment by substitution is entertained unless the text is submitted in writing. And no amendment may introduce a provision not germane to the bill's purpose — the prohibition against riders under Rule XVII, Section 13:

> A bill shall only have one (1) subject matter, and an amendment which seeks the inclusion of a provision not germane to the purpose of a bill (rider) shall not be allowed.

Similarly, a bill cannot be amended by substituting it with another bill covering a distinct subject, per Rule XVII, Section 14.

For the drafter, the period of floor amendments is where your bill's structure proves its worth. A well-organized bill — with clearly numbered sections, logical groupings, and consistent internal references — makes it easy for Members to propose targeted amendments. A poorly structured bill invites confusion, conflicting amendments, and delays.

7.5.4 Voting on Second Reading

After all amendments have been debated and resolved, the bill is put to a vote on second reading. This is the fourth component of the Second Reading process in the Order of Business: "Approval of Second Reading."

Approval on second reading requires a majority of the votes cast, provided a quorum exists. Rule XXI, Section 12 states the general voting rule:

> If the Parliament has established a quorum, the votes required to approve a motion is the majority of the votes cast provided that a motion to suppress or limit debate, to prevent the consideration of a question, and without due notice to rescind action previously taken, require a two-thirds (2/3) vote of all Members present.

If the bill is approved on second reading, it advances to Third Reading. If it is rejected, the bill is effectively defeated — though procedural motions for reconsideration remain theoretically available.

Approval on second reading is a significant milestone. It means that Parliament, having heard the committee report, debated the bill, subjected it to interpellation, and resolved all amendments, has approved the bill in substance. What remains is the final vote.

7.6 Third Reading and Final Passage

Third Reading — also called the Final Stage — is the last legislative hurdle before a bill is deemed passed by Parliament. The bill's text is now fixed. No further amendments are allowed. What remains is a final debate on whether to pass the bill, and a decisive vote.

Rule XVIII, Section 2(e) governs this stage:

> **Third Reading or Final Stage.** — During the third reading or final stage, there shall be a final debate on whether or not to pass the bill. No amendment can be considered at this time. The proponent of the bill or author of the motion shall have the right to close the debate.

7.6.1 Final Debate

The Third Reading debate is not about specific provisions — those were settled during the Consideration and Deliberation Stage. It is about the bill as a whole. Should Parliament enact this law? Does it serve the interests of the Bangsamoro? Is it consistent with the Organic Law? Members speak for or against passage.

The sponsor has the right to close the debate with a final statement. This closing speech is the last word before the vote, and it carries rhetorical weight.

There is a critical procedural prerequisite for Third Reading. Printed copies of the bill in its final form must be distributed to Members at least three days before voting. Rule XVIII, Section 2(e) and Rule XIX, Section 12 both require this:

> During the voting, the Majority Floor Leader shall only read the title of the bill, provided that printed copies of the bill shall have been distributed to the Members of the Parliament at least three (3) days before voting ensues.

This three-day distribution requirement ensures that Members have time to review the final text — including all amendments adopted at the Consideration and Deliberation Stage — before casting their votes. It is a safeguard against Members voting on a bill they have not read.

There is one exception: certified or emergency bills. If the Chief Minister certifies the necessity of immediate enactment to respond to a public calamity or emergency, the three-day requirement is waived and voting can occur the same day the bill is approved on second reading.

7.6.2 Voting and Passage

At Third Reading, the Majority Floor Leader reads only the title of the bill. Then the Speaker calls for the vote.

> The Speaker shall ask for a roll call vote by show of hands or by standing or sitting provided that any Member who wishes to abstain shall verbally manifest his abstention, without the need of explanation.

Members may make brief statements explaining their vote before the vote is taken. Rule XIX, Section 13 allows:

> During the final voting stage, Members of the Parliament may make a verbal statement on the final vote lasting not more than five (5) minutes or submit a short-written statement, which shall be included in the minutes of plenary proceedings. As a rule, the Speaker shall give Members leave to make a statement before the vote is taken.

Any Member may also declare before the vote that they will not participate.

A bill passes Third Reading by a majority of the votes cast, with a quorum present. Once passed, the bill has been approved by Parliament and moves to the post-passage process.

7.7 Post-Passage: Enrollment and Executive Action

Passage at Third Reading does not make a bill law. Several steps remain before the bill becomes a Bangsamoro Autonomy Act.

7.7.1 Enrollment and Authentication

After the bill passes Third Reading, the final printed text must be prepared — this is called enrollment. The enrolled bill incorporates all amendments adopted during the legislative process. It is the authoritative, clean text of the bill as approved by Parliament.

The enrolled bill is signed by the Speaker. Rule IV, Section 4(k) includes among the Speaker's duties:

> Sign all acts, resolutions, and bills that may be issued by or upon order of the Parliament.

The Secretary-General certifies and affixes the seal of Parliament on all approved bills, as required by Rule V, Section 1(h):

> Certify and affix the seal of the Parliament on all approved resolutions, bills, orders, and any other acts and legislative measures.

7.7.2 Transmittal to Chief Minister

The authenticated bill is then presented to the Chief Minister for executive action. Rule IV, Section 4(n) provides:

> Present to the Chief Minister every bill before signing into law.

This transmittal is a formal act. It initiates the executive review period during which the Chief Minister decides whether to sign the bill into law, veto it, or allow it to lapse into law through inaction.

7.7.3 Approval, Veto, and Inaction

Rule XVIII, Section 2(f) states:

> **Approval of the Bill.** — After going through the stages herein provided, the printed form of the approved bill shall be signed by the Speaker and the Chief Minister.

When the Chief Minister signs the bill, it becomes a Bangsamoro Autonomy Act.

The bill does not take effect upon signing, however. There is a publication requirement. Rule XVIII, Section 2(g) provides:

> **Effectivity.** — The enacted law shall take effect after fifteen (15) days following its complete publication in at least one (1) newspaper of general circulation within the BARMM.

This means the enacted law must be published in a newspaper of general circulation within the Bangsamoro Region. Only after fifteen days from complete publication does the law take effect — unless the law itself specifies a different effectivity date.

The Organic Law also requires that a certified true copy of all laws and resolutions approved by Parliament be submitted to the President and to the Congress of the Philippines. This duty falls to the Speaker under Rule IV, Section 4(o):

> Submit to the President and to the Congress of the Philippines a certified true copy of all laws and resolutions approved by the Parliament.

Regarding the veto power and the possibility of inaction — the Bangsamoro Organic Law governs these matters. The parliamentary system in the Bangsamoro operates differently from the presidential system at the national level. The Chief Minister, as head of the Government of the Day and a product of the parliamentary majority, is aligned with Parliament in ways that make vetoes less common than in a presidential system. But the constitutional framework preserves executive review as a check on legislation.

7.8 Swift Passage Procedure

Not every bill needs to go through the full committee scrutiny process. Resolution No. 268 provides for an expedited path called the Swift Passage Procedure.

Rule XVIII, Section 4:

> **Swift Passage Procedure.** — The Parliament shall, in exceptional cases, adopt the Swift Passage Procedure which is a speedy disposition of a bill in seven (7) working days that skips the detailed scrutiny and examination period in the Committee Stage provided in Section 2(c), Rule XVIII, of this Rules.
>
> This procedure allows cross-party or free conscience voting.

The Swift Passage Procedure has three defining characteristics:

1. **Speed.** The bill must be disposed of within seven working days. That is an aggressive timeline for any piece of legislation.
2. **Skips committee scrutiny.** The bill bypasses the detailed line-by-line examination that normally occurs at the Committee Stage. This does not mean the bill skips all stages — First Reading and Second Reading still occur — but the committee's role in examining and amending the bill is eliminated or compressed.
3. **Cross-party or free conscience voting.** Unlike ordinary bills where party discipline may apply, the Swift Passage Procedure explicitly allows Members to vote according to their own conscience rather than along party lines.

The Swift Passage Procedure is reserved for "exceptional cases." Resolution No. 268 does not elaborate on what constitutes an exceptional case, leaving that determination to Parliament's discretion. In practice, this procedure might be invoked for bills addressing urgent policy needs that do not rise to the level of a public calamity or emergency (which would trigger the certification process under Section 3 of Rule XVIII) but still require faster-than-normal action.

There is also a separate emergency provision. Rule XVIII, Section 3 addresses bills certified by the Chief Minister in cases of public calamity or emergency:

> No bill shall become a law unless it has passed the stages of legislation except when the Chief Minister certifies to the necessity of its immediate enactment to respond to a public calamity or emergency. For this purpose, the Chief Minister shall immediately forward to the Speaker the certified measure. Within twenty-four (24) hours from receipt of the certification, the Parliament shall act for the immediate passage of an emergency bill.

The emergency certification is more extreme than the Swift Passage Procedure. It allows passage within 24 hours and is the only circumstance where a bill can become law without passing through all the ordinary stages of legislation.

For the drafter, these accelerated procedures have consequences. If your bill may be subject to Swift Passage, it needs to be impeccable at the time of filing — because there will be no extended committee period to refine it. Every definition, every penalty, every operative clause must be right from the start. You will not have the luxury of committee hearings to surface and correct problems.

7.9 The Order of Business

Understanding where your bill appears in the daily agenda tells you when it will be considered and what comes before and after. The Order of Business is the Parliament's daily roadmap. Rule VIII, Section 1 prescribes it in full:

> The daily Order of Business shall be as follows:
>
> (a) Call to Order; (b) Invocation or Prayer; (c) National Anthem; (d) Bangsamoro Hymn; (e) Roll Call; (f) Reading and Approval of Journal of the Previous Session; (g) Reference of Business: (1) Bills on First Reading; and (2) Resolutions, Messages, Memorials and Communications; (h) Bills on Second Reading: (1) Committee Reports on Bills; (2) Period of Interpellations; (3) Period of Amendments; and (4) Approval of Second Reading. (i) Resolutions Referred to the Committee: (1) Committee Reports; (2) Period of Interpellations; (3) Period of Amendments; and (4) Approval. (j) Unfinished Business; (k) Privilege Hour (refer to Rule IX); (l) Question Hour (refer to Rule XI); and (m) Bills on Third Reading.

Several features of this order deserve attention.

Bills on First Reading appear under Reference of Business. This is item (g)(1). All new bills enter Parliament's awareness at this point. The fact that First Reading is grouped under "Reference of Business" reflects its purely procedural nature — it is a matter of recording and referral, not deliberation.

Bills on Second Reading come after. Item (h) is where the substantive legislative work occurs during plenary. The committee report is presented, interpellation happens, amendments are proposed, and the vote on second reading is taken.

Third Reading comes last. Item (m) places Bills on Third Reading at the end of the Order of Business. This is significant. Third Reading votes happen after all other business has been addressed. Members have already been through the day's debates, questions, and privilege speeches before they vote on final passage. A bill that reaches Third Reading on a day when the preceding agenda has been contentious or exhausting may face a different voting environment than one considered on a calmer day.

Unfinished Business has its own slot. Item (j) ensures that matters left incomplete from previous sessions are taken up before new privilege speeches and question hours. If your bill was under consideration when the previous session adjourned, it resumes here.

The Privilege Hour and Question Hour have dedicated places. The Privilege Hour — up to sixty minutes every Thursday — is for Members to speak on matters of general interest. The Question Hour — sixty minutes every first Wednesday without a Chief Minister's Hour — is for questioning Cabinet members. Neither directly involves legislation, but both can influence the political climate around pending bills.

The Chief Minister's Hour. On the first Wednesday of every quarter, the Order of Business includes the Chief Minister's Hour immediately after the Roll Call. During this hour, the Chief Minister or a designated Cabinet member reports on the Government's accomplishments and status. Members may ask clarificatory questions. This periodic accountability moment can create openings for Government bills tied to the reported priorities.

The Order of Business is distributed to all Members and posted on Parliament's website at least three days before commencement of session, per Rule VIII, Section 2. Any Member may move to amend the Order of Business after the Roll Call. If no amendment is raised, the Order of Business is deemed adopted.

Plenary sessions commence at one o'clock in the afternoon on Mondays through Thursdays of the third and fourth week of the month, unless Parliament decides otherwise, per Rule VI, Section 4.

7.10 Flowchart: From Filing to Enactment

The following text-based flowchart traces the path of a bill from filing to enactment under the ordinary legislative procedure prescribed by Resolution No. 268.

```
FILING
  Author signs bill + electronic copy
  Filed with Secretary-General
  Secretary-General assigns number
  Bill forwarded to Office of the Speaker
       |
       v
FIRST READING
  Secretary-General reports bill to Parliament
  Reading of: Number, Title, Author
  Speaker declares: Government Bill or Private Member Bill
  (Author may propose additional co-authors via Majority Floor Leader)
       |
       v
SECOND READING
  Bill read in full (or deemed read if copies distributed)
  Author delivers Authorship Speech (Explanatory Statement)
  Majority Floor Leader refers bill to appropriate committee
       |
       v
COMMITTEE STAGE
  Committee examines bill line by line
  Committee holds hearings, consultations, investigations
  Committee invites experts, resource persons, ministries
  Committee may amend, revise, adopt, or reject the bill
  Committee renders Committee Report
  (Members sign: in favor / with reservation / dissenting)
  Committee Report distributed and forwarded to Secretary-General
       |
       v
CONSIDERATION AND DELIBERATION STAGE (Plenary)
  Committee Report presented to Parliament
  Period of Debate (alternating for/against)
  Period of Interpellation (Members question sponsor)
  Period of Amendments:
    (1) Committee Amendments
    (2) Individual/Floor Amendments
  Voting on Second Reading
       |
       v
  [Approved?]---NO---> Bill is defeated
       |
      YES
       |
       v
THREE-DAY DISTRIBUTION
  Printed copies of bill in final form
  distributed to Members at least 3 days before vote
```

```
  (Waived for certified emergency bills)
       |
       v
THIRD READING / FINAL STAGE
  Final debate (no amendments allowed)
  Sponsor has right to close debate
  Majority Floor Leader reads title of bill
  Roll call vote (show of hands / standing / sitting)
  Members may explain vote (5 min verbal or written)
       |
       v
  [Passed?]---NO---> Bill is defeated
       |
      YES
       |
       v
ENROLLMENT AND AUTHENTICATION
  Enrolled bill prepared (final clean text)
  Signed by the Speaker
  Certified and sealed by Secretary-General
       |
       v
TRANSMITTAL TO CHIEF MINISTER
  Speaker presents bill to Chief Minister
       |
       v
EXECUTIVE ACTION
  Chief Minister signs --> Bill becomes a Bangsamoro Autonomy Act
       |
       v
PUBLICATION
  Published in at least one newspaper of
  general circulation within BARMM
       |
       v
EFFECTIVITY
  Law takes effect 15 days after complete publication
  (unless the law specifies a different date)
       |
       v
NOTIFICATION
  Speaker submits certified true copy to:
    - President of the Philippines
    - Congress of the Philippines
```

Accelerated Paths:

```
SWIFT PASSAGE PROCEDURE (Rule XVIII, Sec. 4)
  Exceptional cases only
  Seven (7) working days total
  Skips detailed committee scrutiny
  Cross-party / free conscience voting allowed
       |
       v
  (Proceeds to Third Reading and subsequent stages)


EMERGENCY CERTIFICATION (Rule XVIII, Sec. 3)
  Chief Minister certifies public calamity or emergency
  Chief Minister forwards certified measure to Speaker
  Parliament acts within 24 hours
  Three-day distribution rule waived
  Voting may occur same day as Second Reading approval
```

Summary

The Bangsamoro legislative process is structured to balance speed with deliberation, executive leadership with parliamentary independence, and majority rule with minority rights. Each stage serves a purpose:

- **First Reading** introduces the bill and classifies it.
- **Second Reading** presents the bill's substance and refers it to the relevant committee.
- **Committee Stage** subjects the bill to expert scrutiny, public input, and line-by-line examination.
- **Consideration and Deliberation Stage** opens the bill to the full Parliament for debate, interpellation, and amendment.
- **Third Reading** provides a final up-or-down vote on the bill as a whole.
- **Post-passage** stages ensure proper authentication, executive review, and publication.

For you as a drafter, the most important takeaway is this: your bill does not exist in a vacuum. It will be read aloud, questioned, amended, and debated. The choices you make at the drafting table — how you structure the bill, how you word its provisions, how you frame its explanatory statement — will be tested at every stage of this process. Draft with that reality in mind.

A bill that is well-drafted does not merely survive the legislative process. It makes the process work. It gives the committee something solid to examine. It gives the sponsor something defensible to present. It gives Parliament something clear to vote on. And it gives the Bangsamoro people a law that says what it means and means what it says.

Back to Table of Contents

Chapter 8 — Preparing a Legislative Briefer

The previous chapters taught you how to draft a bill. This chapter teaches you what to do when someone else's bill lands on your desk — or when the bill your office drafted is about to face questions on the floor.

A legislative briefer is the document your MP reads before walking into a committee hearing, before rising to interpellate, before casting a vote. It is a structured analysis of a legislative measure that gives the MP everything needed to participate meaningfully in the legislative process — the substance of the bill, its alignment with the MP's agenda, its strengths, its weaknesses, and the specific actions the MP should consider taking.

The methodology behind this chapter draws on Completed Staff Work, a framework for presenting analysis and recommendations to decision-makers. The core idea is straightforward: the staff member does the full analysis, prepares the options, drafts the recommended action, and presents the entire package so that the principal — in this case, the MP — only needs to approve, modify, or reject. The MP should never have to do the research personally. That is your job.

8.1 Purpose and Use of the Legislative Briefer

The legislative briefer serves a single purpose: to equip the MP with the information, analysis, and prepared materials needed to engage with a legislative measure. It is not a research paper. It is not an academic exercise. It is a decision-support document.

Think of it this way. On any given session day, the Parliament may take up several bills across committee hearings and plenary deliberations. Your MP cannot conduct independent research on every measure. The briefer does that work in advance. When the MP opens your briefer, everything should be there — the bill's substance, its legal basis, its budget implications, the positions of stakeholders, the questions to ask during interpellation, the amendments to propose, and the speech to deliver if the MP chooses to speak.

A well-prepared briefer lets the MP walk into any legislative proceeding with confidence. A poorly prepared one — or worse, a missing one — leaves the MP improvising on the floor. Improvisation in plenary may look impressive on occasion, but it is not a substitute for preparation. The best-performing legislative offices are the ones where the staff does the analysis and the MP delivers the judgment.

The briefer also serves as an institutional record. Weeks or months after a committee hearing, someone will need to remember what position the MP took, what questions were asked, what amendments were proposed. The briefer, annotated after the proceeding with actual outcomes, becomes that record.

What a Legislative Briefer Is Not

It is not a summary of the bill. A summary is one component of the briefer, but the briefer goes much further — it includes analysis, prepared questions, draft amendments, and a recommended position. Handing the MP a two-paragraph summary and calling it a briefer is not Completed Staff Work.

It is not the MP's personal opinion written in advance. You are preparing options and recommendations. The MP decides. If you write the briefer assuming a particular vote, you have failed the analysis. Even when the MP's position seems obvious — a bill that directly supports their legislative agenda, for instance — the briefer should still present the measure's weaknesses so the MP is prepared for opposition arguments.

It is not a once-and-done document. The briefer evolves as the bill moves through the legislative process. The version you prepare before the committee hearing should be different from the version you prepare before plenary deliberation. Each iteration incorporates new information — committee amendments, stakeholder testimony, shifting political dynamics — and refines the analysis accordingly. Version-control your briefers. Keep every iteration. The evolution of the analysis is itself a valuable record.

The Relationship Between Briefer and Completed Staff Work

Completed Staff Work, as a concept, originated in military administration, but its application to legislative staff work is natural. The principle is this: when a staff member brings a matter to the decision-maker, the work should be so complete that the decision-maker's only remaining action is to say yes, no, or modify. The decision-maker should never have to ask "what do you recommend?" — because the recommendation is already there. The decision-maker should never have to ask "what are the alternatives?" — because the alternatives are already presented. The decision-maker should never have to ask "what happens if we do nothing?" — because that option is already analyzed.

In the legislative context, this means the briefer should contain everything the MP needs: analysis, recommendations, draft materials, and decision options. When the MP finishes reading the briefer, the next action should be clear — sign the approval block, request modifications, or return it for further study. If the MP reads your briefer and still has to go look something up, the staff work is incomplete.

8.2 When to Prepare a Briefer

Not every bill that moves through the Parliament requires a full briefer from your office. But many more require one than most offices realize. Here are the situations that call for a legislative briefer.

8.2.1 For Bills Being Drafted by the MP's Office

You might think a briefer is unnecessary for a bill your office drafted. After all, you already know the bill inside and out. But the briefer serves a different purpose here. When your bill reaches committee stage, other MPs will scrutinize it. The sponsor — your MP — will need to defend every provision. The briefer for your own bill is a defense preparation document.

Prepare the briefer after the bill is filed and before the committee hearing. Anticipate the questions other MPs will raise. Identify the provisions most likely to attract amendments. Prepare the arguments for why the bill is drafted the way it is. If the bill has budget implications, make sure you can state the fiscal impact with specificity. If the bill touches on areas of overlapping authority between the Bangsamoro government and national agencies, prepare the constitutional justification.

The briefer for your own bill should also include talking points for the authorship speech (the Explanatory Statement delivered during Second Reading). While the Explanatory Note filed with the bill covers the policy rationale, the authorship speech is an opportunity to address the Parliament directly. The briefer should include a draft of that speech.

There is a strategic dimension here as well. When preparing the defense briefer for your own bill, think adversarially. Put yourself in the position of an MP who opposes the bill or has concerns about specific provisions. What questions would that MP ask? What weaknesses would a careful reader find? Where does the bill make choices that reasonable people could disagree with? Your job is to identify every line of attack and prepare a defense for each one. If you can answer every tough question in the briefer, the MP can answer them on the floor.

8.2.2 For Bills Filed by Other MPs

This is the most common trigger. When another MP files a bill that falls within your MP's committee assignments or policy interests, you need to analyze it. The MP needs to know what the bill does, whether it aligns with or conflicts with their own legislative agenda, and what position to take.

The depth of the briefer depends on the bill's importance. A routine measure that simply adjusts an administrative deadline may need only a short-form briefer — the essentials in a page or two. A major piece of legislation — a new code, a restructuring bill, a revenue measure — demands a full briefer with detailed analysis, prepared interpellation questions, and draft amendments.

How do you decide? Use these criteria:

- **Does the bill fall within the MP's committee assignment?** If so, the MP will likely participate actively in committee deliberations. Full briefer.
- **Does the bill affect the MP's constituency or advocacies?** A bill on education matters to an MP who has championed education reform. Full briefer.
- **Does the bill have significant budget implications?** Any measure that creates obligations on the Bangsamoro Expenditure Program deserves close scrutiny. Full briefer.
- **Is the bill controversial or politically significant?** If the measure will attract media attention or generate debate in plenary, the MP needs to be prepared regardless of committee assignment. Full briefer.
- **Is the bill routine and non-controversial?** Short-form briefer covering the essentials.

When in doubt, prepare the full briefer. The cost of over-preparing is a few hours of staff time. The cost of under-preparing is an MP caught flat-footed in a committee hearing, unable to ask informed questions or articulate a position. In a Parliament as young as the Bangsamoro Parliament, where institutional memory is still being built and legislative practices are still being established, the well-prepared office has an outsized impact on the quality of legislation.

8.2.3 For Committee Referrals and Hearings

When a bill is referred to a committee where your MP sits as Chair, Vice-Chair, or member, prepare a briefer before the hearing. The committee hearing is where the serious work happens. It is where provisions are examined line by line, where stakeholders testify, and where amendments take shape. Your MP should walk into that hearing knowing more about the bill than anyone else in the room.

For committee chairs, the briefer has an additional layer. The chair manages the hearing — recognizes speakers, steers the discussion, ensures all relevant issues are covered. The briefer for a committee chair should include a suggested hearing agenda, a list of resource persons or stakeholders to invite, and a set of questions designed to draw out the information the committee needs.

For committee members, the briefer focuses on questions and amendments. What should the MP ask during the hearing? What concerns should the MP raise? Are there provisions the MP should propose amending in committee?

One practical note: the committee hearing is also a listening opportunity. Not every question needs to come from your MP. Sometimes the most valuable thing the MP can do is listen to other members' questions and the sponsor's responses, then intervene strategically on a point that others missed. The briefer should identify not just what to ask but what to listen for — the answers that reveal implementation problems, budget gaps, or legal issues that the MP can follow up on.

8.2.4 For Interpellation and Plenary

When a bill reaches the Consideration and Deliberation Stage — the stage where bills are debated and interpellated on the floor — the briefer becomes an operational document. The MP who interpellates will stand before the entire Parliament and question the sponsor. This is not the time for generalities. The MP needs specific, well-structured questions, anticipated answers, follow-up manifestations, and proposed amendments ready to go.

Prepare the interpellation briefer after the Committee Report is released and before the bill is taken up in plenary. The Committee Report may have changed the bill from its original version — review the committee amendments carefully. Your interpellation questions should target the bill as it emerges from committee, not the original filed version.

8.3 The Legislative Analysis

The legislative analysis is the core of the briefer. It is a structured examination of the measure covering seven components. Every full briefer should address all seven. Short-form briefers may abbreviate some, but none should be skipped entirely.

8.3.1 Brief Description of the Measure

Start with the basics. In two to four paragraphs, describe what the bill does. Cover:

- **Bill number, title, and author.** Identify the measure precisely.
- **Subject matter.** What policy area does the bill address?
- **Key provisions.** What does the bill actually do? What obligations does it create? What institutions does it establish? What rights does it confer?
- **Scope and coverage.** Who does the bill apply to? What geographic areas does it cover?

Write this section for an informed reader who has not read the bill. The MP should be able to understand the bill's substance from your description alone. But keep it tight. This is a summary, not a commentary. Save your analysis for the sections that follow.

A useful test: could the MP describe the bill to a colleague in the hallway based solely on your summary? If yes, the summary works. If the MP would need to supplement your summary with their own reading, it needs more detail.

If the bill is lengthy — a proposed code with dozens of articles, for example — consider adding a provision-by-provision outline after the summary. A table format works well for this: Article/Section number in one column, a one-sentence description in the next, and any notes or flags in a third column.

8.3.2 Related Laws, Issuances, and Specific Provisions

No bill exists in a vacuum. Every legislative measure interacts with existing law. This section maps those interactions.

Identify and describe:

- **BOL provisions.** Does the bill implement a specific BOL mandate? Does it exercise one of the enumerated powers in Article V, Section 2? Does it rely on the general welfare clause? Cite the specific sections.
- **Existing BAAs.** Does the bill amend, supplement, or conflict with any existing Bangsamoro Autonomy Act? If a BAA already covers the same subject matter, how does this bill differ?
- **National laws.** Does the bill interact with or implement any national legislation? Are there national laws that cover the same subject matter? If so, is the Bangsamoro Parliament exercising concurrent jurisdiction, or is this an area of exclusive Bangsamoro authority?

- **Executive issuances.** Are there existing Executive Orders, Administrative Orders, or MOAs from the Chief Minister or the Cabinet that address the same subject? Would the bill supersede, codify, or conflict with those issuances?
- **IRRs and administrative regulations.** If existing regulations are in place, would the bill change the regulatory framework?

For each related law or issuance, state the specific provision and explain the relationship. Do not just list citations. The MP needs to understand how the bill fits into the existing body of law.

This section often reveals problems. If the bill conflicts with an existing BAA, flag it. If the bill enters an area of questionable Bangsamoro authority, flag it. These flags become the basis for interpellation questions and proposed amendments later in the briefer.

8.3.3 Impact Assessment and Alignment with the MP's Agenda

This is where the analysis becomes personal to your MP. Every MP has a legislative agenda — a set of priority issues, advocacies, and constituency concerns that define their work in the Parliament. The briefer must assess how the bill relates to that agenda.

Answer these questions:

- **Does the bill advance the MP's stated legislative priorities?** If your MP has filed bills on education, does this bill complement or compete with those efforts?
- **Does the bill benefit or burden the MP's constituency?** A bill creating a new special economic zone in one province may have implications for neighboring provinces. A bill imposing new regulatory requirements may affect industries concentrated in specific areas.
- **Does the bill align with the MP's committee work?** If your MP chairs the Committee on Finance, a bill with major fiscal implications falls squarely within their area of responsibility.
- **What are the political dimensions?** Is the bill a government priority? Has the Chief Minister certified it as urgent? Is it sponsored by the MP's political allies or opponents? These considerations do not change the policy analysis, but they inform the strategic advice you provide.

Beyond the MP's individual agenda, assess the bill's broader impact:

- **Social impact.** Who benefits and who bears the costs? Does the bill disproportionately affect vulnerable groups — women, indigenous peoples, internally displaced persons, out-of-school youth?

- **Economic impact.** Will the bill attract investment, create jobs, or impose costs on businesses and households?
- **Institutional impact.** Does the bill create new agencies, expand existing mandates, or require restructuring?
- **Regional development impact.** Does the bill contribute to the goals of the Bangsamoro Development Plan 2023-2028? Which of the six development goals does it serve?

State your assessment plainly. If the bill is well-aligned with the MP's agenda, say so. If it conflicts, say that too. The MP needs an honest assessment, not a diplomatic one.

8.3.4 Implementing Agencies

Identify every agency, ministry, office, or body that would be responsible for implementing the bill. For each, note:

- **The agency's current mandate.** Does the bill fall within what the agency already does, or does it assign new functions?
- **The agency's capacity.** Based on available information, can the agency realistically carry out the new mandate? If the bill assigns fisheries regulation to the Ministry of Agriculture, Fisheries, and Agrarian Reform, does that ministry have the staff, budget, and infrastructure to do it?
- **Coordination requirements.** Does the bill require coordination among multiple agencies? If so, is a coordination mechanism specified? Bills that require interagency cooperation without establishing a coordination structure often fail at implementation.

This section matters for practical reasons. The most common cause of legislative failure is not bad drafting — it is the gap between what a bill requires and what the implementing agencies can deliver. If your analysis reveals a capacity gap, note it. It may become the basis for an amendment requiring a transition period or additional appropriation.

In the Bangsamoro context, this analysis has added significance. Many BARMM ministries and offices are still building their institutional capacity. Some were established only a few years ago. Others absorbed functions from the defunct ARMM and are still working through organizational restructuring. A bill that assumes full institutional capacity from an agency that is still hiring its core staff will face implementation challenges regardless of how well it is drafted. The briefer should reflect this reality honestly.

When possible, consult with the implementing agency's staff during your analysis. They will often tell you frankly whether their agency can handle a new mandate — information the agency head may not volunteer during a committee hearing. These informal consultations can make the difference between a briefer that identifies real issues and one that misses them.

8.3.5 Implementation Mechanisms and Timeline

Look at how the bill gets from enacted law to operational reality. Examine:

- **IRR requirements.** Does the bill require implementing rules and regulations? If so, who prepares them, and within what timeframe? Is the timeframe realistic?
- **Phase-in provisions.** Does the bill take effect immediately, or does it phase in over time? Are there interim arrangements?
- **Reporting requirements.** Does the bill require periodic reporting? To whom? How frequently?
- **Sunset provisions.** Does the bill expire after a set period? Is there a review mechanism?

If the bill lacks implementation mechanisms, flag that as a gap. A bill that creates a new regulatory framework but does not specify who writes the IRR, or gives the implementing agency only thirty days to do so, has a practical problem. Your MP needs to know.

Pay particular attention to the gap between effectivity and implementation readiness. Many bills state that they "shall take effect fifteen days after publication in the Official Gazette or in a newspaper of general circulation." But taking effect legally and being ready to implement operationally are different things. A bill that takes effect in fifteen days but requires an IRR that will take six months to draft creates a gap where the law exists but cannot be enforced. The briefer should identify this gap and, if necessary, recommend an amendment adjusting the timeline or adding transitional provisions.

8.3.6 Budgetary and Financial Implications

This section requires specificity. General statements like "the bill will require additional funding" are not enough. The MP needs numbers, or at least reasonable estimates.

Cover the following:

- **Estimated cost of implementation.** What will it cost to carry out the bill's mandates? Break this down by category: personnel services (new positions, salary upgrades), maintenance and other operating expenses (office supplies, travel, training), and capital outlay (facilities, equipment, vehicles).

- **Funding source.** Does the bill identify where the money comes from? If it includes an appropriation provision, what amount does it specify? If it relies on the annual Bangsamoro Expenditure Program, is there room in the current or projected budget?
- **Recurring vs. one-time costs.** A bill that creates a new office generates recurring costs (salaries, rent, utilities) that compound over time. A bill that funds a one-time construction project has a different fiscal profile.
- **Revenue implications.** If the bill is a revenue measure, what revenue is it expected to generate? If it creates exemptions or incentives, what revenue is forgone?
- **Fiscal sustainability.** Can the Bangsamoro government sustain the bill's financial requirements over the medium term? Does the bill create obligations that will grow faster than revenues?

If precise numbers are not available — and they often are not for bills in early stages — provide estimates with stated assumptions. "Based on current salary rates and an estimated staffing requirement of fifty positions, the annual personnel cost would be approximately PhP X million" is more useful than "this bill will be expensive."

8.3.7 Highlights of Previous Proceedings

If the bill has already been through committee hearings, plenary discussions, or earlier readings, summarize what happened. Cover:

- **Key issues raised.** What concerns did committee members express? What did resource persons or stakeholders testify about?
- **Committee amendments.** What changes did the committee make to the original bill? Why?
- **Unresolved issues.** Were there questions the committee could not settle? Were there provisions that committee members flagged for further discussion in plenary?
- **Votes and positions.** Did any MPs state their position during committee deliberations? Were there dissenting views in the committee report?

This section is essential for bills reaching the plenary stage. It tells the MP where the debate stands and what issues are still live. If the bill is being taken up for the first time, this section may be brief or omitted.

8.4 Preparing for Interpellation

Interpellation is the period during the Consideration and Deliberation Stage when MPs question the bill's sponsor on the floor. It is one of the most consequential moments in the legislative process. A well-executed interpellation exposes weaknesses in the bill, builds the case for amendments, creates a record that shapes how the law will be interpreted, and gives the MP a platform to demonstrate command of the subject matter.

Your job is to prepare the MP for interpellation so thoroughly that the actual floor exchange feels like a rehearsed performance — because, in a sense, it is. The MP knows the questions. The MP anticipates the answers. The MP has prepared responses to those answers. And the MP has draft amendments ready to propose when the questioning establishes the need for them.

8.4.1 Structuring Interpellation Questions

Each interpellation question should follow a five-part structure. This is not just a template — it is a strategy for making every question count.

Part 1: Introduction and Context ("Hugot")

Before asking the question, the MP establishes context. This is the "hugot" — the hook that tells the Parliament why the question matters. It should be brief (two to four sentences) and should ground the question in a concrete fact, a real-world situation, or a policy concern.

The hugot is not decoration. It serves two functions. First, it makes the question comprehensible to every MP in the chamber, not just the ones who have read the bill. Second, it frames the expected answer in a way that makes the subsequent manifestation effective. A well-chosen hugot narrows the sponsor's room to evade.

Part 2: The Question

The question itself should be clear, concise, and designed to elicit specific information. Avoid questions that allow the sponsor to deliver a speech. The best interpellation questions call for a factual answer — a number, a yes or no, a specific provision, a named agency.

Bad question: "Can the sponsor explain the rationale behind this bill?"

That question hands the sponsor the floor for five minutes. The MP loses control of the exchange.

Good question: "Under Section 12 of the bill, the implementing agency is required to establish regional offices within six months of effectivity. Can the sponsor confirm how many regional offices are contemplated and what the estimated cost per office is?"

That question demands specifics. If the sponsor does not have the answer, the gap in the bill becomes visible.

Types of questions that work well in interpellation:

- **Factual questions.** "How many beneficiaries are projected under this program?" "What is the current staffing level of the implementing agency?"
- **Implementation questions.** "Has the implementing agency been consulted on the timeline in Section 8?" "What happens if the IRR is not issued within the sixty-day period?"
- **Legal basis questions.** "Which specific BOL provision authorizes the Parliament to legislate on this matter?" "Does this provision conflict with Section 4 of BAA No. 15?"
- **Budget questions.** "What is the estimated annual cost of this program at full implementation?" "Has the Ministry of Finance been consulted on the appropriation in Section 24?"
- **Scope questions.** "Does the coverage in Section 3 include the Special Geographic Area?" "Are LGUs bound by the requirements in Article IV?"

Part 3: Anticipated Answer

Before the MP asks the question on the floor, you should have a reasonable prediction of how the sponsor will respond. This is not guesswork — it is informed analysis based on:

- The bill's Explanatory Note and its stated policy rationale
- The Committee Report and any recorded proceedings
- The sponsor's known positions and previous statements
- Conversations with the sponsoring office's staff, if appropriate
- The logical response based on how the bill is drafted

Write out the anticipated answer. This allows the MP to prepare for the next move before the actual answer is given.

Part 4: Manifestation

The manifestation is the MP's follow-up response to the sponsor's answer. It is where the MP states their position, highlights a concern, or builds the case for an amendment. The manifestation should be drafted in advance for each question.

If the anticipated answer confirms a weakness in the bill, the manifestation should state the concern and, if appropriate, indicate that the MP will propose an amendment during the period of floor amendments.

If the anticipated answer is evasive or non-responsive, the manifestation should note the lack of a clear answer and state what that gap means for the bill's implementation or enforceability.

If the anticipated answer is satisfactory, the manifestation should acknowledge the response and, if it supports the MP's position, state that for the record.

Part 5: Proposed Amendment (if applicable)

When a line of questioning establishes the need for a change in the bill, the briefer should include a draft amendment ready for the MP to propose during the period of floor amendments. The amendment does not need to be formally drafted in full legislative language at this stage — that comes in Section 8.5 — but the concept should be stated clearly so the MP can signal their intent during interpellation.

Part 6: Justification for the Amendment

If the question leads to an amendment, include a one-paragraph justification that the MP can use when proposing the amendment on the floor. The justification should connect the amendment directly to the issue raised during interpellation — this creates a clean record of why the amendment is necessary.

Putting It All Together: An Example

Here is a complete interpellation sequence for a hypothetical bill creating a Bangsamoro Youth Development Office:

> **Introduction/Context:** Mr. Speaker, the bill before us proposes to create a new Bangsamoro Youth Development Office with regulatory authority over all youth programs in the region. According to the latest census, the Bangsamoro has one of the youngest populations in the country — approximately 60 percent of the population is under 30 years old. The scale of the mandate is significant. I would like to ask the sponsor a few clarificatory questions.
>
> **Question:** Under Section 7 of the bill, the Youth Development Office is required to maintain satellite offices in all five provinces and the Special Geographic Area. Can the sponsor inform the body how many staff positions are contemplated for these satellite offices and what the estimated first-year cost of establishing them would be?
>
> **Anticipated Answer:** The sponsor may state that the specific staffing and cost details will be determined by the implementing rules and regulations, or may cite an estimated number from the Explanatory Note.
>
> **Manifestation:** Mr. Speaker, if the staffing and cost requirements are to be determined only upon IRR promulgation, then we are effectively asking the Parliament to approve a mandate without knowing its fiscal impact. The Bangsamoro Expenditure Program is finite. I would respectfully suggest that the bill include, at minimum, an indicative staffing plan and a cost ceiling for the first three years of operation. I intend to propose an amendment to Section 7 during the appropriate period to address this concern.
>
> **Proposed Amendment:** Insert a new subsection in Section 7 requiring the Office to submit a staffing plan and three-year budget projection to the Parliament within sixty days of the act's effectivity, subject to review by the Committee on Finance.
>
> **Justification:** The amendment ensures fiscal transparency and enables the Parliament to exercise its oversight function over the budgetary implications of the new office before funds are committed.

Here is a second example — this time targeting a legal basis issue in a hypothetical bill on fisheries regulation:

> **Introduction/Context:** Mr. Speaker, the Bangsamoro Organic Law grants the Bangsamoro government authority over inland fisheries management. This bill, however, extends regulatory coverage to fisheries activities within the municipal waters surrounding the island provinces. I would like to clarify the scope of the Parliament's authority in this matter.
>
> **Question:** Can the sponsor identify the specific provision of the BOL that authorizes the Bangsamoro Parliament to regulate fisheries in municipal waters, as distinguished from inland fisheries?
>
> **Anticipated Answer:** The sponsor may cite the general welfare clause under Article V, Section 3, or may argue that municipal waters within BARMM territory fall under the Bangsamoro government's jurisdiction by virtue of the BOL's territorial provisions.
>
> **Manifestation:** Mr. Speaker, I appreciate the sponsor's response. However, I note that Republic Act No. 8550, the Philippine Fisheries Code, assigns municipal water regulation to local government units, and the BOL's enumerated powers in Article V, Section 2 refer specifically to "inland waters." If the legal basis for this bill rests on the general welfare clause rather than an enumerated power, the bill may face a constitutional challenge. I would respectfully suggest that the bill's scope be limited to inland fisheries — where our authority is clear — or that a specific legal opinion from the Attorney General's Office be obtained before proceeding.
>
> **Proposed Amendment:** Amend Section 3 to limit the bill's coverage to "inland bodies of water within the Bangsamoro Autonomous Region" and delete references to municipal waters.
>
> **Justification:** The amendment ensures the bill operates within the clearly enumerated powers of the Bangsamoro Parliament, reducing the risk of a legal challenge and protecting the legislation's enforceability.

Notice the difference in tone between the two examples. The first is a fiscal scrutiny question — it probes for numbers. The second is a legal authority question — it probes for constitutional basis. Both follow the same structure, but the content demands different expertise. The first requires budget analysis skills. The second requires legal research into the BOL and national fisheries law. When you prepare interpellation questions, match the type of question to the type of analysis required, and make sure your research supports the line of questioning.

Prepare three to seven such sequences for each bill, depending on its complexity and the number of issues your analysis has identified. Arrange them in order of importance, not in the order the provisions appear in the bill. The MP may not have time to ask every question. The most important ones should come first.

A Note on Tone

Interpellation is not cross-examination. The MP is not a prosecutor. The sponsor is a colleague. The tone should be respectful, professional, and constructive — even when the questions are pointed. Phrases like "I would respectfully ask the sponsor" and "for the clarification of the body" maintain the parliamentary register. Aggressive or confrontational questioning alienates colleagues and rarely produces better answers. The goal is to improve the bill, not to embarrass the sponsor.

That said, respect does not mean deference. The MP has a duty to scrutinize every bill that comes before the Parliament. Asking hard questions is not a hostile act — it is a legislative obligation. The briefer should prepare questions that are substantive and specific, delivered with courtesy but without pulling punches on substance.

8.4.2 Anticipating Answers

Anticipating answers is more than guessing. It requires you to think from the sponsor's perspective. Read the bill's Explanatory Note carefully — sponsors typically prepare their defenses from that document. Review the Committee Report for any issues that were debated and resolved. If possible, review the transcript of the committee hearing.

Consider three scenarios for each question:

1. **The best-case answer.** The sponsor provides a clear, specific, satisfactory response. Your manifestation should acknowledge this and move on.
2. **The likely answer.** The sponsor provides a partial response, defers to the IRR, or gives a general answer. Your manifestation should press for specificity and build the case for your amendment.
3. **The worst-case answer.** The sponsor cannot answer the question, or the answer reveals a serious problem. Your manifestation should note the concern for the record and signal the amendment.

Draft manifestations for at least scenarios 2 and 3. Scenario 1 requires less preparation — if the answer is satisfactory, the MP can acknowledge it briefly and move to the next question.

8.4.3 Preparing Follow-Up Manifestations

Interpellation rarely goes exactly as scripted. The sponsor may give an answer you did not anticipate, or another MP may raise a point that changes the direction of the debate. The MP needs to be flexible on the floor, but flexibility comes from preparation, not from winging it.

Prepare follow-up manifestations for each question — these are secondary responses the MP can deploy if the exchange takes an unexpected turn. Think of them as branching paths from the main question. If the sponsor says X, the MP responds with A. If the sponsor says Y, the MP responds with B.

Also prepare a general manifestation the MP can use at the close of the interpellation period. This is a brief statement — no more than two minutes — summarizing the MP's overall concerns and indicating what amendments the MP intends to propose. This manifestation is important because it creates a record that connects the interpellation to the subsequent amendments.

8.5 Preparing Proposed Amendments

If the legislative analysis identifies problems with the bill — and in most cases, it will — the briefer should include proposed amendments. Presenting the MP with a list of problems without solutions is incomplete staff work. Presenting problems along with fully drafted amendments is Completed Staff Work.

8.5.1 Identifying Issues from the Analysis

Go back through your analysis and list every issue you identified:

- Provisions that conflict with the BOL or existing BAAs
- Gaps in coverage or enforcement
- Unclear or ambiguous language
- Missing implementation mechanisms
- Unrealistic timelines
- Insufficient appropriations
- Scope problems (too broad, too narrow)
- Missing gender or human rights considerations
- Provisions that exceed Bangsamoro legislative authority

For each issue, assess its severity. Not every problem requires an amendment. Some can be addressed through the IRR. Some are matters of style rather than substance. Focus your proposed amendments on issues that affect the bill's enforceability, constitutionality, or practical impact.

8.5.2 Drafting the Amendment

Draft each amendment in the form it will take on the floor. Under the Parliament's Rules of Procedure, floor amendments are typically proposed verbally and then reduced to writing. Your draft gives the MP the written version in advance.

Use the standard amendment forms:

- **Insertion.** "On page X, line Y, after the word '***,' insert the following: ''***"
- **Deletion.** "On page X, delete lines Y through Z."
- **Substitution.** "On page X, line Y, delete the word ''***' and in lieu thereof, insert the word ''***"

For more complex amendments — adding new sections, restructuring articles, replacing entire provisions — draft the full text of the new language. The MP should be able to hand the written amendment to the Secretary of the Parliament if asked to submit it in writing.

When drafting amendments to another MP's bill, respect the bill's internal style and terminology. If the bill uses the term "implementing agency" throughout, your amendment should use the same term, not "lead agency" or "responsible office." Consistency matters even when you are changing someone else's work.

For amendments that involve adding entirely new provisions — a new section on reporting requirements, for instance, or a new article on transitional arrangements — draft the full text as it would appear in the bill. Include the section number (using the appropriate numbering for where it would be inserted), the section heading, and the complete provision text. The more complete the draft, the easier it is for the presiding officer and the Secretary of the Parliament to process the amendment, and the less room there is for misunderstanding about what the MP is proposing.

Test every amendment for internal consistency with the rest of the bill. If your amendment references a term defined in the bill's definitions section, make sure the definition covers your usage. If your amendment creates a new obligation, make sure an enforcement mechanism exists — either in the bill or in your amendment. If your amendment changes a timeline, check whether other provisions in the bill depend on the original timeline.

8.5.3 Justification

Every proposed amendment needs a justification — a clear, concise statement of why the amendment is necessary. The MP will need to explain the amendment on the floor, and the justification gives them the language to do so.

A good justification does three things:

1. **Identifies the problem.** What is wrong with the current provision? Be specific. "Section 12 does not specify a deadline for compliance" is better than "Section 12 needs improvement."
2. **Explains the consequence.** What happens if the problem is not fixed? "Without a deadline, implementing agencies have no enforceable obligation to act, and the bill's objectives may remain unrealized indefinitely."
3. **States how the amendment fixes it.** "The proposed amendment adds a twelve-month compliance deadline, providing a clear and enforceable timeline for implementation."

Keep justifications to one paragraph each. The MP does not need a law review article — just enough to explain the amendment clearly and persuasively.

8.5.4 Summary of Proposed Amendments

At the end of the amendments section, include a summary table:

No.	Provision	Issue	Proposed Amendment
1	Section 7	No staffing plan or cost ceiling	Insert subsection requiring staffing plan and 3-year buc
2	Section 12	No compliance deadline	Add 12-month deadline
3	Section 15(c)	Conflicts with BAA No. 11	Delete paragraph (c)

This table lets the MP see all proposed amendments at a glance. During the period of floor amendments, the MP can refer to the table to decide which amendments to propose and in what order.

Prioritize the amendments. If the MP can propose only two or three before the body moves to a vote, which ones matter most? Mark those as high-priority in the summary. The reality of floor proceedings is that time is limited, attention spans are finite, and parliamentary dynamics are unpredictable. A carefully prioritized list ensures the MP's most important amendments get proposed even if the window for amendments closes sooner than expected.

8.6 Preparing the MP's Position

The briefer culminates in the MP's position — the stance the MP will take on the bill. You prepare the materials; the MP decides the position. But you should present a recommended position based on your analysis, along with the materials the MP needs to express that position on the floor.

8.6.1 Brief Speech or Manifestation of Position

If the MP wishes to speak on the bill beyond the interpellation period, prepare a brief speech or manifestation of position. This is different from interpellation — it is a statement of the MP's view on the bill as a whole.

The speech should be concise. In the Bangsamoro Parliament, floor speeches that run past five minutes lose their audience. Two to four minutes is the effective range. Structure the speech as follows:

Opening. State the MP's overall position on the bill. "Mr. Speaker, I rise to express my support for PBN ____, with certain reservations that I believe the body should consider before we vote."

Body. Present the two or three most important points — whether in support or in opposition. Draw on the analysis in the briefer. Use concrete examples and specific provisions, not generalizations.

If the MP supports the bill with amendments: explain the amendments briefly and state why they strengthen the measure.

If the MP opposes the bill: state the grounds of opposition clearly. Is it a constitutional concern? A fiscal concern? A policy disagreement? The grounds matter for the legislative record.

If the MP supports the bill as is: acknowledge the strengths of the measure and, if appropriate, note how it advances the MP's own legislative agenda or the broader goals of the Bangsamoro Development Plan.

Closing. State how the MP intends to vote. "For these reasons, Mr. Speaker, I shall vote in favor of this measure, subject to the adoption of the amendments I have proposed." Keep the closing brief and definitive.

Draft the speech in the MP's voice. Every MP has a style — some prefer formal parliamentary language, others speak in a more conversational register. You know your MP. Write accordingly.

A few practical tips for drafting the position speech:

- **Lead with the position.** Do not make the Parliament wait to find out where the MP stands. State it in the first sentence.
- **Use specific provisions.** Reference section numbers, not vague generalities. "I have concerns about Section 14" is stronger than "I have concerns about the bill's enforcement provisions."
- **Acknowledge the bill's strengths before stating concerns.** This is not flattery — it is strategic. An MP who acknowledges the bill's merits before raising objections comes across as thoughtful rather than obstructionist.
- **Connect to constituency or mandate.** If the bill affects the MP's constituency, say so. If it falls within the MP's committee jurisdiction, note that. This grounds the speech in the MP's authority to speak on the matter.
- **End with a clear action.** "I will vote yes," "I will vote no," or "I will vote yes if my proposed amendments are adopted." Leave no ambiguity.

8.6.2 The 1-Minute Vote Manifestation

There are times when the MP does not wish to deliver a full speech but wants their vote recorded with a brief statement. This is the 1-minute vote manifestation — a short, punchy statement delivered just before or after the vote.

Prepare one in advance. It should be three to five sentences. State the position, the reason, and the vote.

> "Mr. Speaker, I vote YES on PBN ____. This measure directly supports our mandate under Section 2(vv), Article V of the BOL to develop and regulate the delivery of social services. My office proposed two amendments during committee stage, both of which were adopted. I believe this bill, as amended, will serve the people of the Bangsamoro well."

Or:

> "Mr. Speaker, I vote NO on PBN ____. Despite its good intentions, this bill creates an unfunded mandate estimated at PhP 200 million annually, with no identified funding source. Until the fiscal implications are addressed, I cannot support it."

The 1-minute manifestation is surprisingly powerful. It is short enough that every MP in the chamber will listen. It goes on record. And it signals the MP's priorities to colleagues, to the media, and to constituents.

8.7 Matters for Information of the MP

This section of the briefer covers relevant information that does not fit neatly into the legislative analysis but that the MP should know before the proceedings. It is a catch-all section, but it should be organized, not a dumping ground.

Include items such as:

- **Stakeholder positions.** Have major stakeholder groups — civil society organizations, business associations, LGU leagues, sectoral representatives — taken a public position on the bill? What is it?
- **Media coverage.** Has the bill attracted media attention? Is there public commentary that the MP should be aware of?
- **Related developments.** Has the Chief Minister made a public statement about the bill? Has the committee chair indicated a preferred timeline? Are there parallel bills on the same subject that may be consolidated?
- **Political dynamics.** Without getting into gossip, note any political considerations that affect the bill's prospects. If a voting bloc has signaled support or opposition, the MP should know. If the bill is part of a package deal with other legislation, note that.
- **Pending court cases.** Are there court cases that might affect the bill's enforceability or constitutionality? Has the Supreme Court or the Bangsamoro courts issued any relevant rulings recently?
- **Constituency feedback.** Have constituents or local officials from the MP's district raised concerns about the bill? Have they expressed support?
- **Comparative legislation.** Has the Philippine Congress enacted similar legislation at the national level? Have other autonomous regions or LGUs attempted similar measures? What was the result? Comparative information can strengthen the MP's arguments during debate.
- **Expert opinions.** Have legal scholars, policy experts, or technical specialists commented on the bill or its subject matter? If so, summarize their views.

Keep this section factual. Present information, not gossip. Attribute positions to named sources where possible. The MP's credibility depends on the accuracy of the information staff provides. If you include stakeholder positions, verify them. If you report media coverage, read the articles yourself — do not rely on secondhand summaries.

This section is also where you flag timing and procedural considerations. Is the bill on the calendar for the next session day? Has the committee chair indicated when the bill will be taken up? Is there a deadline — a certification of urgency, a statutory requirement, a political commitment — that constrains the timeline? The MP needs to know not just the substance but the logistics.

8.8 Action Log and Approval

The final section of the briefer is the action log and approval block. This is the Completed Staff Work discipline at its most concrete.

Action Log

The action log records what actions the MP's office has taken on the bill and what actions are pending. Use a simple table:

Date	Action	Status
[date]	Bill received/identified for analysis	Complete
[date]	Legislative analysis prepared	Complete
[date]	Interpellation questions drafted	Complete
[date]	Proposed amendments drafted	Complete
[date]	Briefer submitted to MP for review	Pending
[date]	Committee hearing	Upcoming — [date]
[date]	Plenary deliberation	TBD

The action log keeps the office organized and creates an institutional record. When a new staff member takes over a file, the action log tells them exactly where things stand.

Approval Block

The approval block is where the MP reviews and acts on the briefer. It is the signature line of Completed Staff Work.

The block should include:

- **Prepared by:** [Staff member name and designation]
- **Date submitted:** [Date]
- **Recommended position:** [Support / Support with amendments / Oppose / Reserve position]

Then, for the MP:

- **Approved as recommended:** ☐
- **Approved with modifications:** ☐ (with space for the MP to note modifications)
- **Disapproved / Return for further study:** ☐
- **MP's signature: ___**
- **Date: ___**

The MP should sign the briefer or otherwise indicate their decision. This serves two purposes. It confirms that the MP has reviewed the analysis and made a deliberate decision. And it gives the staff clear authority to proceed — to finalize the speech, to circulate the amendments, to coordinate with other offices.

Post-Proceeding Update

After the committee hearing or plenary deliberation, update the briefer with actual outcomes. What questions were asked? What answers were given? Were the proposed amendments adopted? How did the MP vote? Add these notes to the briefer and file it. This updated briefer becomes part of the institutional record and is invaluable when the same bill comes back at a later stage — or when a similar bill is filed in a future session.

Filing and Retrieval

Maintain a systematic filing system for all briefers. The simplest approach is to organize them by Parliament Bill Number, with each bill getting a folder that contains every version of the briefer, the bill text, the committee report, any amendments filed, and the post-proceeding notes. Some offices organize by session period, others by committee assignment. The method matters less than consistency — pick a system and stick with it.

Consider maintaining a master log — a spreadsheet or simple database — that tracks every bill your office has analyzed, the date of the briefer, the recommended position, the actual position taken, and the outcome. Over time, this log becomes an invaluable reference. When a new bill touches on the same subject matter as a previous one, the master log points you to the earlier analysis, saving hours of research.

Putting It All Together

The legislative briefer is a demanding document to prepare well. A full briefer for a major bill may run fifteen to twenty pages. It requires careful reading of the bill, research into existing law, analysis of budget implications, strategic thinking about interpellation, and the drafting skill to prepare amendments and speeches.

But the payoff is proportional to the effort. An MP armed with a complete legislative briefer is an MP who can hold their own in any committee hearing, conduct incisive interpellation on the floor, propose well-crafted amendments, and vote with conviction. The briefer is not just a document — it is the MP's preparation for the most consequential part of their job.

The discipline of Completed Staff Work runs through the entire process. You do the analysis so the MP does not have to. You draft the questions so the MP can focus on delivery. You prepare the amendments so the MP can focus on persuasion. You write the speech so the MP can focus on the message. And when the proceeding is over, you update the record so the institution remembers.

Here is a practical checklist for the complete legislative briefer:

- ☐ Bill summary — clear, concise, accurate
- ☐ Related laws and issuances — all relevant authorities identified and relationships explained
- ☐ Impact assessment — social, economic, institutional, and development impacts analyzed
- ☐ Alignment with MP's agenda — explicit assessment, honestly stated
- ☐ Implementing agencies — identified, capacity assessed, coordination issues flagged
- ☐ Implementation mechanisms — IRR, timelines, reporting, sunset provisions reviewed
- ☐ Budgetary implications — specific costs estimated, funding sources identified
- ☐ Previous proceedings — key issues, committee amendments, and unresolved questions summarized
- ☐ Interpellation questions — structured with hugot, question, anticipated answer, manifestation, and amendment where applicable
- ☐ Proposed amendments — fully drafted in legislative form with justifications
- ☐ Amendment summary table — complete and prioritized

- ☐ Position speech or manifestation — drafted in the MP's voice
- ☐ 1-minute vote manifestation — prepared as backup
- ☐ Matters for information — stakeholder positions, media coverage, political dynamics, timing
- ☐ Action log — current and complete
- ☐ Approval block — ready for the MP's decision

If every item on this list is complete, you have produced Completed Staff Work. If any item is missing, you have more work to do.

That is the standard. Every briefer you prepare should meet it.

Back to Table of Contents

Chapter 9 — Budget Legislation and Preparing a Budget Briefer

The Bangsamoro Expenditure Program is the single most important legislative measure the Parliament considers each year. It determines how much money every ministry, office, and agency receives. It decides which programs continue, which expand, and which get cut. It sets the ceiling on what the Bangsamoro government can do for the next twelve months.

For all the attention given to policy bills — and rightly so — the annual budget is where policy becomes real. A law establishing a new education program is a statement of intent. The budget line that funds it is what puts teachers in classrooms. When the Parliament deliberates on the budget, it is not reviewing an accounting spreadsheet. It is making the most consequential policy decisions of the year, one line item at a time.

This chapter covers the Parliament's budget oversight function and teaches you how to prepare a budget briefer — the structured document your MP needs to scrutinize agency budgets, ask the right questions in committee hearings and plenary deliberation, and make informed decisions about how public money is spent.

The Legal Framework for Bangsamoro Budgeting

The budget process in the Bangsamoro is governed by two key instruments: the **Bangsamoro Budget System Act** (BAA No. 84) and the annual **Bangsamoro Budget Memorandum** (BBM) issued by the Ministry of Finance, and Budget and Management (MFBM).

BAA No. 84 establishes the comprehensive legal framework for budget preparation, authorization, and execution in the Bangsamoro. It creates the Bangsamoro Budget Coordinating Committee (BBCC), mandates four budget philosophies — programmatic, transparent, performance-based, and phased — and prescribes the planning-investment-programming-budgeting continuum that connects the BDP to annual agency budgets. It also sets the rules for budget authorization in Parliament, including the prohibition against increasing the total appropriations proposed by the Chief Minister (BAA No. 84, Section 31), the schedule for budget consideration (Section 26), and the rules governing re-enacted budgets when the Parliament fails to enact the General Appropriations Bill on time (Section 33).

The annual BBM translates BAA No. 84's framework into specific guidelines for each fiscal year. It prescribes the **Two-Tier Budgeting Approach (2TBA)**, sets budget ceilings, defines evaluation criteria for agency proposals, and establishes the calendar and forms for budget submission. The BBM is the primary implementing instrument that agencies follow when preparing their proposals and that the Parliament's staff should reference when scrutinizing those proposals.

For the budget briefer, these instruments provide the legal benchmarks against which agency budgets should be measured. Key statutory thresholds include:

- **Personnel Services cap.** The proposed PS budget for the entire Bangsamoro Government shall not exceed forty-five percent (45%) of the total revenue source. (BBM)
- **Development spending floor.** At least twenty percent (20%) of total annual appropriation shall be for development projects. (BBM)
- **DRRM allocation.** At least five percent (5%) of total annual appropriations shall be for disaster risk reduction and management, split seventy percent (70%) into agency P/A/Ps and thirty percent (30%) into Quick Response Funds. (BBM)
- **GAD allocation.** At least five percent (5%) of the total budget appropriation of each M/O/A and BGOCC shall be set aside for gender-responsive programs following a gender and development plan. (BAA No. 84, Section 17)
- **Education, health, and social services priority.** The highest budgetary priority shall be given to education, health, and social services. (BAA No. 84, Section 17)

These thresholds are powerful scrutiny tools. When an agency's PS exceeds the 45 percent cap, or when development spending falls below the 20 percent floor, or when DRRM allocation is missing entirely, the MP has a concrete, legally grounded basis for questioning the proposal.

9.1 Purpose and Use of the Budget Briefer

The budget briefer serves the same function as the legislative briefer described in Chapter 8, but applied to the budget process. It is a Completed Staff Work document that gives the MP everything needed to evaluate an agency's budget proposal: the agency's mandate, its performance record, the specific amounts it is requesting, how those amounts compare to previous years, and the questions the MP should ask to determine whether the request is justified.

Budget deliberation in the Bangsamoro Parliament follows a structured process. The Bangsamoro Expenditure Program — the annual budget document — is submitted by the Chief Minister to the Parliament. It is referred to the Committee on Finance, which conducts agency-by-agency hearings. After committee review, the budget goes to plenary for deliberation and voting. At each stage, the MP needs a briefer tailored to the specific agency or agencies under consideration.

The budget briefer differs from the legislative briefer in one important respect: it is built around numbers. While a legislative briefer analyzes legal provisions and policy implications, the budget briefer analyzes financial data — allocations, expenditures, variances, cost projections. This does not mean the budget briefer is a pure accounting exercise. The numbers tell a story about the agency's priorities, its capacity, and its performance. Your job is to read that story clearly and present it to the MP.

A second difference: the budget briefer is inherently comparative. You are always comparing this year's request to last year's allocation and expenditure. Budgets make sense only in context, and the context is the trend — are allocations going up, going down, or staying flat? Are they moving in a direction that aligns with the Parliament's priorities? The briefer must provide this context for every number it presents.

Sources of Budget Data

The primary source is the Bangsamoro Expenditure Program itself — the document submitted by the Chief Minister to the Parliament. This document contains the agency-by-agency budget proposals, including the breakdown by expenditure category (PS, MOOE, CO) and by program/activity/project.

Supplement the BEP with:

- **Previous years' General Appropriations Acts (or equivalent BEP enactments).** These show what was actually authorized in prior years.
- **Budget execution reports from the Ministry of Finance, Budget, and Management (MFBM).** These show actual spending against authorized amounts — the difference between what was budgeted and what was actually disbursed.
- **Agency performance reports.** Annual reports, BEDC sectoral committee reports, and RPMECom monitoring reports provide context on what the money produced.
- **Audit findings.** If the Commission on Audit has issued findings related to the agency, those findings are relevant to the budget review. Audit observations about underspending, misuse of funds, or procurement irregularities should inform the MP's scrutiny questions.
- **BDP results matrix.** The BDP's results framework provides the targets against which agency performance can be measured.

Gathering this data takes time. Start early. The day the BEP is filed, your office should begin collecting the background materials for every agency in your MP's portfolio. Waiting until the week before the committee hearing is too late for serious analysis.

9.2 When to Prepare a Budget Briefer

Understanding the budget timeline helps you plan when to prepare briefers. BAA No. 84 prescribes the following sequence: in April, the Bangsamoro Budget Coordinating Committee (BBCC) presents the Budget Priorities Framework to the Chief Minister and the Cabinet. The MFBM then issues the annual Bangsamoro Budget Memorandum — the Budget Call — which sets agency ceilings, defines Tier 1 and Tier 2 parameters, and prescribes the forms and deadlines for agency submissions. Agencies prepare and submit their Bangsamoro Budget Preparation (BBP) Forms to the MFBM. The Chief Minister submits the Proposed Bangsamoro Budget to the Parliament, as far as practicable, not later than the thirtieth (30th) of September (BAA No. 84, Section 23).

Once the budget is submitted, the General Appropriations Bill of the Bangsamoro (GABB) must be filed and calendared for first reading within five calendar days. After first reading, the Parliament refers it to committee, which has sixty calendar days to submit its report. Plenary debate and amendments must be completed within thirty calendar days from the committee report. Third reading follows three days after the conclusion of second reading. (BAA No. 84, Section 26)

Two rules from BAA No. 84 are particularly important for budget scrutiny. First, the Parliament shall in no case increase the total budget appropriations proposed by the Chief Minister — any reduction must be transferred to the Contingent Fund or to another line item (Section 31). This means the Parliament's power is to reallocate and reduce, not to add. Second, if the Parliament fails to enact the GABB by the end of the fiscal year, the previous year's GAAB is deemed re-enacted, with significant limitations on what can be funded under a re-enacted budget (Section 33). These constraints define the boundaries within which budget amendments operate.

The Proposed Bangsamoro Budget itself consists of five documents: the Chief Minister's Budget Message, the Bangsamoro Expenditure Program (BEP), the Budget of Expenditures and Sources of Financing (BESF), the Budget Priorities Framework, and the Annual Investment Strategy (BAA No. 84, Section 24). Your office should obtain and review all five documents — not just the BEP — when preparing budget briefers. The BESF in particular contains macroeconomic parameters, revenue projections, and financing details that provide the fiscal context for agency-level budget analysis.

9.2.1 For the Annual Budget Deliberation

The primary trigger is the annual budget cycle. When the Bangsamoro Expenditure Program is submitted to the Parliament, your office needs to prepare budget briefers for every agency that falls within the MP's committee assignments or policy interests.

For MPs who sit on the Committee on Finance, this means briefers for every agency whose budget they will review in committee hearings. That can be a substantial number. Prioritize based on budget size, policy relevance to the MP, and the likelihood of controversy. But even low-priority agencies deserve at least a short-form briefer — surprises in the budget tend to come from the agencies nobody is watching.

For MPs who do not sit on the Committee on Finance, prepare briefers for agencies that fall within their other committee assignments and for agencies that serve their constituency or legislative priorities. When the budget reaches plenary, any MP can participate in the deliberation. The briefer ensures your MP is ready.

Start preparing budget briefers as soon as the Bangsamoro Expenditure Program is available. The committee hearing schedule moves quickly, and the difference between a prepared office and an unprepared one is usually a matter of days.

The annual budget cycle also presents an opportunity for proactive legislative work. Budget deliberation is when the MP has the most direct influence over government spending priorities. A well-prepared MP can use the budget process to advance their legislative agenda — by pushing for increased funding for programs they champion, by questioning agencies whose performance has been weak, and by proposing budget amendments that redirect resources toward underfunded priorities. The budget briefer is the tool that makes all of this possible.

9.2.2 For Committee on Finance Hearings

The Committee on Finance conducts hearings where agency heads and budget officers present and defend their budget proposals. These hearings are where the real scrutiny happens. Prepare a full budget briefer for each agency hearing your MP will attend.

The briefer for a committee hearing should include not only the analysis described in the sections below but also a set of specific questions the MP can ask the agency head. Budget hearings are the MP's opportunity to probe — to ask why personnel costs increased by 40 percent, why a capital project was not completed, why a new program is being proposed without a baseline study. Your questions should be specific, grounded in the data, and sequenced strategically.

9.2.3 For Plenary Budget Deliberation

When the budget reaches plenary, the debate is broader but no less important. The Committee on Finance presents its report, including any recommended amendments. MPs may propose floor amendments — additions, deletions, or reallocations.

The plenary briefer should build on the committee hearing briefer but focus on the big picture: total budget allocation by sector, major policy shifts reflected in the numbers, items the Committee on Finance flagged, and amendments the MP may wish to propose. The plenary is not the place for line-item questioning — that was the committee's job — but it is the place for structural concerns about the budget's alignment with the Bangsamoro Development Plan and the Parliament's stated priorities.

If the MP plans to propose budget amendments during plenary, the briefer should include fully drafted amendments with justifications, following the same format described in Chapter 8 for legislative amendments. Budget amendments proposed in plenary must be specific — stating the exact line item, the current amount, and the proposed change — and the MP must be prepared to defend the amendment on the floor. The briefer provides the foundation for that defense.

9.3 Agency Profile

Every budget briefer begins with a profile of the agency whose budget is under review. This gives the MP the essential context before diving into the numbers.

9.3.1 Ministry, Agency, or Office

Identify the agency precisely. State its full name, its abbreviation, and its place in the Bangsamoro government structure. Is it a ministry, an office under the Office of the Chief Minister, a parliamentary office, a government-owned or controlled corporation, or a constitutionally mandated body?

Note who heads the agency and, if relevant, when the current head was appointed. If there has been recent leadership turnover, note that — new leadership can affect budget execution and program direction.

Also note the agency's organizational structure in brief. How many divisions or bureaus does it have? Does it have field offices? How many provinces does it operate in? This organizational sketch gives the MP a sense of the agency's scale and reach. An agency with headquarters staff only is a different creature from one with field offices across all five provinces and Cotabato City.

9.3.2 Mandate and Legal Basis

State the agency's mandate and the law that created it. For ministries, this is typically the Bangsamoro Administrative Code (BAA No. 13) or the specific BAA that established the ministry's functions. For offices created by executive action, cite the relevant executive order.

Describe the agency's core functions in two to three sentences. What is the agency supposed to do? This may seem obvious for well-known ministries, but it becomes important when you compare the agency's stated mandate to the programs it is actually spending money on. If an agency's budget is heavily weighted toward activities outside its core mandate, that is a finding worth flagging.

Also note whether the agency's mandate has changed since the previous budget cycle. New legislation — a recently enacted BAA — may have expanded or altered the agency's functions. If so, the budget should reflect the new mandate. An agency with an expanded mandate and a flat budget has an unfunded obligation. An agency whose mandate was narrowed but whose budget remains the same may be spending on functions that now belong to another office. Either scenario is a finding for the briefer.

9.3.3 Overall Development Goals

Connect the agency to the larger development framework. The 2nd Bangsamoro Development Plan 2023-2028 identifies six development goals:

1. **Stable, just, and accountable government** — strengthening governance mechanisms, institutional development, and bureaucratic capacity.
2. **Equitable, competitive, and robust economy** — economic growth, investment, job creation, and equitable distribution of economic gains.
3. **Peaceful, safe, and resilient Bangsamoro communities** — lasting peace, security, and community resilience to natural and human-caused disasters.
4. **Inclusive, responsive, and quality social services** — education, health, social welfare, and human capital development for all Bangsamoro people regardless of background.

5. **Rich and diverse Bangsamoro culture and identity preserved and recognized** — promotion and protection of cultural heritage, traditions, and identity.
6. **Strategic, adequate, and climate-resilient infrastructure** — infrastructure that supports inclusive growth and withstands the effects of climate change.

Which of these goals does the agency primarily serve? Most agencies will align with one or two goals. A ministry of education aligns with Goal 4. A ministry of public works aligns with Goal 6. Some agencies — the Ministry of the Interior and Local Government, for instance — may touch on several goals.

Stating this alignment is not decorative. It provides the framework for evaluating whether the agency's budget request actually advances the development priorities the Parliament has endorsed. An agency that claims alignment with Goal 2 (equitable, competitive, and robust economy) but spends 80 percent of its budget on personnel and 5 percent on economic programs has an alignment problem. The briefer should surface that.

Also note which of the BDP's eight development strategies the agency is expected to implement. These strategies — from "improve and strengthen governance mechanisms" to "scale-up functional, strategic, climate-resilient infrastructure" — provide a second layer of alignment testing. An agency's programs should connect visibly to at least one strategy.

The BDP's overall goal — an empowered, cohesive, and progressive Bangsamoro — provides the ultimate benchmark. "Empowered" means improved community capacity through better services and economic opportunities. "Cohesive" means reduced conflict and stronger partnerships across stakeholders. "Progressive" means sustained ability to optimize resources for development. When you review an agency's budget, ask whether the proposed spending moves the region closer to that overall goal or merely maintains the status quo.

A useful exercise: for each agency, prepare a one-paragraph "alignment statement" that describes how the agency's budget proposal connects to the BDP framework. If you struggle to write that paragraph — if the connection is forced or tenuous — that struggle itself is a finding. It means the agency's budget may not be aligned with the development priorities the Parliament has adopted.

9.4 Organizational Outcomes and Performance Indicators

Before examining the budget numbers, establish what the agency is supposed to achieve. The budget request makes sense only in the context of outcomes — what results is the money supposed to produce?

9.4.1 Listing and Defining KPIs

Identify the agency's key performance indicators. These should come from the agency's own planning documents, from the BDP's results matrix, or from the BEDC sectoral committee reports.

For each KPI, provide:

- **The indicator name.** (e.g., "Number of classrooms constructed," "Percentage of barangays with functional health stations," "Hectares of farmland under irrigation.")
- **The definition.** What exactly does this indicator measure? This matters because agencies sometimes redefine indicators to make their performance look better. If "functional health station" meant something different last year than it does this year, note the change.
- **The unit of measurement.** Numbers, percentages, ratios — be precise.

If the agency does not have clearly defined KPIs — and some agencies in the early stages of institutional development may not — flag that as a concern in the briefer. An agency requesting a budget increase without defined performance indicators is asking the Parliament to approve spending on faith.

9.4.2 Alignment with Bangsamoro Development Goals

Map each KPI to the relevant BDP development goal and strategy. This creates a direct line from the agency's performance targets to the Parliament's development priorities.

When KPIs do not align with any BDP goal, ask why the agency is measuring something that does not connect to the development plan the Parliament adopted. When BDP goals have no corresponding KPI in the agency's framework, ask what the agency is doing about that gap.

This alignment check is one of the most powerful tools in budget scrutiny. It shifts the conversation from "how much money does the agency need?" to "what results is the money producing, and are those results what the Parliament decided to prioritize?"

9.4.3 Baseline Data and Targets

For each KPI, present:

- **The baseline.** What was the starting value? When was it measured?
- **Previous year's target.** What did the agency commit to achieving last year?
- **Previous year's actual.** What did the agency actually achieve?
- **Current year's target.** What is the agency proposing to achieve this year?

A simple table works best:

KPI	Baseline	FY ____ Target	FY ____ Actual	FY ____ Target
Classrooms constructed	1,200 (2022)	300	185	350
Teachers trained	4,500 (2022)	1,000	1,120	1,200

This table immediately reveals performance gaps. In the example above, the agency achieved only 185 of its 300-classroom target but is now requesting a higher target of 350. That is a legitimate basis for scrutiny. The MP should ask what went wrong last year and what has changed to make a higher target achievable this year.

Where baseline data is missing, note it. The absence of baseline data is itself a finding. If the agency cannot say where it started, it cannot credibly claim progress.

Distinguishing Outputs from Outcomes

A common problem in agency reporting is the confusion between outputs and outcomes. Outputs are what the agency produces — classrooms built, teachers trained, road kilometers constructed. Outcomes are the changes those outputs create — improved literacy rates, better student-teacher ratios, reduced travel time between municipalities. Outputs measure effort. Outcomes measure impact.

Many agencies report only outputs because outputs are easier to count. But the Parliament should care about outcomes, because outcomes tell you whether the money is actually making a difference. The briefer should push past output reporting and identify whatever outcome data is available. If outcome data does not exist, flag it as a gap — and the MP should ask the agency what it plans to do about measuring actual impact.

The BDP's results framework, maintained by the BEDC, is the authoritative reference for outcome indicators at the regional level. When preparing the budget briefer, cross-reference the agency's KPIs against the BDP results matrix to check for consistency. An

agency that defines its KPIs differently from the BDP framework creates confusion about what "success" means — and that confusion makes it harder for the Parliament to evaluate performance.

9.5 Budget Comparison and Variance Analysis

This is the quantitative core of the budget briefer. You are comparing the agency's current budget request to its previous allocations and expenditures, broken down by the three standard budget categories.

9.5.1 Personnel Services (PS)

Personnel Services covers salaries, wages, allowances, bonuses, and benefits of government employees. In most Bangsamoro agencies, PS is the largest single budget item — often consuming 50 to 70 percent of total allocation.

Present the following data:

- **Previous year allocation.** How much was allocated for PS last year?
- **Previous year actual expenditure.** How much was actually spent?
- **Current year request.** How much is the agency requesting for PS this year?
- **Variance.** What is the change in absolute terms (pesos) and relative terms (percentage)?

Then analyze the variance. Budget increases in PS are typically driven by:

- **New positions.** The agency is requesting additional staff. How many positions? What are the position titles and salary grades? Are these positions necessary to deliver the agency's programs, or are they administrative overhead?
- **Salary adjustments.** Government-wide salary standardization or step increments. These are usually non-discretionary.
- **Reclassification.** Existing positions are being upgraded to higher salary grades. Why? Is the reclassification justified by expanded responsibilities?
- **Conversion of contractual to permanent positions.** This is common in agencies that hired contract workers during the transition period and are now regularizing them.

A significant PS increase without a corresponding increase in program delivery is a red flag. If the agency is adding fifty positions but its program targets are flat, the MP should ask what those fifty people will do.

Also check the agency's fill rate — the percentage of authorized positions that are actually occupied. A low fill rate combined with a request for new positions is contradictory. Why create new positions when you have not filled the existing ones?

The 45 Percent PS Cap

The Bangsamoro Budget Memorandum prescribes that the proposed PS budget for the entire BARMM shall not exceed forty-five percent (45%) of total revenue. While this is a government-wide cap rather than an agency-specific one, the briefer should note the agency's PS as a percentage of its total budget and flag agencies where PS exceeds 70 percent. The higher the agency's PS share, the less fiscal space it has for program delivery and capital investment. The MP should ask whether the agency's PS ratio is sustainable and whether it leaves enough room for the services the agency is supposed to deliver.

Under the Two-Tier Budgeting Approach, PS has distinct Tier 1 and Tier 2 components. Tier 1 PS covers salary and allowances of all authorized positions at current rates, standard benefits, and entitlements. Tier 2 PS covers adjustments due to budget policy decisions — such as new positions created for new programs, abolition or expansion of existing P/A/Ps, major organizational restructuring, or transfer of functions between agencies. When reviewing PS increases, the briefer should identify which increases are Tier 1 (automatic, baseline) and which are Tier 2 (policy-driven, discretionary). Tier 2 PS increases are the ones that warrant deeper scrutiny because they reflect deliberate spending choices.

One additional consideration specific to the Bangsamoro context: the transition from ARMM to BARMM created a unique staffing situation. Many agencies absorbed positions from the defunct ARMM regional departments, and the process of rationalizing those positions — aligning old ARMM structures with the new BARMM organizational framework — is ongoing. PS increases that are driven by this rationalization are qualitatively different from PS increases driven by new hiring. The briefer should distinguish between the two. Rationalization costs are transitional and should eventually stabilize. Expansionary hiring is a policy choice that creates permanent recurring obligations.

9.5.2 Maintenance and Other Operating Expenses (MOOE)

MOOE covers the day-to-day costs of running the agency: office supplies, travel, utilities, training, professional services, repairs, and similar operational expenses. MOOE is where program delivery actually happens — the training workshops, the field monitoring visits, the procurement of materials.

Present the same data: previous allocation, actual expenditure, current request, and variance.

Analyze the variance by looking at:

- **Program-related MOOE.** How much of the MOOE goes to actual program delivery (training, service delivery, monitoring) versus administrative operations (office rental, utilities, supplies)? A high administrative-to-program ratio suggests the agency is spending more to maintain itself than to serve its beneficiaries.
- **Travel expenses.** In the Bangsamoro context, where the region spans multiple islands and remote areas, travel is a legitimate operational cost. But excessive travel budgets — or travel budgets that increase faster than program budgets — warrant scrutiny.
- **Professional and consultant fees.** Is the agency outsourcing work that its regular staff should be doing? Consultant fees that grow year over year may indicate a structural capacity problem the agency is not addressing through regular hiring.
- **Training expenses.** Training is valuable, but it should be linked to measurable outcomes. An agency that spends heavily on training but shows no improvement in staff performance indicators has a training effectiveness problem, not a budget problem.

9.5.3 Capital Outlay (CO)

Capital Outlay covers long-term investments: construction of buildings and facilities, procurement of vehicles and heavy equipment, information technology infrastructure, and land acquisition.

CO is where the biggest individual expenditures occur, and it is the category most prone to implementation delays. Present the data and analyze:

- **Project completion rates.** For capital projects that were funded in previous years, what percentage are complete? What percentage are ongoing? What percentage have not started? Unspent CO from previous years is a strong indicator of implementation capacity problems.

- **New capital projects.** What new projects is the agency proposing? Are they supported by feasibility studies? Is the cost estimate based on actual market prices or on rough estimates?
- **Multi-year projects.** For projects that span multiple fiscal years, is the total project cost stated? What is the cumulative amount already spent? What amount is needed to complete the project? Is the project on schedule?
- **Alignment with infrastructure priorities.** Does the capital project align with the BDP's infrastructure strategy? Is it in the Bangsamoro Development Investment Program (BDIP)?

Capital projects that are funded year after year without completion deserve aggressive questioning. The MP should ask for a project-by-project status report with specific completion dates and explanations for delays.

9.5.4 Identifying and Explaining Variances

After analyzing each category individually, step back and look at the overall picture. Present a summary comparison:

Budget Category	FY ____ Allocation	FY ____ Actual	FY ____ Request	Variance (Allocation vs. Request)
PS				
MOOE				
CO				
Total				

Then address these questions in narrative form:

- **Is the overall budget increasing or decreasing?** By how much? Is the direction consistent with the agency's expanding or contracting role?
- **Is the budget composition shifting?** If PS is growing as a share of the total while MOOE and CO are shrinking, the agency is spending proportionally more on people and less on programs and infrastructure. That may be justified during a staffing build-up phase, but it warrants examination.
- **How does actual expenditure compare to allocation?** An agency that consistently spends less than its allocation has an absorption capacity problem. Requesting a

budget increase when you have not spent last year's allocation requires a compelling explanation.

- **Are there unexplained variances?** Any line item that changes by more than 20 percent from the previous year deserves an explanation. If the agency's MOOE increased by 45 percent, why?

Present these findings in plain terms. The MP does not need accounting jargon. "The agency spent only 62 percent of its capital outlay last year, but is requesting a 30 percent increase this year" communicates the issue clearly.

Three-Year Trend Analysis

Where data permits, present a three-year trend rather than a single year-over-year comparison. A three-year view reveals patterns that a single comparison misses. An agency whose CO utilization has declined for three consecutive years has a systemic problem, not a one-time hiccup. An agency whose PS share has grown from 50 percent to 60 percent to 70 percent over three years is on a trajectory that will eventually crowd out program spending entirely.

The three-year trend is also useful for identifying deliberate budget strategy. Some agencies deliberately request more than they need in one category, expecting the Committee on Finance to reduce it — a negotiating tactic that creates slack in the approved budget. A multi-year view makes this pattern visible.

If three years of comparable data are available, add a trend table:

Budget Category	FY ____	FY ____	FY ____ Request	3-Year Trend
PS				Increasing / Stable / Decreasing
MOOE				
CO				
Total				

9.5.5 Gender and Development (GAD) Budget Review

Under Republic Act No. 9710 (the Magna Carta of Women) and BAA No. 84 (Section 17), every M/O/A is required to allocate at least five percent (5%) of its total budget to gender-responsive programs following a gender and development plan. The Bangsam-

oro Women Commission (BWC) issues separate guidelines on GAD budget preparation, and the BWC's endorsement is required for all gender and development-related budget proposals.

Review the agency's GAD allocation:

- **Does the budget include a GAD allocation?** What percentage of the total budget is it?
- **Is it at least 5 percent?** If not, the agency is non-compliant.
- **What specific programs and activities does the GAD allocation fund?** Are these genuine gender-responsive programs, or has the agency simply relabeled existing activities as GAD-related to meet the 5 percent threshold?
- **Are GAD targets included in the agency's KPIs?** If the agency claims to mainstream gender, that should be reflected in measurable indicators.

GAD budget review is often treated as a checkbox exercise. Do not let it be one. Meaningful GAD budgeting requires that gender considerations actually shape program design, not just budget labels. If the agency's GAD plan consists entirely of "gender sensitivity training for staff," the MP should ask whether the agency's actual service delivery — its health programs, its education programs, its livelihood programs — has been designed with gender analysis.

In the Bangsamoro context, GAD budgeting carries additional weight. The region has some of the lowest gender parity indicators in the country — in education access, maternal health, economic participation, and political representation. Agencies whose mandates directly affect these gaps — the Ministry of Social Services and Development, the Ministry of Basic, Higher, and Technical Education, the Ministry of Health — should have substantive GAD programs that go beyond training workshops to address structural barriers. The budget briefer should evaluate whether the GAD allocation is proportional to the scale of gender gaps in the agency's sector.

9.6 Existing Programs, Projects, Activities, and Services (Tier 1)

Under the Two-Tier Budgeting Approach (2TBA), Tier 1 represents the agency's baseline budget — the estimated cash requirements for Personnel Services of authorized positions, administrative operating expenses sensitive to inflation and fixed expenses, and

recurring programs and activities based on the agency's minimum cash requirement level from the previous year. These are the bedrock of the agency's operations: the costs of keeping the lights on, the staff paid, and the existing programs running.

The MFBM issues each agency a prescribed Tier 1 budget ceiling, which the agency is expected to allocate across its administrative and operational priorities. The Tier 1 ceiling may be increased from fiscal space to fund major expansion and new development P/A/Ps under Tier 2.

9.6.1 Categorizing Existing PPAS

List and categorize the agency's existing PPAS. A useful categorization:

- **Core mandate programs.** These are the programs that directly implement the agency's legal mandate. For the Ministry of Basic, Higher, and Technical Education, core programs include school operations, teacher deployment, and curriculum delivery.
- **Support programs.** These are programs that support the agency's core mandate but are not direct service delivery — capacity building, monitoring and evaluation, planning and coordination.
- **Administrative programs.** General administration, financial management, human resource management, and similar internal functions.
- **Cross-cutting programs.** Programs that serve multiple sectors or involve interagency coordination — disaster response, GAD implementation, anti-corruption measures.

This categorization reveals how the agency distributes its resources across functions. An agency that spends 60 percent of its budget on administration and 40 percent on core mandate programs has its priorities inverted. The briefer should surface that distribution.

The Bangsamoro budget framework uses a parallel classification system under the Program Expenditure Classification (PREXC) approach. Under PREXC, P/A/Ps are classified by cost structure into three categories: **General Administration and Support (GAS)** — activities that provide overall administrative management support to the M/O/A; **Support to Operations (STO)** — activities that provide technical and substantive support to operations, such as planning, policy formulation, monitoring and evaluation, and information systems; and **Operations** — activities directed at fulfilling the M/O/A's mandate, including regulatory services, production of goods, and delivery of services. When agency budget data is presented using the PREXC structure, the briefer should map these categories to the practical framework above — GAS corresponds to administrative programs, STO to support programs, and Operations to core mandate programs. The PREXC classification,

combined with the expenditure class breakdown (PS, MOOE, CO), gives the MP a two-dimensional view of where the money goes: what type of activity it funds and what type of expense it covers.

A note on how to get this information: the BEP typically presents budget data at the program level, but the level of detail varies by agency. Some agencies provide granular program-level breakdowns. Others aggregate multiple activities under broad headings. If the BEP data is not detailed enough for your analysis, you may need to request supplementary documents from the agency or from the MFBM. The Committee on Finance can also request detailed program budgets as part of the hearing process — your MP can formally request this information through the committee chair.

9.6.2 Budget Allocation per PPAS

For each continuing program, present:

- **The program name and brief description.**
- **Previous year allocation.**
- **Previous year actual expenditure.**
- **Current year request.**
- **Variance.**

Use a table:

PPAS	Description	FY ____ Alloc	FY ____ Actual	FY ____ Request	Variance
Program A	Direct service delivery				
Program B	Capacity building				
Program C	General administration				

For programs with large budgets, break down the allocation by sub-component if the data is available. A program listed as “Livelihood Development” with a PhP 500 million allocation is not informative. What kind of livelihood development? Where? For whom? The breakdown should show whether the money goes to training, to capital grants, to equipment procurement, or to some combination. Without this detail, neither the MP nor the Parliament can make informed decisions about the allocation.

When the BEP data does not provide sub-component breakdowns, note that as a limitation in the briefer and recommend that the MP request the detailed breakdown during the committee hearing.

9.6.3 Performance Evaluation of Existing PPAS

This is the critical section. For each major continuing program, evaluate performance:

- **Physical targets vs. actual accomplishment.** Did the program meet its targets? If the target was to construct 300 classrooms and only 185 were built, what happened?
- **Financial targets vs. actual expenditure.** Did the program spend its allocation? Underspending can mean implementation delays, procurement problems, or overestimated costs. Overspending can mean poor planning.
- **Outcome indicators.** Beyond outputs (things built, people trained), what outcomes can be observed? If the agency trained 1,000 teachers, did student performance improve? If the agency built 185 classrooms, did enrollment increase in those areas?
- **Issues and challenges.** What problems did the program encounter? Are those problems resolved, or will they recur in the current fiscal year?

Performance evaluation of continuing programs is the foundation of budget scrutiny. An agency that failed to deliver on last year's targets should not automatically receive the same or higher allocation this year. The MP should demand an explanation of what went wrong and a credible plan for doing better.

At the same time, an agency that exceeded its targets and can demonstrate measurable outcomes has earned the credibility to request an increase. The briefer should present both scenarios fairly.

The Absorption Capacity Test

One of the most useful analytical tools in budget scrutiny is the absorption capacity test — comparing the amount an agency was allocated against the amount it actually spent. An agency with a low absorption rate (spending significantly less than its allocation) has a capacity problem. It may lack the procurement expertise to execute projects, the staffing to deliver programs, or the administrative systems to process disbursements.

When an agency with low absorption requests a budget increase, the burden of proof shifts. The MP should ask: "You did not spend what we gave you last year. Why should we give you more this year?" The agency may have legitimate answers — a procurement

delay caused by factors outside its control, a natural disaster that disrupted operations, or a policy change that required program redesign. But the question must be asked, and the answer must be credible.

Present absorption rates for each major Tier 1 program. A table works well:

PPAS	FY ____ Allocation	FY ____ Actual Expenditure	Absorption Rate
Program A	PhP 100M	PhP 82M	82%
Program B	PhP 50M	PhP 31M	62%
Program C	PhP 200M	PhP 120M	60%

Programs with absorption rates below 80 percent warrant scrutiny. Programs below 60 percent warrant serious questions about whether the funding is being wasted — not through corruption, necessarily, but through inefficiency, poor planning, or insufficient capacity.

9.7 New and Expanded Programs, Projects, Activities, and Services (Tier 2)

Tier 2 covers new and expanded spending — programs the agency is proposing for the first time, or existing programs proposed for significant expansion in scope, geography, or beneficiary coverage. Under the Two-Tier Budgeting Approach (2TBA), Tier 2 represents everything above the agency's baseline (Tier 1) budget ceiling, funded from the fiscal space between projected revenues and Tier 1 requirements.

New and expanded programs deserve heavier scrutiny than continuing ones. Continuing programs have a performance record you can evaluate. New programs have only projections. The burden of proof is on the agency to show that the new program is necessary, feasible, and affordable.

This is not a presumption against new programs. The Bangsamoro region is in a developmental stage where new initiatives are essential — new programs address gaps in service delivery, respond to emerging needs, and implement newly enacted legislation. But the Parliament's job is to ensure that new spending is justified, not to rubber-stamp every proposal an agency submits. The budget briefer provides the analytical foundation for that judgment.

9.7.1 Categorizing New and Expanded PPAS

List and categorize the Tier 2 proposals using the same framework as Tier 1:

- Core mandate programs
- Support programs
- Administrative programs
- Cross-cutting programs

For each new program, note whether it is:

- **A genuinely new initiative** — something the agency has never done before.
- **An expansion of an existing program** — a current program being expanded in scope, geography, or beneficiary coverage.
- **A pilot program** — a small-scale trial intended to test an approach before scaling up.
- **A one-time project** — a time-bound initiative with a defined completion date (a building, a study, a system installation).

The distinction matters. A genuinely new initiative requires more scrutiny than an expansion of a proven program. A pilot program with a built-in evaluation mechanism is more defensible than an agency's request to launch a full-scale program without prior evidence.

9.7.2 Rationale and Scope

For each new program, the briefer should answer:

- **Why is this program needed?** What problem does it address? Is the problem documented with data, or is it based on anecdotal evidence?
- **What is the legal or policy basis?** Does a law, an executive order, or the BDP require this program? Or is it the agency's own initiative?
- **What is the scope?** Who are the beneficiaries? How many? Which geographic areas?
- **What is the timeline?** When does the program start? When is it expected to produce results? Is there a completion date, or is it intended to be permanent?
- **Has a feasibility study been conducted?** For capital-intensive programs, is there engineering or economic analysis supporting the proposal?

- **Has the program been endorsed by the relevant BEDC sectoral committee?** Programs that align with the BDP and have BEDC endorsement have stronger standing than programs proposed unilaterally by the agency.

If the agency's Tier 2 proposal lacks clear answers to these questions, the MP has grounds to question the proposal in the committee hearing.

9.7.3 Budget Allocation and Priority Ranking

For each new program, present:

- **The total proposed budget.**
- **The breakdown by PS, MOOE, and CO.**
- **The proportion of the agency's total budget increase attributable to this new program.**

Then rank the new programs by priority. This ranking should reflect:

- **Alignment with BDP goals and strategies.** Programs that directly advance a BDP development goal rank higher.
- **Alignment with the MP's legislative agenda.** Programs that support bills the MP has filed or advocacies the MP has championed rank higher for the MP's purposes.
- **Cost-effectiveness.** Programs that promise large impact relative to cost rank higher.
- **Implementation readiness.** Programs that have completed planning, feasibility studies, and stakeholder consultation rank higher than programs still at the concept stage.
- **Budget Utilization Rate (BUR).** The agency's track record of spending its allocation. A low BUR indicates capacity constraints that cast doubt on the agency's ability to execute new programs.
- **Indicative Annual Procurement Plan (APP).** Whether the agency has prepared a credible procurement plan for the new program. Tier 2 proposals without an APP lack the operational detail needed for implementation within the fiscal year.
- **Absorptive capacity.** The agency's demonstrated ability to convert budget allocation into delivered goods and services. This goes beyond BUR to include the quality and timeliness of delivery, not just the amount disbursed.
- **Endorsement by the relevant authority.** Under the Bangsamoro Budget Memorandum, specific proposals require endorsement from designated authorities: the Ministry of Public Works for buildings and infrastructure, the Ministry of Environment, Natural Resources and Energy for environment-related proposals, the

Information and Communications Office for ICT proposals, and the Bangsamoro Women Commission for gender and development proposals. Proposals lacking the required endorsement should be flagged — the MP can ask why the endorsement was not obtained.

- **BPDA certification.** The Bangsamoro Planning and Development Authority is required to certify that all proposed P/A/Ps are aligned with the BDP's six development goals and eight development strategies. Proposals without BPDA certification may not have been vetted for development alignment.

These criteria track closely with the formal budget evaluation criteria established by BAA No. 84 (Section 21), which requires proposed P/A/Ps to be reviewed based on: relationship with the Chief Minister's priority agenda; past performance vis-a-vis target spending; implementation readiness including analysis of development plans and M/O/A capability; program convergence with other agencies' P/A/Ps; and all available sources of funds. The budget briefer should evaluate Tier 2 proposals against both the BAA No. 84 criteria and the BBM's practical evaluation considerations.

If the agency's total Tier 2 request exceeds what the budget can accommodate, the priority ranking tells the MP which new programs to support and which to defer to the next fiscal year.

The "What If" Question

For every new program, run a simple thought experiment: what happens if this program is not funded? If the answer is "nothing changes" — the agency continues operating as before, services continue at current levels, no mandate goes unfulfilled — then the program is discretionary, not essential. Discretionary programs are not necessarily bad, but they should be evaluated differently from programs that fulfill a legal mandate or address an urgent need.

Conversely, if the answer is "a legal obligation goes unmet" or "a critical service gap persists," the program has a stronger claim on resources. The briefer should present this analysis so the MP can weigh the trade-offs.

9.8 Budget Scrutiny Questions

This section provides the MP with specific questions to ask during budget hearings and plenary deliberation. Unlike the legislative briefer's interpellation section, budget questions are often more direct — they call for numbers, dates, and explanations rather than policy arguments.

Organize the questions by section, corresponding to the structure of the briefer.

Agency Profile and Mandate

- What is the agency's current authorized staffing complement? How many positions are filled? What is the fill rate?
- Have there been any changes to the agency's mandate since the last budget cycle? If so, what are they and what is their fiscal impact?
- What major institutional developments occurred during the previous fiscal year?

Performance and KPIs

- For each KPI that fell short of target last year: What caused the shortfall? What corrective measures have been taken? Why should the Parliament expect a different result this year?
- Has the agency's results matrix been reviewed by the BEDC sectoral committee? What were the committee's findings?
- What outcome data — not just output data — can the agency present? For example, if the agency trained 1,000 farmers in new techniques, what was the measurable impact on crop yields or farm income?

Personnel Services

- How many new positions are being requested? What are the position titles, salary grades, and justifications?
- What is the ratio of administrative positions to program delivery positions? Is that ratio improving?
- Are there positions that have been vacant for more than twelve months? If so, why have they not been filled?
- What is the agency's overtime and allowance expenditure as a proportion of base salaries? Is it within normal parameters?

MOOE

- What percentage of MOOE goes to direct program delivery versus administrative operations?
- Has the agency conducted a cost analysis of its recurring operational expenses? Where are the areas of potential savings?
- What is the agency's travel budget as a percentage of total MOOE? How does it compare to the previous year?

- For training and capacity-building expenses: What specific training programs are planned? What are the expected outcomes? How will training effectiveness be measured?

Capital Outlay

- For capital projects funded in the previous year: What is the completion status of each project? What is the total amount of unspent CO from the previous year?
- For new capital projects: Has a detailed engineering design or feasibility study been completed? What is the total project cost, including multi-year projections?
- Are any capital projects subject to procurement delays? If so, what is the agency doing to resolve them?
- What is the agency's CO utilization rate over the past three fiscal years?

GAD Budget

- What percentage of the total budget is allocated to GAD? Does it meet the 5 percent minimum?
- What specific programs and activities does the GAD allocation fund?
- What measurable outcomes has the agency achieved from its GAD budget in the previous fiscal year?
- Has the agency conducted a gender analysis of its core programs? If so, what did it reveal, and how has the budget responded?

New and Expanded Programs (Tier 2)

- What evidence supports the need for this new program? Has a needs assessment been conducted?
- What are the specific, measurable targets for the program's first year?
- What happens if the program does not achieve its targets? Is there an exit strategy or evaluation trigger?
- Has the program been endorsed by the relevant BEDC sectoral committee?
- If the program requires multi-year funding, what is the total projected cost over its lifecycle?
- Has the agency prepared an Indicative Annual Procurement Plan for this program?
- Has the program received BPDA certification for alignment with the BDP?
- Has the program received endorsement from the relevant Budget Endorsing Authority (MPW for infrastructure, MENRE for environment, ICO for ICT, BWC for GAD)?

- If this is an expansion of an existing program, what evidence shows the existing program is performing well enough to justify scaling up?

Overall Budget

- What is the total budget request compared to the previous year's allocation? What is the percentage change?
- What proportion of the budget increase is driven by PS versus MOOE versus CO?
- If the Parliament approves a reduced allocation — say, 90 percent of the request — which programs would the agency cut or defer?
- What are the agency's three highest-priority budget items? What are the three lowest?

These questions are starting points. Tailor them based on the specific agency's budget data. The most effective budget scrutiny questions are not generic — they reference specific line items, specific programs, and specific numbers from the agency's own submission.

Sequencing Your Questions

The order of questions matters. In a budget hearing, you typically have limited time. Agency heads and budget officers are skilled at consuming time with long answers to open-ended questions. Structure your questions to get the most important information first.

Start with performance questions — did the agency deliver what it promised? Then move to variance questions — why did the numbers change? Then move to new program questions — why should the Parliament fund something new? End with accountability questions — what are the agency's specific commitments for the coming fiscal year?

This sequence builds a narrative. Performance questions establish the baseline. Variance questions identify the gaps. New program questions test the agency's ambitions against its track record. Accountability questions lock in commitments that can be monitored in the next budget cycle.

A practical tip: draft the questions on individual cards or separate pages. During the hearing, the MP can shuffle the order based on how the proceeding unfolds. If another MP asks one of your prepared questions, the MP can skip it and move to the next. If the agency's answer to one question opens a new line of inquiry, the MP can insert a follow-up without losing the overall structure.

9.9 Recommendations for the MP

The budget briefer concludes with your recommendations. As with the legislative briefer, the staff prepares the analysis and recommendations; the MP makes the decision.

Structure your recommendations clearly:

Recommended Position on the Overall Budget

State whether you recommend that the MP support, conditionally support, or oppose the agency's overall budget request. If conditional, specify the conditions — adoption of certain amendments, receipt of additional documentation, or resolution of specific concerns.

Recommended Amendments to the Budget

If your analysis reveals problems — unjustified increases, unfunded mandates, non-performing programs, or misaligned priorities — recommend specific budget amendments. These can take the form of:

- **Reduction.** Reduce a specific line item by a stated amount. (e.g., "Reduce the CO allocation for Project X by PhP 50 million, pending completion of the feasibility study.")
- **Reallocation.** Transfer funds from one line item to another within the same agency. (e.g., "Reallocate PhP 20 million from administrative MOOE to the scholarship program under Program B.")
- **Conditional release.** Recommend that a specific allocation be approved but released only upon compliance with stated conditions. (e.g., "Approve the Tier 2 allocation for Program D, subject to submission of a detailed implementation plan within 90 days.")
- **Deletion.** Recommend the removal of a line item entirely. This is rare and should be reserved for proposals that are clearly unjustified.

For each recommended amendment, provide a brief justification — the same one-paragraph structure used in the legislative briefer's amendment section.

A note on budget amendments: unlike legislative amendments, which change the text of a bill, budget amendments change numbers. The amendment form is different. Instead of "delete the words '***' and insert '***,'" a budget amendment states: "Reduce the allocation for [agency] under [program/expenditure item] from PhP ___ to PhP ***." Or: "Insert a new line item under [program] for [purpose] in the amount of PhP*** ." When reducing one item and increasing another, the MP should present both sides of the reallocation together so the body can see that the total budget remains balanced.

The rules on budget amendments vary — some Parliaments require that any increase in one line item be offset by a decrease in another (revenue-neutral amendments). Others allow amendments that increase total spending. Check the Parliament's Rules of Procedure and the Committee on Finance's guidelines for the specific rules applicable in the current budget cycle.

Recommended Questions for the Hearing

From the full list of scrutiny questions in Section 9.8, select the five to ten most important questions for this agency. Rank them by priority. If the hearing runs short, the MP should ask these questions first.

Items Requiring Follow-Up

List any items that cannot be resolved during the budget hearing and require follow-up — missing data, documents the agency promised to submit, issues deferred to plenary deliberation. These items should be tracked in the action log.

Action Log and Approval

Use the same action log and approval block format as the legislative briefer:

Date	Action	Status
[date]	BEP submitted to Parliament	Complete
[date]	Agency budget data compiled	Complete
[date]	Budget briefer prepared	Complete
[date]	Briefer submitted to MP for review	Pending
[date]	Committee on Finance hearing	Upcoming — [date]
[date]	Plenary budget deliberation	TBD

The approval block:

- **Prepared by:** [Staff member name and designation]
- **Date submitted:** [Date]
- **Recommended position:** [Support / Support with amendments / Oppose / Reserve position]

For the MP:

- **Approved as recommended:** ☐
- **Approved with modifications:** ☐
- **Disapproved / Return for further study:** ☐
- **MP's signature: ___**
- **Date: ___**

The Budget as a Policy Document

Budget work is sometimes treated as the dull sibling of legislative drafting. It lacks the drama of interpellation, the intellectual satisfaction of crafting a new law, the visibility of authoring a landmark bill. But budget scrutiny is where the Parliament's oversight function is most consequential.

Every peso in the Bangsamoro Expenditure Program is a decision. The decision to fund a road in one province is simultaneously a decision not to fund a road in another. The decision to create fifty new positions in one ministry is a decision to leave fifty positions unfunded elsewhere. Budget scrutiny forces those trade-offs into the open.

The budget briefer is the instrument that enables your MP to make those trade-offs intelligently. It converts raw financial data into actionable analysis. It connects spending to outcomes. It identifies waste, misalignment, and missed opportunities. And it ensures that the MP walks into the budget deliberation with the same level of preparation they would bring to a major policy bill — because the budget is a major policy document. It is arguably the most important one the Parliament passes each year.

The six development goals of the BDP 2023-2028 are not just aspirational statements. They represent the Bangsamoro people's priorities as adopted by the Parliament. Goal 1 demands accountable government. Goal 2 demands an equitable economy. Goal 3 demands peaceful communities. Goal 4 demands quality social services. Goal 5 demands cultural preservation. Goal 6 demands resilient infrastructure. Every budget line item should advance at least one of these goals. When a line item does not, the MP should ask why.

That is the work. It requires patience, numerical literacy, and a willingness to dig into the details. But it is some of the most important work a legislative office can do.

The fiscal sources that fund the BEP — the annual block grant from the national government, the Special Development Fund, locally generated revenues, and other sources enumerated in the BOL — are finite. Every peso allocated to one purpose is a peso unavailable for another. The budget briefer makes those trade-offs visible. It puts numbers on choices. It connects spending to performance. It links appropriations to development goals.

Prepare the briefer. Do the analysis. Give the MP everything they need.

That is Completed Staff Work applied to the budget, and it is the standard your office should meet every fiscal year.

Back to Table of Contents

Chapter 10 — Amendments

A bill does not always arrive at the plenary in its final form. More often, it arrives in a form that needs work. Committee members spot problems during scrutiny. Floor deliberations reveal gaps. A Member raises a concern during interpellation that no one anticipated. The response to all of these is the amendment.

Amendments are how the Parliament refines legislation. They are the mechanism by which a draft bill — sometimes rough, sometimes incomplete, sometimes overtaken by new information — becomes a law that the Parliament as a whole can support. If bill drafting is architecture, amendments are the renovation work. They insert rooms that were missing, remove walls that block the light, and replace materials that turned out to be unsuitable.

For the drafter, amendments represent some of the most demanding work in the legislative process. You must draft language that fits seamlessly into an existing text — matching its style, numbering, and terminology — while achieving a specific change that the sponsoring MP or committee has requested. You must do this quickly, often during a session, sometimes while the debate is still underway. And you must do it precisely, because a poorly drafted amendment can create more problems than the defect it was meant to fix.

This chapter covers the types of amendments recognized in the Bangsamoro Parliament, the procedures that govern them, and the exact language and format you should use when drafting them. It draws on the Rules, Procedures, and Practices of the Bangsamoro Transition Authority Parliament — Resolution No. 268 — as the governing procedural framework.

10.1 Types of Amendments

Resolution No. 268 recognizes two broad categories of amendments that can be presented during plenary deliberation:

Committee Amendments. These are alterations or changes — by addition, deletion, substitution, or any combination — offered by the committee that considered the bill. Committee amendments arise from the committee's scrutiny of the bill during the committee stage. They reflect the committee's collective judgment about what the bill needs.

Floor Amendments (Individual Amendments). These are alterations or changes offered by an individual Member of Parliament during the period of amendments in the plenary. Floor amendments reflect a particular Member's view that the bill, even as modified by the committee, still needs further adjustment.

Both types follow the same basic mechanics. An amendment proposes to change the text of a bill in one or more of the following ways:

- **Insertion** — adding new language where none existed before. This could be a new word, a new phrase, a new subsection, a new section, or even an entirely new article.
- **Deletion** — removing existing language from the bill. This could be a single word, a phrase, a subsection, a section, or an entire article.
- **Substitution** — replacing existing language with new language. This combines deletion and insertion into a single operation: you take out the old text and put in the new text.

These three operations — insertion, deletion, and substitution — are the building blocks of all amendment drafting. Every amendment, no matter how complex, reduces to one or some combination of these operations.

There is a fourth category that deserves separate treatment: the **substitute bill**. A substitute bill replaces the entire text of the original bill with a new version. It is, in effect, a complete rewrite offered as an amendment. Substitute bills follow special procedures and raise particular drafting challenges, which Section 10.5 addresses.

Important Constraints

Resolution No. 268 imposes several rules on amendments that every drafter must know:

Germaneness. An amendment that seeks to include a provision not germane to the purpose of the bill — called a "rider" — is not allowed. The one-subject rule applies to amendments just as it applies to bills. If a bill deals with fisheries regulation, you cannot amend it to include provisions about road construction. The amendment must relate to the subject matter of the bill being amended.

Specificity. Amendments must be "presented concretely and specifically in the course of the debate, indicating therein the page and the line in which the amendments are proposed to be made." This is a procedural requirement, but it also imposes a drafting obligation. You cannot offer a vague amendment — "improve the penalty provision" — and leave it to the plenary to figure out the language. You must state exactly what text you propose to insert, delete, or substitute, and where.

Writing requirement for substitution amendments. "No amendment by substitution shall be entertained unless the text thereof is submitted in writing." This means the drafter must prepare a written text before the amendment can be formally moved on the floor.

Withdrawal. Any amendment may be withdrawn before a vote is taken on it. Once the plenary votes, the amendment stands or falls.

Preservation of deleted language. Whenever a Member wishes to retain words or phrases that the committee deleted, that Member must present an amendment as if those words or phrases had never appeared in the bill. In other words, the amendment must affirmatively propose inserting the language back — it cannot simply argue that the committee's deletion was wrong.

10.2 Committee Amendments

Committee amendments emerge during the committee stage of the legislative process. After a bill is referred to a committee following Second Reading, the committee examines it in detail — line by line, section by section. During this scrutiny, the committee may decide that certain provisions need to be changed, added, or removed.

How Committee Amendments Arise

The committee stage is where most of the substantive work on a bill takes place. The committee holds hearings, invites resource persons, consults stakeholders, and deliberates among its members. Through this process, the committee develops a set of proposed changes to the original bill.

These changes might reflect:

- Technical corrections identified during hearings (a deadline that is impractical, a definition that is too narrow or too broad)

- Substantive policy adjustments based on testimony from implementing agencies or affected communities
- Legal issues flagged by the Policy Research and Legal Services (PRLS) or the committee's own legal staff
- Compromises reached among committee members with different views on a provision
- Alignment issues with existing BAAs or national law that became apparent during scrutiny

The committee incorporates these changes into the bill and produces a committee report. The committee report contains the revised text of the bill — including all committee amendments — along with the discussions, justifications, and the votes of the members who participated in the final committee vote.

Procedure in Plenary

When the bill comes to the plenary for the Consideration and Deliberation Stage, committee amendments are taken up first, before any floor amendments. The procedure works as follows:

1. The sponsor of the committee report presents the bill to the plenary, explaining what the committee did and why.
2. After the period of interpellation, the period of amendments begins.
3. The sponsor presents the committee amendments to the plenary.
4. If the proponent (the original author of the bill) accepts the committee amendments, they are adopted without further debate.
5. If the proponent does not accept the committee amendments, the period of amendment continues, and the proponent may propose alternative amendments.
6. Committee amendments that are contested are debated and voted upon.

Drafting Committee Amendments

When you draft committee amendments for a committee report, present them in a way that makes the changes immediately clear. The committee report should show what the original bill said and what the committee version says. There are two common formats:

Narrative format. Describe each amendment in prose:

> The Committee proposes the following amendments to the bill:
>
> 1. Section 3(a) — The phrase "within thirty (30) days" is amended to read "within sixty (60) days" to allow sufficient time for the implementing agency to complete the required consultations.
> 2. Section 7 — A new subsection (d) is inserted to read as follows: "(d) Coordination with local government units. — The Ministry shall coordinate with the local government units in the implementation of the programs under this Act."
> 3. Section 12 — The section is deleted in its entirety. The Committee found that the penal provision was duplicative of existing penalties under BAA No. 18.

Comparative matrix format. Present a two-column or three-column table showing the original provision and the committee version side by side. This format is more work to prepare but far easier for Members to follow during deliberation:

Original Bill	Committee Amendment
SEC. 5. *Eligibility.* — Any person who has been a resident of the Bangsamoro for at least one (1) year...	SEC. 5. *Eligibility.* — Any person who has been a resident of the Bangsamoro for at least **three (3) years**...
SEC. 10. *Penalties.* — Any person who violates this Act shall be punished by a fine of not less than Ten Thousand Pesos (PhP10,000.00)...	SEC. 10. *Penalties.* — Any person who violates this Act shall be punished by a fine of not less than **Fifty Thousand Pesos (PhP50,000.00)**...

When you prepare committee amendments, bold or underline the changed text so that the changes are visible at a glance. This is not a legal requirement, but it is good practice that will save time during plenary deliberation.

10.3 Floor Amendments

Floor amendments — also called individual amendments — are proposed by Members of Parliament during the period of amendments in the plenary. Unlike committee amendments, which reflect a collective decision by the committee, floor amendments represent an individual Member's view that the bill still needs revision.

When Floor Amendments Are Offered

Floor amendments are offered after committee amendments have been disposed of. The sequence during the Consideration and Deliberation Stage is:

1. Committee report is presented
2. Period of interpellation
3. Period of amendments:
4. a. Committee amendments (presented and voted on first)
5. b. Floor amendments (presented and voted on after committee amendments)
6. Voting on Second Reading

A Member who wishes to propose a floor amendment registers with the Majority Floor Leader, who maintains a list of Members proposing amendments. The Member is then recognized by the Speaker to present the amendment.

Procedure for Proposing a Floor Amendment

When a Member is recognized to propose a floor amendment, the process typically unfolds as follows:

1. The Member states the specific provision to be amended, identifying the page, line, section, and subsection.
2. The Member reads or describes the proposed amendment.
3. The sponsor of the bill responds — accepting, rejecting, or proposing a modification of the amendment.
4. If the amendment is accepted by the sponsor, it may be adopted without further debate.
5. If the amendment is rejected by the sponsor, the plenary debates the amendment.
6. The plenary votes on the amendment.

For substitution amendments specifically, Resolution No. 268 requires that the text be submitted in writing. In practice, it is good discipline to prepare all floor amendments in writing, regardless of type. A written amendment reduces confusion, provides a clear record, and ensures that the text the plenary votes on is the text the Member intended.

Practical Tips for Drafting Floor Amendments

Floor amendments are often drafted under pressure. A Member hears something during interpellation that prompts a concern. A provision that seemed clear in the committee report turns out to be ambiguous when read in the context of the full bill. A stakeholder contacts the Member's office between sessions with a specific request.

Whatever the trigger, the drafter must produce amendment language quickly and accurately. Here are guidelines:

Get the exact text of the provision being amended. Before you draft anything, read the provision as it appears in the committee report version of the bill. Do not work from memory. Do not work from an earlier version. The text you are amending is the text in the committee report, as further modified by any committee amendments already adopted in plenary.

State the amendment with surgical precision. Identify the exact location — article, section, subsection, paragraph, sentence, line — where the change applies. State exactly what is being inserted, deleted, or substituted. Leave no room for confusion about which words are being changed.

Match the style of the bill. If the bill uses "shall," your amendment uses "shall." If the bill refers to the implementing agency as "the Ministry," your amendment says "the Ministry" — not "the implementing agency" or "said Ministry." Consistency is not optional. A floor amendment that introduces different terminology for the same concept creates an internal conflict in the bill.

Keep amendments focused. One amendment, one change. If you need to make three changes to three different sections, propose three separate amendments. Bundling multiple changes into a single amendment creates problems: the plenary may support one change but not the other two, and a bundled amendment forces an all-or-nothing vote.

Prepare a brief justification. When the Member presents the amendment, they will need to explain why. Prepare a one-paragraph justification that the Member can read or paraphrase. Keep it factual. State the problem, state the solution, and explain why the proposed text is better than the current text.

10.4 Drafting Amendment Language

This section provides the standard formats for drafting amendments in the Bangsamoro Parliament. Each format includes the exact phrasing you should use, followed by examples. These formats apply to both committee amendments and floor amendments, though the procedural context differs.

10.4.1 Insertion

An insertion amendment adds new language to a bill without changing any existing text. The new language could be a word, a phrase, a subsection, a section, or an entire article.

Inserting a Word or Phrase

When you are inserting one or more words into an existing provision, identify the exact location and specify the text to be inserted.

Format:

> On page ☑, line [Y], after the word "[existing word]," insert the words "[new words]."

Example:

> On page 4, line 12, after the word "consultation," insert the words "with the affected communities."

This would change a provision from:

> ...shall conduct a consultation before issuing the permit.

to:

> ...shall conduct a consultation with the affected communities before issuing the permit.

Inserting a Subsection

When you are adding a new subsection to an existing section, identify the section, specify where the new subsection goes, and provide the full text.

Format:

> A new subsection (x) is hereby inserted in Section ☑ to read as follows:
>
> "(x) [full text of new subsection]."

Example:

> A new subsection (e) is hereby inserted in Section 8 to read as follows:
>
> "(e) *Coordination with Local Government Units.* — The Ministry shall coordinate with the provincial and municipal governments within whose jurisdiction the project is to be implemented. No project shall commence without a written endorsement from the relevant local government unit."

When inserting a subsection into an existing list, check whether the insertion requires renumbering of subsequent subsections. If Section 8 currently has subsections (a) through (d) and you are inserting a new (c), the existing (c) becomes (d) and the existing (d) becomes (e). Your amendment must account for this. State it explicitly:

> A new subsection (c) is hereby inserted in Section 8, and the existing subsections (c) and (d) are accordingly redesignated as subsections (d) and (e), respectively.

Inserting a New Section

When you are adding an entirely new section, identify the location in the bill where it should appear.

Format:

> A new Section ☑ is hereby inserted after Section [Y] to read as follows:
>
> "SEC. ☑. *[Section heading].* — [full text of new section]."

Example:

> A new Section 15 is hereby inserted after Section 14 to read as follows:
>
> "SEC. 15. *Annual Report.* — The Ministry shall submit an annual report to the Parliament, through the appropriate committee, on the implementation of this Act. The report shall include, at a minimum:
>
> (a) The number of applications received, approved, and denied;
>
> (b) The total amount of funds disbursed;
>
> (c) A summary of compliance and enforcement actions taken; and
>
> (d) Recommendations for legislative or administrative improvements."

If the insertion of a new section requires renumbering of subsequent sections, state this clearly:

> A new Section 15 is hereby inserted after Section 14, and Sections 15 through 22 of the bill are accordingly renumbered as Sections 16 through 23, respectively. All internal cross-references are adjusted accordingly.

That last phrase — "all internal cross-references are adjusted accordingly" — is important. If Section 18 of the original bill contains a reference to "Section 15," and your amendment renumbers Section 15 to Section 16, the cross-reference must be updated. The amendment should note this. Better still, draft the amendment so that it avoids renumbering altogether — for example, by inserting "Section 14-A" instead of a new "Section 15." The choice depends on the preference of the sponsor and the conventions of the Parliament.

Inserting a New Article

The same principles apply when inserting an entirely new article (a group of related sections). Use the following format:

> A new Article ☑ is hereby inserted after Article [Y] to read as follows:
>
> "ARTICLE ☑
>
> [ARTICLE HEADING]
>
> SEC. ☑. [Section heading]. — [text]
>
> SEC. [X+1]. [Section heading]. — [text]"

10.4.2 Deletion

A deletion amendment removes existing language from a bill. This could be a word, a phrase, a clause, a subsection, a section, or an entire article.

Deleting a Word or Phrase

Format:

> On page ☑, line [Y], delete the words "[words to be deleted]."

Example:

> On page 6, line 3, delete the words "and their dependents."

This would change a provision from:

> ...shall provide medical assistance to all qualified beneficiaries and their dependents.

to:

> ...shall provide medical assistance to all qualified beneficiaries.

Deleting a Subsection

Format:

> Subsection (x) of Section ☑ is hereby deleted.

If deleting a subsection requires redesignation of subsequent subsections, state this:

> Subsection (c) of Section 8 is hereby deleted, and subsections (d) and (e) are accordingly redesignated as subsections (c) and (d), respectively.

Example:

> Subsection (b) of Section 5 is hereby deleted. The existing subsections (c), (d), and (e) are accordingly redesignated as subsections (b), (c), and (d), respectively.

Deleting an Entire Section

Format:

> Section ☑ is hereby deleted.

Or, if the deletion is from an existing law rather than from the bill under consideration:

> Section ☑ of [BAA No. XX], otherwise known as the "[short title]," is hereby repealed.

Example:

> Section 12 of the bill is hereby deleted.
>
> Sections 13 through 20 are accordingly renumbered as Sections 12 through 19, respectively. All internal cross-references are adjusted accordingly.

Note the distinction between "deleted" and "repealed." You delete provisions from a bill that has not yet been enacted. You repeal provisions of a law that is already in force. The difference matters. An amendment to a pending bill deletes text. An amendatory bill — a bill that amends an existing BAA — repeals provisions. Use the correct term.

Deleting an Entire Article

Format:

> Article ☑ is hereby deleted in its entirety. The subsequent articles are renumbered accordingly, and all internal cross-references are adjusted.

10.4.3 Substitution

A substitution amendment replaces existing language with new language. It combines a deletion and an insertion into a single operation.

Substituting a Word or Phrase

Format:

> On page ☑, line [Y], the word "[old word]" is hereby amended to read "[new word]."

Or:

> On page ☑, line [Y], delete the words "[old words]" and insert in lieu thereof the words "[new words]."

Example:

> On page 3, line 8, the word "may" is hereby amended to read "shall."

This changes a discretionary provision into a mandatory one — a common floor amendment. The drafter should be prepared to explain the legal effect of this change (discussed in Chapter 6).

Another example:

> On page 7, line 15, delete the words "One Hundred Thousand Pesos (PhP100,000.00)" and insert in lieu thereof the words "Two Hundred Fifty Thousand Pesos (PhP250,000.00)."

Substituting a Subsection

Format:

> Subsection (x) of Section ☑ is hereby amended to read as follows:
>
> "(x) [full text of new subsection]."

Example:

> Subsection (c) of Section 9 is hereby amended to read as follows:
>
> "(c) *Compliance Period.* — The establishment shall comply with the standards prescribed under this Act within one hundred eighty (180) days from the effectivity of the implementing rules and regulations. The Ministry may grant a one-time extension of ninety (90) days upon written application showing good cause."

Substituting an Entire Section

Format:

> Section ☑ is hereby amended to read as follows:
>
> "SEC. ☑. *[Section heading].* — [full text of the amended section]."

Example:

> Section 6 is hereby amended to read as follows:
>
> "SEC. 6. *Composition of the Board.* — The Board shall be composed of seven (7) members, as follows:
>
> (a) The Minister, or a duly designated representative, as Chairperson;
>
> (b) Two (2) representatives from the Ministry of the Interior and Local Government;
>
> (c) One (1) representative from the Ministry of Finance;
>
> (d) One (1) representative from the private sector, nominated by the Bangsamoro Chamber of Commerce and Industry;
>
> (e) One (1) representative from civil society, nominated by accredited civil society organizations in the Bangsamoro; and
>
> (f) One (1) representative from the academe, nominated by public and private universities in the Bangsamoro.
>
> The members under subsections (d), (e), and (f) shall be appointed by the Chief Minister upon the recommendation of the Board Chairperson."

Substituting Language in an Existing Law (Amendatory Bills)

When a bill amends a section of an existing Bangsamoro Autonomy Act, the format is slightly different because you must identify the law being amended:

Format:

> Section ☑ of [BAA No. XX], otherwise known as the "[short title]," is hereby amended to read as follows:
>
> "SEC. ☑. *[Section heading].* — [full text of the amended section]."

Example:

> Section 66 of Bangsamoro Autonomy Act No. 18, otherwise known as the "Bangsamoro Education Code," is hereby amended to read as follows:
>
> "SEC. 66. *Medium of Teaching and Learning in Basic Education.* — For Kindergarten and Grade 1 to 3, the medium of teaching and learning shall be the mother tongue of the learners. Beginning Grade 4, the primary medium of instruction and learning shall be English, Filipino, and Arabic. The Ministry shall issue additional rules on the medium of instruction and learning in Basic Education, including the availability of qualified Arabic language teachers and appropriate instructional materials."

When amending an existing law, always reproduce the entire section being amended, not just the changed portions. If you only show the changed words, readers must compare the amendment with the original law to understand the full provision as amended. Reproducing the entire section — with the changes incorporated — makes the amendment self-contained and reduces error.

Summary of Standard Phrases

Keep these phrases in your working vocabulary. They are the standard formulations for amendment language in the Bangsamoro Parliament:

Operation	Standard Phrase
Insert words	"after the word '☑,' insert the words '[Y]'"
Insert subsection	"A new subsection (x) is hereby inserted in Section ☑ to read as follows:"
Insert section	"A new Section ☑ is hereby inserted after Section [Y] to read as follows:"
Delete words	"delete the words '☑'"
Delete subsection	"Subsection (x) of Section ☑ is hereby deleted"
Delete section	"Section ☑ is hereby deleted"
Repeal existing law section	"Section ☑ of [BAA No. XX] is hereby repealed"
Substitute words	"the word '☑' is hereby amended to read '[Y]'"
Substitute words (alternative)	"delete the words '☑' and insert in lieu thereof the words '[Y]'"

Operation	Standard Phrase
Substitute subsection	"Subsection (x) of Section ☑ is hereby amended to read as follows:"
Substitute section	"Section ☑ is hereby amended to read as follows:"
Amend existing law section	"Section ☑ of [BAA No. XX] is hereby amended to read as follows:"
Renumber	"Sections ☑ through [Y] are accordingly renumbered as Sections [X+1] through [Y+1]"

10.5 Substitute Bills

A substitute bill replaces the entire text of the original bill with a new version. It is the most sweeping form of amendment and raises particular procedural and drafting challenges.

When a Substitute Bill Is Appropriate

Substitute bills typically arise in one of these situations:

The committee stage produced fundamental changes. Sometimes the committee's scrutiny reveals that the original bill's approach is unworkable and a completely different structure is needed. Rather than offer dozens of individual amendments — which would be confusing and difficult to follow — the committee prepares a substitute bill that incorporates all changes into a clean, coherent text.

Multiple bills on the same subject need to be consolidated. When several Members file separate bills on the same topic, the committee may consolidate them into a single substitute bill that draws the best elements from each.

The bill was overtaken by events. New information, a change in policy direction, or a Supreme Court decision may require such extensive revision that starting over with a new text makes more practical sense than patching the original.

Negotiations among Members produce a compromise text. When competing factions in the Parliament hold different views on a bill, the negotiated compromise may take the form of a substitute bill that replaces the version reported out of committee.

Procedural Rules

Resolution No. 268 addresses substitute bills directly. Section 14 of Rule XVII states:

> "A bill or resolution shall not be amended by substituting it with another which covers a subject distinct from that proposed in the original bill or resolution."

This is the key constraint. A substitute bill must cover the same subject as the original. You cannot use the substitute bill mechanism to introduce an entirely new legislative measure that has nothing to do with the original bill. The germaneness requirement applies.

The substitute bill must go through the same approval process as any other amendment. If offered as a committee amendment, it is presented to the plenary as part of the committee report. If offered as a floor amendment, it must be submitted in writing — as required for all substitution amendments under Resolution No. 268 — and voted upon by the plenary.

Drafting a Substitute Bill

When you draft a substitute bill, you are essentially drafting a new bill that will take the place of the original. The substitute bill should:

Use a fresh numbering system. Start from Section 1. Do not try to maintain the numbering of the original bill if the structure has changed significantly. A clean numbering system signals to Members that this is a new text, not a patchwork of amendments to the old one.

Carry the same bill number. The substitute bill does not receive a new bill number. It carries the number of the original bill. This maintains the legislative record and avoids confusion about which bill is being acted on.

Include all provisions, not just the changed ones. A substitute bill must be a complete text. Members must be able to read it as a self-contained bill. Do not assume that readers will refer to the original version for unchanged provisions. If a provision from the original bill is retained in the substitute, reproduce it in full.

Explain the changes in the committee report. If the substitute bill originates from the committee, the committee report should explain why a substitute was necessary rather than individual amendments. A comparative matrix showing the differences between the original and the substitute is extremely helpful.

Preserve the long title or amend it. If the substitute bill changes the scope of the original bill, the long title must be amended to reflect the new scope. The one-subject rule still applies. Ensure that the long title accurately describes what the substitute bill does.

Format for Proposing a Substitute Bill

When a committee proposes a substitute bill, the committee report typically includes language such as:

> The Committee on [name], after thorough deliberation, recommends the approval of the attached substitute bill in lieu of [Bill No. XX] filed by [author]. The substitute bill incorporates the committee's amendments and consolidates provisions from [Bill No. XX], [Bill No. YY], and [Bill No. ZZ], which cover the same subject matter.

When a floor amendment proposes a substitute bill, the Member submits the complete text in writing and moves:

> Mr./Madam Speaker, I move that a substitute bill be adopted in lieu of the present text of [Bill No. XX]. The substitute bill has been submitted in writing to the Secretary-General. The substitute covers the same subject matter as the original bill and incorporates amendments that address the concerns raised during the period of interpellation.

Drafting Tips for Substitute Bills

Start from the policy objectives, not from the original text. If the committee decided that a substitute is needed, it usually means the original bill's approach was flawed at a structural level. Do not try to edit the original bill into the substitute. Start fresh with the policy objectives and build the new bill from the ground up.

Track the differences. Even though you are drafting a new text, you need to know how it differs from the original. Prepare a comparison document — a comparative matrix or a marked-up version of the original — that shows every change. This will be needed for the committee report and for the plenary debate.

Check the substitute for internal consistency. Because substitute bills are often drafted quickly under time pressure, they are prone to internal inconsistencies — a defined term that is not actually used in the body, a cross-reference to a section number that changed, a penalty provision that does not match the prohibitions. Read the substitute bill from beginning to end before finalizing it.

Do not forget the final provisions. When drafting a substitute in haste, it is easy to focus on the substantive provisions and forget the housekeeping: separability clause, repealing clause, effectivity clause. Check the final provisions against the standard bill structure (Chapter 3).

Amendments to Substitute Bills

Once the plenary adopts a substitute bill in lieu of the original, that substitute becomes the text under consideration. Further amendments — both committee amendments and floor amendments — are then made to the substitute bill's text, not to the original bill. This seems obvious, but it is a common source of confusion. Once a substitute is adopted, the original bill no longer exists as a working text. All subsequent references should be to the substitute.

A Note on Amendatory Bills

This chapter has focused on amendments to pending bills — that is, bills that are still moving through the legislative process. But there is another category of amendment that the drafter encounters regularly: the **amendatory bill**. An amendatory bill is a new bill that proposes to amend an existing, enacted Bangsamoro Autonomy Act.

Amendatory bills follow the full legislative process. They are filed, read, referred to committee, scrutinized, debated, and voted on just like any other bill. The difference is in their content. Instead of establishing new law, they modify law that already exists.

The drafting conventions for amendatory bills include:

The long title must identify the law being amended. This is required by Resolution No. 268, Section 7(g) of Rule XVII: "If a bill proposes to amend or revise an existing law, the title must mention the law being amended or revised."

Example:

> AN ACT AMENDING SECTIONS 5, 12, AND 18 OF BANGSAMORO AUTONOMY ACT NO. 29, OTHERWISE KNOWN AS THE "BANGSAMORO CIVIL SERVICE CODE," AND FOR OTHER PURPOSES

Each amended section must be reproduced in full. When you amend a section of an existing law, do not show only the changed words. Reproduce the entire section as it will read after the amendment takes effect. This is the standard practice in the Bangsamoro Parliament and in Philippine legislation generally.

Use the standard amendatory clause. The body of the bill uses the format described in Section 10.4.3:

> Section ☑ of Bangsamoro Autonomy Act No. [XX], otherwise known as the "[short title]," is hereby amended to read as follows:

Include a repealing clause if necessary. If the amendatory bill deletes entire sections or provisions of the existing law, include a specific repealing clause:

> Section ☑ of Bangsamoro Autonomy Act No. [XX] is hereby repealed.

Do not use general repealing clauses ("all laws, decrees, orders, or parts thereof inconsistent with this Act are hereby repealed or modified accordingly") as a substitute for identifying the specific provisions being repealed. General repealing clauses create uncertainty about what survives and what does not. Be specific.

Summary

Amendments are the Parliament's tool for refining legislation. Whether offered by a committee after weeks of scrutiny or by a Member during a floor debate, every amendment follows the same basic structure: it identifies a specific part of the text, states the change to be made, and provides the new language.

The drafter's job is to make that change cleanly and precisely. Match the style of the bill. Maintain the numbering. Check the cross-references. And always — always — put the amendment in writing before it is moved on the floor. The parliamentary record depends on it. The quality of the resulting law depends on it. The people who must live under that law depend on it.

Back to Table of Contents

Chapter 11 — Quality Review

Drafting a bill is only half the work. The other half is making sure it holds up.

A bill that seems clear on the day you finish drafting it may turn out to be ambiguous when a committee member reads it under the pressure of a hearing. A provision that covers every scenario you imagined may fail to cover the one scenario nobody thought of. A penalty clause that seems proportionate on paper may be unconstitutional when measured against the BOL's human rights provisions. These are not hypothetical problems. They happen. They happen in every legislature, and they happen in the Bangsamoro Parliament.

Quality review is how you catch these problems before the Parliament votes. It is the systematic process of reading your own work with fresh eyes — or, better, with hostile eyes — and asking whether the bill does what it is supposed to do, says what it is supposed to say, and survives the scrutiny that will come from committees, the floor, implementing agencies, courts, and the public.

This chapter gives you the tools for that process. It begins with a comprehensive self-review checklist. It introduces the interpellation test — a practical exercise that forces you to read your bill the way an opposition Member would. It catalogs the most common drafting mistakes, with examples and corrections. And it addresses specialized reviews that every Bangsamoro bill should undergo: gender sensitivity, human rights compliance, and BOL conformity.

11.1 The Drafter's Self-Review Checklist

Before you submit a draft to anyone — before the MP sees it, before it goes to co-authors, before it is filed — run through this checklist. It is organized into four categories: legal authority, structure and completeness, language and style, and internal consistency. Each item is a question. If the answer is "no" or "I'm not sure," stop and fix the problem.

This checklist can also serve as the basis for Appendix E of this manual — a detachable quality review checklist for daily use.

11.1.1 Legal Authority

These items verify that the bill is within the Parliament's power and does not conflict with superior law.

1. Does the bill fall within the enumerated powers of the Bangsamoro Government under Article V, Section 2 of the BOL?
2. If the bill relies on the general welfare clause (Article V, Section 3), is there a reasonable connection between the bill's subject and the welfare of the Bangsamoro people?
3. Does the bill conflict with any provision of the 1987 Constitution?
4. Does the bill conflict with any provision of the BOL itself?
5. Does the bill intrude on powers reserved to Congress under the Constitution or the BOL (the residual clause)?
6. Does the bill conflict with any national law that applies in the Bangsamoro?
7. Have you checked whether any Supreme Court decisions affect the bill's subject matter?
8. If the bill imposes taxes or fees, does it comply with the fiscal provisions of the BOL (Article XII)?
9. If the bill creates a government body, does it comply with the BOL provisions on bureaucratic structure?
10. If the bill deals with personal, family, or property relations involving Muslims, does it respect the jurisdiction of the Shari'ah courts?

11.1.2 Structure and Completeness

These items verify that the bill contains all necessary parts and that nothing is missing.

1. Does the bill have a long title that accurately describes its content and scope?
2. Does the long title comply with the one-subject, one-title rule?
3. Does the bill include the proper enacting clause? The standard form is "Be it enacted by the Bangsamoro Parliament:" — or, during the BTA period, "Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:"
4. Does the bill include a short title?
5. Does the bill include a declaration of policy?
6. Does the bill include a definition of terms section, and are all terms used in a technical or specialized sense defined?
7. Does the definition section avoid defining words in their ordinary meaning?

8. Does the bill include a scope and coverage section that makes clear who and what the bill applies to?
9. Are the substantive provisions organized in a logical sequence — from general to specific, from rights to obligations, from prohibitions to penalties?
10. Does every duty or obligation in the bill identify who bears that duty?
11. Does every right created by the bill identify who may exercise it and who must respect it?
12. Does every prohibition have a corresponding penalty or enforcement mechanism?
13. Does the bill identify the implementing agency or agencies?
14. Does the bill include provisions for implementing rules and regulations (IRR) if the subject matter requires detailed rulemaking?
15. Does the IRR provision include a timeline for promulgation?
16. Does the bill include an appropriation or funding provision, or does it state that funding shall come from the annual Bangsamoro Expenditure Program?
17. Does the bill include a separability clause?
18. Does the bill include a repealing clause that specifically identifies provisions of existing law that are being repealed or modified?
19. Does the bill include an effectivity clause?
20. Does the bill include transitory provisions if they are needed — for example, to address existing conditions, pending applications, or the transition from the old regime to the new one?

11.1.3 Language and Style

These items verify that the bill is written clearly and follows the conventions of Bangsamoro legislative drafting.

1. Is every sentence in the active voice where possible?
2. Is the bill written in the present tense?
3. Does the bill use “shall” for mandatory duties, “may” for permissive authority, and “must” for conditions?
4. Are the uses of “shall,” “may,” and “must” consistent throughout?
5. Does any sentence exceed four lines of text? If so, can it be broken into shorter sentences or a numbered list?
6. Does the bill avoid archaic legalisms (“hereinbefore,” “hereinafter,” “aforementioned,” “whereas” in the body)?

7. Does the bill avoid redundant doublets ("null and void," "cease and desist," "each and every")?
8. Are numbers written in both words and figures — "thirty (30) days" — as is the convention?
9. Are monetary amounts written in both words and figures with the abbreviation PhP?
10. Does the bill use a defined term consistently — the same term every time, never a synonym?
11. Are cross-references accurate? Does every reference to "Section X" actually point to the correct section?
12. Are lists formatted correctly — with consistent punctuation, consistent numbering, and proper use of "and" or "or" before the final item?
13. Does the bill avoid vague phrases like "as may be necessary," "within a reasonable time," or "to the extent practicable" without further specificity?

11.1.4 Internal Consistency

These items verify that the bill does not contradict itself.

1. Does the bill use the same term for the same concept throughout? (Not "Ministry" in one section and "Department" in another for the same agency.)
2. If the bill refers to another law by short title, is the short title correct?
3. If the bill quotes the BOL, is the quotation verbatim?
4. Are the section numbers sequential with no gaps or duplicates?
5. Does the table of contents (if included) match the actual section headings?
6. If the bill lists qualifications for an office or position, are the same qualifications repeated consistently in all relevant provisions — or are they stated once and cross-referenced?
7. Does the penalty provision cover all prohibited acts defined in the bill? Are any prohibited acts missing a penalty?
8. Does the bill's coverage match its declaration of policy? (If the declaration says the bill applies to "all persons," does the substantive provision also apply to "all persons" — or does it narrow the scope without explanation?)
9. Are all timelines internally consistent? (Does the bill give an agency 30 days to process an application in one section and 60 days in another for the same application?)
10. If the bill creates a board or committee, does it specify the same number of members in the composition section as in the quorum and voting provisions?

11.2 The Interpellation Test

The self-review checklist catches technical problems. The interpellation test catches substantive ones.

Here is the exercise. Put down the draft. Walk away from it for an hour, or a day if you have the time. Then sit down and read the bill as if you were a Member of Parliament who is skeptical of it. Not hostile — skeptical. You are a thoughtful MP who wants to understand what the bill does, whether it will work, and what it will cost. You are looking for weaknesses, not because you want the bill to fail, but because you want to make it better before it reaches the floor.

Ask yourself these questions about every major provision:

Policy Questions

- What problem does this bill solve? Is the problem real, documented, and significant enough to justify legislation?
- Has the Parliament already addressed this problem through an existing BAA? If so, why is a new bill needed instead of amending the existing law?
- Who benefits from this bill? Who bears the costs?
- Will the bill actually achieve its stated objective? What could go wrong?
- Are there unintended consequences? Will the bill create new problems while solving old ones?
- Is this bill the right tool? Could the same objective be achieved through an executive order, an administrative regulation, or an appropriation?

Legal Questions

- Where does the Parliament get the power to legislate on this subject? Can you point to the specific BOL provision?
- Does this bill conflict with any existing BAA? If so, does the repealing clause address the conflict?
- Could a constitutional challenge be raised against any provision? On what grounds?
- Does the bill delegate too much authority to the executive? Does it set sufficient standards to guide the exercise of that delegated authority?

Implementation Questions

- Which agency will implement this bill? Does that agency have the capacity — staff, budget, expertise — to do so?
- How much will implementation cost? Where will the money come from?
- Does the bill require the creation of new offices, positions, or systems? If so, is there funding for them?
- What happens if the implementing agency does not issue the required IRR within the prescribed timeline? Does the bill have a fallback mechanism?
- How will compliance be monitored? Who checks whether the law is being followed?

Enforcement Questions

- If someone violates this bill, who detects the violation?
- Who investigates? Who prosecutes?
- Are the penalties proportionate to the offense? Are they high enough to deter violations? Are they so high that they might be struck down as excessive?
- Can a small business owner, a farmer, or a fisherfolk reasonably be expected to understand and comply with this bill?

Drafting Questions

- Is there a provision in this bill that a reasonable person could read two different ways? If so, which reading did the drafter intend, and can the ambiguity be resolved by revising the text?
- Is there a gap — a scenario that should be covered but is not?
- Is there a contradiction between two provisions?
- Does the bill say anything that is purely aspirational and cannot be enforced? If so, does it belong in the bill, or should it be in the explanatory note?

The Test in Practice

The interpellation test is not theoretical. It simulates what will actually happen when the bill reaches the plenary. A Member will stand up and ask these exact questions. If your bill cannot withstand them, it is not ready for filing.

Sit down with the sponsoring MP and run through the questions. Or assign a colleague to play the role of the interpellator. The goal is to identify every soft spot in the bill before it reaches the committee report stage. Fix the soft spots. Strengthen the weak provisions. Add what is missing. Cut what is indefensible.

A bill that survives the interpellation test is a bill that will survive the plenary.

11.3 Common Drafting Mistakes

Below are specific mistakes that appear repeatedly in legislative drafts — not just in the Bangsamoro Parliament, but in legislatures everywhere. Each entry states the mistake, gives an example, and shows how to fix it.

1. Unfunded mandate. The bill creates obligations for an agency without appropriating funds or identifying a funding source.

Problem: "The Ministry of Health shall establish a primary care clinic in every municipality."

Fix: Add an appropriation section: "The amount necessary for the implementation of this Act shall be included in the annual Bangsamoro Expenditure Program. For the first year of implementation, the amount of ☑ is hereby appropriated from [source]."

2. Missing implementing agency. The bill says something must be done but does not say who does it.

Problem: "A comprehensive inventory of all agricultural lands shall be conducted within one (1) year."

Fix: "The Ministry of Agriculture, Fisheries and Agrarian Reform shall conduct a comprehensive inventory of all agricultural lands within one (1) year from the effectivity of this Act."

3. Penalty without prohibition. The bill penalizes an act that is not actually prohibited anywhere in the bill's substantive provisions.

Problem: The penal section says "Any person who violates Section 8 of this Act shall be fined..." but Section 8 only describes how the permit application process works. It does not prohibit anything.

Fix: Either add a clear prohibition ("No person shall operate a [facility] without a valid permit issued under Section 8 of this Act") or remove the penalty reference to Section 8.

4. Prohibition without penalty. The bill prohibits an act but prescribes no consequence for violation.

Problem: "No person shall discharge industrial waste into waterways within the Bangsamoro." The bill says nothing more — no fine, no imprisonment, no administrative sanction.

Fix: Add a penalty provision. Or, if the intention is that existing penal laws apply, state this explicitly: "Violations of this section shall be subject to the penalties prescribed under [specific law]."

5. Vague timeline. The bill sets a deadline using imprecise language.

Problem: "The implementing rules and regulations shall be promulgated within a reasonable time after the effectivity of this Act."

Fix: "The implementing rules and regulations shall be promulgated within ninety (90) days from the effectivity of this Act."

6. Undefined technical term. The bill uses a specialized term without defining it, leaving its meaning open to dispute.

Problem: A bill on environmental protection refers to "sustainable practices" throughout but never defines what qualifies as sustainable.

Fix: Add a definition: "'Sustainable practices' refers to methods of resource use, production, or development that meet present needs without compromising the ability of future generations to meet their own needs, as determined by the standards prescribed in the implementing rules and regulations."

7. Inconsistent terminology. The bill uses different words for the same thing.

Problem: Section 3 refers to the "Board of Directors." Section 7 refers to the "Governing Board." Section 12 refers to the "Board." All three mean the same body.

Fix: Choose one term — "the Board" — define it in the definitions section, and use it consistently throughout.

8. Conflicting provisions. Two sections of the same bill contradict each other.

Problem: Section 5 says the permit is valid for three (3) years. Section 14 says the permit must be renewed annually.

Fix: Determine which is correct and amend the other. If both are partly correct (e.g., the permit is valid for three years but requires annual compliance reporting), draft both provisions to reflect the actual intent clearly.

9. Dangling cross-reference. A provision refers to a section number that does not exist or that refers to the wrong provision because sections were renumbered during revision.

Problem: "The exemptions provided under Section 14 of this Act shall not apply to..." But the bill only has 12 sections. Section 14 was deleted during revision, and the cross-reference was never updated.

Fix: Run a systematic check of every cross-reference in the bill before finalizing. Match each reference to its target.

10. Overbroad delegation. The bill gives an agency open-ended authority without sufficient standards.

Problem: "The Ministry shall have the power to issue rules and regulations to carry out the purposes of this Act, including the power to impose fees and penalties as it may deem necessary."

Fix: Specify limits. "The Ministry shall have the power to issue rules and regulations to carry out the purposes of this Act: *Provided*, That any fees imposed under such rules shall not exceed [amount or formula], and any administrative penalties shall not exceed [amount or sanction], subject to the requirements of due process."

11. Redundant provision. The bill restates something that is already in the BOL or an existing BAA, adding nothing.

Problem: "The Members of the Parliament shall enjoy parliamentary immunity as provided by law." This adds nothing beyond what the BOL already provides.

Fix: Remove the provision. If the drafter wants to call attention to the existing immunity provision for context, do so in the explanatory note, not in the body of the bill.

12. Aspirational provision masquerading as law. The bill includes a provision that expresses a goal but creates no rights, duties, or enforceable obligations.

Problem: "The Bangsamoro Government shall endeavor to promote the holistic well-being of youth in the region."

Fix: Either remove the provision or convert it into an enforceable obligation: "The Ministry of Social Services and Development shall establish a youth development program in every province and city within the Bangsamoro. The program shall include, at a minimum: (a)... (b)... (c)..."

13. Missing transition provisions. The bill creates a new regime but does not address what happens to existing arrangements.

Problem: A bill creates a new licensing system for a regulated industry but says nothing about businesses that already hold licenses under the old system.

Fix: Add a transitory provision: "All licenses issued under [prior law] that are valid on the date of effectivity of this Act shall remain in force until their expiration. Licensees shall apply for renewal under this Act at least sixty (60) days before the expiration of their existing licenses."

14. Gender-exclusive language. The bill uses masculine pronouns as the default.

Problem: "The Chairperson shall submit his report within thirty (30) days."

Fix: "The Chairperson shall submit a report within thirty (30) days." Or, if a pronoun is needed: "The Chairperson shall submit his or her report within thirty (30) days."

15. Using "and/or." This construction is ambiguous. Does it mean both conditions must be met, or either one?

Problem: "A fine and/or imprisonment shall be imposed."

Fix: Decide what you mean. If you mean both: "A fine and imprisonment shall be imposed." If you mean either or both: "A fine, imprisonment, or both, shall be imposed."

16. Passive voice obscuring responsibility. The bill says something must be done but uses the passive voice, leaving unclear who is responsible.

Problem: "The necessary funds shall be allocated."

Fix: "The Ministry of Finance, Budget and Management shall allocate the necessary funds."

17. No sunset clause for a pilot program. The bill establishes a temporary or experimental program but does not include an expiration date.

Problem: A "pilot program" is created with no stated end date, no evaluation mechanism, and no trigger for expansion or termination.

Fix: Add a sunset clause: "This program shall operate for a period of three (3) years from the effectivity of this Act. Within six (6) months before the expiration of this period, the implementing agency shall submit to the Parliament, through the appropriate committee, an evaluation report on the program's effectiveness. The Parliament may extend the program upon review of the evaluation."

18. Quorum and voting provisions that do not add up. The bill creates a body and specifies a quorum or voting threshold that is mathematically problematic.

Problem: A board has seven (7) members, and the bill requires a "two-thirds vote of all members" for certain decisions. Two-thirds of seven is 4.67 — not a whole number.

Fix: "A vote of at least five (5) members shall be required for..." Or specify: "a vote of two-thirds of all members, rounded up to the nearest whole number."

19. General repealing clause with no specific repeals. The bill ends with "All laws, decrees, orders, rules and regulations, or parts thereof, inconsistent with the provisions of this Act are hereby repealed or modified accordingly" but does not identify any specific law being repealed.

Problem: Nobody — not the implementing agency, not the courts, not the public — knows what has been repealed.

Fix: Identify specific provisions: "Section 12 of BAA No. 5 and Section 8(c) of BAA No. 19 are hereby repealed." If a general repealing clause is also desired, place it after the specific repeals as a safety net — but never as a substitute.

20. Incomplete effectivity clause. The bill omits or truncates the effectivity clause.

Problem: "This Act shall take effect upon its approval." But under the BOL and the Constitution, laws require publication before taking effect.

Fix: "This Act shall take effect fifteen (15) days following its complete publication in at least one (1) newspaper of general circulation within the Bangsamoro Autonomous Region in Muslim Mindanao."

11.4 Gender Sensitivity Review

Every bill filed in the Bangsamoro Parliament should be reviewed for gender sensitivity. This is not a matter of political correctness. It is a legal obligation rooted in the BOL, the Bangsamoro Development Plan, and the Philippines' commitments under international law, including the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW).

Article IX, Section 11 of the BOL requires that "there shall be at least one (1) woman to be appointed to the Bangsamoro Cabinet" and that the Parliament shall enact a law "ensuring the representation of women in other decision-making and policy-determining bodies of the Bangsamoro Government." Article XIII, Section 5 further provides that the Bangsamoro Government "shall guarantee full and direct participation of women in governance and development process, ensuring that women shall benefit equally in the im-

plementation of development programs and projects." The Bangsamoro Development Plan 2023-2028 identifies gender mainstreaming as a cross-cutting strategy across all sectors. These commitments must be reflected in legislation.

What a Gender Sensitivity Review Covers

A gender sensitivity review examines the bill at three levels:

Language. Does the bill use gender-neutral or gender-inclusive language? The standard in modern legislative drafting is to avoid masculine pronouns as the default. Instead of "he" or "his," use "the person," "the official," or "he or she" and "his or her." Instead of "chairman," use "chairperson." Instead of "fireman," use "firefighter." The goal is not to police vocabulary but to ensure that the law, as written, treats women and men equally in its language.

Where the bill addresses a role that has historically been associated with one gender, consider whether the language inadvertently excludes the other. A bill on "fishermen's cooperatives" may unintentionally signal that women who fish are not covered. Changing the term to "fisherfolk cooperatives" resolves the issue without changing the substance.

Substance. Does the bill affect women and men differently? If so, does it account for those differences? Consider:

- Does the bill provide for maternity protections if it regulates employment?
- Does the bill ensure women's representation on boards, committees, and decision-making bodies it creates?
- If the bill addresses land rights, does it recognize the property rights of women, including married women?
- If the bill establishes benefit programs, are the eligibility criteria designed in a way that women can realistically meet?
- Does the bill address gender-based violence if relevant to its subject matter?
- Does the bill include sex-disaggregated data collection requirements for monitoring and evaluation?

Impact. Will the bill have a disproportionate impact on women, even if its language is facially neutral? A bill that requires applicants to appear in person at a provincial office during business hours may disproportionately burden women who have caregiving responsibilities. A bill that requires collateral for a loan program may disproportionately exclude women who do not hold property titles in their own names.

The Gender Review Checklist

Apply these specific checks to every bill:

1. Does the bill use gender-neutral language throughout?
2. Does the bill provide for women's representation in any body it creates?
3. If the bill regulates employment, does it include maternity and parental leave protections?
4. Does the bill require sex-disaggregated data collection for monitoring purposes?
5. Does the bill allocate a portion of its budget to gender and development (GAD) programs, consistent with existing GAD budget requirements?
6. Does the bill contain provisions that could disproportionately disadvantage women, even if facially neutral?
7. Have women's organizations and gender experts been consulted during the drafting process?
8. Does the bill align with the Bangsamoro Development Plan's gender mainstreaming strategy?

11.5 Human Rights Review

The BOL contains a comprehensive set of rights provisions in Article IX (Basic Rights) that go beyond restating the rights in the Philippine Constitution. The 1987 Constitution's own Bill of Rights (Article III of the Constitution) applies to all persons in the Philippines, including everyone within the Bangsamoro. The BOL's Article IX adds Bangsamoro-specific rights — transitional justice, reparation for unjust dispossession, indigenous peoples' rights, customary rights, religious freedom, human rights protections, labor rights, women's protection, and the rights of settlers and non-Moro indigenous communities.

Every bill must be reviewed against these provisions. A bill that violates human rights — even unintentionally — is a bill that invites litigation, invalidation, and public opposition.

The Human Rights Review Process

Step 1: Identify the rights at stake. For every bill, ask: Which fundamental rights does this bill touch? A bill regulating assembly may implicate freedom of assembly. A bill establishing a regulatory body with investigative powers may implicate the right against unreasonable searches. A bill on social media may implicate freedom of expression. Identify all affected rights.

Step 2: Check the BOL Basic Rights and the Constitution's Bill of Rights. Read Article IX (Basic Rights) of the BOL and Article III (Bill of Rights) of the 1987 Constitution, and determine whether any provision of the bill conflicts with any right recognized there. Pay particular attention to:

- The right to due process and equal protection (1987 Constitution, Article III, Sections 1-2)
- The right to freedom of expression, assembly, and association (Constitution, Article III)
- The right against unreasonable searches and seizures (Constitution, Article III)
- The rights of the accused in criminal proceedings (Constitution, Article III)
- The right to privacy (Constitution, Article III)
- The rights of indigenous peoples within the Bangsamoro (BOL, Article IX, Section 3)
- The rights of women (BOL, Article IX, Sections 11-12)
- Customary rights and non-discrimination (BOL, Article IX, Section 4)

Step 3: Check the bill's penalty provisions. If the bill imposes criminal penalties, verify that:

- The prohibited acts are described with sufficient specificity (no vague or overbroad prohibitions)
- The penalties are proportionate to the offense
- Due process protections are observed (notice, hearing, right to counsel)
- The bill does not impose retroactive penalties
- The bill does not create a penalty so severe that it amounts to cruel or unusual punishment

Step 4: Check administrative provisions for due process. If the bill creates administrative proceedings — license revocation, disciplinary proceedings, permit cancellation — verify that the affected person has the right to:

- Receive written notice of the charges or grounds

- Present evidence and witnesses
- Be represented by counsel
- Receive a written decision stating the reasons
- Appeal the decision to a higher authority or to a court

Step 5: Check the bill against international obligations. The Philippines is a signatory to numerous international human rights instruments that are binding in the Bangsamoro. Check the bill against:

- The International Covenant on Civil and Political Rights (ICCPR)
- The International Covenant on Economic, Social and Cultural Rights (ICESCR)
- The Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)
- The Convention on the Rights of the Child (CRC)
- The United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP)
- The Comprehensive Agreement on the Bangsamoro (CAB), to the extent its provisions inform the interpretation of BOL rights

Common Human Rights Issues in Legislation

- Licensing or permit requirements that restrict the exercise of fundamental rights (e.g., requiring a permit for peaceful assembly)
- Broad investigative powers without judicial oversight
- Administrative detention provisions that bypass the courts
- Provisions that discriminate — directly or indirectly — based on ethnicity, religion, sex, or other protected categories
- Penal provisions that lack mens rea (intent) requirements for serious offenses
- Collective punishment provisions (penalizing a community for the acts of individuals)

11.6 BOL Compliance Review

The Bangsamoro Organic Law is the supreme law of the Bangsamoro Autonomous Region, subordinate only to the Philippine Constitution. Every bill enacted by the Parliament must conform to the BOL. A bill that conflicts with the BOL is ultra vires — beyond the Parliament's power — and may be struck down by the courts.

The BOL compliance review is a systematic check of the bill against the relevant provisions of the BOL. It is more specific than the general legal authority check in the self-review checklist (Section 11.1.1). It requires you to read the BOL with the bill beside you and compare them, provision by provision.

How to Conduct a BOL Compliance Review

Step 1: Identify the relevant BOL provisions. Read the bill and list every BOL article that touches on the bill's subject matter. For most bills, this includes:

- Article V (Powers of Government) — Does the bill fall within the enumerated or general welfare powers?
- Article XII (Fiscal Autonomy) — Does the bill involve taxation, revenue, or appropriation?
- Article IX (Basic Rights) — Does the bill affect fundamental rights, including transitional justice, indigenous peoples, women, labor, or human rights?
- Article VII (Parliament) — Does the bill comply with the rules on legislative procedure?
- Article X (Bangsamoro Justice System) — Does the bill touch on Shari'ah jurisdiction or court procedures?

Step 2: Check for direct conflicts. Read each relevant BOL provision and ask: Does anything in this bill directly contradict what the BOL says? Examples:

- Article XII, Section 9 of the BOL provides that the taxing power of the Bangsamoro Government "shall not extend to" income taxes (except on banks and financial institutions), customs duties, and several other categories. A bill imposing a regional income tax would directly conflict with this provision.
- Article IX, Section 11 of the BOL requires the Parliament to enact a law "ensuring the representation of women in other decision-making and policy-determining bodies." A bill that creates a governing body with no provision for women's representation may conflict with this requirement.

- The BOL requires that laws take effect after publication. A bill with an effectivity clause that bypasses publication conflicts with the BOL.

Step 3: Check for implicit conflicts. Some conflicts are not obvious on the surface. They arise when the bill's provisions, taken as a whole, undermine the spirit or intent of the BOL even if no single provision directly contradicts a specific section. Examples:

- A bill that concentrates power in a single agency to such a degree that it effectively undermines the decentralization principle embedded in the BOL
- A bill that creates a regulatory framework so burdensome that it effectively nullifies a right recognized in the BOL
- A bill that delegates so much authority to the executive that it effectively transfers legislative power away from the Parliament

Step 4: Check boundary issues. The BOL divides powers between the Bangsamoro Government and the national government. Some powers are exclusive to the Bangsamoro. Others are concurrent. Still others are reserved to Congress. The boundary is not always sharp. For bills that operate near this boundary, ask:

- Is this subject among the fifty-five enumerated powers in Article V, Section 2?
- If not, does the general welfare clause apply?
- Is there a national law on the same subject? If so, does the BOL give the Parliament authority to legislate on the subject despite the national law?
- Has the Supreme Court issued any ruling on the scope of Bangsamoro authority over this subject?

Step 5: Document your findings. Prepare a brief BOL compliance memo — even if it is just a one-page summary — stating which BOL provisions you reviewed, your conclusion, and any areas of concern. This memo serves as an internal record and can be shared with the sponsoring MP or the committee.

11.7 Bangsamoro Parliamentary Conventions

Every legislature develops practices and conventions that are not written in the formal rules but are understood by experienced Members and staff. The Bangsamoro Parliament, though young, has already established several such conventions. Knowing them will help you produce drafts that align with how the Parliament actually works, not just how the rules say it should work.

Conventions on Bill Drafting and Format

The explanatory note is expected but not required. Resolution No. 268 describes the explanatory statement as "optional" (Rule XVII, Section 7(a)). In practice, every bill filed in the Parliament includes one. The explanatory note has become a de facto requirement. Omitting it invites questions about the bill's purpose and weakens the sponsoring MP's position during deliberation.

The committee report accompanies every bill reported out. Section 16 of Rule XII requires committees to prepare a report containing discussions, views, amendments, and justifications. In practice, the committee report has evolved into a substantial document — sometimes longer than the bill itself — that serves as the primary reference during plenary deliberation. Drafters should anticipate contributing to the committee report by preparing amendment summaries and justifications.

Government bills take precedence. Resolution No. 268 provides that government bills have precedence over private member bills "without prejudice to consolidation." In practice, the legislative calendar is driven by the government's priority agenda. Drafters working on government bills should be prepared for accelerated timelines. Drafters working on private member bills should plan for the possibility that the bill may wait in the calendar for a longer period.

Consolidation is preferred over competition. When multiple bills cover the same subject, the committee typically consolidates them into a single bill or a substitute bill rather than choosing one and discarding the others. This means your draft should be written with the awareness that its provisions may be merged with provisions from another bill. Use clear, modular drafting that allows individual sections to be extracted and combined with sections from other bills.

Conventions on Legislative Process

Interpellation is substantive, not ceremonial. The period of interpellation in the Bangsamoro Parliament has developed into a rigorous examination of the bill. Members ask detailed questions about specific provisions, demand justifications for policy choices, and probe for weaknesses. Prepare for interpellation as if it were a cross-examination. The sponsoring MP must be able to explain every provision of the bill — which means the drafter must be able to explain it to the MP first.

Floor amendments during the period of amendments are serious proposals. In some legislatures, floor amendments are rarely adopted. In the Bangsamoro Parliament, floor amendments are a regular feature of plenary deliberation. Members who register with

the Majority Floor Leader to propose amendments typically come prepared. Drafters should monitor the list of registered interpellators and amendment proponents to anticipate what changes may be proposed.

The Majority Floor Leader controls the flow of business. The Majority Floor Leader determines the order of business, maintains the list of interpellators, and sets the sequence in which Members are recognized to speak. Drafters should coordinate with the Majority Floor Leader's office when preparing for plenary deliberation of a bill, especially regarding the timing of committee report presentation and the expected schedule for the period of amendments.

Swift Passage Procedure is genuinely exceptional. Resolution No. 268 provides for a Swift Passage Procedure that allows a bill to skip the detailed committee scrutiny and pass in seven working days. In practice, this procedure is reserved for genuine emergencies and bills that have broad consensus. Drafters should not plan around the assumption that a bill will receive swift passage unless there is clear and explicit guidance from the Chief Minister's office or the Speaker.

Conventions on Relationships

The PRLS is a resource, not a gatekeeper. The Policy Research and Legal Services supports the Parliament and its committees with research and technical expertise. In practice, the relationship between individual MPs' staff and the PRLS is collaborative. Drafters should engage the PRLS early in the research phase — not as a last-minute review — and treat its input as an important quality check.

Committee chairs have significant influence over the legislative agenda within their jurisdiction. A bill referred to a committee is effectively in the hands of the committee chair, who decides when it will be scheduled for hearing, how many hearings it will receive, and how aggressively the committee will push it toward a report. Drafters working on a bill should maintain a working relationship with the committee secretariat.

The Secretary-General's office is the official custodian of the legislative record. All bills, resolutions, committee reports, and journals pass through the Secretary-General's office. Drafters must ensure that the correct and final version of any document — bill, amendment, committee report — is the version filed with the Secretary-General. Versions circulated informally do not count. The official record is what the Secretary-General's office has on file.

Conventions on Style and Substance

Numbers are written in words and figures. This convention — "thirty (30) days," "Five Hundred Thousand Pesos (PhP500,000.00)" — is universal in Bangsamoro legislation. Do not omit either the words or the figures.

Monetary amounts use the Philippine peso with the PhP abbreviation. The format is: "Two Hundred Thousand Pesos (PhP200,000.00)."

The enacting clause is standard. The timeless form is "Be it enacted by the Bangsamoro Parliament:" — during the BTA period, the form is "Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:" Do not vary from the applicable standard formulation.

The effectivity clause follows a standard form. "This Act shall take effect fifteen (15) days following its complete publication in at least one (1) newspaper of general circulation within the Bangsamoro Autonomous Region in Muslim Mindanao." This formulation tracks the requirement under the BOL and is used consistently in enacted BAAs.

Section headings are italicized in enrolled bills. When the bill is enrolled — prepared for signature by the Speaker and Chief Minister — section headings appear in italics. Follow this convention in your drafts.

The bill format uses "SEC." for section numbering. Sections are numbered with Arabic numerals preceded by "SEC." — for example, "SEC. 1.," "SEC. 2.," and so on. Articles are numbered with Roman numerals.

Why Conventions Matter

Parliamentary conventions are not law. They can change. They can be overridden. But ignoring them creates unnecessary friction. A bill that arrives at the committee in a non-standard format requires the committee secretariat to reformat it. A bill that omits the explanatory note raises questions that could have been answered before filing. A bill that ignores the established terminology for Bangsamoro institutions signals that the drafter is unfamiliar with the Parliament's work.

Following conventions is not about conformity for its own sake. It is about efficiency. A bill that looks like other bills, uses language like other bills, and follows the same structure as other bills lets the reader focus on what matters: the substance of the legislation. Everything else should be invisible.

Back to Table of Contents

Glossary of Legislative Terms

This glossary defines terms used in the Bangsamoro Parliament and throughout this manual. Definitions are drawn from the Bangsamoro Organic Law (Republic Act No. 11054), Resolution No. 268 (the Rules, Procedures, and Practices of the Bangsamoro Transition Authority Parliament), enacted Bangsamoro Autonomy Acts, and general Philippine legislative practice. Terms are listed in alphabetical order.

Adjournment. The termination of a session for the day, with the hour and day of the next session being set. An adjournment *sine die* is the final termination of a regular session. (Resolution No. 268, Rule VI, Sections 5 and 7)

Amendatory Bill. A bill that proposes to amend, revise, or repeal provisions of an existing Bangsamoro Autonomy Act. The long title of an amendatory bill must identify the law being amended. (Resolution No. 268, Rule XVII, Section 7(g))

Amendment. Any alteration or change to a bill or resolution by addition, deletion, substitution, or any combination thereof. Amendments may be committee amendments or floor amendments. (Resolution No. 268, Rule XVII, Section 12)

Appropriation. The legislative authorization to spend public funds for a specific purpose. An appropriation provision in a bill identifies the funding source and the amount allocated for implementation.

Authorship Speech. The speech delivered by the sponsor of a bill during Second Reading, explaining the purpose, background, and provisions of the bill. Also referred to as the explanatory statement. (Resolution No. 268, Rule XVIII, Section 2(b))

Bangsamoro Autonomy Act (BAA). The legislative output of the Bangsamoro Parliament. A BAA is a bill that has passed through all stages of legislation and has been signed into law by the Speaker and the Chief Minister.

Bangsamoro Development Plan (BDP). The medium-term plan that sets the development priorities and targets of the Bangsamoro Government. The BDP 2023-2028 is the current plan. Bills should align with the BDP where relevant.

Bangsamoro Expenditure Program (BEP). The annual budget of the Bangsamoro Government, equivalent to the national General Appropriations Act. The BEP allocates funds to ministries, offices, and programs for a given fiscal year.

Bangsamoro Organic Law (BOL). Republic Act No. 11054, also known as the Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao (OLBARMM). The BOL is the charter of the Bangsamoro Autonomous Region. It defines the region's powers, structure, and fundamental rights. All legislation enacted by the Parliament must conform to the BOL.

Bill. A proposed measure, or amendment or repeal of an existing law, presented to the Parliament for its consideration. (Resolution No. 268, Rule XVII, Section 1)

Bill Number. The number assigned to a bill in the order it is received by the Office of the Secretary-General.

Blue Ribbon Committee. The Committee on Good Government, Accountability of Public Officers and Investigation. It has jurisdiction over matters including investigation of malfeasance, misfeasance, and nonfeasance in office. (Resolution No. 268, Rule XII, Section 4(4))

Caption. The heading at the top of a bill identifying the Parliament and the session. The caption includes the official designation "Republic of the Philippines, Bangsamoro Autonomous Region in Muslim Mindanao, Bangsamoro Transition Authority Parliament."

Certified Bill. A bill certified by the Chief Minister as requiring immediate enactment to respond to a public calamity or emergency. A certified bill is exempt from the three-day distribution requirement before Third Reading voting. (Resolution No. 268, Rule XVIII, Section 3)

Chief Minister. The head of the Bangsamoro Government's executive branch, who exercises executive authority during the transition period. The Chief Minister signs bills into law, may certify bills as urgent, and presents the Government of the Day's policies and programs to the Parliament. (BOL, Article VII and Article XVI)

Committee Amendment. An alteration or change to a bill offered by the committee that scrutinized the bill during the committee stage. Committee amendments are presented to the plenary before floor amendments. (Resolution No. 268, Rule XVII, Section 15(a))

Committee of the Whole. The act of the Parliament constituting itself into a committee to consider a bill or resolution, rather than referring it to a standing committee. (Resolution No. 268, Rule XII, Section 15)

Committee Report. A document prepared by a committee that contains the discussions, views, amendments, and justifications concerning a bill or resolution under its consideration. Members who participated in the final committee vote must sign the report. (Resolution No. 268, Rule XII, Section 16)

Committee Stage. The stage of legislation during which the concerned committee examines, scrutinizes, and deliberates in detail and line by line the provisions of a bill. The committee may propose amendments or revisions and produces a committee report. (Resolution No. 268, Rule XVIII, Section 2(c))

Concurrent Resolution. A resolution issued concurrently by both the Bangsamoro Cabinet and the Parliament expressing their sentiments on certain matters. (Resolution No. 268, Rule XVII, Section 5(b))

Consideration and Deliberation Stage. The stage of legislation during which the Members of the Parliament deliberate and debate the committee report, including proposed amendments, in plenary session. This stage includes the period of interpellation and the period of amendments. (Resolution No. 268, Rule XVIII, Section 2(d))

Cross-Reference. A reference within a bill to another section of the same bill or to a provision of another law. Cross-references must be accurate and should be verified whenever the bill is revised.

Declaration of Policy. A section near the beginning of a bill that states the legislative intent and policy objectives the bill seeks to achieve.

Definition of Terms. A section of a bill that assigns specific meanings to words and phrases used in a technical or specialized sense. Definitions control the meaning of terms throughout the bill.

Deputy Speaker. Under Resolution No. 268 (Rule III, Section 3), eight Deputy Speakers are elected by a majority vote of all Members. In practice, the BTA has elected additional Deputy Speakers beyond the prescribed eight. Deputy Speakers assist the Speaker and take turns presiding over sessions when the Speaker does not preside. They serve as ex officio members of all committees with a right to vote. (Resolution No. 268, Rule III, Section 3 and Rule IV, Section 5)

Effectivity Clause. The final section of a bill that announces when the law shall take effect. Under the BOL, laws take effect after fifteen (15) days following complete publication in at least one newspaper of general circulation within the BARMM. (Resolution No. 268, Rule XVIII, Section 2(g))

Enacting Clause. The clause that states the authority under which a bill will be enacted. The standard formulation is: “Be it enacted by the Bangsamoro Parliament:” — during the BTA period, the form is: “Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:” (Resolution No. 268, Rule XVII, Section 7(e))

Enumerated Powers. The fifty-five subject areas listed in Article V, Section 2 of the BOL over which the Bangsamoro Government has legislative authority. These include education, health, agriculture, environmental protection, local governance, and many others.

Executive Session. A session that is generally closed to the public, involving matters of regional security, public safety, public health, or subject matters that may be offensive to decency and public morals. (Resolution No. 268, Rule VI, Section 3(d))

Explanatory Note. A document attached to a bill that sets out the purposes, background, and reasons for introducing the bill. Although described as optional in the Rules, it is included with every bill filed in practice. (Resolution No. 268, Rule XVII, Section 7(a))

First Reading. The first stage of legislation, during which the Secretary-General reports the bill to the Parliament by reading its number, title, and author, followed by the Speaker's declaration of whether it is a Government bill or a Private Member bill. (Resolution No. 268, Rule XVIII, Section 2(a))

Floor Amendment. An alteration or amendment to a bill offered by an individual Member of Parliament during the period of amendments in plenary session. Also called an individual amendment. (Resolution No. 268, Rule XVII, Section 15(b))

General Welfare Clause. The provision in Article V, Section 3 of the BOL that gives the Bangsamoro Government the power to enact legislation for the general welfare of the Bangsamoro people, in addition to the enumerated powers. This clause broadens the Parliament's legislative authority beyond the fifty-five enumerated subjects.

Germaneness. The requirement that an amendment must relate to the subject matter of the bill being amended. An amendment that introduces a provision not germane to the purpose of the bill — a "rider" — is not permitted. (Resolution No. 268, Rule XVII, Section 13)

Government Bill. A legislative initiative submitted to the Parliament by the Government of the Day for approval or amendment. Government bills have precedence over Private Member bills. (Resolution No. 268, Rule XVII, Section 2(a))

Government of the Day. The executive branch of the Bangsamoro Government, led by the Chief Minister and the Cabinet. Government bills reflect the legislative agenda of the Government of the Day.

Implementing Rules and Regulations (IRR). The detailed rules issued by the implementing agency to carry out the provisions of a law. Many bills include a provision requiring the promulgation of an IRR within a specified period from the law's effectivity.

Interpellation. The period during plenary deliberation when Members of Parliament may ask the sponsor of a bill questions about its provisions, purpose, and effects. The Majority Floor Leader maintains a list of interpellators. (Resolution No. 268, Rule XIX, Section 3)

Joint Committee Resolution. A resolution of two or more committees expressing the will or action of the Members on certain matters, requiring the majority vote of all the committees concerned. (Resolution No. 268, Rule XVII, Section 5(c))

Journal. A concise and accurate account of the proceedings of what has taken place in every plenary session. The Journal is certified by the Secretary-General and is open to the public. (Resolution No. 268, Rule XXVII, Sections 1 and 2)

Long Title. The formal title of a bill that describes its purpose and content. The long title must accurately reflect the bill's contents and comply with the one-subject, one-title rule. (Resolution No. 268, Rule XVII, Section 7(c))

Mace. A symbol of the Parliament's authority, displayed at the foot of the Speaker's rostrum whenever the Parliament is in session. It serves as the warrant for the Sergeant-at-Arms to enforce order. (Resolution No. 268, Rule XXXI, Section 5)

Majority Floor Leader. The Member who directs deliberations on the floor, chairs the Committee on Rules, prepares the Order of Business, and determines the order of recognition for Members to speak. The Majority Floor Leader also acts as the Whip for the Majority. (Resolution No. 268, Rule IV, Section 6)

Member of Parliament (MP). The official title of Members of the Bangsamoro Parliament. (Resolution No. 268, Rule I, Section 5)

Minority Floor Leader. The Member who speaks on behalf of the Minority, serves as vice chair of the Committee on Rules, and is an ex officio member of all committees with the right to vote. (Resolution No. 268, Rule IV, Section 8)

Motion. A proposal made by a Member of Parliament upon which the Parliament or any of its committees shall take proper action. Motions may be main motions, subsidiary motions, incidental motions, or privileged motions. (Resolution No. 268, Rule XXI, Section 1)

One-Subject Rule. The requirement that a bill shall only have one subject matter. An amendment that introduces a provision not related to the bill's subject is a prohibited rider. (Resolution No. 268, Rule XVII, Section 13)

Order of Business. The daily agenda of the Parliament, prepared by the Majority Floor Leader and distributed to Members. The standard Order of Business includes, among other items, bills on First Reading, bills on Second Reading, the period of interpellation, the period of amendments, and bills on Third Reading. (Resolution No. 268, Rule VIII, Section 1)

Parliamentary Committee. A permanent committee that exercises continuing responsibility in the legislative activity of the Parliament. Parliamentary committees are organized under the Rules and include the Committee on Rules, the Committee on Accounts, the Committee on Ways and Means, and others. (Resolution No. 268, Rule XII, Section 4)

Period of Amendments. The stage within the Consideration and Deliberation Stage during which committee amendments and floor amendments are proposed, debated, and voted upon. (Resolution No. 268, Rule XVIII, Section 2(d))

Point of Order. A motion that seeks to call the attention of the Speaker whenever a Member believes that proper decorum or procedure is not being followed. No Member may speak for longer than five minutes on a point of order. (Resolution No. 268, Rule XXII, Sections 1-3)

Policy Research and Legal Services (PRLS). The Parliament's office that provides research and technical support to Members and committees in the preparation and analysis of legislation.

Popular Initiative. The process whereby a bill is proposed directly by the people as part of participatory democracy in the Bangsamoro Autonomous Region. The Parliament shall regulate popular initiative through guidelines. (Resolution No. 268, Rule XVII, Section 2(c); BAA No. 13)

Private Member Bill. A legislative initiative introduced by a Member of Parliament who is not a Minister. Private Member bills are subordinate to Government bills in order of precedence. (Resolution No. 268, Rule XVII, Section 2(b))

Privilege Hour. A sixty-minute period held every Thursday of the regular sessions during which any Member may speak on any matter of general interest. Privilege speeches are not to be interrupted except by a point of order or a motion to adjourn. (Resolution No. 268, Rule IX, Section 1)

Proposed Resolution. A document expressing the sentiment or opinion of the Parliament. It does not create or modify a law. Proposed resolutions are the standard legislative vehicle for expressing the Parliament's position on non-legislative matters. (Resolution No. 268, Rule XVII, Section 4)

Quorum. The minimum number of Members required to conduct business. In plenary sessions, a quorum is fifty percent (50%) plus one (1) of all Members. In committee meetings, a quorum is thirty percent (30%) of the committee members. (Resolution No. 268, Rule VII, Sections 1 and 4)

Repealing Clause. A provision in a bill that identifies specific laws, sections, or provisions that are repealed or modified by the new legislation. A specific repealing clause identifies the exact provisions being repealed. A general repealing clause provides that all inconsistent laws are repealed — but this should supplement, not replace, specific repeals.

Residual Clause. The principle that powers not expressly granted to the Bangsamoro Government under the BOL are reserved to the national government. This is the counterpart to the enumerated powers. The drafter must ensure that a bill does not intrude upon powers reserved to Congress.

Resolution No. 268. The resolution adopted by the Bangsamoro Transition Authority Parliament that provides for the Rules, Procedures, and Practices of the Parliament. It is the primary procedural authority for all legislative proceedings in the Bangsamoro.

Rider. An amendment that introduces a provision not germane to the subject of the bill. Riders are prohibited under the one-subject rule. (Resolution No. 268, Rule XVII, Section 13)

Second Reading. The stage during which a bill is read in full (or copies are distributed), the sponsor delivers the authorship speech, and the bill is referred to the appropriate committee. (Resolution No. 268, Rule XVIII, Section 2(b))

Secretary-General. The officer accountable to the Parliament and the Speaker who manages the administrative operations of the Parliament, records proceedings, certifies Journals, serves as custodian of records, and performs other duties as prescribed. (Resolution No. 268, Rule V, Section 1)

Separability Clause. A provision stating that if any portion of the law is declared unlawful or unconstitutional, the other provisions not affected by such declaration shall continue to be in full force and effect. (Resolution No. 268, Rule XVII, Section 7(h))

Sergeant-at-Arms. The officer responsible for the discipline and security of the Parliament, including maintaining order in the session hall, implementing instructions of the Speaker, and serving processes issued by the Parliament. (Resolution No. 268, Rule V, Section 2)

Shari'ah. Islamic law. Under the BOL, Shari'ah governs personal, family, and property relations involving Muslims in the Bangsamoro. The Parliament has authority to legislate on matters involving Shari'ah within the scope of the BOL (Article X, Section 4), including the jurisdiction and procedures of Shari'ah courts (Article X, Sections 7-10).

Short Title. A brief, commonly used name assigned to a law within its preliminary provisions — for example, "This Act shall be known as the 'Bangsamoro Education Code.'" The short title is used for convenience in citation.

Simple Resolution. A measure used by the Parliament to take action affecting its own procedures, address urgent matters requiring immediate action, or express an opinion, sympathy, or commendation. Simple resolutions are not subject to the ordinary stages of legislation. (Resolution No. 268, Rule XVII, Section 5(a))

Speaker of the Parliament. The Presiding Officer of the Parliament, elected by a majority vote of all Members. The Speaker opens, conducts, and closes sessions; signs all acts, resolutions, and bills; and exercises administrative supervision over the legislative personnel. (Resolution No. 268, Rule IV, Section 4)

Sponsorship Speech. See **Authorship Speech**. The terms are used interchangeably, though "authorship speech" is the term used in Resolution No. 268.

Statutory Committee. A permanent committee provided under the BOL and the Rules. The Parliament has seventeen statutory committees covering subjects such as finance, education, environment, health, and justice, among others. (Resolution No. 268, Rule XII, Section 3)

Substitute Bill. A complete replacement of a bill's text offered as an amendment. A substitute bill must cover the same subject as the original bill — it may not introduce a subject distinct from the original. The substitute must be submitted in writing. (Resolution No. 268, Rule XVII, Section 14)

Sunset Clause. A provision that sets an expiration date for a law or a program, after which it ceases to have effect unless renewed by the Parliament. Sunset clauses are used for pilot programs, temporary measures, or laws that require periodic review.

Swift Passage Procedure. A procedure for the speedy disposition of a bill in seven (7) working days that skips the detailed committee scrutiny stage. The Swift Passage Procedure allows cross-party or free conscience voting. It is used in exceptional cases. (Resolution No. 268, Rule XVIII, Section 4)

Third Reading. The final stage of legislation, during which there is a final debate on whether to pass the bill. No amendment may be considered at Third Reading. Printed copies of the bill must have been distributed to Members at least three days before voting, unless the bill is certified as urgent. (Resolution No. 268, Rule XVIII, Section 2(e))

Transitory Provisions. Provisions in a bill that address the transition from an existing regime to the new regime established by the bill. Transitory provisions may cover existing licenses, pending applications, current officeholders, and other situations that require a bridge between the old law and the new.

Ultra Vires. A Latin term meaning "beyond the powers." A bill that exceeds the Parliament's legislative authority — because it conflicts with the Constitution, the BOL, or invades powers reserved to the national government — is ultra vires and may be struck down by the courts.

Unfinished Business. Matters being considered by the Parliament at the time of adjournment of the preceding session. Their consideration shall be resumed until disposed of. (Resolution No. 268, Rule XXV, Section 1)

Wali. The honorary head of the Bangsamoro Autonomous Region who performs ceremonial functions, including opening the inaugural session of the Parliament through the banging of the agong. (BOL, Article VIII; Resolution No. 268, Rule III, Section 2)

Whereas Clause. A recital in the preamble of a resolution that states the justifications, reasons, or factual basis for the resolution. Whereas clauses are numbered and arranged in a logical, deductive sequence.

Back to Table of Contents